

West Lancashire Local Plan

2012-2027

Development Plan Document



October 2013

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Foreword



West Lancashire has a wonderful mix of vibrant towns and picturesque villages, and boasts some of the most beautiful and productive countryside in the UK. It is vital that we manage, guide and encourage development within the Borough to meet the economic and social aspirations of our towns and villages and the communities within them, while protecting our environment for future generations.

This Local Plan 2012-2027 Development Plan Document has been developed by considering all the information provided by the Council's evidence base and the results of previous public consultations on the Core Strategy and the Local Plan and takes into account the latest guidance issued by the Government on preparing local planning policy, most notably the National Planning Policy Framework.

As such, the Local Plan is extremely important for the future of the Borough and will directly or indirectly affect all residents and communities within the Borough. It will bring investment and sustainable development to positively benefit the Borough in economic, social and environmental terms.

This document has only been made possible through the hard work and dedication of our Council officers, under the direction of the Assistant Director Planning, John Harrison. I would also like to thank all of the Members of the Council who have been involved in formulating this Plan.

If you require any assistance or further information please do not hesitate to contact the Planning Policy & Implementation Team who will be pleased to help and whose contact details are provided on the next page.

Councillor Martin Forshaw

Portfolio Holder for Planning and Development

West Lancashire Borough Council

October 2013

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Chapter 1 Introduction

1.1 The West Lancashire Local Plan

1.1 Future development within the Borough of West Lancashire over the next 15 years will be guided by the plans and policies within the Council's West Lancashire Local Plan 2012-2027 Development Plan Document. This Development Plan Document supersedes the current West Lancashire Replacement Local Plan 2001-16 and its preparation has fulfilled the requirements set out in the Planning and Compulsory Purchase Act 2004 and the accompanying Town and Country Planning (Local Planning) (England) Regulations 2012 in preparing a Development Plan Document for the Borough and has followed the guidance set out in the National Planning Policy Framework (March 2012).

1.2 The new-style Local Plan is built upon the principles of:

- Sustainable development;
- Stimulating economic and housing growth;
- Addressing climate change;
- Preserving and enhancing the natural and built environment;
- Spatial planning;
- High quality design;
- Good accessibility; and
- Community involvement.

1.3 A key difference compared to the previous Local Plan system is the concept of spatial planning, which does not just take into account land use, but also considers other issues that could indirectly affect, or be affected by, land use, such as health, education and crime.

1.4 The West Lancashire Local Plan 2012-2027 contains a vision and strategy that sets out how the Council wants West Lancashire to develop over the period to 2027. It not only ensures that new homes, jobs and services required by communities are located in the most sustainable places, but also provides the framework for delivering the necessary infrastructure, facilities and other development to make this possible.

1.2 Preparing the Local Plan

1.5 The West Lancashire Local Plan 2012-2027 DPD (previously the West Lancashire Core Strategy) has gone through a number of stages in its preparation. These are explained in summary below and in Appendix A, together with a summary of the consultation responses through the preparation of the Core Strategy and Local Plan.

1.6 The preparation of the Local Plan has followed an established process in line with the latest legislation, most notably the Town and Country Planning (Local Planning) (England) Regulations 2012.

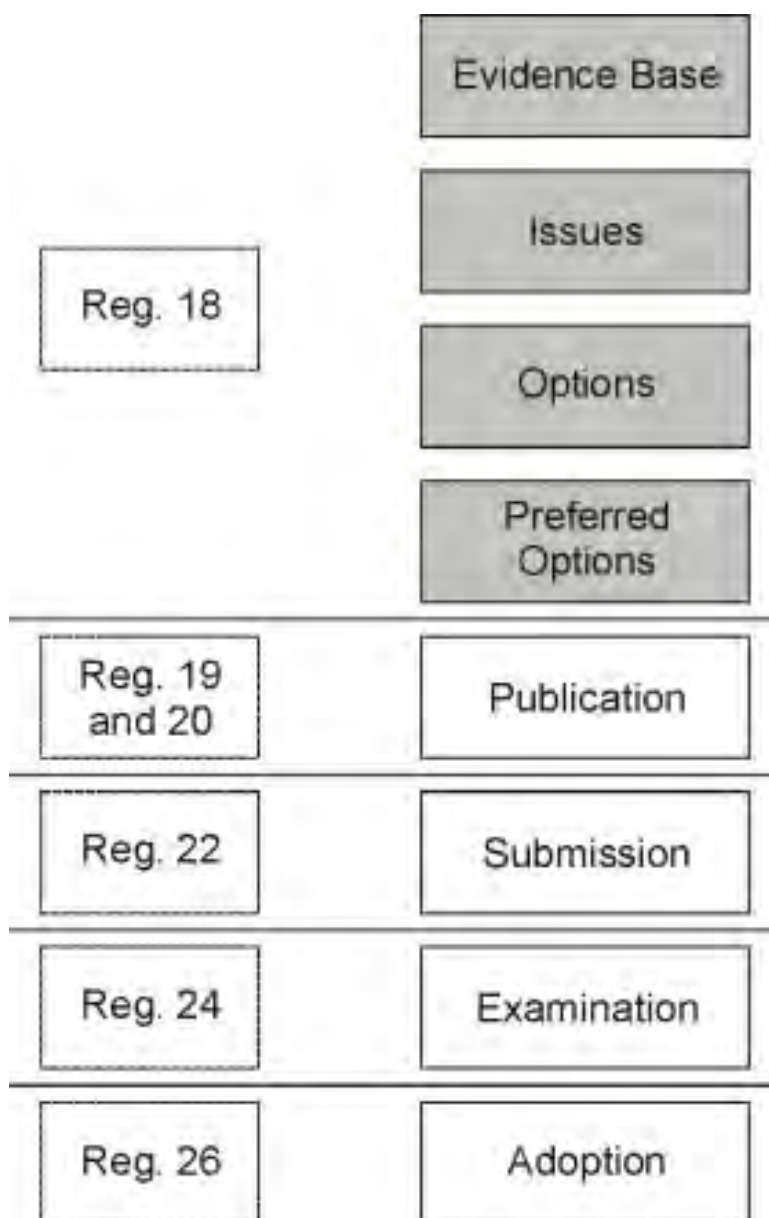


Figure 1.1 The Local Plan Preparation Process

Stage 1: Evidence Base

1.7 It is important to gather up-to-date and comprehensive information in order to support the Local Plan; this is known as the 'evidence base'. We have collected information on a range of topics to directly inform the preparation of policy and this is all available on the Council's [website](#).

1.8 Although the Council started work on the evidence base back in 2006, it was not until 12th February 2008 that we formally began preparing the Core Strategy. This was marked by consultation on the Sustainability Appraisal Scoping Report, which is available to view on the Council's [website](#). Work on the evidence base is ongoing and will continue to be even beyond adoption of the Local Plan, as it is vital that the Council maintains a thorough and up-to-date evidence base that reflects the changing context of the Borough and informs the implementation of the Local Plan.

Stage 2: Issues

1.9 In preparing a Local Plan it is crucial to be aware of the issues facing West Lancashire, as identified through the evidence base and through consultation with the public and stakeholders. Consultation on the issues facing the Borough was conducted via workshops at the Local Strategic Partnership (LSP) Annual Conference and Spatial Forums in June and July 2008, and also the release of the Issues Questionnaire in January / February 2009.

1.10 The purpose of the Issues stage was to provide an opportunity for the local community, businesses and other key stakeholders to identify key issues affecting the Borough, and to put forward their views. During this stage, we also met with key organisations and infrastructure providers to discuss infrastructure constraints across the Borough and how these may affect the deliverability of local planning policy. In addition, the Council consulted on the subject of the Core Strategy in August 2009, in terms of what it should contain and to confirm the issues that it should address.

Stage 3: Options

1.11 The Options Paper is an important stage in the preparation of the Local Plan and such an Options Paper for the Core Strategy was published in September 2009 for public consultation. Interpreting the evidence base and the results of consultation during the Issues stage, it presents a draft vision of West Lancashire in 2027, and five alternative strategic options for the future development of the Borough. The options indicated various ways of addressing the key issues and achieving the vision. They also showed how settlements might change and the different amounts of development that they may accommodate. The document also contains possible approaches towards key planning issues for the Borough:

- Skelmersdale Town Centre
- Edge Hill University
- Affordable housing;
- Gypsy & Traveller sites;
- Older people;
- Infrastructure; and
- Climate change.

Stage 4: Preferred Options

1.12 Following the Options stage, a Core Strategy Preferred Options Paper was prepared for public consultation in May / June 2011, taking into account emerging evidence, changing regional and national planning policy and the views expressed by the public and stakeholders on the strategic options. It essentially set out a proposed (and preferred) way forward for the Core Strategy in terms of what areas policy should cover and what policy in those areas will seek to achieve. It also included options for identifying land for release from the Green Belt for development before 2027.

1.13 A Local Plan Preferred Options document was consulted upon in January / February 2012 and provided a further evolution of the previous Core Strategy Preferred Options paper, taking account of the consultation responses received during the previous consultation, changes to the evidence base and the changing national planning policy context and incorporating additional policy on Development Management Policies and Site Allocations.

Stage 5: Publication

1.14 Taking on-board your views from the previous consultations and the release of the National Planning Policy Framework in April 2012, a Publication version of the Local Plan was prepared for a final round of public consultation. The representations received were submitted to the Secretary of State for Communities and Local Government alongside the Publication version of the Local Plan and all accompanying evidence for an Examination in Public.

Stage 6: Examination in Public

1.15 The Publication version of the Local Plan and all its accompanying evidence were submitted for Examination in Public on 31 October 2012. Inspector Roger Clews was appointed by the Secretary of State to examine the Local Plan. The Examination included a Pre-Hearing Meeting held on 19 December 2012 and three weeks of Hearing Sessions from 19 February to 7 March 2013.

1.16 Following the conclusion of the hearing sessions, the Inspector issued a letter to West Lancashire Borough Council on 15 May 2013 setting out his interim views on the soundness and legal compliance of the Local Plan. Discussion at the hearings together with the Inspector's interim views led to the proposal of a number of Main Modifications to the submitted Local Plan. These were publicly consulted upon from 27 June to 9 August 2013 and all representations received were considered by the Inspector.

1.17 Inspector Roger Clews published his final report on the examination into the West Lancashire Local Plan on 26 September 2013, finding that, with the recommended main modifications in his report, the Local Plan satisfies the requirements of Section 20(5) of the Planning and Compulsory Purchase Act 2004 and meets the criteria for soundness in the National Planning Policy Framework.

Stage 7: Adoption

1.18 On 16 October 2013, the modified Local Plan was considered at the Council meeting of West Lancashire Borough Council and Adopted as the Local Plan for the Borough. As such, with immediate affect it becomes part of the Development Plan for the Borough of West Lancashire.

1.3 Technical Assessments of the Local Plan

1.19 It is a statutory requirement that the Local Plan is subject to several technical assessments during its preparation to ensure that it is addressing the specific issues of sustainability, impact on international sites of biodiversity importance, health, equality and impact on rural areas. Therefore, the following assessments of the Local Plan have been prepared and are available to view on the Council's website:

- A Sustainability Appraisal (SA)
- A Habitat Regulations Assessment (HRA) Screening Report and Appropriate Assessment (AA)
- A Health Impact Assessment (HIA)

- An Equalities Impact Assessment (EqIA)
- A Rural Proofing Assessment

1.20 These final assessments provide the culmination of a process of assessment that has been undertaken throughout the preparation of the Local Plan and previous iterations and recommendations of these assessments on the Core Strategy Options and Preferred Options papers and the Local Plan Preferred Options document have been used to improve the Local Plan during its preparation.

1.21 The Habitat Regulations Assessment (HRA) has indicated that the scale and distribution of growth and development that the Local Plan is seeking to achieve in the Borough is likely to have a number of negative effects on protected habitat sites both within and outside the Borough. These effects include disturbance to certain bird species and loss of supporting habitat either directly or as a result of excessive recreational pressures. A number of policies in the Local Plan have been amended in light of these findings to avoid negative impacts on protected habitat sites, and the Council will, where appropriate, work in partnership with other local authorities and relevant bodies to avoid and manage cumulative and in combination impacts of development on these sites. Appendix J provides a list of those allocations within the Local Plan where further HRA / AA work will be necessary at application stage to understand the full impact on international habitat sites and any mitigation that is necessary.

1.22 It should also be noted that the consultants preparing the SA and HRA / AA reports have been working with Council Officers since 2009 as the Core Strategy / Local Plan has been prepared, providing input from a sustainability perspective, as is best practice for integrating SA and HRA into the Local Plan preparation process.

1.4 Planning Policy on Minerals & Waste Developments

1.23 Lancashire County Council has responsibility for identifying sites and policies for Minerals and Waste Development in the County. Therefore, Minerals and Waste issues are not covered in the West Lancashire Local Plan, except where they are relevant and pertinent to the sites or policies being proposed. Examples of where Minerals and Waste issues will be relevant to the Plan will include:

- The designation of Mineral Safeguarding Areas in the Joint Lancashire Minerals & Waste Development Framework - on sites allocated in this Local Plan, it will be necessary to consider the potential impact that development may have on sterilising those minerals, i.e. preventing them being extracted ahead of development;
- Existing permitted mineral sites where they may have potential to affect the amenity of the public if new housing were to be allowed to develop too close to the boundary; and
- Existing and proposed waste sites which may seek to use employment related sites.

1.24 The following map shows where Mineral Safeguarding Areas have been designated within West Lancashire in the Adopted Joint Lancashire Minerals & Waste Development Framework.

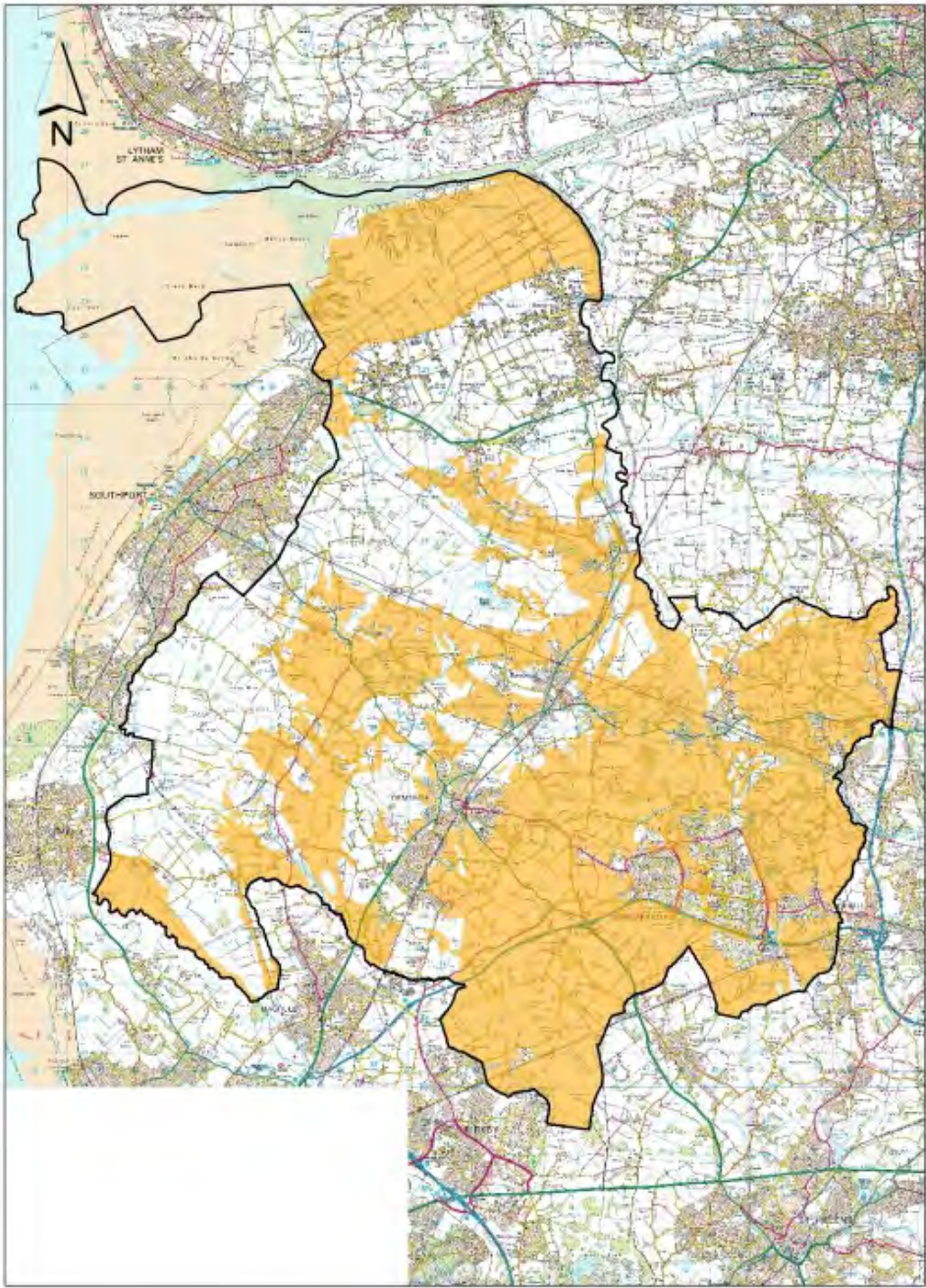


Figure 1.2 Mineral Safeguarding Areas

Chapter 2 Spatial Portrait

2.1 Spatial Portrait

Introduction

2.1 The Spatial Portrait sets the context for the Local Plan by illustrating the key characteristics and features of the Borough that are unique to West Lancashire. The Spatial Portrait has been influenced by engagement with the local community and key stakeholders during the earlier stages of the Local Plan preparation, and key information drawn from data within the Evidence Base, including the thematic and spatial evidence base summary papers.

West Lancashire Borough

2.2 West Lancashire's geographical location in the North West of England is unique. It has a dual identity, being the southernmost Borough in the County of Lancashire, but also located within the Liverpool City Region. The Borough comprises a mix of vibrant towns and villages sitting alongside tranquil countryside and covers an area of 38,109 hectares. The Borough has the greatest amount of Green Belt land in England.

2.3 The Borough is predominately rural in nature, and is widely recognised as an attractive place to live, work and visit. The majority of people live in the Borough's three main settlements: the rapidly maturing New Town of Skelmersdale (including Up Holland); the historic market town of Ormskirk (including Aughton); and the small town of Burscough. There are also three distinct rural areas, the Northern, Eastern and Western Parishes, containing a number of villages, the largest of which are the linear settlements of Tarleton and Hesketh Bank.

2.4 West Lancashire is bordered by the Ribble Estuary to the north and the Borough of Sefton to the west. The Boroughs of Knowsley and St Helens lie to the south, with the Boroughs of Wigan, Chorley and South Ribble lying to the east. West Lancashire is situated within the Liverpool City Region, due to its strong economic, social, cultural and transport links to this area, particularly with Southport and Liverpool. The Borough is also influenced by, and has links to, the Central Lancashire and Manchester City Regions, particularly Wigan. West Lancashire's location within the sub-region is illustrated by Figure 2.1 showing the West Lancashire Sub-Regional Setting, whilst a more detailed map of the Borough is illustrated by West Lancashire Settlements and Rural Areas below in Figure 2.2.

2.5 There are also strong cross-boundary links, as a number of settlements in the Borough physically connect with settlements in neighbouring authorities. In the east, these include connections with Orrell (Wigan) at Tontine and Shevington (Wigan) at Appley Bridge. In the west these include connections with Birkdale (Sefton) at Moss Road and New Cut Lane, Ainsdale (Sefton) at Segar's Lane and Southport (Sefton) at Brown Edge / Southport Road.



Figure 2.1 Sub-regional setting of West Lancashire

Natural and Built Environment

2.6 The Borough contains a large proportion of the best and most versatile agricultural land in Lancashire and the highest total area of local wildlife sites in the County⁽¹⁾. It is home to important wetland sites, including the internationally important Martin Mere and the Ribble Estuary. The River Douglas flows through the east of the Borough, whilst the Leeds-Liverpool canal crosses the Borough from east to west and branches off northwards towards the Lancaster Canal via the Ribble Link. The rural landscape is a mixture of mosslands in the north, west and south, a coastal plain in the centre of the Borough, farmed ridges in the east, and coastal marshes in the Ribble Estuary. Two of the highest points in the Borough are Parbold Hill and Ashurst Beacon which provide spectacular views across the city-region to the Irish Sea and the Welsh Mountains.

2.7 Some areas of West Lancashire are at risk of coastal and fluvial flooding. The highest risk is found in Banks where it is threatened by coastal flooding. Further threats of flooding affect the south west of the Borough from the River Alt and areas near the River Douglas, which stretches through the Borough from Hesketh Bank in the north to Appley Bridge in the south east. Along its route through the Borough the Douglas passes close to a number of settlements including Hesketh Bank, Tarleton, Rufford, Parbold and Appley Bridge. Other areas of the Borough, such as Burscough, are affected by the threat of surface water flooding, particularly following heavy rainfall. More information on the risks of flooding can be found in the Council's [Strategic Flood Risk Assessment](#) and on the [Environment Agency](#) website.

2.8 In terms of tourism, the Borough's major attractions include Martin Mere near Burscough (Wildfowl and Wetland Trust), Rufford Old Hall (National Trust) and Ormskirk market. Key areas for recreation include Beacon Country Park in Skelmersdale, Mere Sands Wood near Rufford, the Leeds-Liverpool Canal and a network of rural footpaths. There are a total of 28 conservation areas across the Borough, and some of the key heritage assets include the Grade I listed buildings of Scarisbrick Hall, Rufford Old Hall, Church of St Michael in Aughton and St Cuthbert Church in Halsall and the Grade I listed remains of Burscough Priory.

Population

2.9 The population of the Borough in 2010 was estimated at 110,300⁽²⁾. This has risen by just under 2% since 2001 when the population was 108,378⁽³⁾. The population is projected to increase further to 116,000 by 2033, equating to an additional 7,622 residents and a 7% increase on its 2001 level. The main change forecast is an increase in the proportion of residents aged over 60 and a decrease of those aged 15-59. The highest increase predicted is to those residents aged 75+⁽⁴⁾.

2.10 There are variations in the population age structure between settlements. In general, the rural areas of the West Lancashire are more attractive to people of middle or retirement age, whilst Skelmersdale has a younger, more varied population structure. Inevitably, over

1 Lancashire County Council AMR 2008

2 ONS Mid Year Estimates 2009

3 Census 2001

4 2008 based Population Projections

Chapter 2 Spatial Portrait

future years, this will create a significant challenge to the delivery of services, provision of an adequate labour force and a suitable balanced housing stock that takes account of the ageing population.

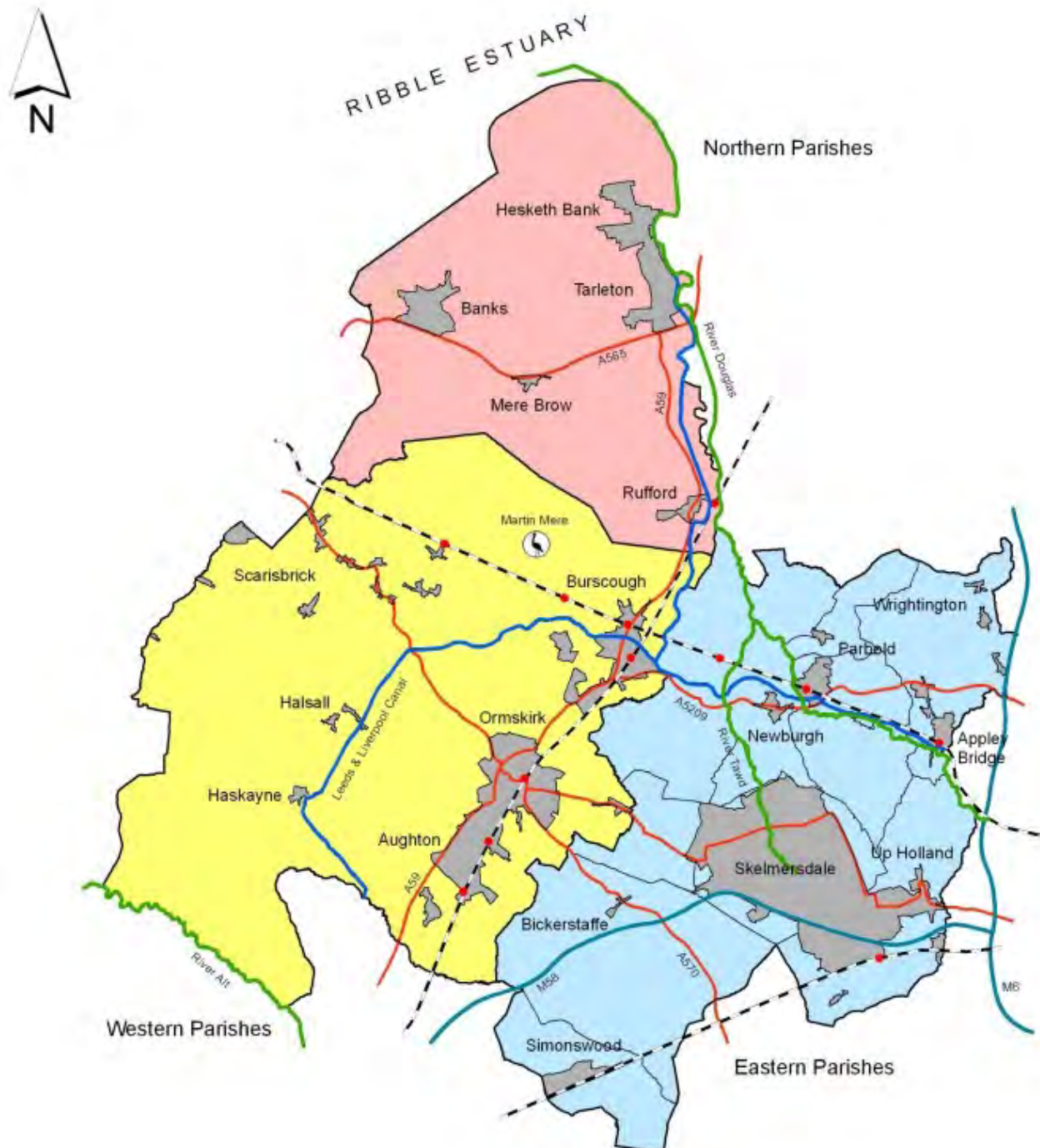


Figure 2.2 West Lancashire Settlements and Rural Areas

Housing

2.11 The average house price in 2010 in West Lancashire stood at £194,899. This is an increase of 106% on the average house price in 2001. The ratio of house prices to income in West Lancashire has also increased each year moving from 3.84 in 2001 to 6.78 in 2010⁽⁵⁾. This means the average property price is now almost 7 times the average annual income. This creates a significant affordability problem for the Borough, particularly in the rural areas where house prices are higher. Some of the highest house prices in the Borough can be found in Rufford, Aughton, Newburgh and Parbold, whilst some of the lower house prices are found in the central wards of Skelmersdale.

2.12 Around three-quarters of dwellings are owner-occupied in the Borough, with the remaining quarter being rented. Whilst the Borough proportion of owner-occupied households is higher than national and regional averages, this proportion drops below 50% in the central wards of Skelmersdale. There is also a poorer choice of housing available in Skelmersdale than in other areas of the Borough.

Deprivation

2.13 West Lancashire has relatively low levels of multiple deprivation, being ranked the 141st most deprived of the 354 English Council areas. However, Skelmersdale is a significant 'hot spot' of deprivation, being the most deprived area in the Borough with 14 of its 23 Lower Super Output Areas (LSOAs) featuring in the top 20% most deprived areas of the country⁽⁶⁾. At the opposite end of the scale, Parbold, Aughton Park and Tarleton have some of the lowest levels of deprivation in the country. This illustrates the stark contrast between Skelmersdale and the rest of the Borough in terms of multiple deprivation, and the need to reduce the gap.

2.14 Some rural areas of the Borough also suffer from certain types of deprivation. For example, the parishes of Downholland, Great Altcar, Bickerstaffe and parts of Scarisbrick are amongst the top 10% nationally most deprived areas in terms of barriers to housing and key local services. This is likely due to their remote locations and high property prices.

Health, Education and Crime

2.15 The health of people in West Lancashire is roughly in line with national averages, with life expectancy at 78 years for men and 81 years for women⁽⁷⁾. However, those living in the most deprived areas of West Lancashire, particularly Skelmersdale, have life expectancies 8 years shorter than those in the least deprived areas. The causes of avoidable deaths of people under 65 can stem from lifestyle choices such as smoking, poor diet and lack of exercise.

5 CLG 2011

6 Indices of Multiple Deprivation 2010, CLG (2011)

7 ONS 2009

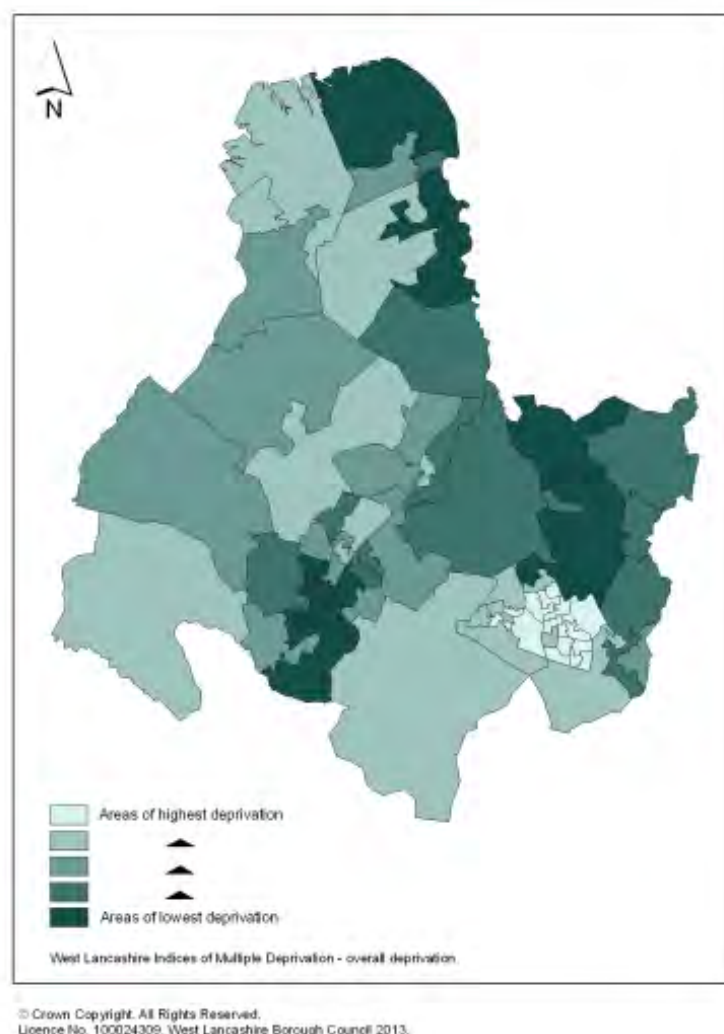


Figure 2.3 Deprivation levels in West Lancashire (IMD 2010)

2.16 Just under a fifth of the Borough's workforce has a degree (or equivalent) or higher in line with national figures. The highest proportions of people with degree level qualifications are found in Aughton, Parbold, Newburgh and Wrightington, which are predominately dormitory settlements for people commuting to other areas, both within and outside of the Borough. Skelmersdale has the highest proportion of people with no qualifications.

2.17 Crime rates in the Borough are relatively low compared with other local authorities in England, and these have steadily decreased over the last few years.

Transport

2.18 The majority of the Borough has relatively good road access to the neighbouring towns of Southport, Preston, St Helens, Wigan and Liverpool. There are also good connections to the wider motorway network via the M58 and M6. However, there is a major issue regarding traffic congestion around Ormskirk Town Centre as a result of the one-way

system on the A570 and there are significant congestion issues at peak times on the A59 through Ormskirk and Burscough. Problems in the Northern Parishes are also found in relation to congestion and issues with HGV's using the centre of the settlements to access rural businesses, particularly along Hesketh Lane in Tarleton.

2.19 Patterns of movement illustrate that around 57% of West Lancashire residents travel to work within the Borough, with the most popular outward destinations being within the Liverpool City Region (especially Sefton) and, to a lesser degree, the Manchester City Region (especially Wigan)⁽⁸⁾. Patterns of inward movement reveal that the most likely origin of commuters who work in West Lancashire are Sefton and Wigan. This is illustrated by West Lancashire Travel to Work Flows (Source: 2001 Census) below.

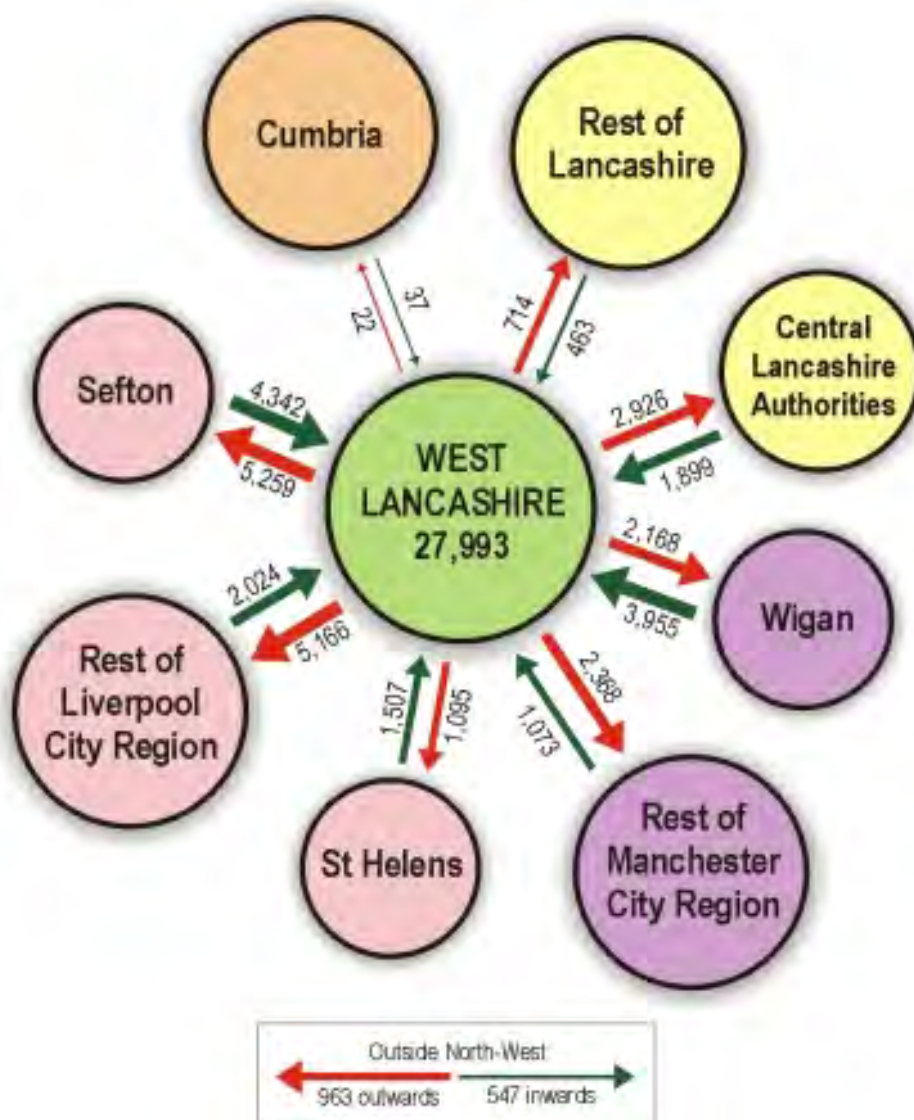


Figure 2.4 West Lancashire Travel to Work flows (Source: 2001 Census)

2.20 Three rail lines running through the Borough provide links to Liverpool, Preston, Southport, Wigan and Manchester, although interchanging between these lines within the Borough can be difficult. Some services, including that between Ormskirk and Preston have infrequent services. The largest town in the Borough, Skelmersdale has no rail provision, with the closest station being located at Up Holland, which itself is only served by an infrequent service and has insufficient parking provision. There are regular bus services between Southport and Wigan, going through Ormskirk and Skelmersdale. However, there is a lack of accessible public transport in Skelmersdale, particularly to support the employment areas and their workforce. Public transport provision in the remainder of the Borough generally is poor, particularly in the rural areas, with infrequent services and a limited range of destinations.

Employment and Economy

2.21 The manufacturing industry in West Lancashire has been in decline and this is coupled with a stronger concentration of service sectors in Ormskirk. The greatest proportions of workers in the Borough are employed in professional occupations, followed by associate professional and skilled trades. Within the Borough, the lowest proportion of residents are employed in process plant and machine and administration and secretarial posts⁽⁹⁾. In the rural areas of the Borough, agricultural and horticultural employers (including packaging industries) play an important role, although these increasingly rely upon migrant or seasonal workers to function.

2.22 The Borough is home to a number of international and nationally recognised companies including Pilkington Group Ltd, ASDA, Co-Operative Bank PLC and Walkers Snack Foods Ltd, in addition to important local employers such as the Council, Lancashire County Council and Central Lancashire Primary Care Trust. Edge Hill University is also an important asset which brings significant benefits for the local economy.

2.23 West Lancashire's retail and night time economy sector is detrimentally affected by a loss of expenditure to other local authorities beyond the Borough, particularly Sefton. At present, more than a third of convenience goods expenditure and 75% of comparison goods expenditure are lost to competing centres outside West Lancashire.

2.24 80% of the West Lancashire working age population were economically active in 2010. However, unemployment has increased over the past 4 years with unemployment levels highest in Skelmersdale. The greatest number of Job Seekers Allowance and Benefit Claimants are found in Skelmersdale. Indeed, 15% of Skelmersdale and Up Holland population claim benefits, equating to 58% of all claimants across West Lancashire.

Skelmersdale (and Up Holland)

2.25 Skelmersdale was a small mining town until the establishment of the New Town in 1961 when it accommodated population overspill from the conurbation of Liverpool and wider Merseyside. It has grown considerably since this time and is now the largest and most densely populated settlement in the Borough, with a population of 35,000 people (2001

9 NOMIS 2011

Census). However, the town has not reached its originally planned capacity of 80,000. Whilst there is an excellent road network with congestion-free roads and connections to the M58, it is one of the largest towns in the country without a railway station.

2.26 Skelmersdale's New Town status has brought mixed fortunes to the town. In addition, the new town housing estates, several of which have Radburn layouts, have left a legacy of varying quality housing and poorly designed estates, where pedestrians are segregated from the road system through a network of footpaths, underpasses and footbridges which many people do not feel comfortable using due to the perceived risks of crime.

2.27 The New Town is divided into clear residential, industrial and retail zones, with 56% of the area being classed as green space. The town centre consists of a number of isolated buildings with poor connections, including The Concourse Centre which provides a relatively limited range of services. The town centre lacks an entertainment and night-time economy and is effectively closed off in the evenings. Consequently, many residents travel further afield to Wigan, Liverpool, Southport and Ormskirk to fulfil their needs.

2.28 Skelmersdale suffers from acute problems of multiple deprivation and, in particular, the Digmoor area of the town is ranked amongst the top 1% most deprived areas in the country. Some of the more severe problems are linked with low income, high unemployment, poor health and low educational attainment. A significant proportion of residents are employed in the town, particularly in retail and manual work in the manufacturing industries, suggesting that the skills base in the town is low. However, the proposed regeneration of Skelmersdale Town Centre aims to act as a catalyst to regenerate the wider area of the town to turn about its fortunes.

2.29 Up Holland, adjoining Skelmersdale to the east, is, in contrast, a more traditional settlement. With a population of 7,180 (2001 Census), it provides a range of local services, although its residents arguably look more towards Wigan than they do to West Lancashire to meet their needs. Up Holland is easily accessible by bus, but the railway station is a considerable distance from the village centre, and only provides a limited service between Kirkby and Manchester via Wigan.

Ormskirk (and Aughton)

2.30 The historic market town of Ormskirk was first established as a settlement in the late Saxon period and is the civic centre of the Borough. Ormskirk, together with Aughton, has the second largest population in the Borough with 31,552 people (2001 Census). The historic character of the town is an important feature and the distinct tower and spire of Ormskirk Parish Church is a unique landmark across the surrounding rural landscape.

2.31 Ormskirk provides a full range of facilities and benefits from a hospital, magistrates court, civic hall and a University. The town is located in a strategic transport corridor with both the A59 (Liverpool-Preston) and A570 (St.Helens-Southport) passing through the town. A bypass has been proposed to alleviate the congestion suffered in the town centre, although the probability of this road being built is currently low. Employment in the town is predominantly provided through the town centre businesses, the Council, the Hospital and

Edge Hill University. There are also business parks at Burscough Street and Southport Road. However, many residents commute to Liverpool, utilising the high-frequency rail service from Ormskirk. A less frequent services is also provided to Preston.

2.32 Aughton is located to the south of Ormskirk and is viewed with Ormskirk as a single settlement in planning terms. Although it covers a large suburban area and has a relatively high population, it has no town centre, and relies upon Ormskirk for all facilities, except for some local services. Aughton has two stations at Aughton Park and Town Green, providing a high-frequency rail service to Liverpool and Ormskirk.

Burscough

2.33 Burscough is the Borough's third largest settlement with a population of 8,668 people (2001 Census). It began as an agricultural village and developed as an industrial centre with the construction of the Leeds-Liverpool Canal and the two railway lines in the mid-19th century, deriving its income from milling wheat grown on the agricultural land. Burscough has developed considerably over recent years, both through new facilities in the town centre, a new supermarket, and the redevelopment of brownfield sites within the settlement, mostly for housing. In addition to the main urban area, Burscough also has a sizeable industrial estate lying a few hundred metres to the west of the town.

2.34 Burscough is located on the A59 and has been known to experience congestion at peak times. Burscough has two railway stations: Burscough Junction providing a link between Preston and Ormskirk, and Burscough Bridge with links to Southport and Manchester. There are also a number of bus routes, with services to Tarleton, Ormskirk, Rufford, Preston and Southport. Close to Burscough is the internationally important Martin Mere Wildfowl and Wetland Trust reserve.

The Northern Parishes

2.35 The largest settlements in the Northern Parishes are the adjoining linear settlements of Tarleton and Hesketh Bank, located adjacent to the River Douglas, Leeds-Liverpool Canal and the Ribble Estuary. Tarleton is the larger of the two settlements with a population of 5,350 people (2001 Census). It has a good variety of services located in the centre and around St. Mark's Square. The secondary school which serves the wider area is located here although the buildings are in need of improvement. It benefits from being situated on the A59/ A565 corridor, enjoying good road access to Ormskirk, Burscough, Rufford, Southport and Preston. A number of bus routes also provide direct links to these locations.

2.36 Hesketh Bank is located to the north of Tarleton with a population of 3,873 people (2001 Census). It has provision for basic services and this provision has recently been enhanced by the development of a Booths food store, but it still looks to Tarleton for some of its local and community services, such as the secondary school, library and other retail provision. Only one bus route runs through Hesketh Bank, providing a link between Southport and Longridge, via Preston. As with the surrounding settlements in the Northern Parishes, employment in Tarleton and Hesketh Bank is largely based upon agriculture, horticulture and produce packing industries. There are issues with traffic congestion in the two villages,

particularly along the main Hesketh Lane / Station Road route. HGVs accessing agricultural and produce packing facilities combine with local traffic, particularly at peak times, and can cause significant problems.

2.37 Banks is located in the north west of the Borough along the A565 corridor, near to the border with Crossens (Sefton). It is located in a high flood risk area and has a relatively small population of 3,792 people (2001 Census). There are a limited range of facilities within the village, and bus routes provide links to Southport, Preston and Chorley.

2.38 Rufford is a small settlement located on the A59 in the north east of the Borough, with a population of 2,048 people (2001 Census). The village lacks basic facilities and looks to Burscough for many of its services. Rufford is reasonably well served by public transport with its own railway station on the Ormskirk to Preston line, and a number of regular bus services providing links to Southport, Preston, Ormskirk, Burscough, Tarleton and Chorley. Rufford contains the heritage asset and tourist attraction of Rufford Old Hall. Other, smaller, settlements in the Northern Parishes include Holmeswood and Mere Brow.

The Eastern Parishes

2.39 Parbold is the largest settlement in the Eastern Parishes with a population of 3,890 people (2001 Census). It is an attractive village which expanded from a small hamlet based around the Leeds-Liverpool Canal. It lies in the Douglas Valley and is close to Parbold Hill. A range of services are provided in the village, which is essentially a commuter settlement with little local employment. Parbold rail station provides a regular service to Southport, Wigan and Manchester, whilst bus services link Parbold to Skelmersdale, Ormskirk, Wigan, Wrightington Hospital and Mawdesley.

2.40 Wrightington Parish has a combined population of 4,055 people (2001 Census). Appley Bridge, the largest village in this parish, is located on the eastern border of the Borough adjacent to Shevington (Wigan), and relies heavily upon the services provided on the Wigan side of the border. The village is surrounded by very attractive countryside, and lies beside the Leeds-Liverpool Canal. Appley Bridge station provides good rail links to Southport, Wigan and Manchester, but suffers from parking problems, being very popular with commuters. Other smaller settlements in the parish are Mossy Lea, Hunger Hill and Wrightington Bar,

2.41 There are also several smaller settlements dispersed across the other Eastern Parishes, including Newburgh, Hilddale, Crawford and several small villages and hamlets within the rural parishes such as Lathom and South Lathom, as well as the Simonswood industrial area.

The Western Parishes

2.42 Scarisbrick is a dispersed settlement, incorporating the areas of Bescar, Brown Edge, Hurlston Green, Carr Cross and Pinfold with a combined population of 3,504 people (2001 Census). There are few facilities shared between these settlements, although local residents look towards Southport (Sefton) and Ormskirk for their services. Scarisbrick is served by a

train station at Bescar Lane but it has a limited service on the Southport-Manchester line. Scarisbrick is located on the main A570 road between Ormskirk and Southport, and has a number of bus routes with regular services to Southport, Ormskirk, Skelmersdale and Wigan.

2.43 Halsall, Haskayne and Shirdley Hill are small rural settlements with a combined population of 1,873, all with limited facilities, located on the Leeds-Liverpool Canal and A5147. Public transport is poor in this area with no train services and only one bus route between Southport and Bootle which runs through Halsall and Haskayne.

2.44 Other settlements in the Western Parishes include Westhead, a small linear village between Ormskirk and Skelmersdale, and Great Altcar, lying on the mosslands east of Formby.

2.2 Key Issues

2.45 The spatial portrait for West Lancashire highlights a number of important issues in the area, which are summarised below. The list of issues is limited to those that it is felt are most important and which can be addressed locally through the West Lancashire Local Plan. The aim is that the list concentrates on locally distinctive issues, although certain issues inevitably apply across much of the country. The issues are not ranked in any particular order of importance or priority.

Skelmersdale	The town suffers from a poor image, areas of deprivation, above average unemployment, below average educational attainment and qualifications, a limited variety of job opportunities and below average health.
Skelmersdale Town Centre	A Masterplan is in place to guide the regeneration of the Town Centre through improved links to the Concourse, Asda, West Lancashire College and Tawd Valley and provision of a greater retail and leisure offer. The delivery of the Town Centre improvements could kick-start regeneration more widely within the town. The Local Plan must build on the principles of the Masterplan to allow a flexible approach to ensure the delivery of the regeneration in a changing economy.
Edge Hill University	The University has expressed a desire to expand; this needs to be done in the most sustainable and acceptable manner. Student accommodation and its integration with the local community is a particular issue in Ormskirk.
Affordable Housing	There is a pressing need for affordable housing across most of the Borough, particularly in the rural areas. The provision of affordable housing should also be based on the viability of development to deliver it.

Specialist Needs Housing	In addition to student and older peoples accommodation, sites may be required for seasonal agricultural and horticultural workers and those with disabilities or special needs (as well as those that care for them).
Gypsy/Traveller Sites	The Borough is required by national policy to provide for Gypsy/Travellers and Travelling Showpeople.
Older People	An ageing population has implications for accommodation, health care, access to services for older people, and the wider economy as the proportion of working age people decreases.
Infrastructure	Many parts of the Borough suffer from limited infrastructure capacity and solutions need to be provided to enable future development needs to be accommodated.
Green Infrastructure	The Borough contains nationally significant wildlife sites, as well as open space and recreational facilities. Appropriate access to, and linkages between, these assets need to be maximised.
Health	Although the Borough on the whole enjoys comparable levels of health with the rest of the Country, there are pockets of poor health in certain areas, most notably Skelmersdale.
Retail	A large proportion of retail expenditure by residents of the Borough is lost to places outside of West Lancashire, particularly for comparison goods, reflecting competition from neighbouring centres.
Employment	The Borough has a varied and wide ranging employment base, including strong agricultural, manufacturing and distribution sectors. It is vital for the economy of the Borough that a wide range of job opportunities, in a wider range of sectors, can be created.
Green Belt	Most settlements have tight Green Belt boundaries and little room for expansion, limiting the options available for future development.
Agricultural Land	Most of the agricultural land in the Borough is classed within the best and most versatile category. Development pressures in the countryside mean that any land lost to future development is likely to be of the best quality.
Traffic Congestion	Whilst this is not a particularly severe issue overall in the Borough, there are local 'congestion hot-spots' in Ormskirk and, to a lesser degree, in Burscough and Tarleton/Hesketh Bank.
Public Transport	Existing routes serving the Borough could be improved, in particular the connections at Burscough and better links to, and a new station in, Skelmersdale. All areas of the Borough, particularly those which are deficient in access to public transport, need to be provided with appropriate access to shops, jobs and other services via a sustainable public transport network.

Flooding and Climate Change	Some parts of West Lancashire are subject to high flood risk (tidal and fluvial) which could restrict development in those areas.
Environment / Heritage	The need for development should be pursued in tandem with the protection, conservation and enhancement of the environment. This includes the safeguarding and enhancement of West Lancashire's distinctive landscapes, its nature conservation and heritage assets, historic places and the public realm.

Table 2.1 Key Issues

Chapter 3 A Vision for West Lancashire 2027

3.1 Vision

The West Lancashire of 2027 will continue to be an attractive place where people want to live, work and visit. Major steps will have been made in the regeneration and sustainable growth of Skelmersdale, Ormskirk / Aughton and Burscough and the sustainability of rural settlements.

The Borough will retain its local character but will also capitalise on its highly accessible location within the North West and its links with the three city-regions of Liverpool, Manchester and Central Lancashire. It will readily adapt to change and tackle the major issues of climate change, economic variations, supply of affordable housing and an ageing population.

West Lancashire's rural and urban communities will be stronger and more sustainable. They will maintain their individual identity and offer residents better access to services, facilities and the housing market. New and renovated housing, particularly affordable housing and appropriate housing for the elderly, will be designed to meet people's needs.

Economic development will play to the key strengths and resources of West Lancashire by diversifying the employment base in Skelmersdale, Ormskirk and Burscough, with small-scale employment opportunities in the rural areas. Employment opportunities and skills training will be targeted at deprived areas to build up a strong and diverse economy across the whole Borough.

The identity and unique landscape of West Lancashire will be valued, sustained and enhanced, enabling people to access and enjoy all that it offers. This will incorporate:

- The Borough's heritage assets (archaeological, built and landscape)
- Its important wildlife, habitats and biodiversity
- Its vital agricultural role
- Its green spaces and waterways and;
- Its attractive countryside, including the "Ribble Coast and Wetlands Regional Park"

West Lancashire will be prepared for the effects of climate change and be doing its part to reduce reliance on carbon-based technologies in favour of renewable, 'green' technologies, thus reducing the effects of climate change and protecting the borough's natural environment. Sustainable modes of transport will have been encouraged and the use of private vehicles will be significantly reduced.

By 2027, the social, health and economic inequalities between **Skelmersdale** and the rest of the Borough will have been reduced. Skelmersdale's image will have been improved markedly by relevant organisations working with the Council on the regeneration and renewal of housing estates and a major town centre expansion scheme providing better retail, leisure, transport and public buildings to serve the whole Borough.

The improved town centre and better quality housing, in terms of design, mix and tenure, will attract new residents to the town and help to meet Skelmersdale's ongoing housing needs. This will, in turn, encourage stronger community and voluntary sector organisations to flourish.

We will have worked with local businesses and education providers, including a rejuvenated West Lancashire College, to raise educational attainment, enhance training and development opportunities and tackle worklessness, leading to a more skilled local workforce with higher aspirations. Improved industrial estates and provision of new employment land will lead to a greater range of employers and jobs in the town resulting in a better quality and variety of job prospects for its residents and the retention of the trained and skilled workforce.

Improved bus and rail facilities, and a network of useable, well-maintained and safe cycle and pedestrian routes will mean easier access to education, employment and other key services such as health care, helping to reduce health inequalities between Skelmersdale and the rest of West Lancashire.

High quality maintenance of the town's recreational features and extensive areas of green open space, including the Tawd Valley and wooded cloughs, will encourage increased use and enjoyment by townspeople and visitors. This will improve Skelmersdale's image locally and play a part in improving people's general wellbeing and health.

In 2027, the Historic Market Town of **Ormskirk** will maintain its important role as a Key Service Centre, providing a good range of retail, leisure facilities and key services for residents of the town and the surrounding rural areas. Edge Hill University will continue to be a key economic driver for Ormskirk with an important role across the wider Borough and wider sub-region.

The Council and other organisations will have addressed problems of town centre traffic congestion and improved the general attractiveness of the town centre with increased accessibility by public transport, cyclists and pedestrians.

Ormskirk's links with Liverpool and Merseyside will be strengthened. Rail services to Burscough, Preston and Southport will have been improved, making the town more accessible to other parts of the North West.

Burscough in 2027 will have retained its role as an attractive Key Service Centre, providing a range of facilities for local people. The town's role as a local employment hub for surrounding rural areas will be reinforced with sustainable growth of the industrial and business areas linked to the town centre. Also, Burscough's access to public transport will be enhanced.

Working with utilities providers and developers, the Council will ensure that appropriate infrastructure improvements will be in place for necessary new development. Burscough's tourism and recreational potential will be maximised by drawing on attractive features such as the Leeds-Liverpool Canal heritage, the surrounding countryside and Martin Mere.

In 2027, the **rural areas** of West Lancashire will continue to thrive off a strong agricultural sector, whilst enhancing biodiversity and providing a more diverse and adaptable economy. Appropriate new employment opportunities in the rural areas will include home-based working, facilitated by high-speed broadband. The larger villages within rural areas will be sustainable hubs for local services, at the centre of sustainable rural communities.

The unique landscape and varied biodiversity of rural West Lancashire will continue to be valued both for its natural environment and as a recreational resources. Sustainable tourism will be based on the attractive countryside and local heritage (particularly along the Leeds-Liverpool Canal, and the Ribble Coast and Wetlands Regional Park).

The Northern Parishes area (including Tarleton, Hesketh Bank, Banks, Mere Brow and Rufford) will continue its important horticultural role. Derelict sites will be regenerated to help meet local housing and employment needs. Inappropriate development in flood risk areas will not have been allowed and where development has been considered appropriate, it will have been managed to ensure it will not be at an unacceptable risk of flooding or exacerbate flood risk elsewhere.

The Western and Eastern Parishes rural areas will benefit from improved accessibility through good public transport links to Local and Key Service Centres such as Ormskirk and Skelmersdale and neighbouring urban areas such as Sefton and Wigan. The pleasant built and natural environment of these rural areas will be sustained and conserved.

3.2 Spatial and Strategic Objectives

3.1 To deliver the Vision for West Lancashire in 2027, as set out above, a number of realistic objectives have been prepared. These objectives are SMART (Specific, Measurable, Achievable, Realistic, Time-bound) so ensuring that the Vision can be delivered and to enable progress in achieving the Vision to be monitored.

3.2 The initial objectives were prepared for the Options stage of the Local Plan, and following consultation, have been amended to take into account recommendations and suggestions received through the consultation exercise. The revised Spatial and Strategic Objectives for the Local Plan are presented below.

3.3 Government guidance requires the key objectives to be linked with indicators and targets. How these objectives will be monitored (the indicators that will be used) are detailed in Appendix B of this report. As preparation and implementation of the Local Plan progresses, the indicators and targets may be revised in accordance with Plan-Monitor-Manage guidance.

3.4 The objectives embrace the aims and visions of other key strategies and plans important to West Lancashire, including the West Lancashire Sustainable Community Strategy (SCS) and the Local Area Agreement (LAA).

Objective 1 - Stronger and safer communities

To have strong and vibrant communities, in which both young and old people are actively engaged and where people feel safe and secure.

More active voluntary and community sectors will lead to the development of a high degree of community participation and increased pride in neighbourhoods. Crime levels will reduce further, with an active Community Safety Partnership giving residents a greater sense of security.

Objective 2 - Education, training and the economy

To create more, and better quality, training and job opportunities to get more people into work

A new West Lancashire College and improved facilities at Edge Hill University will help provide a highly trained workforce; combined with improved results at secondary school level, particularly in Skelmersdale. Improved and new employment land will be found in the main urban areas, with small scale rural employment opportunities also encouraged through a diversified rural economy.

Objective 3 - Health

To improve the general health of residents and promote social well being through high quality green infrastructure and cultural activities.

Residents will be encouraged to live a healthier lifestyle through increased leisure and sports opportunities. Green Infrastructure and Open Spaces will be readily accessible and improved. There will be improved access to health facilities. Social and cultural facilities will be provided to a high standard and be accessible to all communities.

Objective 4 - Natural Environment

To protect and improve the natural environment, including biodiversity and green infrastructure in West Lancashire.

A range of sites will continue to be protected and enhanced for their biodiversity and geodiversity interest. The number of important sites will be increased where possible and new developments will contribute to increasing biodiversity. The Ribble Estuary will continue to be developed as a site of national and international importance, as will the facilities at Martin Mere. The landscape and biodiversity will be protected and enhanced through the management of important features and through appropriate and well designed new developments.

Objective 5 - Housing

To provide a range of new housing types in appropriate locations to meet the needs to West Lancashire's population, including affordable housing and specialist accommodation.

An average of at least 302 new homes (2012-2017) and 335 new homes (2017-2027) a year should be provided to meet the current requirements of strategic planning policy. They will be concentrated, where available, in the major urban areas where services and transport facilities are greatest and development will be encouraged on brownfield sites. The needs of all sectors of the community will be catered for through the provision of lifetime homes. New extra care facilities will be developed for the elderly. Suitable student accommodation will also be provided in appropriate areas within Ormskirk to address the needs generated by Edge Hill University. As the policy for Travellers' sites will now be subject to a separate DPD, the objectives in relation to provision of such sites will be set within that DPD.

Objective 6 - Services and Accessibility

To provide good quality services that are accessible to all, and to promote the vitality and viability of town and local centres which are well linked to their rural hinterlands and neighbouring City Regions. All new development should be located in areas that are accessible and which have a range of services.

The Borough's town and village centres should continue to be attractive centres that provide a range of services for local residents. The important function of the towns of Ormskirk and Burscough as Key Service Centres will be protected and enhanced. Public transport links through both rail and bus should be enhanced to improve the accessibility of key centres and their links to the centres of City Regions - Liverpool, Manchester and Preston. The regeneration of Skelmersdale Town Centre through the provision of new retail, leisure, housing, community and educational facilities will be vital to the development of the town as a whole. Development will be located mainly in the centres which have the greatest numbers of jobs and services available and which are accessible by public transport.

Objective 7 - Location of development and built environment

To ensure that development is designed to a high quality, is appropriate for its locality and makes efficient use of land and resources, avoiding areas of significant constraint and minimising pollution. Heritage assets and their settings will be conserved and enhanced. The unique character and features of local areas will be protected and reinforced through new development and other initiatives.

Design quality will be greatly enhanced, with all development respecting the local area. The unique heritage of West Lancashire will be protected and enhanced wherever possible. New development will be distributed to appropriate locations across the Borough.

Objective 8 - Climate Change

To mitigate and adapt to climate change through a variety of measures including correctly locating and designing new development, reducing energy consumption, having sustainable alternative energy sources, and minimising waste and increasing recycling.

New development will be steered to areas which are not at risk of flooding and which are in sustainable locations, will use low carbon technology and will make the best use of opportunities for renewable energy provision.

Objective 9 - Skelmersdale

To make Skelmersdale an attractive and vibrant place to live and work and reduce the social inequalities between the town and the rest of the Borough.

A new regenerated Skelmersdale Town Centre will better serve the needs of its residents and the wider Borough. New housing and improvements to the existing older new town estates and the existing green infrastructure will also take place. Transport links will be improved with more extensive and frequent services and the aim of providing a rail station for Skelmersdale. Health and educational inequalities with the rest of the Borough will also narrow. All these factors will make Skelmersdale a more attractive place to live and will bring in new people to live in the town.

The importance of monitoring

3.5 Local Plans have major effects, including social, economic, cultural and environmental impacts. It is therefore essential that Local Plans are based on thorough evidence. Evidence, however, is changeable with time, and it is important that data that informs the Local Plan is monitored to enable the planning system to respond to any changes accordingly.

3.6 Monitoring is an essential part of an effective strategy and provides two main roles:

- To set targets or measurable outcomes in relation to what the Local Plan is seeking to achieve
- To monitor performance as to whether the Local Plan policies are working as intended and, if not, whether they need amending. Contingency plans can also be set to trigger to address the issues.

3.7 Monitoring also enables performance to be measured against any relevant national and regional targets in order to highlight any significant differences in performance.

3.8 It is important that a Local Plan includes a Vision, strategic objectives, a delivery strategy and clear arrangements for managing and monitoring the delivery of the strategy. Monitoring is an essential part of the planning process forming the cyclical chain of Plan-Monitor-Manage. By monitoring the success of each objective, using indicators, contingency plans can be introduced if policies are failing, or policies can be adapted in light of changing circumstances, thereby enabling the delivery of the strategy to be well managed.

3.9 Monitoring of the Local Plan will be reported through the Council's Annual Monitoring Report (AMR), published each year. The Sustainability Appraisal's 'Significant Effects Indicators' (SEI's) will be incorporated into future AMRs as well.

Meeting the Objectives

3.10 The Local Plan must employ policies that work to fulfil the Spatial and Strategic Objectives set out in the previous chapter. The matrix table below illustrates which objectives each proposed policy in the following chapters is seeking to fulfil. Overall, it can be seen that the Local Plan, if implemented and delivered as proposed, will play a key role in meeting the Spatial and Strategic Objectives, and, in turn, will make a key contribution in delivering the objectives of the Sustainable Community Strategy for West Lancashire 2007-2017, which has directly influenced the Local Plan Spatial and Strategic Objectives.

Policy	1. Stronger and safer communities	2. Education, training and the economy	3. Health	4. Natural Environment	5. Housing	6. Services and accessibility	7. Location of development and built environment	8. Climate change	9. Skelmersdale
SP1: Sustainable Development Framework	Yes	Yes	Yes	Yes	Yes	Yes	Yes	Yes	Yes
SP2: Skelmersdale Town Centre	Yes	Yes	Yes		Yes	Yes	Yes		Yes
SP3: Yew Tree Farm, Burscough		Yes	Yes		Yes	Yes	Yes	Yes	
GN1: Settlement Boundaries				Yes			Yes		
GN2: Safeguarded Land				Yes			Yes		
GN3: Criteria for Sustainable Development	Yes			Yes	Yes		Yes	Yes	
GN4: Demonstrating Viability		Yes					Yes		
GN5: Sequential Tests					Yes		Yes		

Policy	1. Stronger and safer communities	2. Education, training and the economy	3. Health	4. Natural Environment	5. Housing	6. Services and accessibility	7. Location of development and built environment	8. Climate change	9. Skelmersdale
EC1: The Economy & Employment Land		Yes				Yes	Yes		Yes
EC2: The Rural Economy		Yes				Yes	Yes		
EC3: Rural Development Opportunities		Yes				Yes	Yes		
EC4: Edge Hill University		Yes			Yes		Yes		
RS1: Residential Development					Yes	Yes	Yes		Yes
RS2: Affordable & Specialist Housing	Yes				Yes		Yes	Yes	
RS3: Provision of Student Accommodation	Yes				Yes		Yes		
RS5: Accommodation for Temporary		Yes			Yes				

Policy	1. Stronger and safer communities	2. Education, training and the economy	3. Health	4. Natural Environment	5. Housing	6. Services and accessibility	7. Location of development and built environment	8. Climate change	9. Skelmersdale
Agricultural / Horticultural Workers									
RS6: A 'Plan B' for Housing Delivery in the Local Plan				Yes	Yes		Yes		
IF1: Maintaining Vibrant Town and Local Centres	Yes					Yes	Yes		Yes
IF2: Enhancing Sustainable Transport Choice	Yes	Yes	Yes			Yes			
IF3: Services Accessibility and Infrastructure for Growth	Yes	Yes	Yes			Yes	Yes	Yes	
IF4: Developer Contributions	Yes	Yes	Yes	Yes	Yes	Yes		Yes	Yes

Policy	1. Stronger and safer communities	2. Education, training and the economy	3. Health	4. Natural Environment	5. Housing	6. Services and accessibility	7. Location of development and built environment	8. Climate change	9. Skelmersdale
EN1: Low Carbon Development and Energy Infrastructure				Yes				Yes	
EN2: Natural Environment	Yes		Yes	Yes				Yes	Yes
EN3: Green Infrastructure and Open Recreation Space	Yes		Yes	Yes				Yes	Yes
EN4: Cultural and Heritage Assets	Yes			Yes			Yes		

Table 3.1 Policies achieving the objectives

Chapter 4 Strategic Policies

4.1 Policy SP1: A Sustainable Development Framework for West Lancashire

Context

4.1 West Lancashire sits in a strategic geographical position, bordering three city-region areas including the Liverpool City Region, Central Lancashire and Greater Manchester. The majority of the Borough looks towards the Liverpool City Region in terms of its service provision and accessibility. However, West Lancashire falls under the Lancashire Local Enterprise Partnership (LEP). Therefore, whilst it is important to acknowledge the strength of the links with the Liverpool City Region, its economic relationship with the other two city regions should be maintained and strengthened by taking advantage of its beneficial geographical location in the North West to ensure a sustainable economic future.

4.2 In particular, close links with the spatial planning policies of surrounding authorities, especially Sefton and Wigan, need to be fostered and maintained, to ensure that the reality of daily life in the Borough is reflected in local spatial planning policy. The strategic policies of the Local Plan reflect the fact that people and services cross borough boundaries and that parts of West Lancashire rely on services outside the Borough, and so cross-boundary linkages are crucial and need to be maintained and encouraged where they are sustainable.

4.3 New development also has the ability to directly and indirectly deliver various social, economic and environmental benefits. As such, the spatial development framework within the strategic policies of the Local Plan play a central role in delivering the vision and objectives of the Council's Sustainable Community Strategy for West Lancashire 2007-2017.

4.4 A significant proportion of West Lancashire is Green Belt, which serves an important purpose of protecting against urban sprawl and the merging of settlements, while preserving the rural nature of the land. This Green Belt land includes a large proportion of high quality agricultural land, key sites of biodiversity and habitat importance and attractive areas of landscape character.

4.5 These positive attributes of the Borough need protecting and managing, whilst not unduly restricting development. In particular, the high proportion of Green Belt land constrains development around the Borough's key settlements and makes meeting future development needs extremely difficult and so it must be recognised that some Green Belt land will be lost to development, where it is most appropriate.

4.6 Climate change is a global issue which requires local action. Impacts are already being recognised in the UK – the ten hottest years on record have been since 1990. National and local objectives to address climate change will not be achieved without substantial efforts to mitigate the impacts of climate change by reducing energy consumption and increasing energy produced from renewable and low carbon sources.

4.7 Past emissions mean that some climate change is inevitable and therefore we must adapt to the impacts of rising temperatures and sea levels. Factoring climate risk into decision-making means, for example, changing the way we build our homes and infrastructure, managing water better and adjusting farming practises.

4.8 Delivering “low carbon” development will not be straight forward and the Council recognises the limitations of setting construction targets and minimum standards within the Local Plan. Therefore, the approach must be much more strategic, ensuring climate change and energy demands are considered as a fundamental part of the strategic planning policies for development in the Borough and within each policy area.

Policy SP1

A Sustainable Development Framework for West Lancashire

When considering development proposals the Council will take a positive approach that reflects the presumption in favour of sustainable development contained in the National Planning Policy Framework. It will always work proactively with applicants jointly to find solutions which mean that proposals can be approved wherever possible, and to secure development that improves the economic, social and environmental conditions in the area.

Planning applications that accord with the policies in this Local Plan (and, where relevant, with policies in neighbourhood plans) will be approved, unless material considerations indicate otherwise.

Where there are no policies relevant to the application or relevant policies are out of date at the time of making the decision then the Council will grant permission unless material considerations indicate otherwise – taking into account whether:

- Any adverse impacts of granting permission would significantly and demonstrably outweigh the benefits, when assessed against the policies in the National Planning Policy Framework taken as a whole; or
- Specific policies in that Framework indicate that development should be restricted.

New development in West Lancashire will contribute towards the continuation and creation of sustainable communities in the Borough by being sustainable in its construction and use of resources and in its location and accessibility. New development will be promoted in accordance with the following Settlement Hierarchy, with those settlements higher up the hierarchy, in general, taking more development than those lower down and new development being of a type and use that is appropriate to the scale and character of settlements at each level of the hierarchy.

Hierarchy	Settlements
Regional Town	Skelmersdale with Up Holland
Key Service Centre	Ormskirk with Aughton; Burscough
Key Sustainable Village	Tarleton with Hesketh Bank; Parbold; Banks
Rural Sustainable Village	Rufford; Newburgh; Appley Bridge; Brown Edge/Pool Hey; Birkdale/Ainsdale Boundary; Mere Brow; Halsall; Haskayne; Tontine
Small Rural Village	Scarisbrick/Bescar; Shirdley Hill; Holt Green; Stanley Gate; Westhead; Hilldale; Mossy Lea; Hunger Hill; Wrightington Bar; Crawford

The Regional Town and the two Key Service Centres of the Borough will take the vast majority of new development. Spatially and economically, Skelmersdale with Up Holland is the main location for new development throughout the Local Plan period in order to enable the delivery of the town centre masterplan and the wider regeneration of the town. Ormskirk with Aughton and Burscough are also key locations for new development

Development in rural settlements will be focused on the Key and Rural Sustainable Villages. Development in the Small Rural Villages will only be permitted where it involves a like-for-like redevelopment of an existing property, the appropriate re-use of an existing building or infill development (in line with Policy RS1).

All new built development in the Borough will take place within settlement boundaries (as defined in Policy GN1), except where a specific need for development for a countryside use is identified that retains or enhances the rural character of an area. The settlement boundaries encompass land previously included within the Green Belt that is released by this Local Plan. This includes land required for development before 2027, land to be safeguarded for the “Plan B” of this Local Plan and land to be safeguarded for development needs beyond 2027.

Over the life of the Local Plan (2012-2027) there will be a need for **4,860 new dwellings** (net) as a minimum. Similarly, there will be a need for **75 ha** of land to be newly developed for employment uses over the life of the Local Plan. These Borough-wide minimum targets will be divided between the different spatial areas of the Borough as follows:

	Housing	Employment
Skelmersdale with Up Holland	2,100 dwellings	52 ha
Ormskirk with Aughton	750 dwellings	-
Burscough	850 dwellings	13 ha
Northern Parishes	800 dwellings	3.5 ha
Eastern Parishes	100 dwellings	6.5 ha
Western Parishes	260 dwellings	-

The above housing and employment land development has been prioritised to sites within the existing built-up areas of the Regional Town / Key Service Centres and the Key / Rural Sustainable Villages (including appropriate greenfield sites). However, in order to meet the above housing and employment land development targets and to enable a small expansion of the Edge Hill University campus, a small amount of land is proposed for release from the Green Belt in the Local Plan (2012-2027). This land involves five specific sites:

- Yew Tree Farm, Liverpool Road South, Burscough - for 500 dwellings, 10 ha of new employment land and new community infrastructure (see Policy SP3)
- Grove Farm, High Lane, Ormskirk - for 300 dwellings (see Policy RS1)
- Fine Jane's Farm, Moss Road, Halsall - for 60 dwellings (see Policy RS1)
- Land at New Cut Lane, Halsall - for 150 dwellings (see Policy RS1)
- Edge Hill University, St Helen's Road, Ormskirk - 10 ha for new university buildings, car parking and new access road (see Policy EC4)

It is anticipated that the Yew Tree Farm and Grove Farm sites will only begin to be developed from 2015. There must be no discharge to the public sewerage system from either site until appropriate surface water mitigation measures demonstrating a net reduction in wastewater flows arising from the proposed development have been implemented. No surface water from either site shall discharge to the public sewerage system at any time. The planned expansion of the Edge Hill University campus may come forward relatively early in the plan period, subject to the provision of appropriate infrastructure improvements.

In order to deliver sustainable development in West Lancashire, this Local Plan also sets out policies on a range of strategic and planning issues including:

- The regeneration of Skelmersdale town centre (designated as a Strategic Development Site in Policy SP2) and the maintenance of the Borough's other town and local centres;
- Facilitating economic growth in the Borough, including the rural economy;
- Ensuring residential provision for all parts of the community;
- The provision of strategic and local services and infrastructure;
- Addressing climate change through low carbon energy solutions and sustainable design and by avoiding unnecessary flood risk; and
- Protecting and enhancing the valuable biodiversity, landscape, heritage and green infrastructure assets of the Borough.

Should monitoring of residential completions show that development targets for the Local Plan period are not being delivered due to unforeseen circumstances or if new evidence emerges that demonstrates a need to increase residential development targets, the Council may choose to enact all or part of the "Plan B" set out in the Local Plan by releasing land for development that has been removed from the Green Belt and safeguarded for this purpose.

Justification

Sustainable Development and the Settlement Hierarchy

4.9 Sustainable development and sustainable communities lie at the heart of national planning policy as the planning system seeks to ensure a sustainable legacy is left for future generations through the way we deliver new development and growth now. In a borough such as West Lancashire, sustainable development is important in reinforcing the distinction between urban and rural, protecting the natural environment, supporting local agriculture, enabling the economic and social growth of the key settlements and maintaining the character of the area.

4.10 To this end, it is vital that sustainable communities of different scales are created and maintained and linked together via sustainable transport networks. The Settlement Hierarchy provided in Policy SP1 provides the framework for sustainable communities in the Borough, with the Regional Town and two Key Service Centres being the primary sustainable communities that include all essential services and facilities and many desirable services and facilities, as well as good provision of employment opportunities or sustainable access to them. As such, transport connections to these settlements from the smaller settlements in the Borough must be of a high quality and sustainable.

4.11 The Key Sustainable Villages and Rural Sustainable Villages must provide a good number of essential services and facilities, especially the Key Sustainable Villages, as well as some local opportunities for employment, and can therefore be considered sustainable communities, albeit with a dependency on, and sustainable transport connection to, the Regional Town and Key Service Centres for other services and facilities.

4.12 The small rural villages have very few, if any, essential services and facilities or employment opportunities and tend to have poorer transport connections with the Regional Town and Key Service Centres. Therefore, it is accepted that these cannot be considered sustainable communities and development within them should be severely restricted.

4.13 The position of West Lancashire within the North West means that it borders seven other Local Authorities and sits at the intersection of three city-regions (Liverpool City Region, Greater Manchester and Central Lancashire) and, in particular, the population of the Borough have close links with the towns of Southport and Wigan and the cities of Liverpool and Preston. Therefore, in establishing the settlement hierarchy and level of development in each settlement in Policy SP1, the role that these towns and cities play in providing accessible services and employment opportunities to the population of West Lancashire has been taken into account.

4.14 In determining which settlements fall under which level of the settlement hierarchy, reference has also been made to the West Lancashire Sustainable Settlement Study (2010). This sets out what level of provision of local services and facilities there is within each settlement in the Borough and access to services in other settlements in the Borough or across Borough boundaries in Wigan and Sefton. More policy on the provision of local services and facilities and of sustainable transport connections is provided in Chapter 8 of this Local Plan, while the provision of employment opportunities is addressed in Chapter 6.

Focus of development on the Regional Town and Key Service Centres

4.15 Based on the need to provide sustainable development and locate it within sustainable communities, it is natural to therefore focus the majority of development on the Regional Town and Key Service Centres. Policy SP1 does this and, in particular, focuses almost half of all new development in the Borough's only Regional Town, Skelmersdale with Up Holland.

4.16 Skelmersdale with Up Holland is necessarily the priority for development on a number of grounds:

- There is a significant need for regeneration and inward investment in the town to address social deprivation issues and to raise the profile of the town;
- The existing town centre needs to be radically improved and expanded to provide modern and accessible retail, leisure and entertainment facilities in the Borough's only Regional Town (see Policy SP2) - this will require a critical mass of commercially attractive and viable new development;
- There is a significant amount of brownfield land available for development as well as a large amount of greenfield land that serves little environmental purpose and is potentially suitable for development;

- There are no infrastructure / utility constraints in Skelmersdale with Up Holland that would prevent development from coming forward immediately; and
- The regeneration of Skelmersdale is listed as a priority within the Sustainable Community Strategy for West Lancashire.

4.17 The neighbouring settlements of Ormskirk with Aughton and Burscough together form a secondary focus for new development in the Borough. This is because, while both Ormskirk and Burscough are constrained by waste water treatment infrastructure and could both be affected by the impact of new development on highways congestion, both towns have good access to sustainable public transport connections and both already have the majority of local services provided for and the level of additional waste water being created by new development allocated in the Local Plan can be managed while more permanent solutions to the infrastructure constraint are implemented.

4.18 New development in the Key and Rural Sustainable Villages will provide opportunities for new housing (especially affordable housing) and for rural employment opportunities but this must be limited to maintain the rural character of such villages and due to the presence of several constraints, including highways constraints, accessibility via public transport, flood risk and surface water drainage.

4.19 New development will, except in very special circumstances, take place within settlement boundaries. The settlement boundaries are defined in Policy GN1 and are provided on the Policies Map that accompanies the Local Plan. These boundaries reflect the existing edge of the built-up area of the settlements and encompass land proposed to be released from the Green Belt in the Local Plan.

Residential, Employment Land and Retail Targets

4.20 The targets for new residential and employment development are based on locally-determined targets. The methods used to identify local housing and employment targets have been set out in more detail in the Housing and Economy Technical Papers that accompany this document but a brief explanation is provided here.

4.21 The residential target of 4,860 dwellings is comprised of three elements:

- The DCLG interim 2011-based household projections for West Lancashire from 2012-2021 (257 dwellings a year)
- Household growth modelling for the period 2021-2027 (311 dwellings a year)
- The shortfall in provision of housing in the Borough over 2003-2012 against the target set in the North West Regional Spatial Strategy (total shortfall: 679 units)

This equates to an average annual target of 324 dwellings a year over the Local Plan period.

4.22 However, it is apparent that an annual target of 324 dwellings a year will be difficult to meet in the initial years of the Local Plan period in view of the need to release Green Belt land for development, and given that development in a large part of the Borough is somewhat constrained by a waste water treatment infrastructure issue until 2020. Therefore, Table 4.1 proposes staggered annual targets for residential development during the Local Plan period.

	Residential Target
2012-2017	302 dwellings a year
2017-2027	335 dwellings a year

Table 4.1 Annual Residential Delivery Targets

4.23 The 75 ha target for new employment land in the Borough over the Local Plan period has emerged via a calculation derived from the Joint Employment Land and Premises Study (2010) prepared for Halton, Knowsley, Sefton and West Lancashire based on historic delivery rates for employment land.

4.24 The West Lancashire Retail Study Update (December 2011) suggests that the Council should work towards a requirement for up to 7,500 sq.m of additional comparison sales area floorspace in the 2011 to 2021 period rising to 11,000 sq.m in the period up to 2027. In terms of convenience goods, the study suggests that there is a requirement for up to 2,800 sq.m of convenience sales area floorspace in the period 2011 to 2021, in addition to the commitment for a new Booths store in Burscough. In the longer term period to 2027, there is scope for between approximately 2,700 sq.m of additional convenience sales area floorspace under the rising retention scenario, and 3,300 sq.m when an allowance for over-trading is also taken into account.

4.25 These figures are Borough wide and all retail should be focused on the Borough's Regional Town and Key Service Centres to ensure their future vitality and viability. However, the study identifies Skelmersdale as the priority for retail development given the existing under-provision of both comparison and convenience retail floorspace. Policy SP2 aims to address this shortfall through specific regeneration plans, focused on delivering a mixed-use town centre scheme.

Prioritisation of brownfield / greenfield land and releasing land from the Green Belt

4.26 While it has slipped somewhat down the agenda of national planning policy over recent times, the need to prioritise development on brownfield (previously developed) land and protect greenfield (undeveloped) land from development is still an important consideration and is identified in the National Planning Policy Framework. This is highly appropriate given the need for sustainable development and the key principle within sustainable development to wisely use the Borough's existing resources (which includes land).

4.27 However, it is clear that there is not enough brownfield land in West Lancashire to meet the locally-determined targets for residential and employment development. The following table sets out the proportion of the housing and employment targets that should be met through development on brownfield land during the Local Plan period.

	Employment Land Target (ha)	Brownfield Employment Land Target (ha)	Proportion of Employment Development on Brownfield land	Housing Target (no. dwellings)	Brownfield Housing Target (no. dwellings)	Proportion of Housing Development on Brownfield land
Skelmersdale with Up Holland	52	25	48%	2,100	500	24%
Ormskirk with Aughton	0	0	-	750	400	53%
Burscough	13	3	23%	850	200	24%
Rural Areas (including Simonswood)	10	3	30%	1,160	500	43%
Overall	75	31	41%	4,860	1,600	33%

Table 4.2 Delivering Development on Brownfield Land

4.28 Given the shortage of available brownfield land in the Borough and the general lack of available land for development within the existing built-up areas full stop, in order to meet West Lancashire's locally-determined targets for residential and employment development it is anticipated that land on the edge of built-up areas that was safeguarded for future development in the West Lancashire Replacement Local Plan 2006 and a small amount of Green Belt land will need to be released for development.

4.29 This is only being considered due to the lack of other viable alternatives and so only the most appropriate sites adjacent to the existing boundaries of the Regional Town and Key Service Centres have been released for possible development before 2027. Further land will be released from the Green Belt and safeguarded from development (see Policy GN2) to ensure that the Council is complying with national policy in amending Green Belt boundaries so that they will be able to endure beyond the end of the Plan period. Much of this land will also be covered by the "Plan B" (see Policy RS6) and must be released from the Green Belt in case there is a need to trigger the "Plan B". This involves land on the boundary with Southport as well as on the edge of the Regional Town and Key Service Centres.

4.30 Approximately 70 ha of Green Belt will be required for release to meet development and associated infrastructure needs for 2012-2027. This is only 0.2% of the 34,630 ha of Green Belt in the Borough. Taking into account the other land to be removed from the Green Belt and safeguarded, a further 67 ha of Green Belt will also be released, bringing the total Green Belt release to approximately 137 ha, which represents 0.4% of the existing Green Belt. Therefore, over 90% of the Borough will still be designated as Green Belt and this will be preserved and protected from development in accordance with the National Planning Policy Framework.

4.31 In relation to the location of any Green Belt release, it was considered that it would be unsustainable and inappropriate to locate a significant amount of development in the Green Belt or on land previously designated as open land on the urban fringe on the edge

of any of the Borough's villages, therefore leaving only the Key Service Centres and the edge of Southport as reasonable locations for this release. Skelmersdale with Up Holland was ruled out for further development beyond what is deliverable within the existing settlement area and one site on land previously designated as open land on the urban fringe due to concerns that releasing Green Belt land on the edge of Skelmersdale would undermine the regeneration of the existing town and because it is not thought that any more than 2,100 dwellings could be delivered in the Skelmersdale with Up Holland area over the next 15 years.

4.32 Therefore, shortfall in housing and employment land will have to be delivered in the Ormskirk with Aughton area, on the edge of Southport and in the Burscough area. The housing and employment land targets set in Policy SP1 for Ormskirk with Aughton and Burscough reflect the identification of two sites for this development on Green Belt land, 300 dwellings at Grove Farm on High Lane, Ormskirk and 500 dwellings and 10ha of employment land at Yew Tree Farm on Liverpool Road South, Burscough. These sites were selected after a thorough site appraisal exercise, which is summarised in the Strategic Options and Green Belt Release technical paper. During the Local Plan Examination a further two Green Belt sites, both on the edge of Southport, were allocated for residential development (totalling approximately 210 dwellings) in order to ensure an adequate supply of housing land throughout the Plan period.

Other Local Planning Policy and key supporting documents

- West Lancashire Infrastructure Delivery Plan (January 2012 or subsequent versions)
- West Lancashire Local Plan 2012-2027 – Technical Paper 1: Strategic Options and Green Belt Release (2012)
- West Lancashire Local Plan 2012-2027 – Technical Paper 2: Housing (2012)
- West Lancashire Local Plan 2012-2027 – Technical Paper 3: The Economy and Employment Land (2012)
- Strategic Housing Market Assessment (2009)
- Strategic Housing Land Availability Assessment 2012 update
- Housing Land Supply in West Lancashire 2012
- The Joint Employment Land and Premises Study (2010)
- Employment Land Monitor (2012)
- The Green Belt Study (2011)
- The West Lancashire Strategic Flood Risk Assessment (Level 1 and 2)
- The Sustainable Settlement Study (2010)

4.2 Key Diagram



Figure 4.1 Key Diagram

4.3 Policy SP2: Skelmersdale Town Centre

Context

4.33 Skelmersdale is the main settlement in West Lancashire and benefits from more than half of the land within the town being green space. However, the Indices of Multiple Deprivation show that Skelmersdale as a whole suffers from poor health, below average educational achievement and higher unemployment than the rest of the Borough. The town centre offer is currently very poor for a town of this size and sees significant retail leakage to other nearby centres. There is no real night-time economy and the centre lacks the facilities that the people of the town should expect.

4.34 The West Lancashire Economy Study has indicated that a revitalised Skelmersdale Town Centre is vital to secure the wider regeneration of the town. In 2002 the Council started the process to secure this town centre regeneration and has seen overwhelming public support for the plans that have been prepared to date. This Local Plan must now take forward those plans in the light of the current economic conditions and forecasts, to ensure that a realistic and viable scheme can be developed up to 2027.

Policy SP2

Skelmersdale Town Centre - A Strategic Development Site

Proposals for the enhancement, regeneration and redevelopment of Skelmersdale Town Centre within the Strategic Development Site defined on the Proposals Map will be supported. A revitalised Skelmersdale Town Centre is vital to the wider regeneration of the town. All proposals will be expected to conform to the broad principles as indicated in the masterplan shown at Figure 4.2 below.

1. The following should form the key principles for any development proposals:
 - i. Make Skelmersdale a leisure, recreational and retail centre of excellence within the North West;
 - ii. Ensure that the parks and open space in and around the Town Centre are integral to the regeneration and are more accessible to Skelmersdale's communities and visitors;
 - iii. Reconnect the Town Centre with surrounding communities through the building of new footpaths and cycleways;
 - iv. Increase the number of residents in the Town Centre and diversify the style and range of residential accommodation available; and
 - v. Ensure that high quality low carbon design will be the key to creating a vibrant Town Centre.

2. The following are the key development aims of the strategic site:

- i. To enhance the Town Centre offer and to ensure the long-term vitality and viability of the Town Centre, including the Concourse Centre, new development is required to link the Concourse and Asda / West Lancashire College and must include a range and mix of uses including retailing (food and non-food), leisure, entertainment (including a cinema), office space, residential and green space. Any scheme should not harm the viability and vitality of the Concourse Centre and must provide sufficient linkage to the Concourse.
- ii. To ensure maximum practical integration, an improved western entrance into the Concourse Centre to link with the new Town Centre development and a relocated or renovated bus station, and re-use of the top floor of the Concourse Centre to provide office, leisure or retail uses. Enhancements to the existing Concourse Centre to improve the retail offer and attractiveness of the Concourse Centre will also be encouraged.
- iii. A new supermarket should form part of a wider regeneration scheme for the Town Centre, that ensures an active retail frontage is created and facilitates the delivery of an improved retail and leisure offer for the Town Centre, linking the Concourse and the Asda / College. Alternatively, it should be directly integrated with the Concourse Centre to support the ongoing economic viability of the Concourse Centre and encourage trade.
- iv. New housing, with a minimum of 500 units to be delivered over the Local Plan period. All housing areas should be of a high quality of design.
- v. The Firbeck estate should be improved through the redevelopment or remodelling of the existing housing stock and the provision of new housing and landscaped areas where appropriate, linking to a high quality housing scheme on the adjacent Findon site.
- vi. 10% of all new housing should be affordable in order to meet local housing needs;
- vii. New office development will be permitted within the town centre area indicated on the plan. Retail uses would also be permitted in this area.
- viii. Delf House and Whelmar House should continue to be used for office uses, but should redevelopment opportunities occur replacement offices or non-food bulky goods retail would be appropriate.
- ix. Improved pedestrian and cycle linkages into the Town Centre from surrounding residential areas.
- x. Major improvements to the Tawd Valley and the River Tawd corridor to make it a key feature of, and integrate it into, the town centre, with the creation of a Formal Park for the Town Centre adjacent to the Tawd Valley. In addition, general improvements will be made to green infrastructure in the town along with conserving and enhancing biodiversity.

Chapter 4 Strategic Policies

- xi. To maximise decentralised energy opportunities and low carbon design.
- xii. All development to be of the highest quality of design in terms of buildings and public realm, having full regard to the relationships between buildings and spaces.
- xiii. The site of the former college (adjacent to Glenburn School) is designated as a Development Opportunity Site appropriate for either improved educational facilities, office accommodation or housing development.
- xiv. The adjacent Glenburn School site should be enhanced as an educational facility and development will be permitted on the site to allow this to be achieved.

Development which would prejudice the delivery of any aspect of the Town Centre regeneration scheme, either in terms of its location or the viability of other elements of the scheme, will not be permitted.

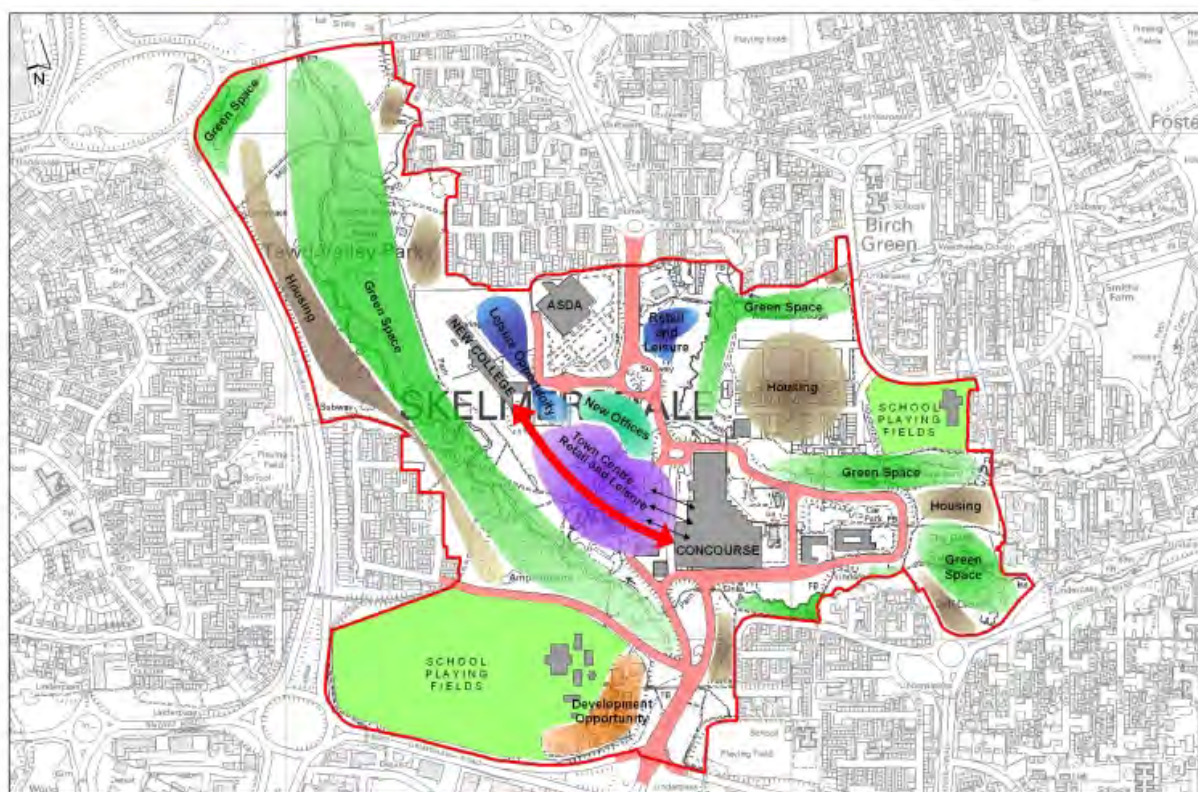


Figure 4.2 Skelmersdale Town Centre

Justification

4.35 The regeneration of Skelmersdale Town Centre is one of the most important priorities for the Local Plan and is reflected in the Spatial & Strategic Objectives. The Council will work with all the key partners in the Town Centre to secure its implementation within a reasonable timescale. To this end a development agreement has already been signed with St Modwen Properties PLC and the Homes and Communities Agency and widespread consultation undertaken with the public to produce an SPD / Masterplan. Policy Area SP2 refines the work previously undertaken to reflect changes to market conditions, recent developments and to acknowledge that the original proposals set out within the SPD Masterplan can no longer come forward in their entirety.

4.36 The Strategic Development Site is larger than that previously outlined within both the West Lancashire Replacement Local Plan and the SPD / Masterplan. This is to allow for more housing to increase the ability of the scheme to deliver the public facilities and the high quality open spaces and public realm that are required. The housing is also being delivered in a sustainable location close to the Town Centre and helps meet the Council's housing target. In addition the provision of new housing improves the confidence of investors, such as new retailers.

4.37 In terms of the Firbeck Estate, this will need to be regenerated through environmental initiatives and by improving the housing stock, either through redevelopment or through remodelling if widespread demolition is shown not to be viable. Appropriate links will need to be made with the adjacent Findon site to ensure that the sites are integrated.

4.38 The differences between the Replacement Local Plan town centre boundary (Policy DE11) and the SPD 'Project Area' boundary have been rectified so that the Strategic Development Site accords with the SPD boundary in all respects, other than the inclusion of additional housing sites in the Tawd Valley area.



4.39 In terms of the actual proposals for the Town Centre core, these have also been amended since the production of the SPD / Masterplan. The key reasons for this are:

- To improve the deliverability and viability of the scheme – there is a need to link the new College building and Asda to the Concourse through new development and a new supermarket in this area could be the key to delivering this;
- The new College building has been moved slightly from its previously anticipated position. This necessitates a review of the land uses in this area of the Town Centre;
- To facilitate the relocation of the Co-operative Bank within new office accommodation within the Town Centre should they wish to relocate from Delf House; and
- The need to introduce additional housing land in, and close to, the Town Centre to enhance the viability and deliverability of the scheme.

4.40 As a consequence the Strategic Development Site proposes the following which are different to that proposed by the SPD / Masterplan:

- The Asda overflow car park is shown as the preferred location for the wet and dry leisure centre, with a relocation of car parking spaces nearer to the Asda building. Development on this site should provide easy pedestrian links between the College and the Town Centre, and should improve the vehicular access to the College site;
- A site is identified for either major office or retail uses;
- Proposals are included for the Delf House and Whelmar House area should development opportunities arise;
- There is more flexibility given in terms of the site for a new supermarket;
- The housing areas to the north west of the Town Centre, adjacent to the Tawd Valley, are extended to allow for the delivery of more housing units; and
- The remodelling or redevelopment of the Firbeck estate including the development of new housing where appropriate and viable.

4.41 The SPD is still considered up-to-date in most respects, and will continue to be used for considering applications on an interim basis, but it will be updated to bring it in line with the new Strategic Development Site within Policy Area SP2 once the Local Plan has been adopted.

4.42 Proposals for new retail in the town centre are to be in accordance with the most up to date retail evidence relating to retail capacity within the Borough and to take account of the impact of the scheme on the retail centres within neighbouring authority areas and in particular, in relation to Skelmersdale, the impact on both Kirkby and Wigan town centres should be considered.

Other Local Planning Policy and supporting documents

- Skelmersdale Town Centre SPD (2008)
- West Lancashire Retail Study Update (2011)

4.4 Policy SP3: Yew Tree Farm, Burscough

Context

4.43 Burscough is West Lancashire's third largest town and has grown substantially over the last 50 years. It benefits from two train stations (one on the Southport-Manchester line and one on the less frequent Ormskirk-Preston line) and is linked by major roads to Ormskirk / Liverpool (A59) and to Junction 27 of the M6 via Newburgh and Parbold (A5209).

4.44 Burscough suffers from reasonably high levels of out-commuting and is somewhat reliant on Liverpool and Southport for higher-end, comparison goods retail provision, with Burscough town centre being significantly smaller and dominated by a Tesco's supermarket. There is a large industrial estate to the west of the town which provides B2 (general industrial) and B8 (storage and distribution) business premises that draw businesses from across the western and northern parts of the Borough and North Sefton.

4.45 To meet development targets for the Borough a single, large development site has been identified to deliver much of the housing and employment land that is required in the Green Belt. Given that such a large site would encompass a large amount of housing and employment land together with associated infrastructure, would involve the release of Green Belt and would collectively bring several benefits to the town, it is viewed that it would constitute a Strategic Development Site due to it being key to the delivery of the Local Plan.

Policy SP3

Yew Tree Farm, Burscough - A Strategic Development Site

An area to the west of Burscough has been identified for a Strategic Development Site on the site of Yew Tree Farm that should deliver:

- Residential development for at least 500 new dwellings and safeguarded land for up to 500 more dwellings in the future (post 2027);
- 10 ha of new employment land as an extension to the existing employment area and safeguarded land for up to 10 ha more in the future (post 2027);
- A new town park for Burscough, with a Management Trust to co-ordinate and fund the maintenance of the park, alongside other Green Infrastructure improvements;
- A linear park / cycle route across the site to link in with a wider Ormskirk to Burscough linear park / cycle route;
- A new Primary School and other local community facilities that cannot be appropriately accommodated elsewhere in the town;

- A decentralised energy network facility, including district heat and energy infrastructure, which will provide heat and electricity for the entire site and possibly beyond the site boundary;
- Appropriate highway access for the site on Liverpool Road South and Tollgate Road, together with a suitable internal road network;
- Traffic mitigation measures to improve traffic flow on Liverpool Road South and protect other local roads;
- A robust and implementable Travel Plan for the entire site to address the provision of, and accessibility to, frequent public transport services and to improve pedestrian and cycling links with Burscough town centre, rail stations and Ormskirk;
- Measures to address the surface water drainage issues on the Yew Tree Farm site and in Burscough generally to the satisfaction of the Environment Agency, United Utilities and the Lead Local Flood Authority. For the development of Yew Tree Farm no surface water should be discharged into the public sewerage system;
- Financial contributions to improve the health care facilities and other existing community facilities in the town; and
- Financial contributions to improve public transport services / facilities and to improve cycling and walking facilities.

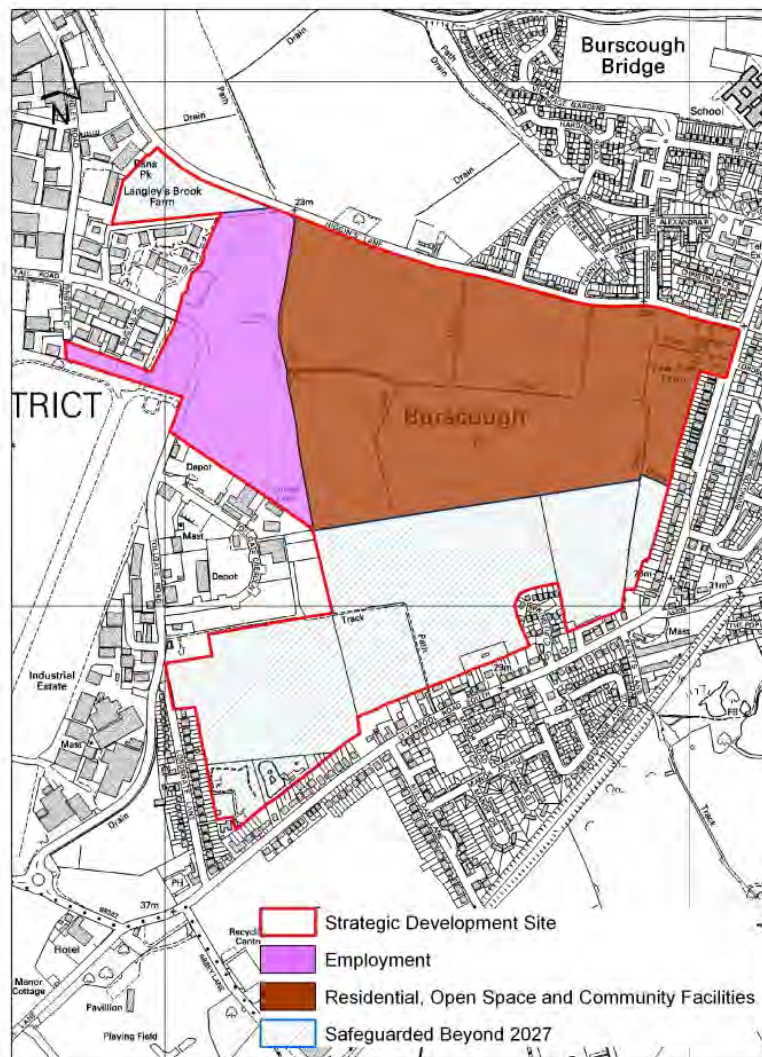
The Strategic Development Site will involve the release of approximately 74 ha of Green Belt to enable development but it is anticipated that approximately 30 ha of this will be safeguarded from development until at least 2027. The precise layout of the site will be defined through a separate masterplan that will be prepared in consultation with local residents. Development of the site will be required to conform to this masterplan and planning permission shall not be granted until the comprehensive masterplanning exercise has taken place.

Development of the Yew Tree Farm site will not result in surface water being discharged into the public sewerage system and will, in fact, draw surface water off the public sewerage system to be attenuated to the local watercourse at greenfield run-off rates to at least the equivalent quantity of foul water being discharged from the site into the public sewerage system.

Development in this Strategic Development Site should be of a high quality of design and be of a high standard in relation to energy efficiency in line with Code for Sustainable Homes and Building Research Establishment Environmental Assessment Method (BREEAM), the specific level of which will be set in future detailed guidance for this site. The scale and massing of development should be appropriate, given the site's edge of built-up area location, in accordance with the Council's Design Guide SPD. Any development of the site should have consideration to its impact on nearby heritage assets and implement appropriate mitigation measures to minimise any negative impact on these assets.

Development in the Strategic Development Site should seek to conserve and enhance biodiversity and landscape value wherever possible, including delivering appropriate mitigation identified by a specific Habitat Regulations Assessment / Appropriate Assessment for the site, and consider how the design of development within the site can actively enhance biodiversity through habitat creation. Development should also improve access to recreation opportunities and green spaces so as to integrate the development with the local and wider Green Infrastructure network, particularly through the inclusion of the Ormskirk to Burscough Linear Park within the site and the new, maintained town park for Burscough.

The following plan is purely indicative – precise layout of the site will be determined through a separate masterplanning exercise.



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Figure 4.3 Burscough Strategic Development Site

Justification

4.46 It is clear from data on development land supply and deliverability that the development of 4,860 dwellings and 75 ha of employment land as required by Policy SP1 cannot be met within the existing settlement boundaries alone. Based on SHLAA data, knowledge of existing employment areas and knowledge of major pending applications, it is estimated that the majority of the required residential and employment land could be provided on sites within the existing settlements of the Borough. However, a small proportion of the required residential and employment land cannot be provided within existing settlements and so must be provided in the Green Belt or on land previously designated as open land on the urban fringe in the Replacement Local Plan (2006).

4.47 The Strategic Options and Green Belt Release technical paper available on the Council's website sets out the full process that the Council has gone through in assessing the various options for releasing Green Belt to meet this shortfall of development land in the existing settlements. Ultimately, it has been concluded that it would be most suitable to identify a few large sites to, collectively, accommodate the shortfall in development land in order to ensure that the developments are able to contribute significantly to the improvement of infrastructure and services in the locality of the site.

4.48 In relation to the Yew Tree Farm site specifically, it does not entirely fulfil any one of the purposes of the Green Belt and it is a logical location for such a large release in Burscough because the site is surrounded on three and a half sides by built development. Development of the site would also enable a direct extension of the existing employment area for new employment land and would essentially fill the gap between the town and the employment area. No other substantial site, or even any collection of smaller sites, around Burscough could accommodate such a level of development without extending the town out into open countryside.

4.49 In relation to the benefits that this Strategic Development Site brings for the local community:

- The new town park would be an attractive addition for the town, providing several accessible open space and outdoor sports related facilities (although it is vital that the large maintenance costs of such a facility are provided through an appropriately funded Management Trust arranged by a Developer);
- New or improved health, education and other community facilities would also be of benefit to the town;
- The extended employment area would provide important opportunities for new small and large businesses and potentially attract existing businesses from across the Borough (especially the northern and western areas) and from North Sefton to relocate and extend their activity;
- It would enable sustainable living through residents in the new housing having new employment opportunities close by and improved public transport services enabling better access to the employment opportunities that are further afield;
- 35% of the new housing would be affordable housing, in line with Policy RS2, therefore making a significant contribution to the need for affordable housing in the Borough;

- The development could deliver improvements to address surface water flooding issues in the town; and
- It provides an ideal opportunity to incorporate a decentralised renewable energy facility, with district heating and energy infrastructure, that will provide heat and electricity from a renewable source for the entire site, for any additional new development nearby and for some existing properties, including the existing industrial estate and possibly surrounding houses.

4.50 There are, however, four key constraints facing such a large development in Burscough:

- The loss of Green Belt and high quality agricultural land;
- Environmental limit constraints at New Lane waste water treatment works;
- Surface water drainage issues in Burscough; and
- The traffic impact of the development on local roads.

4.51 Although the land at Yew Tree Farm is Green Belt and high quality agricultural land, it is not as high quality as many other locations (both in terms of Green Belt and agriculture). In addition, the overall site is well enclosed by existing built development, as discussed above, and its development would only affect the limited views of some adjoining properties.

4.52 In relation to highways and traffic constraints, the Burscough Strategic Development Site will inevitably add a substantial number of vehicles onto the highway network, potentially creating congestion issues locally. In particular, Liverpool Road South itself, Burscough town centre, the junctions between the site and the town centre and the junction of Liverpool Road South and Square Lane (A5209) may all be affected, and there would be increased traffic flows southwards along High Lane (A59) to Ormskirk and Liverpool (possibly affecting traffic congestion within Ormskirk) and eastwards along the A5209 to Newburgh, Parbold and the M6 (Junction 27).



4.53 However, the Transport technical paper (available on the Council's website) shows that the impact that a Strategic Development Site in Burscough would have on traffic flows can be reduced through highway and junction improvements, but it is clear that Burscough would benefit from improved public transport connections, especially to Ormskirk and Liverpool, to reduce the number of vehicles on the roads. Any development of the Strategic Development Site should also contribute towards the improvement of public transport services / facilities and to walking and cycling facilities, as well as highways improvements.

4.54 With regards to the residential development on the Strategic Development Site, 500 dwellings are necessary not only to meet the Borough's housing targets but also to help fund many of the improvements to infrastructure and community facilities discussed in Policy SP3.

4.55 While the site is physically capable of delivering a further 500 dwellings and 10 ha of employment land, given the need to encourage development within the settlement first, it is considered that 500 dwellings and 10 ha of employment land is an appropriate and deliverable level of development for the site. The remaining part of the site will be safeguarded from development until 2027 at least.

4.56 Ultimately, the development of this Strategic Development Site will be a complex process and will need to be co-ordinated across the site to ensure efficiencies and the best possible, integrated development. Therefore, the Council will prepare a masterplan specifically for this site, and in close consultation with local residents, to guide developers and ensure the highest quality of development.

Chapter 5 General Development Policies

5.1 Policy GN1: Settlement Boundaries

Context

5.1 Strategic Policy SP1 provides an overarching strategy for development, setting out the general levels and types of development that will be permitted in the different settlements in West Lancashire. However, it does not specify the precise extent of these settlements. The most recent settlement boundaries were set in the West Lancashire Replacement Local Plan 2006 (WLRLP). In the majority of cases, these boundaries continue to be the most appropriate for the Borough's settlements. However, where Green Belt sites are allocated for development or safeguarded for possible longer-term development, the settlement boundaries have been altered.

5.2 One related issue is how to carry forward land designated in the WLRLP under Policy DS4 as 'Open Land on the Urban Fringe'. Such land is excluded from the Green Belt, but is not considered to be within settlements. Policy DS4 imposed strong restrictions on development, as the land is often open, greenfield and generally in relatively unsustainable locations.

5.3 Whilst the majority of Open Land should remain outside settlement boundaries, there are a few sites that it is now more appropriate to consider as being within settlements and these have been allocated accordingly. Open Land that remains outside settlement boundaries is marked on the Policies Map as 'Protected Land', and will be subject to similar constraints to WLRLP Policy DS4, as set out in Policy GN1 below.

Policy GN1

Settlement Boundaries

The boundaries of West Lancashire's settlements, and land outside those boundaries designated as Protected Land, are shown on the Policies Map.

a) Development within settlement boundaries

Within settlement boundaries, development on brownfield land will be encouraged, subject to other relevant Local Plan policies being satisfied.

Development proposals on greenfield sites within settlement boundaries will be assessed against all relevant Local Plan policies applying to the site, including, but not limited to, policies on settlements' development targets, infrastructure, open and recreational space and nature conservation, as well as any land designations or allocations.

b) Development outside settlement boundaries

Development proposals within the Green Belt will be assessed against national policy and any relevant Local Plan policies.

Development on Protected Land will only be permitted where it retains or enhances the rural character of the area, for example small scale, low intensity tourism and leisure uses, and forestry and horticulture related uses.

Small scale 100% affordable housing schemes (i.e. 10 units or fewer), or small scale rural employment (i.e. up to 1,000 square metres) or community facilities to meet an identified local need may be permitted on Protected Land, provided that a sequential site search has been carried out in accordance with Policy GN5. If it is demonstrated that there are no sequentially preferable sites within the settlement boundary, then the most sustainable Protected Land sites closest to the village centre should be considered first, followed by sites which are further from the village centre where a problem of dereliction would be removed. Only after this search sequence has been satisfied should other sites outside the settlement boundary be considered.

Justification

Defining settlement boundaries

5.4 It is considered that the West Lancashire Replacement Local Plan (WLRLP) approach towards defining settlement boundaries (which itself is a continuation of previous Local Plans' policy) remains sound, and that there is no reason for changing this approach. Where settlement boundaries coincide with the Green Belt boundary, the same settlement boundary is proposed in the Local Plan, except where specific sites have been released from the Green Belt and allocated for development or safeguarded for the longer-term.

5.5 In the case of land designated under WLRLP Policy DS4 ('Open Land on the Urban Fringe'), the majority of which is designated in this new Local Plan as 'Protected Land', much of this land lies on the edge of settlements, often forming a buffer between the built-up area and the Green Belt. Under the National Planning Policy Framework, land within settlements is generally to be treated as being suitable for development. Given a judgement has been made under previous Local Plans that much of the 'Open Land on the Urban Fringe' is considered generally unsuitable for development, it would be inappropriate to incorporate it within settlements in this Local Plan. However, a few sites are enclosed by substantial built development on three or more sides, and it would be more appropriate to treat these as part of the settlement.

5.6 Therefore, the most appropriate approach towards Protected Land is considered to be to continue to exclude the majority of such land from settlements, but to incorporate within settlements a small number of sites which are effectively surrounded by development.

5.7 Changes to settlement and / or Green Belt boundaries (compared with the 2006 WLRLP) have been made at Skelmersdale with Up Holland, Ormskirk with Aughton, Burscough, Tarleton with Hesketh Bank, Banks and on the Birkdale (Sefton) boundary.

Land within settlement boundaries

5.8 Policy SP1 favours brownfield development, and national policy presumes in favour of sustainable development. Therefore, Policy GN1 supports the development of brownfield land within settlements, subject to other relevant Local Plan policies being satisfied.

5.9 Greenfield land within settlements that is neither safeguarded nor allocated for any specific use will be subject to all the applicable policies within this Local Plan document. In addition to relevant Local Plan policies, the following considerations may also be taken into account when assessing proposals for development on greenfield sites within settlements:

- The sustainability of the site, including how well it relates to the settlement, and how easy it is to access the settlement centre and other local services on foot or by sustainable modes of transport;
- The extent to which any parts of the site are already developed (for example, greenhouses or agricultural buildings), and the nature of the development (size, permanence, condition);
- The extent of, and the likely impact upon, the site's visual, amenity, leisure or recreational value (regardless of whether it is designated as open or recreational space);
- The extent of, and the likely impact upon, the site's biodiversity value (regardless of any environmental designation);
- The extent of, and the likely impact upon, tree cover on the site (regardless of whether or not the trees are protected by TPOs);
- If the proposals impact upon the site's visual, recreational, amenity, or natural environmental value, the scope for effective mitigation measures;
- Whether the site includes any Best or Most Versatile agricultural land, and if so, whether the proposed development can be configured in such a way as to minimise the loss or sterilisation of the agricultural land;
- The impact of the site's development upon the character and appearance of the settlement and the setting of heritage assets, and the contribution of the site to local character;
- The cumulative impact of successive development proposals in the same settlement, or in the same part of a settlement; and
- The scope for provision of community facilities, general improvements to the locality, or other community benefits.

Land outside settlement boundaries

5.10 All land outside settlements in West Lancashire is either Green Belt, or is designated as Protected Land. In previous Local Plans, the decision has been made not to include land designated as 'Open Land on the Urban Fringe' within the Green Belt, primarily on account of the land not having a defensible boundary. It is considered that there should continue to be a distinction between Protected Land and Green Belt land, including in terms of what should be permitted upon it.

Chapter 5 General Development Policies

5.11 It would be inappropriate to safeguard Protected Land outside settlement boundaries, as this could imply that the land is considered suitable for development at some point in the future, and would effectively give it the same status as other former 'Open Land on the Urban Fringe' now deemed worthy of inclusion within settlements, which would thereby undermine the setting of settlement boundaries.

5.12 Therefore, Policy GN1 is less restrictive than national Green Belt policy in relation to 'Protected Land', but generally seeks to restrict development on former non-Green Belt land outside settlements to small scale and low intensity uses, or to uses which are appropriate in rural areas, for example horticulture. The uses permitted by Policy GN1 for Protected Land are consistent with Policy DS4 of the previous Local Plan (WLRLP 2006), and represent a continuity in approach.

5.13 Outside settlement boundaries, Policy SP1 allows for countryside uses that retain or enhance the rural character of the area and Policy RS1 allows for affordable housing outside settlements only if there are no suitable sites within the settlement. These policies are consistent with what is allowed by Policy GN1 for non-Green Belt land outside settlements.



5.2 Policy GN2: Safeguarded Land

Context

5.14 The Local Plan is required to demonstrate flexibility to respond to changing circumstances. In addition, when amending Green Belt boundaries, the National Planning Policy Framework directs Local Plans to have "regard to their intended permanence in the long term, so that they should be capable of enduring beyond the plan period" (paragraph 83, p20). Therefore, there is a need to remove some land from the Green Belt and safeguard it for a "Plan B" (to allow flexibility within the Local Plan) and for development needs beyond the plan period (beyond 2027).

Policy GN2

Safeguarded Land

The land identified on the Policies Map as safeguarded land is within the settlement boundaries but will be protected from development and planning permission will be refused for development proposals which would prejudice the development of this land in the future. This safeguarding is necessary for one of the following two reasons:

- It is allocated for the “Plan B” – such land will be safeguarded from development for the needs of the “Plan B” should it be required. If the “Plan B” is not required then this land will be safeguarded from development until 2027 for development needs beyond 2027.
- It is safeguarded from development for needs beyond 2027 – these sites will only be considered for development after 2027 if there is not a sufficient supply of other suitable sites within the settlement boundaries to meet any identified development needs at that time.

The following sites will be safeguarded from development (potential capacity for housing and / or employment land in brackets):

a) “Plan B” sites

- i. Land at Parr’s Lane, Aughton (400 dwellings)
- ii. Land a Ruff Lane, Ormskirk (10 dwellings)
- iii. Land at Red Cat Lane, Burscough (60 dwellings)
- iv. Land a Mill Lane, Up Holland (120 dwellings)
- v. Land at Moss Road (west), Halsall (240 dwellings)

b) Safeguarded until 2027

- i. Land at Yew Tree Farm, Burscough (500 dwellings and 10 ha of employment land)
- ii. Land at Moss Road (east), Halsall (210 dwellings)

The safeguarded land at Yew Tree Farm is not marked on the Policies Map as it is part of the wider Policy SP3 allocation for a strategic development site and a subsequent masterplan for this allocation will define the precise boundary of the land to be safeguarded until 2027 within this site.

Justification

5.15 Ultimately, given the requirement to amend Green Belt boundaries in the Borough to ensure the delivery of the residential and employment development needs and the requirement to demonstrate flexibility in that delivery of development needs if circumstances change, it is necessary to identify safeguarded land within the Local Plan. This land will be protected from development until it is absolutely required to meet development needs beyond this plan period or, if it is assigned as a “Plan B” site, to meet development needs in this plan period if allocated sites fail to deliver the required amount of development.

5.16 In considering how much land is to be safeguarded, regard has been had as to how much land is required for the “Plan B” and what would be a reasonable amount to safeguard from development for potential development needs beyond 2027. In considering which sites should be safeguarded, a full site appraisal of a number of potential sites was undertaken. A summary of the site appraisal process that has led to the above list of sites is provided in the separate technical paper on Strategic Options and Green Belt Release. This is especially relevant for those sites safeguarded from development for the “Plan B”.

5.17 The land safeguarded until 2027 has been identified as such because it is part of a wider parcel of land removed from the Green Belt or removed from the policy designation under Policy DS4 in the Replacement Local Plan (2006) but which is not required for development in the Plan period or under the Plan B. An example of this would be Yew Tree Farm in Burscough, where only a portion of the wider Yew Tree Farm allocation is required for the Strategic Development Site (see Policy SP3) but the Green Belt amendments must encompass the entire site to ensure that the new boundary of the Green Belt is robust.

Other Local Planning Policy and supporting documents

- West Lancashire Local Plan 2012-2027 – Technical Paper 1: Strategic Options and Green Belt Release (2012)
- The Green Belt Study (2011)

5.3 Policy GN3: Criteria for Sustainable Development

Context

5.18 The aim of achieving sustainable development is a key objective of the planning process and the Council is committed to ensuring that all development in the Borough is of a high quality which contributes positively to its distinctive character. All development within the Borough, including changes of use, is therefore expected to be sustainable, having full regard to the local context within which it sits.

5.19 Design features can also address wider sustainability issues such as crime, carbon reduction, reducing flood risk and other environmental concerns such as air quality and lighting, creation of wildlife-friendly habitats, and making buildings accessible to all user groups. Therefore, a policy is required to guide development proposals to ensure that they are sustainable.

Policy GN3

Criteria for Sustainable Development

Development will be assessed against the following criteria, in addition to meeting other policy requirements within the Local Plan.

1. Design / Setting

Proposals for development should:

- i. Be of high quality design and have regard to the West Lancashire Design Guide SPD;
- ii. Have regard to the historic character of the local landscape and / or townscape;
- iii. Retain or create reasonable levels of privacy, amenity and sufficient garden / outdoor space for occupiers of the proposed and neighbouring properties;
- iv. Have regard to visual amenity and complement or enhance any attractive attributes and / or local distinctiveness within its surroundings through sensitive design, including appropriate siting, orientation, scale, materials, landscaping, boundary treatment, detailing and use of art features where appropriate;
- v. Adhere to low carbon sustainable building principles in accordance with Policy EN1;
- vi. In the case of extensions, conversions or alterations to existing buildings, the proposal should relate to the existing building, in terms of design and materials; and
- vii. Create safe and secure environments that reduce the opportunities for crime and prepare a crime impact statement where required in accordance with the Council's validation checklist.

2. Accessibility and Transport

Proposals for development should:

- i. Integrate well with the surrounding area and provide safe, convenient and attractive pedestrian and cycle access;
- ii. Prioritise the convenience of pedestrians, cyclists and public transport users over car users, where appropriate;
- iii. Ensure that parking provision is made in line with the standards set out in Local Plan Policy IF2 and Appendix F;
- iv. Provide Transport Assessments and Travel Plans for proposals for development over a certain size in line with the latest DfT guidance;

- v. Create an environment that is accessible to all sectors of the community including children, elderly people, and people with disabilities;
- vi. Provide, where appropriate, suitable infrastructure for public transport, including bus stops and shelters; and
- vii. Incorporate suitable and safe access and road layout design.

3. Reducing Flood Risk

The Council will ensure development does not result in unacceptable flood risk or drainage problems by requiring development to:

- i. Take account of the Council's Strategic Flood Risk Assessment (Level 1 and 2) along with advice and guidance from the Lead Local Flood Authority (Lancashire County Council), the Environment Agency and the National Planning Policy Framework;
- ii. Be located away from Flood Zones 2 and 3 wherever possible, with the exception of water compatible uses and key infrastructure;
- iii. Satisfy the sequential and, if necessary, the exceptions test as set out within National Guidance, for proposals within Flood Zones 2 and 3 on sites that have not been allocated within the Local Plan;
- iv. Be supported by a Flood Risk Assessment for all proposals within Flood Zones 2 and 3 that satisfy both the sequential and exceptions tests and for proposals within Critical Drainage Areas⁽¹⁰⁾ within Flood Zone 1 or on sites larger than 1 hectare within Flood Zone 1;
- v. Demonstrate that sustainable drainage systems have been explored alongside opportunities to remove surface water from existing sewers. Robust justification will be required for any development seeking to connect surface water to the public sewer network. In addition, any surface water connection must be at an agreed attenuated rate; and
- vi. Achieve a reduction in surface water run-off of at least 30% on previously developed land, rising to a minimum of 50% in Critical Drainage Areas unless this is demonstrated to be unfeasible or unviable.

10 The Town and Country Planning (General Development Procedure) (Amendment) (No. 2) (England) Order 2006 introduces the concept of Critical Drainage areas as "an area within Flood Zone 1 which has critical drainage problems and which has been notified ... [to] ... the local planning authority by the Environment Agency".

4. Landscaping and the Natural Environment

Proposals for development should:

- i. Maintain or enhance the distinctive character and visual quality of any Landscape Character Areas in which they are located;
- ii. Provide sufficient landscaped buffer zones and appropriate levels of public open space / green space to limit the impact of development on any adjoining sensitive uses or the open countryside;
- iii. Minimise the removal of trees, hedgerows, and areas of ecological value, or, where removal is unavoidable, provide for their like for like replacement or provide enhancement of features of ecological value;
- iv. Incorporate new habitat creation where possible; and
- v. Incorporate and enhance the landscape and nature conservation value of any water features, such as streams, ditches and ponds located within the site and provide appropriately sized buffers between them and the development.

5. Other environmental considerations

In addition to the above criteria, proposals for development should:

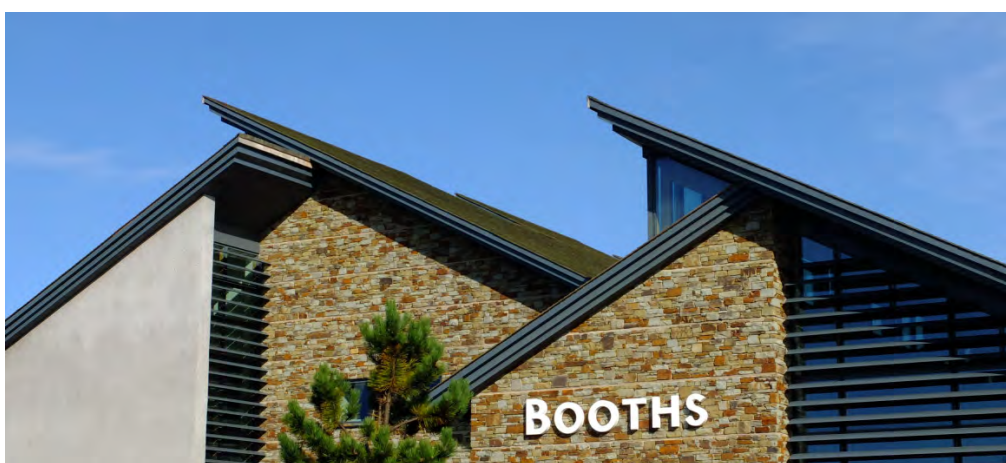
- i. Be designed to minimise any reduction in air quality;
- ii. Incorporate recycling collection facilities;
- iii. Where floodlights are proposed, provide minimum levels of lighting whilst having regard to any potential adverse impacts and ensuring any light spillage is minimal;
- iv. In coal mining development referral areas, take account of issues such as land instability and where appropriate, a coal mining risk assessment report will be required;
- v. Minimise the risk from all types of pollution and contamination;
- vi. Ensure the protection of water quality and ground water resources and, where possible, seek improvement; and
- vii. Seek to remediate and restore contaminated land.

In accordance with the Council's validation checklist, a Design and Access Statement should be submitted with any application for proposals of a certain scale or those on sensitive sites.

Justification

5.20 It is considered that a policy relating to some specific, detailed aspects of sustainable development is essential to maintain existing high standards over the lifetime of the Local Plan. Sustainable development incorporates many aspects which should be considered at the earliest possible stage of the planning process when designing a scheme. The Council has an adopted Design Guide SPD which covers more detailed matters relating to building design, so there is no need to replicate this policy in the Local Plan.

5.21 An all-encompassing policy on sustainable development is considered to be the best approach in the Local Plan to guide development management and should address all potential impacts that a proposal may have in terms of both building and site design and the potential environmental effects of new development and its construction.



5.22 Ground condition may also be a key issue for particular developments on sites where there is a history of contamination and / or structural issues in the ground. As such, mitigation may be necessary prior to any development and developers should investigate their sites fully on these matters prior to proposing a development scheme. This may be a particular issue in the east of the Borough, in and around Skelmersdale, where there is a history of coal workings, and on the mosslands in the west of the Borough. Developers should also be aware of mineral deposits in the Borough and ensure that development proposals do not sterilise such deposits.

5.23 In delivering sustainable communities, the Council will ensure that new homes, employment and public places are not exposed to unacceptable levels of flood risk. New development will be required to demonstrate this and how it accords with the National Planning Policy Framework. Regard will also be had to the Strategic Flood Risk Assessment (Level 1 and 2) and only in exceptional circumstances may development be located in areas at risk of flooding. This includes Flood Zone 2 and 3 and Critical Drainage Areas (which are those areas located within Flood Zone 1 that the Environment Agency considers suffers from critical drainage problems). Critical Drainage Areas for the Borough are established and mapped within the Council's most up to date Strategic Flood Risk Assessment and will be kept under review.

5.24 Sustainable Drainage Systems (SuDS) must be integrated into all new developments where technically feasible in order to minimise the impact of surface water run-off. Justification must be provided for any development seeking to discharge surface water to the public sewer network to demonstrate that all other options have been explored with reasoning for why alternative solutions are not practicable.

Other Local Planning Policy and supporting documents

- West Lancashire Design Guide Supplementary Planning Document (January 2008)
- West Lancashire Strategic Flood Risk Assessment (Level 1 (2010) and Level 2 (July 2012))

5.4 Policy GN4: Demonstrating Viability

Context

5.25 A number of Local Plan policies seek to maintain particular uses of land, for example employment uses on employment sites, retail units in town centres, or agricultural buildings in the Green Belt. However, these policies allow for changes of use in some cases, provided it is robustly demonstrated by the applicant that to maintain the former use is no longer viable. The purpose of this policy is to set out a range of parameters that will enable the Council to make a fair and robust assessment of whether there is a justifiable case for whatever change of use is proposed.

5.26 In addition, any policy of this nature must accord with Government policy which requires local planning authorities to be proactive in terms of development proposals and to approve planning applications wherever possible, unless the proposal contravenes other local or national policy objectives.

Policy GN4

Demonstrating Viability

1. The Council will seek to retain existing commercial / industrial (B1, B2 or B8) and retail (A1) land / premises, together with agricultural / horticultural workers' dwellings, unless it can be demonstrated that one of the following tests has been met:

a) the continued use of the site / premises for its existing use is no longer viable in terms of its operation of the existing use, building age and format and that it is not commercially viable to redevelop the land or refurbish the premises for its existing use. In these circumstances, and where appropriate, it will also need to be demonstrated that there is no realistic prospect of a mixed-use scheme for the existing use and a compatible use; or

b) the land / premises is no longer suitable for the existing use when taking into account access / highways issues (including public transport), site location and infrastructure, physical constraints, environmental considerations and amenity issues. The compatibility of the existing use with adjacent uses may also be a consideration; or

c) marketing of the land / property indicates that there is no demand for the land / property in its existing use.

Details of the current occupation of the buildings, and where this function would be relocated, will also be required.

Where the existing use is no longer considered viable and a mixed-use scheme is also not viable or appropriate, the Council will preferentially seek the following alternative uses prior to consideration of a market housing-led scheme:

- For existing retail uses, an alternative use that helps create or maintain the vitality of a town, village or local centre; and
- For existing agricultural / horticultural workers' dwellings, an alternative use for affordable housing.

Marketing

Where an application relies upon a marketing exercise to demonstrate that there is no demand for the land / premises in its current use, the applicant will be expected to submit evidence to demonstrate that the marketing was adequate and that no reasonable offers were refused. This will include evidence demonstrating that:

- i. The marketing has been undertaken by an appropriate agent or surveyor at a price which reflects the current market or rental value of the land / premises for its current use and that no reasonable offer has been refused.
- ii. The land / premises has been marketed for an appropriate period of time, which will usually be 12 months, or 6 months for retail premises.
- iii. The land / premises has been regularly advertised and targeted at the appropriate audience. Consideration will be given to the nature and frequency of advertisements in the local press, regional press, property press or specialist trade papers etc; whether the land / premises has been continuously included on the agent's website and agent's own papers / lists of premises; the location of advertisement boards; whether there have been any mail shots or contact with local property agents, specialist commercial agents and local businesses; and with regards to commercial / industrial property, whether it has been recorded on the Council's sites and premises search facility.

In certain cases, for example, where a significant departure from policy is proposed, the Council may seek to independently verify the submitted evidence, and the applicant will be required to bear the cost of independent verification.

Justification

5.27 The Ministerial Statement which emerged at the end of March 2011, along with the National Planning Policy Framework (NPPF) (March 2012), have made it clear that the Government's broad brush approach to development will focus on facilitating growth and new jobs in sustainable locations and generally on encouraging more residential development, including on vacant employment sites. The aim of these changes is to enable the delivery of much needed housing and ensure the effective use of previously developed land, including employment sites where they are no longer considered economically viable.

5.28 It is important that the Council has a robust policy in place to respond to this change in emphasis. However, that is not to say that the Council should freely permit such a change of use. Whilst the Council wishes to ensure that there is provision of a wide selection of business / retail space and that viable and suitable sites for such uses should be retained, it is accepted that leaving land vacant or underused is not an efficient use of land and should be avoided if an appropriate alternative use can be considered.

5.29 Accordingly, those circumstances where it will be appropriate to support alternative uses are outlined in the policy, which broadly aims to acknowledge those situations where it would be unproductive to protect land / premises for the current use. For example, where a site / premises has remained empty or vacant for a period of time despite active marketing or it is no longer suited for the needs of the existing use.

5.30 Where the existing use is no longer considered viable, regard should be had to whether, firstly, a mixed-use scheme involving the existing use is viable and then, secondly, whether for existing retail premises or agricultural / horticultural workers' dwellings an alternative use that meets a similar need or purpose to the existing use (as set out in the policy above) is viable. If these alternative uses have been proven to not be viable, market housing will be considered as a final alternative use. The affordable housing requirements of Policy RS2 will apply to market housing developments that ultimately emerge from this process, regardless of the previous use of the land / building.



5.5 Policy GN5: Sequential Tests

Context

5.31 A number of Local Plan policies (for example, RS1: Residential Development), as well as national policy on retail and town centre uses, require 'sequential tests' whereby developers demonstrate that the site they propose to develop is the most appropriate realistic site from a planning point of view, i.e. there are no sites in 'preferable' locations (in terms of a particular policy) that could be developed instead of the site subject to the planning application. For example, when proposing a retail development outside, or on the edge of, a town centre, the applicant should demonstrate that there are no sites within the town centre that could be developed instead. Sequential tests may also be used in proposals for other town centre uses outside town centres and for affordable housing on sites lying outside settlements.

5.32 Whilst sequential tests are relied upon relatively frequently in development management, there has so far been no detailed policy at the local level. From 2006 to 2012, the Council relied on an informal guidance note on undertaking sequential tests, and whilst this has generally worked satisfactorily, its legal weight is limited, and the note has at times been challenged during the development management process. The purpose of Policy GN5 is to set out clearly the Council's expectations from developers submitting sequential tests. In particular, this policy covers the extent of the 'area of search' for alternative sites, and what will be considered satisfactory in terms of demonstrating whether sites are realistically available or suitable for development.

Policy GN5

Sequential Tests

Sequential tests will be required for the following types of development:

- i. Retail and other town centre uses on sites outside town centres (in line with national policy)
- ii. Affordable housing, employment uses, or community facilities on Protected Land (Policy GN1)
- iii. Affordable housing in the Green Belt (Policy RS1)
- iv. Gypsy and Traveller sites in the Green Belt (Policy RS4)
- v. Accommodation for temporary agricultural / horticultural workers (Policy RS5)
- vi. Proposals at risk from flooding (in accordance with Policy GN3).

In undertaking a sequential site search, the onus is on the applicant to demonstrate that there are no alternative sites in preferable locations that could reasonably be expected to accommodate the proposed development within the expected project timeframe.

To achieve a satisfactory sequential test, the Council will expect the following from applicants:

- i. Area of search: The extent of the area of search will depend on the scale and nature of the proposed development. It will usually be the settlement, ward or parish in which the proposed development site lies but could also include land in adjacent settlements, wards, parishes or boroughs. For major development proposals and those at risk from flooding, the area of search will be wider, and may include the whole Borough.
- ii. Comprehensiveness of search: Evidence should be provided of a rigorous investigation of relevant sources of information to find sequentially preferable sites.
- iii. Availability / viability / deliverability of sequentially preferable sites: Evidence should be provided to demonstrate that landowners / site occupiers or their agents have been contacted to discuss the possibility of selling or developing the land, and, on any site rejected on viability grounds, financial information submitted to show on what basis that it would be unviable to proceed with the proposed development.
- iv. Suitability: The test should take account of the suitability of sequentially preferable sites to accommodate the proposed development.

Justification

5.33 Sequential site searches are an important development management tool. A satisfactory sequential test should demonstrate beyond reasonable doubt that it is appropriate to allow a development proposal in an area where policy usually presumes against such developments. Policy GN5 seeks to strike an acceptable balance between protecting wider policy objectives and facilitating necessary development in West Lancashire. The comprehensiveness of the site search will often be proportionate to the scale of the proposed development. Where a proposed use could set a precedent (e.g. affordable housing in the Green Belt), the search will be expected to be particularly rigorous. Liaison with Council officers is encouraged before, and during, the undertaking of a sequential site search.

5.34 Sequential searches may also be required, where appropriate, for other development proposals not listed in the policy above.

Areas at risk of flooding

5.35 Land within Flood Zone 2 or 3 and land within Flood Zone 1 which has critical drainage problems (Critical Drainage Area) is at risk from flooding. Where possible, development should be directed away from such areas. If this is not possible, this should be demonstrated using a sequential test. Sequential tests are not required on sites that have already been

subject to this approach and which are allocated within the Local Plan nor are they required for applications for minor development or changes of use, other than those required by national planning policy. However, if any site-specific flood risk assessments are required on exempt sites, these should still be met.

Area of search

5.36 The extent of the area of search will depend on the size and nature of the proposed development, but will usually be the settlement, ward or parish in which the proposed development site lies. Where a site lies close to the boundary between two wards or parishes, both areas should be considered. Where a site lies close or adjacent to a neighbouring Local Authority area, dependent upon the use proposed, development sites within that area should usually be taken into account. In some cases, it may be more practical to consider sites within a certain radius (for example one kilometre, or one mile) from the nearest point on the Local Authority border to the proposed development site, than to consider all sites within a neighbouring settlement. For example, the Ainsdale / Birkdale area, adjacent to the West Lancashire boundary, spreads several kilometres, merging with Southport, and the most reasonable requirement in terms of sequential testing would be to consider sites within a given radius, rather than within the whole urban area.

5.37 In the case of proposals for major development (for example, retail parks), proposals at risk from flooding, or for uses such as hotels that typically draw from a wide catchment, it is reasonable to extend the search area beyond a single ward, settlement or parish. If judged appropriate, the area of search may include the whole Borough for certain development proposals.

5.38 The area of search for any development proposal should be agreed with Council officers prior to the commencement of any sequential testing work.

Comprehensiveness of search

5.39 Depending on the type of development proposed, applicants will be expected to demonstrate that they have rigorously investigated relevant sources of information about alternative sites. For example, in terms of residential development proposals, the Council's Strategic Housing Land Availability Assessment and Housing Land Supply reports should be used in the first instance. In the case of proposals for retail or other town centre-type uses, the Council's commercial property register is a useful starting point. These sources of information are all available on the Council's website. Other sources include aerial photographs, and online mapping systems. Council officers may be able to provide information on land ownership for certain sites (e.g. SHLAA sites).

5.40 It is possible for certain types of development to be accommodated on more than one smaller site elsewhere, rather than on a single similarly sized site. Where such a "disaggregation" of development is possible, the sequential search should consider smaller sites. Otherwise, the applicant should explain why the proposed development could only be accommodated on a single site. Both the applicant and the Council should demonstrate a reasonable level of flexibility when considering such cases.

Availability / Viability / Deliverability of sequentially preferable sites.

5.41 When considering the availability, viability or deliverability of sequentially preferable sites, the Council will expect written evidence to demonstrate that landowners / site occupiers or their agents have been contacted regarding the sale or development of the sites in question. A letter from the landowner or agent will usually suffice.

5.42 Where sites are rejected as being unviable for the proposed development, financial information should be provided to show on what basis it would be unviable to proceed with the scheme. The level of detail should be proportionate to the scale or significance of the proposed development. The Council will expect clear, unambiguous information, but will not impose unreasonable burdens on applicants.

Suitability

5.43 The suitability of sequentially preferable sites to accommodate the proposed development should be taken into account. Suitability considerations may include policy designations or physical constraints which may mitigate the development of sequentially preferable sites, and the desirability of ensuring the efficient use of land, i.e. any development proposals should not preclude the development of larger areas of land or render parts of it unusable, for example by restricting access.

5.44 If highways issues are cited as reasons why particular sites may not be developable, the Council would expect the relevant highways authority (i.e. Lancashire County Council) to have been contacted for their views on access to the sites and for this to be documented. If difficulties with access to or across land are cited, evidence will be expected that consultation has taken place with landowners on this matter.

Definition of settlement centre

5.45 Policy GN1 requires a sequential test for affordable housing proposals on Protected Land, including the consideration of Protected Land sites closest to the village centre. The town, village and local centres of West Lancashire are defined on the Policies Map under Policy IF1. However, some of the smaller villages do not have such a centre and in such cases the location and extent of the village 'centre' should be agreed in writing with Council officers before the sequential test is undertaken.



5.46 Distances will usually be measured using publicly accessible pedestrian routes, although it should be noted that not all public footpaths are necessarily suitable pedestrian routes. There may be the odd occasion where an ‘as the crow flies’ approach is more appropriate, for example when using a ‘radial’ approach in neighbouring local authority areas.

Validity of information

5.47 Applicants should ensure, as far as is reasonably possible, that the sequential test is valid during the expected timescale of the project. The Council will confirm, in writing, at what stage the sequential test is satisfied to enable any grant funding bids to be submitted to relevant agencies such as the Homes and Communities Agency.

Chapter 6 Facilitating Economic Growth

6.1 Policy EC1: The Economy and Employment Land

Context

6.1 West Lancashire, whilst being considered a rural Borough, plays a significant role in the regional economy, contributing £1.2 billion annually towards the wider Lancashire economy. Despite this West Lancashire is in great need of further opportunities to meet employment land requirements up to 2027. This policy seeks to provide a planning framework for delivering this employment development and ensure that the locally-determined targets for the Borough are met over the Local Plan period, and met as sustainably as possible while delivering the right kind of jobs, in the right sectors and in the right locations.

Policy EC1

The Economy and Employment Land

1. Overall provision of employment land

The delivery of 75 ha of new employment development (B1, B2 and B8 uses) will be promoted in West Lancashire between 2012 and 2027. Such a requirement will be met as follows:

52 ha of new employment development will be provided in the Skelmersdale area through the development of existing allocations and the regeneration of vacant and under-used premises on Pimbo, Gillibrands and Stanley Industrial Estates as well as the development of existing allocations at XL Business Park and White Moss Business Park.

The remaining 23 ha of the 75 ha target will be provided through:

- Existing allocations and remodelling of the Burscough industrial estates (3 ha);
- Extension of the Burscough industrial estates into the Green Belt (10 ha);
- Extension of Simonswood Industrial Estate (7 ha); and
- Existing allocations and new opportunities for rural employment sites in rural areas (5 ha).

Employment development in West Lancashire should continue to provide for the advanced manufacturing and distribution industries but should also encourage higher quality business premises and offices for business and professional services, the health sector, the media industry and other sectors related to research and degree courses provided at Edge Hill University. The “green” construction and “green” technology sectors will also be encouraged to locate in West Lancashire and developers should work with such businesses to ensure appropriate premises are provided.

2. Managing development on employment land

a) *Strategic Employment Sites* - On the following sites, as detailed on the Policies Map, the Council will require a mix of industrial, business, storage and distribution uses (B1, B2 and B8) and will allow A1 retail warehouses on a like-for-like basis of existing A1 premises:

- i. Pimbo Industrial Estate
- ii. Stanley Industrial Estate / XL Business Park*
- iii. Gillibrands Industrial Estate
- iv. Burscough Employment Areas*
- v. Ormskirk Employment Area / Hattersley Court

On the following Strategic Employment Sites, the Council will only permit B1 use classes (offices and research and development only) and other employment-generating uses in use classes C1 and D1:

- vi. White Moss Business Park*
- vii. Ormskirk Business Area

b) *Other Significant Employment Sites* - On the following sites, as detailed on the Policies Map, the Council will permit industrial, business, storage and distribution uses (B1, B2 and B8):

- i. Westgate, Skelmersdale
- ii. Chequer Lane, Up Holland
- iii. Pilkington Technology Centre (B1 only)*
- iv. Southport Road / Green Lane, Ormskirk
- v. Abbey Lane, Burscough
- vi. Platts Lane, Burscough
- vii. Briars Lane, Burscough
- viii. Orrell Lane, Burscough
- ix. Red Cat Lane, Burscough
- x. North Quarry, Appley Bridge

xi. Appley Lane North, Appley Bridge

xii. Simonswood Industrial Estate*

c) *Other Existing Employment Sites* - On other employment sites the Council will permit industrial, business, storage and distribution uses (B1, B2 and B8). The redevelopment of existing individual employment sites for other uses will be considered where a viability case can be put forward (in line with Policy GN4) and where the provisions of Policy EC2 and EC3 are met, where relevant.

d) The Council will take account of the following factors when assessing all development proposals for employment uses:

- i. The accommodation should be flexible and suitable to potentially meet changing future employment needs, and in particular to provide for the requirements of local businesses and small firms;
- ii. The scale, bulk and appearance of the proposal should be compatible with the character of its surroundings;
- iii. The development must not significantly harm the amenities of nearby occupiers nor cause unacceptable adverse environmental impact on the surrounding area;
- iv. The scale of development should be compatible with the level of existing or potential public transport accessibility, and the on-street parking situation. Where additional infrastructure is required due to the scale of the development, such a development will be required to fund the necessary infrastructure to support it via appropriate means; and
- v. The nature of the business sector proposed. The Council will seek to ensure that opportunities are provided for local people and, where necessary, developers will be encouraged to implement relevant training programmes.

* Sites marked with a * in Policy EC1(a) and (b) are affected by Mineral Safeguarding Areas under Policy M2 of the Lancashire Minerals and Waste Local Plan and regard should be had to Policy M2 by applicants and in the decision-making process.

Justification

The Borough-wide Employment Land Target and its Spatial Disaggregation

6.2 The locally-determined employment land target of 75 ha has been arrived at via a thorough analysis of the evidence base and utilises the methodology used in the Joint Employment Land and Premises Study (JELPS, January 2010), updated with new information. The basis of calculating the target is that of historic take-up of land for employment development over the past 19 years, including the last three years of employment land take-up

not previously available for the JELPS and removing two anomalous years of very high take-up, and so the target is a fair reflection of anticipated need for employment land over the Local Plan period (2012-2027). Further details on how this target has been derived can be found in Appendix D.

6.3 Skelmersdale has been identified as the spatial area most appropriate to take the majority of new employment development over the Local Plan period because of:

- its accessibility of location;
- the large existing provision of employment premises that promotes a critical mass and shared infrastructure;
- the fact it is the largest settlement in the Borough;
- the inward investment employment development would bring to the regeneration of the town, which would compliment the town centre masterplan; and
- the large amount of existing undeveloped allocations (35 ha) and the potential for new employment land being created through the remodelling and regeneration of vacant units in the existing industrial estates (17 ha).

6.4 It is still important to spread new employment development across the Borough, where appropriate, in order to spread the economic benefit of inward investment by making job opportunities as accessible as possible to all. As such, further employment land has been identified at Burscough and in rural areas, over and above existing allocations.

Use of brownfield, greenfield and Green Belt land

6.5 Existing employment land allocations that remain undeveloped in the Borough from the Replacement Local Plan (2006) (and that are still realistic opportunities for employment development) total less than 40, ha the vast majority of which (35 ha) is within Skelmersdale.

6.6 Following further detailed survey work of the Borough's largest employment areas it has been identified that a total of at least 17 ha of land could be made available through the re-modelling, redevelopment and regeneration of existing vacant and under-used employment sites on these estates. This would, however, rely upon a range of occupiers and owners working together to improve existing utilisation rates and would also be likely to require external funding to facilitate such improvements.

6.7 Regardless of this issue, existing allocations and the regeneration and recycling of existing vacant and under-used employment land will not meet the employment land need for West Lancashire up to 2027. Therefore, it is anticipated that the remainder of the need (23 ha) will predominantly be met through new employment sites.

6.8 Given the significant constraints on developable land within the existing settlement areas of West Lancashire, there are few viable brownfield sites within the Borough that could contribute to this need beyond a few small rural sites. In addition, at this time, there are few greenfield sites within the existing settlement areas that are viable for employment development, other than a small area of what was 'safeguarded land' within the settlement of Banks in the previous Replacement Local Plan. There remains, therefore, a need to identify land within the Green Belt to meet the needs of the Borough over the Local Plan period.

6.9 The Local Plan identifies that 10 ha of new employment land will be provided on Green Belt land as part of the Burscough Strategic Development Site, which will act as an extension to the Burscough Employment Areas. The Burscough Employment Areas are a vital source of employment provision, providing B2 opportunities for the Burscough area and the rural western and northern parts of the Borough, and this need for B2 opportunities is exacerbated by the shortage of available land for such development in North Sefton. However, there are infrastructure constraints connected to the Burscough area, particularly in terms of highways capacity, hence the expansion of this estate has been limited.

6.10 Given that this area of new employment land is in the Green Belt, based on current constraints within settlement areas, the findings of the West Lancashire Green Belt Study, which was prepared by West Lancashire Borough Council and verified by Lancashire County Council, have been utilised to inform the decision-making process. The Green Belt Study prepared by WLBC identified that land to the west of Burscough was found not to fulfil any purpose of the Green Belt. This site has also been identified as it is not as constrained by other factors (such as infrastructure and environmental factors) as other Green Belt areas around the Borough's settlements.

Phasing of Employment Land

6.11 Skelmersdale's status as a designated New Town has left the town with an enduring legacy of problems and issues to tackle. Consequently, in the past Skelmersdale has been acknowledged as a 'Regeneration Priority Area', recognising the importance of regeneration to solving many of the problems Skelmersdale faces.

6.12 Whilst this regional designation no longer exists, the importance of regeneration to Skelmersdale remains the same and, in terms of employment requirements, the Local Plan attaches a significant importance to the delivery of new employment development and the regeneration of existing employment areas within the town. Employment areas such as Pimbo and Gillibrands contain a number of plots and units which are either not occupied or are under-occupied.

6.13 The main reason for this is that they are no longer fit for purpose nor meet modern business / industrial needs, an issue raised both in the JELPS and the West Lancashire Economy Study (2009). Therefore, priority for new employment development over the Local Plan period will be given to the development of existing allocations and regeneration of existing employment areas within Skelmersdale. It is, however, recognised that existing plots and units are fragmented and available sites may not always be suitable to accommodate new development proposals.

Appropriate uses for new employment sites

6.14 All allocated and existing employment areas in the Borough should be considered for a full range of Class B uses, including B1 (offices), B2 (General Industrial) and B8 (Storage and Distribution). A flexible approach should be taken to the range of uses proposed in order to best respond to market demand at any given time. The only exceptions to this would be development within:

Chapter 6 Facilitating Economic Growth

- White Moss Business Park and Ormskirk Business Area, where only B1 uses (offices and research and development only) and significant employment generators of C1 and D1 uses would be appropriate given the high quality business premises desired at this location;
- Pilkington Technology Centre, where only B1 uses will be appropriate given the specialist research and development purpose for this facility; and
- Some rural sites, depending on the site context.

6.15 The development of non-employment uses will be resisted on *Strategic Employment Sites* and *Other Significant Employment Sites* in order to maintain the Borough's employment land supply and maximise opportunities for new economic investment in the Borough. Exceptions may be made for mixed-use schemes on smaller individual employment sites, subject to suitability and viability assessment (this is addressed further in Policy GN4) and where overwhelming evidence highlights the unsuitability and unviability of an employment-only form of development on a site.



Promotion of specific Business Sectors and skilling the Borough's population

6.16 The West Lancashire Economy Study (2009) identified several business sectors that West Lancashire has successfully provided over recent times and should continue to expand within. These included the advanced manufacturing and distribution industries, business and professional services, the health sector, education and the public sector. In addition, it is recognised that the Borough should seek to promote those sectors related to research and degree courses provided at Edge Hill University, such as the Media Industry.

6.17 A further sector that it is anticipated that the Borough could benefit from investment in is that related to the "green" industries. As acknowledged throughout the Local Plan, the impacts of climate change are already being felt and will continue to be. In addition, mankind's reliance on fossil fuels is already resulting in ever increasing fuel and energy costs as the world's fossil fuel resources are depleted. As a result of this, those businesses that provide

services related to technology that overcomes climate change and reduces dependency on fossil fuels were among the few who grew over the past few years, in spite of the economic recession.

6.18 Given West Lancashire's strategic location on the edge of three city regions, in particular the Greater Manchester and Liverpool City Regions, it is recognised that these major conurbations will be the location for the implementation of much of the new technology related to:

- the retrofitting of new housing stock to be more energy efficient;
- the construction of zero carbon developments;
- the construction of renewable energy schemes; and
- the construction of flood-proof developments.

6.19 Therefore, West Lancashire could offer a central base, accessible to the entire North West, for such businesses, and provide business premises at a cheaper price than within the major conurbations.

6.20 Key to attracting businesses in all of the sectors above is providing a skilled workforce. Therefore, as important to any promotion of sectors in the Borough as the development of appropriate premises is the need to ensure that the population of West Lancashire, and in particular Skelmersdale, are provided with suitable employment related training opportunities to enable local people to access employment in these sectors. While the Local Plan cannot directly ensure training is provided, it would encourage and support any employment related initiatives such as apprenticeships, workplace learning and volunteering through the Local Strategic Partnership (LSP).

Other Local Planning Policy and supporting documents

- The Joint Employment Land and Premises Study (JELPS) (2010)
- West Lancashire Economy Study (2009)
- West Lancashire Rural Economy Study (2006)
- West Lancashire Local Plan 2012-2027 – Technical Paper 3: The Economy and Employment Land (2012)
- Employment Land Monitor (2011)

6.2 Policy EC2: The Rural Economy

Context

6.21 Rural West Lancashire is an entrepreneurial place that avoids some of the challenges faced by many rural districts (e.g. declining farming incomes and rural isolation). Businesses located in rural West Lancashire feel it is a good place to do business and there is a higher business start-up rate in rural areas of West Lancashire than in the Borough as a whole and in Lancashire and the North West (Rural Economy Study, 2006).

6.22 Rural West Lancashire is also a focus for the food industry, with a major cluster based around the horticultural industry in the Northern Parishes, and 16% of rural businesses in West Lancashire are related to agriculture, which support a wider range of food-related businesses (e.g. food processing, freight or packaging) and around 3,000 jobs (Rural Economy Study, 2006). The Borough also has important clusters in the manufacturing of engineering and construction products.

6.23 Therefore, this relatively strong and positive position must be built-upon and protected from some potentially major issues which currently affect the rural economy. These issues include:

- The effect of supermarket practises, labour market stability and long-term consumer trends (e.g. the rise in organic food and the need to reduce air miles) on the food industry
- Skills and labour supply and the quality and quantity of candidates for jobs
- Transport and accessibility for businesses in rural West Lancashire, particularly the poor public transport in rural areas

6.24 Despite a number of attractions, including Martin Mere Nature Reserve and Rufford Old Hall, West Lancashire has a relatively weak tourism economy. There is potential to build upon these attractions and develop greater links with Southport and other areas to promote West Lancashire as an attractive place to visit.

Policy EC2

The Rural Economy

The irreversible development of open, agricultural land will not be permitted where it would result in the loss of the best and most versatile agricultural land, except where absolutely necessary to deliver development allocated within this Local Plan or strategic infrastructure, or development associated with the agricultural use of the land.

Employment opportunities in the rural areas of the Borough are limited, and therefore the Council will protect the continued employment use of existing employment sites. This could include any type of employment use, including agriculture and farming, and may not be merely restricted to B1, B2 and B8 land uses. Where it can be robustly demonstrated that the site is unsuitable for an ongoing viable employment use (in accordance with the requirements of Policy GN4), the Council will consider alternative uses where this is in accordance with other policies in the Local Plan. As a general approach, the re-use of existing buildings within rural areas will be supported where they would otherwise be left vacant.

Proposals for new or significant extensions to agricultural produce packing and distribution facilities will be permitted in rural areas provided that:

- i. there is not a more suitable alternative site located within a nearby employment area;

- ii. the proposed use remains linked, operationally, to the agricultural use of the land;
- iii. the majority of the produce processed on the site is grown upon holdings located in the local area;
- iv. the loss of agricultural land is kept to a minimum and, where there is a choice, that the lowest grade of agricultural land is used; and
- v. traffic generated can be satisfactorily accommodated on the local road network and will not be detrimental to residential amenity

The promotion and enhancement of tourism and the natural economy in the Borough's countryside will be encouraged through agricultural diversification to create small-scale, sensitively designed visitor attractions and accommodation which:

- i. take advantage of some of the Borough's natural and heritage assets such as the canal network and Rufford Old Hall;
- ii. promote walking and cycling routes including long distance routes and linkages to national networks; and
- iii. contribute to the Ribble Coast and Wetlands Regional Park and its enjoyment by visitors.

In order to support economic recovery and growth the Council will support the roll out of high speed broadband in line with the Lancashire Broadband Plan. Encouragement will also be given towards the delivery of renewable and green energy projects.

Land allocated for the purpose of Rural Employment is as follows:

- a) Land between Greaves Hall Avenue and Southport New Road, Banks

Development for this site will be expected to proceed in strict accordance with the site specific requirements outlined in the West Lancashire Level 2 SFRA.

In addition to the above site, the Council will assess other proposals for rural employment on a site by site basis and having regard for other policies within the Local Plan.

Justification

6.25 A significant proportion of the Borough (over 90%) can be categorised as rural and therefore the development and the preservation of a sustainable rural economy is a high priority within this Local Plan.

6.26 The evidence base work undertaken for the Local Plan (e.g. the Rural Economy Study, 2006) highlights the significant contribution that the rural economy can make in terms of investment and job opportunities for West Lancashire. Employment opportunities, whether urban or rural, are a finite resource and once lost for non-employment use, particularly if lost to residential uses, are unlikely to ever come back into an employment generating use. Therefore, there is a general policy presumption to protect rural employment sites against their loss for non-employment uses unless it can be demonstrated that they are inherently unviable for an on-going employment use and that the only realistic way to secure the sustainable future of the site is through an alternative use.

6.27 A significant proportion of employment opportunities in the rural areas come from home-working and small 'cottage' industries, many making use of their own homes or small purpose built units. Therefore, support should be given to the development of such industries.

6.28 The NPPF states that local plans should promote the development and diversification of agricultural and other land-based businesses. Sustainable agricultural diversification will be promoted through this Local Plan as an important aspect of maintaining the rural economy, with the re-use of derelict buildings being encouraged for sustainable uses, such as for rural business, tourism or recreational uses. Agricultural produce packing and distribution facilities are also a key, and sustainable, aspect of modern agricultural processes. Policy EC2 therefore allows their development, subject to certain criteria being met.

6.29 Lancashire County Council is pursuing a plan to roll out a network of superfast broadband across Lancashire by 2015. It is believed this will help stimulate activity in rural areas, increase business productivity and attract investment into Lancashire.

Other Local Planning Policy and supporting documents

- The Joint Employment Land and Premises Study (JELPS) (2010)
- West Lancashire Economy Study (2009)
- West Lancashire Rural Economy Study (2006)
- 'The Conversion of Traditional Farm Buildings: a guide to good practice', English Heritage
- English Heritage Guide-the maintenance and repair of traditional farmbuildings; a guide to good practice
- The Lancashire Local Broadband Plan
- West Lancashire Local Plan 2012-2027 – Technical Paper 3: The Economy and Employment Land (2012)

6.3 Policy EC3: Rural Development Opportunities

Context

6.30 Within rural West Lancashire there are a number of sites which are no longer used for their initially intended purpose, or whose use is now in an inappropriate location, but which have not yet been redeveloped. In most cases, the intention has been to use the sites for employment uses, however this is not always a viable option given the relatively remote locations of the sites in question.

6.31 Whilst it is important to ensure that some rural employment functions are delivered on such sites, it must be recognised that an element of flexibility is required in order to make schemes viable. Mixed use schemes can provide both employment opportunities and much needed housing in rural areas and are therefore considered to be acceptable on some sites. This approach is considered to be important for the emerging Local Plan and is dealt with in this section.

Policy EC3

Rural Development Opportunities

The development of some brownfield sites within more rural parts of the Borough for mixed uses will be permitted in order to stimulate the rural economy and provide much needed housing. High quality design will be essential in such areas.

The following sites are allocated as 'Rural Development Opportunities':

- i. Greaves Hall Hospital, Banks (Development for this site will be expected to proceed in strict accordance with the site specific requirements outlined in the West Lancashire Level 2 SFRA.) (anticipated site capacity: 140 dwellings)
- ii. East Quarry, Appley Bridge (anticipated site capacity: 60 dwellings);
- iii. Alty's Brickworks, Hesketh Bank (not all of this site will comprise built development and a masterplanning exercise will be required) (anticipated site capacity: 270 dwellings); and
- iv. Tarleton Mill, Tarleton (anticipated site capacity: 70 dwellings).

On the above named sites a mix of the following uses will be permitted:

- Uses falling into classes B1, B2 and B8;
- Wider employment generating uses where a case can be made to demonstrate that new jobs will be created;
- Residential uses, particularly those meeting an identified need;
- Leisure, recreational and community uses; and
- Essential services and infrastructure.

In the interest of the rural economy, employment generating uses will be required to form part of any proposal, the level of which will be determined on a site by site basis and in accordance with national and local planning policy.

Justification

6.32 A significant proportion of the Borough (over 90%) can be categorised as rural and therefore the development and the preservation of a sustainable rural economy is a high priority within this Local Plan document.

6.33 However, important existing rural employment sites, such as those listed in the policy, will be dealt with in a pragmatic manner, acknowledging that bringing the site forward for 100% employment use may not be the most sustainable approach to take. Mixed use opportunities should be considered for all these sites, ensuring that whilst some of the site is retained for a sustainable employment use, the remainder of the site provides opportunities to address other local issues, such as affordable housing or provide contributions towards local services and infrastructure schemes.

6.34 It is considered that requirement of a reasonable amount of employment uses on each site will contribute to sustaining the rural economy whilst allowing significant flexibility to ensure that viable schemes can come forward. It is considered inappropriate to specify a percentage of employment uses as each site will need to be considered individually.

Other Local Planning Policy and supporting documents

- The Joint Employment Land and Premises Study (JELPS) (2010)
- West Lancashire Economy Study (2009)
- West Lancashire Rural Economy Study (2006)
- 'The Conversion of Traditional Farm Buildings: a guide to good practice', English Heritage

6.4 Policy EC4: Edge Hill University

Context

6.35 Edge Hill University is considered a major asset to the Borough of West Lancashire and the town of Ormskirk. The University has grown considerably over recent years and continues to be a significant employer in the area. The presence of a large number of students, particularly in Ormskirk, has led to better provision of services and leisure facilities creating direct benefits for the wider community as well as students. A report carried out by Regeneris Consulting in 2011⁽¹¹⁾ demonstrated that the University currently contributes £75 million per annum to the local economy and 1,580 full-time equivalent jobs.

6.36 Along with the positive aspects of the University being located in the Borough, there are also some issues which have arisen from the continued expansion of this once relatively small educational establishment. The main issues for consideration within the Local Plan relate to traffic, parking and housing. Traffic continues to be problematic and the impacts are notable across Ormskirk. Housing is also a growing concern within Ormskirk with increasing student demand for rented accommodation leading to less lower cost housing for local people. The location of student accommodation has a direct link to resulting transport needs and a holistic approach needs to be adopted when addressing these issues.

11 The Economic Impact of Edge Hill University (April 2011), Regeneris Consulting

6.37 A further consideration is that future expansion plans must be tempered with the need to manage impact on the surrounding sensitive Green Belt environment as well as the town.

Policy EC4

Edge Hill University

Through the Local Plan the Council will seek to maximise the role and benefit of Edge Hill University as a key asset to the Borough, in terms of the employment opportunities and community benefits it provides, investment in the local area and the up-skilling of the population, whilst seeking to minimise any adverse impacts on Ormskirk and the wider environment.

The following key principles are promoted:

- i. Supporting the continued growth, development and improvement of Edge Hill University and its facilities both on the existing campus and on the extension into the Green Belt to the south-east delineated on the policies map , where such development incorporates measures to alleviate any existing or newly created traffic and / or housing impacts;
- ii. Working with the University to develop travel plans and parking strategies to encourage sustainable travel and improve access to the campus;
- iii. Improving the University accommodation offer and concentrating new student accommodation within the existing and / or extended campus in accordance with Policy RS3;
- iv. Where possible, creating links between the University, local businesses and the community sector, in terms of both information sharing and learning programmes, to ensure that the University continues to contribute to the local economy and social inclusion in the Borough;
- v. Where possible, ensuring that the benefits of the University and its future growth and development are also directed to those communities where educational attainment is lower through specific programmes, and where possible and appropriate, led by private sector employers; and
- vi. The use of sustainable drainage systems for surface water.

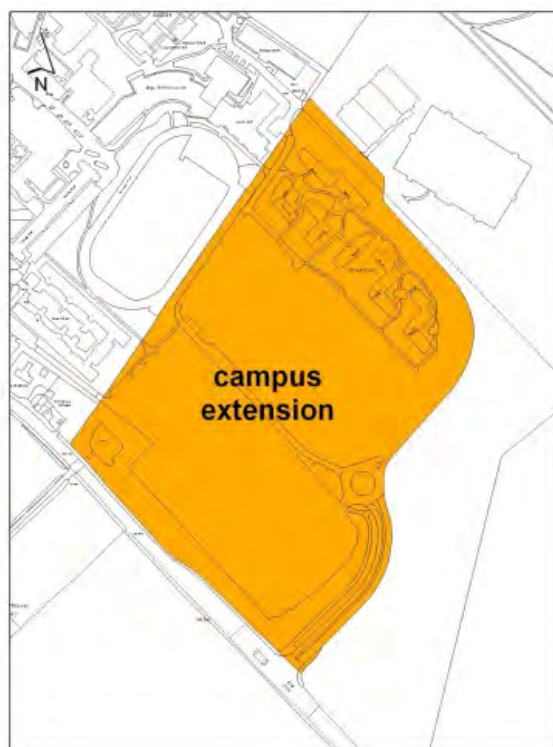


Figure 6.1 Proposed Expansion of Edge Hill University Campus

Justification

6.38 The University is a major asset to the Borough and its continued role in providing a valuable educational service as well as an economic benefit to the local area is essential for the future prosperity of West Lancashire. For this reason, careful consideration is required in relation to the future plans of the University.

6.39 Although further growth of the University is generally supported, there are issues which need to be addressed and a balance should be found between expansion and the impact on the surrounding environment and local residents.

6.40 Policy EC4 seeks to address this issue by allowing for the expansion of the campus into 10ha of land released from the Green Belt during the Local Plan period, whilst ensuring that existing and potential future problems are addressed. The policy also seeks to direct some of the benefits to those communities most in need of assistance in both educational and economic terms.

Other Local Planning Policy and supporting documents

- The Economic Impact of Edge Hill University (Regeneris Consulting, 2011)
- West Lancashire Economy Study (GVA Grimley, 2009)
- West Lancashire Local Plan 2012-2027 – Technical Paper 4: Edge Hill University (2012)

Chapter 7 Providing for Housing and Residential Accommodation

7.1 Policy RS1: Residential Development

Context

7.1 As with many other local authority areas in England, West Lancashire has seen rising house prices and intensification of affordability problems, increased discrepancies in prices between affluent and deprived areas, pressure to develop on greenfield land, and more recently, a decline in the market for apartments and a reduction in housing completion rates.

7.2 A decade ago, the numbers of dwellings being granted permission and completed in the Borough were well in excess of development plan requirements, which led to the implementation of a restrictive housing policy in 2002. This policy of restraint was also in accordance with regional policy at the time. It lasted from 2002 until 2010 and was successful in the sense that it reduced the housing land “oversupply”, and led to more sustainable patterns of development in the Borough. However, the publication of Planning Policy Statement 3: Housing in 2006 and the adoption of a new Regional Spatial Strategy in 2008 heralded a change in wider housing policy, with an emphasis on the delivery of more housing. This change in policy, combined with a reduction in housing land supply and a growing need for affordable housing in West Lancashire, led to the implementation of a less restrictive “interim housing policy” in July 2010.

7.3 The economic downturn from 2008 onwards has resulted in a significant reduction in the numbers of new dwellings being completed in West Lancashire. Housing Market studies and work on household forecasts show a continued need for more residential development in the Borough, both for affordable and market housing. Central government policy continues to prioritise the delivery of housing nationwide.

Policy RS1

Residential Development

a) Development within settlement boundaries

Subject to other relevant policies being satisfied, residential development will be permitted within the Borough’s settlements as set out below.

Within the **Regional Town, Key Service Centres, Key Sustainable Villages and Rural Sustainable Villages** (as defined by Policy SP1), residential development will be permitted on brownfield sites, and on greenfield sites not protected by other policies, subject to the proposals conforming with all other planning policy.

The following sites, as shown on the Policies Map, are specifically allocated for residential development:

- (i) Skelmersdale Town Centre - potential capacity for 730 units (of which 500 are expected to be delivered over the Local Plan period);
- (ii) Yew Tree Farm, Burscough * - capacity 500 units (in the Local Plan period);
- (iii) Grove Farm, Ormskirk - capacity 300 units;
- (iv) Land at Firwood Road, Lathom / Skelmersdale * - capacity 400 units;
- (v) Land at Whalleys, Skelmersdale * - capacity 615 units (of which 520 are expected to be delivered over the Local Plan period);
- (vi) Chequer Lane, Up Holland * - capacity 175 units;
- (vii) Fine Jane's Farm, Moss Road, Halsall - capacity 60 units;
- (viii) Land at New Cut Lane, Halsall - capacity 150 units; and
- (ix) Land east of Guinea Hall Lane, Banks - capacity 115 units.

Development of sites (i) - (v) above should conform to masterplans or development briefs to be prepared for each site.

Within **Small Rural Villages**, the appropriate re-use of an existing building, and very limited infill development (i.e. up to 4 units) will be permitted for market housing. For the purposes of this policy, infill development refers to development within the settlement boundary of the village. Infill developments of 5 or more units may also be permitted where proposals provide the minimum amount of market housing to make the scheme financially viable, with the remainder of the housing being made available as affordable housing. On such sites, it will be expected that the affordable housing provision should be not less than 50% of all housing on the site.

b) Development outside settlement boundaries

On **Protected Land**, small-scale 100% affordable housing schemes (i.e. up to 10 units) may be permitted where it is proven that there are no suitable sites within the nearest or adjacent settlement, in accordance with Policy GN5 (Sequential Tests).

Within the **Green Belt**, very limited affordable housing (i.e. up to 4 units) may be permitted where it is proven that there are no suitable sites in non-Green Belt areas, in accordance with Policy GN5.

c) Development on garden land

When considering proposals for residential development on garden land, careful attention will need to be paid to relevant policies, including, but not limited to, those relating to the amenity of nearby residents, the character of the immediate area, vehicle access, biodiversity and design.

d) Density

The density of residential development within West Lancashire should be a minimum of 30 dwellings per hectare, subject to the specific context for each site. Densities of less than 30 dwellings per hectare will only be permitted where special circumstances are demonstrated. Higher densities (in the order of 40-50 dwellings per hectare, or more, where appropriate) will be expected on sites with access to good public transport facilities and services.

When considering the possibility of high density development, the Council will seek to ensure that there is no unacceptable negative impact on local infrastructure or highway safety, and that adequate open space can be provided. The achievement of higher residential densities should not be at the expense of good design nor of the amenity of the occupiers of the proposed or existing neighbouring properties.

e) Provision for all ages

Development proposals for accommodation designed specifically for the elderly will be encouraged within settlements, provided that they are accessible by public transport or within a reasonable walking distance of community facilities such as shops, medical services and public open space.

In order to help meet the needs of an ageing population in West Lancashire, the Council will expect that at least 20% of units within residential developments of 15 or more dwellings should be designed specifically to accommodate the elderly.

All new homes will be expected to meet the Lifetime Homes Standard, except where it is demonstrated that it would clearly be inappropriate for particular dwellings to meet the Standard.

f) Management of housing land supply

Should the supply of housing begin to grow too large (i.e. a situation emerges where there is a significant over-supply of housing relative to housing targets, either for the Borough as a whole, or for an individual settlement), and if it is clear that the adverse impacts of allowing more housing would significantly and demonstrably outweigh the benefits, the Council may consider implementing some form of restraint, either Borough-wide or settlement-specific, provided this is clearly necessary and appropriate.

* Sites marked with a * in Policy RS1(a) are affected by Mineral Safeguarding Areas under Policy M2 of the Lancashire Minerals and Waste Local Plan and regard should be had to Policy M2 by applicants and in the decision-making process.

Justification

7.4 Policy RS1 is intended to facilitate a sustainable pattern of residential development in West Lancashire, meeting local housing needs and taking account of the various issues and constraints in and around West Lancashire, including existing patterns of development, the

physical geography of the Borough, land availability, and infrastructure constraints in specific areas of West Lancashire. The strategy for distribution of housing is consistent with the settlement hierarchy set out in Policy SP1. There is greater flexibility in the higher-order settlements than in the lower-order settlements in terms of the types of site upon which housing development will be permitted and / or the amount of development permissible.

7.5 The evidence base (in particular the Strategic Housing Land Availability Assessment) indicates that, in general terms, there is sufficient potential housing land to deliver the numbers of dwellings specified in Policy SP1, both in individual settlements and in the Borough as a whole. The exceptions are Burscough, Ormskirk with Aughton and the Western Parishes (Halsall) area, where a release of Green Belt land will be necessary to meet the dwellings target, and to ensure a rolling five year supply of deliverable housing land throughout the Plan period.

7.6 The phasing of sites in Skelmersdale needs to be planned in order to facilitate the regeneration of Skelmersdale Town Centre and the wider town and to ensure delivery of the benefits associated with the Strategic Development Site. In certain cases, housing will function as enabling development, with some of the profits from residential development used, for example, to procure major benefits for the local area and / or to help deliver important elements of the Local Plan as a whole. This is particularly the case for the regeneration of Skelmersdale Town Centre.

7.7 There is scope for a proportion of the Borough's housing need to be met through bringing long-term empty residential properties back into use. However, the expected number of such cases is likely to be modest, as the percentage of empty homes in West Lancashire is low.

Garden land development

7.8 The amount of residential development that has been permitted on garden land over recent years in West Lancashire has been relatively low. Only 4% of all units granted consent between 2002 and 2011 were garden land developments. Whilst this figure is not insignificant in terms of its contribution towards housing land supply, "garden grabbing" is not considered to be a pressing issue. It is, however, acknowledged that for neighbours of proposed garden developments the issue can be particularly acute. National and local policies do not allow the development of garden land if neighbours' amenity would be unacceptably harmed, or if other planning principles were breached. Policy RS1 only allows for garden land development subject to stringent caveats relating to design, character, access, amenity and other issues.

Density

7.9 Applying a minimum residential density standard for West Lancashire helps ensure the efficient use of land, a limited resource. In particular, the efficient use of brownfield land, land within the most sustainable parts of settlements, and, in a more general sense, land within areas excluded from the Green Belt, will help minimise the need to develop Green Belt land and greenfield land within settlements.



7.10 The former Borough-wide (and national) minimum density of 30 dwellings per hectare has worked well over recent years, especially in suburban-type developments, which are expected to make up the majority of West Lancashire's housing development over the Local Plan period. A lower density of development could lead to a less efficient use of land.

7.11 It is recognised that there is scope for the 30 dwellings per hectare density to be exceeded by a significant amount in certain parts of West Lancashire, in particular close to the centres of the larger settlements, where there tend to be the highest levels of services and facilities, and where developments of more than two storeys would be acceptable. Achieving higher densities of residential development should not be at the expense of good design, highway safety, or amenity - both of the occupiers of the proposed housing, and of those living nearby. There may also be cases where higher density schemes are not the most suitable, for example where the local infrastructure would not be able to cope with the impact of a significant number of new homes, or where open space standards could not be met.

7.12 Similarly, there may be cases where it is acceptable to permit a density lower than 30 dwellings per hectare, for example backland or infill schemes where, in the interests of neighbours' amenity, 30 dwellings per hectare would be unacceptable; replacement dwellings, where the original dwelling has a large curtilage; and schemes in low density areas where new higher density development would not be in keeping with its surroundings.

Provision for all ages

7.13 The ageing population of West Lancashire presents a number of challenges, not least the need to cater for an increasing number of older people's accommodation requirements. Development proposals for accommodation designed specifically for the elderly will be encouraged on appropriate sites within settlements provided that they are accessible by public transport or within a reasonable walking distance of community facilities such as shops, medical services and public open space. Whilst the Council will welcome such developments, it has limited capacity to deliver these schemes itself. Thus it is also considered necessary to seek to deliver residential units suitable for elderly people through a requirement that a proportion of residential units in new developments should be designed specifically for the elderly.

7.14 The 2008-based population projections indicate that 43% of households in West Lancashire could comprise people aged 65 and over by 2033. If insufficient accommodation is provided for such people, this could lead to inefficient occupation of larger dwellings more suitable for families, as well as potential hardships with regard to bills for pensioners occupying larger properties. It would be impractical to attempt to achieve a proportion of 43% of dwellings in West Lancashire being designed for the elderly. However, a requirement that 20% of new dwellings in schemes of 15 units or more be designed for the elderly should strike an appropriate balance between meeting the obvious need for more accommodation suitable for elderly persons, and providing flexibility for housing developers.

7.15 The typical perception of elderly persons' accommodation is bungalows or sheltered housing. However, this need not be the case, and such types of development are not always appropriate, e.g. from a density point of view. Elderly persons' housing could simply be individual private dwellings that contain features designed specifically for the elderly (as opposed to Lifetime Homes, which are able to be adapted to suit older or disabled people). It is not expected that the provision of such accommodation should have any significant negative impacts upon viability, given there should be high demand for accommodation suitable for older people, and the price of such accommodation should compare favourably with 'typical' market housing. If, however, it is demonstrated that the provision of specialist housing for the elderly would in fact have a material negative impact upon viability, this can be taken into account when assessing affordable housing and / or other policy requirements for the proposed development, as set out in paragraph 7.35 of the justification to Policy RS2.

7.16 In addition, the Council will expect all new residential units to be designed to Lifetime Homes Standard to provide sufficient flexibility to accommodate people at all stages of life, whether as individuals, couples, families with children or older people, as well as having the capacity to meet the needs of disabled people of all ages.

7.17 Various studies have been undertaken into the cost of meeting of the Lifetime Homes Standard. It is estimated at between £545 and £1,615, depending on the dwelling size, whether the changes are incorporated from the outset of the design process and the experience of the housebuilder in this field.⁽¹²⁾ The costs are considered to be a modest amount above the cost of meeting the mandatory "Part M" Building Regulations, and the long-term benefits of properties meeting this standard are considered to outweigh the initial cost involved, as well as making such dwellings more attractive to buyers.

7.18 Where it can be demonstrated that it is clearly inappropriate for the Lifetime Homes Standard to be met for a particular property, the Council may consider waiving the requirement to meet the standard in certain exceptional cases.

Management of housing land supply

7.19 The target numbers of dwellings for each settlement, or category of settlement, have been set in Policy SP1 taking into account various factors, including the sustainability of each area, infrastructure provision (or the capacity to provide infrastructure during the Plan period) and the amount of potential housing land shown in the SHLAA. Whilst it is the case that targets for settlements or groups of settlements are minimum targets, there is a possibility that exceeding these targets by a considerable margin could result in unsustainable patterns

12 <http://www.lifetimehomes.org.uk/pages/costs.html>

of development across the Borough, and / or harm to the amenity of individual settlements, for example through traffic congestion or unacceptable pressure on local infrastructure and services. Policy RS1 therefore allows the Council to consider limiting development in different settlements if evidence shows that the adverse impacts of allowing more housing would significantly and demonstrably outweigh the benefits of providing more housing.

7.20 At present, there is a shortage in housing land supply, and the challenge for at least the first few years of the Local Plan will be to deliver the Plan's development targets. Through the 'Plan B', there is scope for releasing more land in 2017 and 2022, should this be deemed necessary. Conversely, in the unlikely event that housing land supply should, at some future point, significantly exceed requirements (either through a sustained surge in development rates, through a reduction in housing requirements as a result of future population data and household forecasts, or through a combination of these two scenarios), it is considered prudent for there to be scope in the Local Plan, should monitoring information confirm this to be necessary and / or appropriate, for the temporary implementation in future of some form of management of housing land supply.

Other Local Planning Policy and supporting documents

The following locally-produced documents are of particular relevance to this policy:

- Strategic Housing Market Assessment (2009)
- Strategic Housing Land Availability Assessment 2012 update
- Housing Land Supply in West Lancashire 2012

7.2 Policy RS2: Affordable and Specialist Housing

Context

7.21 As is the case nationwide, West Lancashire has an acute need for more affordable housing. The Borough as a whole has seen significant increases in house prices over recent years, leaving the average (or median) house price up to nine times the average (or median) wage in the most affluent settlements. The exception is Skelmersdale, where there are many relatively low-priced properties in various parts of the town, and thus in theory a good supply of affordable housing. However, the lowest priced properties in Skelmersdale tend to be one or two bedroom flats or terraced houses, and there is a need for affordable three and four bedroom houses.

7.22 A series of studies undertaken between 2000 and 2010 for the Council have consistently shown that to meet affordable housing needs, a considerable number of affordable dwellings would need to be completed each year, the figure sometimes exceeding the annual requirement for housing of all tenures. Clearly it would be almost impossible to deliver such levels of affordable housing, and thus the Borough is faced with a perpetual pressing need to deliver affordable housing.

7.23 Affordable housing has proved hard to deliver in West Lancashire over the past decade. Most recently, the economic downturn has had implications for the viability of delivering affordable housing, with development costs (in particular, the cost of borrowing

money up-front to finance schemes) increasing, resulting in a corresponding decrease in the percentage of units in a scheme that could be affordable whilst keeping schemes viable. A Court of Appeal ruling in July 2008 (Blyth Valley Council v Persimmon Homes) requires that local development plans take account of the viability of schemes when setting affordable housing requirements. In 2009, the Council commissioned Fordham Research to carry out a study looking specifically at viability, and this research has directly informed the preparation of this policy area.

7.24 Another factor influencing the delivery of affordable housing in West Lancashire over the past decade has been the restrictive housing policy in place between 2002 and 2010 (Policy DE1 of the West Lancashire Replacement Local Plan 2006). Although WLRLP Policy DE3 requires between 30% and 50% of the units in developments of 10 dwellings and over to be affordable, Policy DE1 restricted opportunities to secure affordable housing as part of market housing developments because it limited where market housing could be developed. Just 33 affordable units were granted planning permission in the Borough as part of market housing developments between 2002 and 2009.

7.25 Thus, there are a number of challenges when it comes to meeting affordable housing needs in West Lancashire, including the unmet need for affordable housing that will have built up over recent years. The policy below seeks to meet those challenges as far as possible, taking account of the various constraints described above.

Policy RS2

Affordable and Specialist Housing

Other than in Skelmersdale, affordable and specialist housing will be required as a proportion of new residential developments of 8 or more dwellings in the Borough's Key Service Centres, Key Sustainable Villages and Rural Sustainable Villages, as follows:

Proposed development size (number of units)	Affordable housing requirement (minimum % of units)
8-9	25%
10-14	30%
15 and above	35%

Within residential developments in Skelmersdale town centre, 10% of units will be required to be affordable, in accordance with Policy SP2. Elsewhere in Skelmersdale, no affordable housing will be required for developments of fewer than 15 units, whilst on sites of 15 or more dwellings, 20% of units will be required to be affordable, with up to 30% on greenfield sites on the edge of the built-up area.

Within Small Rural Villages, as defined by the settlement hierarchy in Policy SP1, affordable housing should be provided on sites comprising 5 or more dwellings, as defined in Policy RS1.

The Council will take account of viability when assessing individual schemes. If a level of affordable housing lower than those set out above is proposed for a specific scheme, the Council will expect robust information on viability to be provided by the applicant. The Council may seek to have such information independently verified in certain cases, with any costs associated with the verification to be met by the applicant, before approving a scheme with lower levels of affordable housing than those specified above.

A forthcoming Supplementary Planning Document (SPD) will provide more detailed policy to aid the implementation of affordable housing. In the future, such an SPD may vary the proportion of affordable housing required on sites from the levels stated above, depending on the viability, costs and expected income of the developments at the time that planning applications are processed. Similarly, if future housing needs studies indicate a change in the Borough's housing need, the SPD may vary the percentage requirements for affordable housing from those specified above.

In accordance with Policies GN1 and RS1, affordable housing schemes to meet an identified local need will be supported in the Borough's non-Green Belt settlements; small scale 100% affordable housing developments (i.e. up to 10 units) may be permitted on non-Green Belt land outside settlements, provided that a sequential site search for sites within settlement areas has been carried out in accordance with Policy GN5; and very limited affordable housing developments (i.e. up to 4 units) may be permitted in the Green Belt, provided that a sequential site search for sites within areas excluded from the Green Belt has been carried out in accordance with Policy GN5.

The precise requirements for tenure, size and type of affordable housing units will be negotiated on a case-by-case basis, having regard to the viability of individual sites and local need. Further details will be set out in the Affordable Housing SPD. The Council will usually expect the following:

- Tenure - the majority of affordable housing provided should comprise social and / or affordable rented units, with the remainder intermediate housing.
- Size and Type - the affordable housing provided should be a range of sizes and types, reflecting the sizes and types of market units to be provided through the development proposal.
- Lifetime Homes - the Council expects all affordable units to be built to Lifetime Homes Standard.
- On / off-site provision - affordable housing should be provided on the development site, unless there are exceptional circumstances which would justify provision elsewhere. Such off-site provision should be provided in the locality of the development site.

Specialist housing for the elderly

Specialist housing for the elderly will be provided in sustainable locations via specific schemes for elderly accommodation (e.g. Extra Care and Sheltered Accommodation), and through the requirement in Policy RS1 that, in schemes of 15 dwellings or more, 20% of new residential units should be designed specifically as accommodation suitable for the elderly.

Justification

7.26 The Council has commissioned a series of studies to comprise its Local Plan evidence base with regard to housing need and demand, affordable housing needs, and the viability of providing affordable housing. Policy RS2 has directly followed the conclusions and / or recommendations of these studies:

- The West Lancashire Housing Market Assessment (2009) was the first of these studies, although some of the conclusions of this study have since been superseded by the conclusions of the studies below, which are based on more recent evidence.
- The Housing Needs Study (2010) highlights different levels of affordable housing need in the different settlements, or Parishes, of West Lancashire, including numbers of dwellings, types and size of dwelling (e.g. house or flat, number of bedrooms), and tenure. It identifies an annual requirement of 214 affordable dwellings in the Borough (which would represent 66% of the average annual requirement for all residential development in the Borough) but sets a more balanced affordable housing need target of 35% of all new dwellings. It also recommends that the majority of affordable housing should be social rented with the remainder intermediate housing.
- The Affordable Housing Viability Study (2010) shows how the viability of housing schemes varies by settlement, by the types of dwellings being built, and by scheme size. The study concludes that an affordable housing requirement of 25% on sites of four units and over, and 35% on sites of six units and over would be viable.

7.27 The 'graded' affordable housing requirement set out in the table in Policy RS2 is considered the most appropriate approach in terms of affordable housing requirements. Policy RS2 is less stringent than the recommendations of the Affordable Housing Viability Study in that the threshold at which affordable housing is required is higher (8 units, rather than 4 units), and the percentages of affordable housing required for schemes of less than 15 units are lower (25% / 30%, rather than 35%) than the Study indicates would be viable. This takes into account the current challenging economic circumstances and seeks to ensure that smaller residential schemes are not made unviable by onerous affordable housing requirements.

7.28 The studies show that affordable housing in Skelmersdale is not such a pressing issue on account of the large number of relatively low priced properties in the town, but that nevertheless, there is a need for larger affordable dwellings (typically 3 bedroom houses). There is thus a requirement for affordable housing within market housing schemes in Skelmersdale.

7.29 The requirement to provide affordable housing will apply to incremental developments on sites which would result in the development of 8 dwellings or more (15 dwellings or more in Skelmersdale) on a larger site. An example would be where a large site was divided up into smaller sites and proposals were submitted for 7 dwellings or less on each site on a piecemeal basis.

7.30 Exceptionally, and where it is robustly justified, off-site provision of affordable housing may be considered as an alternative to on-site provision, where a site(s) has been identified and secured for the delivery of the required affordable housing to the satisfaction of the Council. Delivery of such a site(s) would be programmed alongside the delivery of the main site through a Section 106 agreement and the number of units of affordable housing required would be derived from the relevant proportion from the policy above of the total number of units on the combined sites. In such circumstances, off-site provision should be provided in the locality, i.e. within the same (or, exceptionally, an adjacent) parish as the development site, or within the same settlement in non-parished areas.

7.31 Provision of 100% affordable housing schemes, which are usually undertaken by, or in partnership with, Registered Providers (RPs), is supported across the Borough, except on Green Belt land. The SHLAA demonstrates that there should be a sufficient range of sites in non-Green Belt areas to accommodate RP schemes across West Lancashire.

7.32 In line with the 2008 Blyth Valley court ruling, the Council will take account of viability when assessing individual schemes. If a level of affordable housing lower than those set out above is proposed for a specific scheme, the Council will expect robust information on viability to be provided by the applicant. The Council may seek to have such information independently verified in certain cases, with the cost of the verification expected to be met by the applicant.

7.33 A forthcoming Supplementary Planning Document (SPD) will provide more detailed policy to aid the implementation of affordable housing. The Affordable Housing SPD will provide details on the Council's expectations with regard to tenure split, size and type of unit, Lifetime Homes Standards, the relationship between the elderly persons' accommodation requirement and the affordable housing requirement, and on / off site provision.

7.34 With regard to tenure split, the Council currently operates on the basis of 80% social rented housing and 20% intermediate housing. However, a new 'affordable rent' tenure was introduced by central government in Spring 2011, whereby rents are set at up to 80% of the market rent for the locality. Evidence will be gathered on the full impact of the introduction of this new tenure; any necessary resulting variations in the tenure split and other details of the affordable housing policy will be reflected in the SPD.

7.35 The justification for the requirement for specialist housing for the elderly is set out in paragraphs 7.13-7.15 of Policy RS1. When assessing the viability of a market housing-led scheme (in order to determine whether the affordable housing requirements of Policy RS2 can be met), any negative impact upon viability resulting from the provision of specialist accommodation for the elderly may also be taken into account. In the case of a proposed scheme being unable to meet the requirements of Policy RS1(e) and Policy RS2 viably, consideration should be given on a case-by-case basis to whether the affordable housing requirement, specialist housing requirement, or both requirements, should be reduced in

order to achieve a viable scheme. Where appropriate (for example, where the local affordable housing need includes a need for affordable housing for elderly people), part, or all, of the specialist housing requirement may be incorporated within the affordable housing requirement.

7.36 The affordable housing requirements set out in Policy RS2 are based on the evidence contained in the 2010 West Lancashire Housing Needs and Viability Studies. If future studies indicate a change in the Borough's housing need, or viability in relation to affordable housing requirements, the SPD will be amended if necessary, to alter the requirements for affordable housing from those specified above, reflecting the most up-to-date information available.

Other Local Planning Policy and supporting documents

Local documents of relevance include:

- West Lancashire Strategic Housing Land Availability Assessment (SHLAA) 2012 update
- West Lancashire Strategic Housing Market Assessment (SHMA) 2009
- Housing Need and Demand Study 2010
- Affordable Housing Viability Study 2010
- Policy Framework Formulation Document 2010

7.3 Policy RS3: Provision of Student Accommodation

Context

7.37 The success and growth of Edge Hill University has brought economic and social benefits to West Lancashire, and to Ormskirk in particular. However, it has also raised a number of issues, mainly related to the accommodation of students within Ormskirk.

7.38 Whilst many students live on the University campus in purpose-built accommodation, or are mature students living outside the town, there are a significant number of others who live within the residential areas of Ormskirk. The off-campus accommodation in Ormskirk typically consists of rented, often terraced, houses in areas close to the town centre. Over recent years, a significant number of properties have been purchased by landlords, and converted from single family dwellings to 'Houses in Multiple Occupation' (HMOs). These properties were often originally family housing at the cheaper end of the scale, and their being taken out of the residential market has had knock-on implications for affordable housing provision in Ormskirk.

7.39 In some streets in Ormskirk, the proportion of properties being let to students as HMOs is so high that the character of the area has changed, and in certain cases there have been problems with insufficient parking provision and anti-social behaviour by a minority of students. Whilst the idea of a sustainable mixed community is attractive, too high a proportion of HMOs at a local level has been shown to be undesirable in Ormskirk.

7.40 Under current planning law, changes of use from a dwelling house to an HMO do not require planning permission. However, local planning authorities are able, if deemed appropriate, to impose an "Article 4 Direction" which would make it necessary to obtain planning permission for changes of use from dwelling houses to HMOs. An Article 4 Direction covering Ormskirk, Aughton and Westhead took effect in December 2011. This has given

the Council some control over the number and distribution of further HMOs in these areas, although it does not affect any HMOs already in place at the time the Direction came into force.

7.41 The decision needs to be taken as how best to address the issue of student accommodation. The Council will endeavour to work with the University to ensure that the provision of appropriate accommodation (predominantly on or near the campus) is facilitated for students of Edge Hill, and it is hoped that through joint working between the University, landlords and students on a “code of practice”, existing problems associated with student accommodation within residential areas can be addressed.

Policy RS3

Provision of Student Accommodation

a) Purpose-Built Student Accommodation

Proposals for the construction of purpose-built student accommodation will be supported within the University Campus or within any extension of the campus proposed in accordance with Policy EC4, where the need for increased provision of student accommodation associated with Edge Hill University is demonstrated by evidence. The development of purpose-built student accommodation elsewhere in Ormskirk and Aughton will be restricted, except where:

- i. an over-riding need for such accommodation is demonstrated;
- ii. demand for the conversion of existing dwelling houses to HMOs will be demonstrably reduced; and
- iii. it will not negatively impact the amenity of surrounding uses, especially residential uses.

When assessing the potential impact of purpose-built student accommodation on the amenity of the surrounding areas, the Council will also have regard to the presence of any HMOs in the vicinity.

b) Houses in Multiple Occupation

When assessing proposals for conversion of a dwelling house or other building to a House in Multiple Occupation (HMO)⁽¹³⁾, the Council will have regard to the proportion of existing residential properties in use as, or with permission to become, an HMO, either in the street as a whole, or within the nearest 60 residential properties (excluding those

13 A house in multiple occupation (HMO) is defined as a house or flat occupied by three or more people who rent a property, are not related and share a kitchen, bathroom or toilet. Where between three and six unrelated people who satisfy the criteria of an HMO, live in a property and share one or more basic amenities, the property falls within Class C4 of the Use Classes Order. However, for the purposes of Policy RS3, the definition of HMO may also include any house or flat occupied by seven or more unrelated people who rent the property and share one or more basic amenities. Where the conversion of a dwelling house to rented accommodation for seven or more people requires planning permission, then Policy RS3 will apply, just as it applies to HMOs with between three and six people.

residential properties used specifically for the accommodation of older people or in a C2 use) in the same street, whichever is the smaller. Where proposals for an HMO would result in the percentages specified in the table below being exceeded, these proposals will not be permitted unless there are compelling reasons specific to an individual application why it would be appropriate to allow the limit to be exceeded. The Council will also have regard to any purpose-built student accommodation in the same street, or section of the street.

Category	Max %	Description of Street	Streets
Category A	15%	Typically A- and B- classified roads and other important routes in Ormskirk which tend to have the highest levels of traffic and are within easy walking distance from the University.	Aughton Street (section outside Primary Shopping Area), Moor Street (section outside Primary Shopping Area), Park Road, Derby Street West, Knowsley Road, Stanley Street, St. Helens Road, Wigan Road.
Category B	10%	Typically unclassified roads that have relatively high levels of through traffic, and / or roads with a significant amount of non-residential uses present, within reasonable distance of the University, usually further away than Category A roads.	Burscough Road, Burscough Street (section outside Primary Shopping Area), Southport Road (section east of County Road only), County Road, Derby Street, Green Lane, Hants Lane, Moorgate (section outside Primary Shopping Area), New Court Way, Railway Road (section outside Primary Shopping Area), Ruff Lane.
Category C	5%	All other streets in the Ormskirk area covered by the Article 4 Direction on HMOs (or in any other areas covered by other Article 4 Directions in the future).	-

Figure 7.1 shows the streets in Categories A and B listed in the table above.

Within the primary shopping area of Ormskirk, as defined on the Policies Map, a greater proportion than 15% of residential properties above ground floor level will be permitted to function as HMOs, subject to there being no unacceptable impact on the residential amenity of the primary shopping area or on the supply of accommodation for other town centre uses (for example, offices, or storage for ground floor retail units).

When assessing proposals for changes of use to HMOs, regard will be had towards any potential clustering of HMOs and / or purpose-built student accommodation, and the effects of this on nearby properties.

The Council will not permit the conversion to HMOs of any new housing built in Ormskirk following the adoption of the emerging Local Plan, regardless of its location, and notwithstanding the limits in the above table, other than that created as part of purpose-built student accommodation.

This policy is applicable in conjunction with an Article 4 Direction relating to HMOs and covering Ormskirk and Aughton. If in future years, there is evidence that HMOs are becoming an issue in settlements outside of Ormskirk and Aughton, and Article 4 Directions are implemented to cover such areas, the principles of Policy RS3 will apply to such areas.

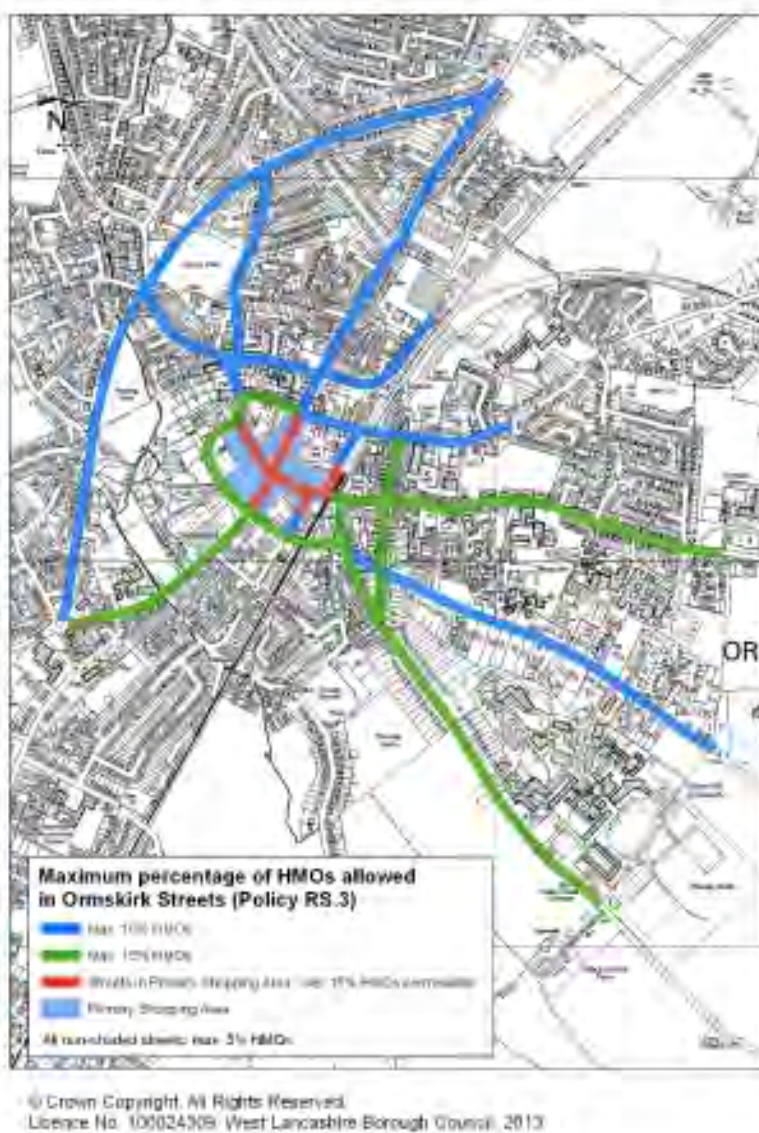


Figure 7.1

Justification

7.42 The continued success of Edge Hill University is in the interests of the wider community of West Lancashire, with the University delivering overall economic and social benefits to the Borough as a whole. The Council supports in principle the development of the University, and the provision of sufficient and good quality bed spaces for Edge Hill students, whether in hall-type accommodation on the campus (usually occupied by first year students) or in rented accommodation off the campus. However, any development of the University should not have an unacceptable impact, and student numbers should only increase in future if the students can be accommodated satisfactorily within the Borough without causing unacceptable harm to Ormskirk and Aughton or to any other settlement, whether in terms of the impact of students living locally, or students living further afield who commute to and from the University.

7.43 The provision of purpose-built student accommodation is supported in general terms, although it is important that such accommodation should be sited in the most suitable areas. As with HMOs, accommodation for significant numbers of students is not considered appropriate in predominantly residential areas. Land at the existing University campus is the best location for student accommodation. Other locations will only be considered where the three criteria of Policy RS3(a) are met.

7.44 The allocation of land on the campus for student accommodation is addressed in Policy EC4. The efficient use of such land will be expected, whilst recognising the need to provide a quality environment on the site. Given current water infrastructure constraints in Ormskirk, planning conditions will be used to ensure that a foul drainage scheme is approved by the Local Planning Authority in consultation with the Environment Agency and United Utilities before development of student accommodation takes place.

7.45 The Council has had contact over recent years with local residents groups who have highlighted problems associated with the uncontrolled proliferation of HMOs within certain areas of Ormskirk. The most appropriate approach towards HMOs is considered to be to limit the proportion of HMOs within specific streets to a certain percentage, whilst recognising that in some cases the ideal maximum percentage has already been exceeded during the period where it was not possible to control the conversion of dwelling houses to HMOs. Where a proposal for an HMO would result in the percentage limit being exceeded, no more HMOs will be permitted under this policy unless there are compelling reasons specific to an individual application why it would be appropriate to allow the HMO limit to be exceeded, or further exceeded.

7.46 If, in addition to HMOs, there exists any purpose-built student accommodation in the same street (or amongst the nearest 60 residential properties in the street), this will be taken into account when assessing the likely impact of any proposed new HMO. It may be the case that, even if the HMO percentage limit is not exceeded, planning applications for HMOs may be refused if their likely impact, combined with any purpose-built student accommodation nearby, is judged to be unacceptable. When assessing the potential impact of HMOs, the effect of any clustering (e.g. HMOs either side of a particular property) will be considered. The number of occupants in a proposed HMO may also be taken into account.

7.47 If all types of unit are considered (commercial, retail, etc.) when calculating proportions of HMOs in a street, it could be the case that the actual percentage of HMOs amongst just the residential properties in certain streets might be significantly higher than the HMO limit

for that type of street, which could lead to unacceptable loss of amenity for residents. Given one of the main objectives of this policy is to protect residential amenity, only residential units (excluding those used specifically for the accommodation of older people or in a C2 use) should be considered when calculating percentages of HMOs in a particular street.

7.48 Outside the Primary Shopping Area of Ormskirk, an overall limit of 15% for the proportion of HMOs is considered to strike an acceptable balance between the need to accommodate students within Ormskirk, and the need to maintain acceptable levels of residential amenity. The lower limits of 10% and 5% reflect the different characteristics of the streets to which they apply. Busy A-roads and through routes are considered more suitable for HMOs (provided parking can be adequately addressed) than quiet residential streets with low volumes of traffic, which tend to be better locations for the elderly, or for households with children. Also, the proximity of commercial premises, public houses, and facilities such as primary schools are factors influencing which areas are more appropriate for which types of housing. Given the recognised need for student accommodation in general terms, it is not considered appropriate to completely exclude HMOs in particular streets. The lowest proposed limit of 5% is just one unit in twenty, and any negative effects associated with the conversion of properties to HMOs are likely to be acceptable at such a low density.

7.49 Within the primary shopping area of Ormskirk Town Centre, the environment is predominantly commercial rather than residential. In this area, it should be possible to accommodate a higher proportion of HMOs than 15% (taken as a proportion of residential units) without there being unacceptable effects on the amenity of town centre residents. It is important, however, to ensure that conversion of accommodation to HMOs does not result in any significant loss of space for other appropriate town centre uses, for example offices, or storage for ground floor shop units, that would undermine town centre viability and vitality.

7.50 New housing is being proposed in Ormskirk in the Local Plan and this will involve the release of Green Belt land. This housing is intended to meet local needs. Therefore, it is considered appropriate to specify that none of this new housing should subsequently be converted to HMOs, otherwise further Green Belt release would be required to meet local needs, especially given that new student accommodation will be provided on an extended Edge Hill University campus (see Policy EC4).

7.51 This policy is applicable in conjunction with an Article 4 Direction relating to HMOs and covering Ormskirk, Aughton and Westhead. If in future years, there is evidence that HMOs are becoming an issue in settlements outside of Ormskirk, Aughton and Westhead, and Article 4 Directions are implemented to cover such areas, the principles of this policy will apply to such areas. Variations between different streets in other Article 4 areas can be set out in future Supplementary Planning Documents, where necessary.

Other Local Planning Policy and supporting documents

- The Town and Country Planning (Use Classes) (Amendment) (England) Order 2010
- West Lancashire Borough Council Article 4 Direction on HMOs in Ormskirk, Aughton and Westhead, December 2011
- West Lancashire Local Plan 2012-2027 – Technical Paper 4: Edge Hill University (2012)

7.4 Policy RS4: Provision for Gypsies & Travellers and Travelling Showpeople

Context

7.52 As part of the Local Plan Examination process, the Inspector recommended that Policy RS4 could not be found sound as submitted. Therefore, Policy RS4 has been deleted in its entirety from the Local Plan and the Council has made a commitment to prepare a separate Development Plan Document (DPD) specifically on provision for Gypsies & Travellers and Travelling Showpeople.

7.53 To this end, the Council published an updated Local Development Scheme (LDS) in May 2013 which includes the commitment to prepare a Provision for Travellers' Sites DPD, and the anticipated timescales for the preparation of this DPD, which will provide the local planning policy for West Lancashire relating to provision for Gypsies & Travellers and Travelling Showpeople.

7.5 Policy RS5: Accommodation for Temporary Agricultural / Horticultural Workers

Context

7.54 Seasonal agricultural workers have been employed on farms in West Lancashire for many years, including workers from overseas. While the influx of migrant workers, and therefore demand for accommodation for agricultural / horticultural workers, has declined in recent years, there is still a need for a policy to address accommodation for these workers should a need for new accommodation emerge over the course of the Plan period.

Policy RS5

Accommodation for Temporary Agricultural / Horticultural Workers

The reuse of existing buildings within village settlements and the Green Belt for accommodation for temporary agricultural and/or horticultural workers will be permitted provided that it complies with other policy in this Local Plan and national Green Belt policy. The provision of non-permanent accommodation, appropriate to both the identified need and the location, will be permitted where it can be demonstrated that:

- i. there is a requirement to provide accommodation to satisfy a clearly identified need for temporary agricultural / horticultural workers;
- ii. there are no existing buildings in the locality which are suitable, or capable of being made suitable, for accommodating temporary workers;

- iii. the site chosen is the most suitable in the locality, taking into account other policies in this Local Plan;
- iv. any impact on visual amenity, residential amenity, highway safety, landscape, wildlife and countryside character is minimised to an acceptable level; and
- v. proposals include measures to protect the character of the local area, including retention of existing trees and hedges, implementation of landscape planting, improvement of any damaged or derelict land involved and improvement of boundary treatments.

In all cases of non-permanent accommodation, the permission will be subject to a time-limiting condition of five years from the date of the accommodation being sited on the site or the date of the planning permission, whichever is the earlier, unless the evidence of need demonstrates that a shorter time-limited condition is warranted.

Justification

7.55 Policy RS5 is essentially the same as Policy DE8 in the West Lancashire Replacement Local Plan (2006), and the same justification remains. Alternative approaches were considered for this policy, including having no policy or having a more relaxed policy, but it was considered important to provide policy to guide proposals for accommodation for temporary agricultural / horticultural workers should the need arise over the plan period in order to facilitate the rural economy but to also protect the natural environment and rural character of the Borough from inappropriate developments of this nature.

7.56 Whereas in the past the caravans housing these workers may have been placed within and/or between the farm buildings, new sites are often highly visible and some are near residential properties. This can have an adverse impact on the landscape and on local residents.

7.57 In past years agricultural and horticultural employers have found it increasingly difficult to recruit sufficient numbers of temporary workers, especially at periods of peak activity due to a lack of suitable and affordable accommodation in the rural areas. The farmers feel this constrains their ability to meet domestic demand and some export markets, so opening up the UK to imports.

7.58 The majority of seasonal and casual workers are from one or more of the following:

- Recruited direct by the farmers;
- Workers supplied by gangmasters;
- Students seeking part-time or vacation work;
- The Seasonal Agricultural Workers Scheme (SAWS); and
- The Working Holiday arrangements.

7.59 Although some temporary accommodation will not require planning permission, in most cases permission will be required. Operators should always check with the Council's Planning Department, but normally planning permission is required in the following cases:

- If the workers will be housed for longer than a normal planting, growing, or picking season;
- If caravans and other related buildings (e.g. canteens and toilets) are to be kept on site permanently;
- If a change of use to an existing building is involved; or
- If hardstandings and permanent services (e.g. water supply or septic tank) need to be constructed.

7.60 The Council wishes to assist in supporting a healthy rural economy within the context of national and local planning policies. Permanent buildings or caravans which are kept on site for a number of months can reduce the open character of the Green Belt and have an adverse impact on the landscape and the amenity of local residents. Therefore, the above policy has been introduced to limit the impact of this type of development on the local area.

7.61 The Council has also produced Supplementary Planning Guidance on Accommodation for Temporary Agricultural Workers, which is relevant to the implementation of this policy.

Other Local Planning Policy and supporting documents

- Accommodation for Temporary Agricultural Workers SPG (2007)

7.6 Policy RS6: A "Plan B" for Housing Delivery in the Local Plan

Context

7.62 Policy GN2 sets out several sites across the Borough that are safeguarded from development for the needs of a "Plan B", should it be required. Appendix E sets out the key issues in relation to delivery and risk for each individual policy. For Policies SP1 and RS1, these delivery issues often revolve around a similar concern – what if a key site or location for residential development cannot be delivered? Ultimately, this leaves the outcome of the locally-determined target for residential development not being met, unless a viable alternative can be found.

7.63 Therefore, while it is hoped that all aspects of the Local Plan will be deliverable, and they have been selected because the Council believes that they are, it is prudent to have a "Plan B" prepared in case a key site(s) for residential development does not come forward for development during the plan period. Policy RS6 provides the Council with the ability to enact such a "Plan B" should it become apparent through monitoring that the Local Plan's residential targets are not being met.

7.64 An additional consideration is the fact that the Local Plan covers a long period (15 years) and, in relation to the locally-determined targets, it is not unreasonable to expect some change in the evidence for those targets over the 15 years, potentially resulting in new targets. Therefore, the Local Plan should be flexible enough to address these changes, as well as any other reasonable change in circumstance, without a wholesale review of the Plan.

Policy RS6

A "Plan B" for Housing Delivery in the Local Plan

The "Plan B" sites safeguarded in Policy GN2 will only be considered for release for housing development if one of the following triggers is met:

- Year 5 review of housing delivery

If less than 80% of the pro rata housing target has been delivered after 5 years of the Plan period, then the Council will release land from that safeguarded from development for "Plan B" to enable development to an equivalent amount to the shortfall in housing delivery.

- Year 10 review of housing delivery

If less than 80% of the pro rata housing target has been delivered after 10 years of the Plan period, then the Council will release land from that safeguarded from development for "Plan B" to enable development to an equivalent amount to the shortfall in housing delivery.

- The housing target increasing as a result of new evidence

If, at any point during the 15 year period of the Plan, the Council chooses to increase its housing target to reflect the emergence of new evidence that updates the existing evidence behind the housing target and which would undermine the existing target, then an appropriate amount of land will be released from that safeguarded from development for "Plan B" to make up the extra land supply required to meet the new housing target for the remainder of the Plan period.

Justification

7.65 The Council believe that the locally-determined targets that have been set in this Local Plan are fair and reasonable in light of all the available evidence at this time. However, it is possible that targets for residential development will rise, meaning that new locations for development would need to be identified, and so in this situation the "Plan B" would also provide the flexibility required to accommodate this rise.

7.66 In essence, the Council's "Plan B" for the Local Plan involves the release of land from the Green Belt and its allocation as safeguarded land under Policy GN2. This land would be safeguarded from development until the above triggers in Policy RS6 are reached. Until these triggers are reached the land will be protected from development in a similar way to Green Belt (see Policy GN2) and in such a way as to not prejudice the possible future development of this land if the "Plan B" is triggered.

7.67 The supply of land safeguarded from development for the “Plan B” in Policy GN2 (which has a total capacity of 830 dwellings) is more than sufficient to allow for at least 15% extra on top of the 15-year housing target being proposed in the Local Plan (15% of 4,860 dwellings = 729 dwellings). This percentage is based on the need to ensure that even the largest of the housing allocations in the Local Plan is covered by the flexibility of the “Plan B”, should it fail to be delivered.

7.68 Ongoing monitoring of housing delivery in the Plan period will enable the Council to be prepared for any trigger points in Policy RS6 being reached. If it is anticipated a year before any trigger point is reached (i.e. at the end of Years 4 and 9 of the Plan) that housing delivery is at risk of triggering the “Plan B”, the Council will commence a review of the level and nature of any undersupply compared to housing requirements. This review will also review the “Plan B” sites themselves in order to identify which site(s) are most suitable to release for development at that time (if any, depending on the nature of, and reasons for, the undersupply), should the level of undersupply ultimately trigger the “Plan B” in April of the following year. The quantum of release will be sufficient to meet the identified shortfall in housing delivery compared to the housing requirements.

Chapter 8 Infrastructure and Services Provision

8.1 Policy IF1: Maintaining Vibrant Town and Local Centres

Context

8.1 National policy with regard to planning for retail, leisure and town centres is set out in the National Planning Policy Framework. The West Lancashire Local Plan will generally rely upon national policy with regard to the promotion and protection of town centres. However, there is one issue in West Lancashire which requires a locally distinctive, more detailed policy, namely the incremental change of units in town and local centres from retail to non-retail uses.

8.2 At present, Ormskirk Town Centre functions as the primary retail centre for West Lancashire although, hierarchically, Skelmersdale is the highest order centre and it will be greatly enhanced once the town centre strategic development site has been developed.

8.3 Ormskirk is distinctive on account of its twice-weekly market, its pedestrianised shopping area, and its good selection of independent shops, a number of which have been in existence for several decades. Ormskirk town centre has managed to 'hold its own' and maintain reasonable levels of vitality and viability in spite of external pressures such as the general leakage of trade out of the Borough, out-of-centre retail developments and the effects of the recession.

8.4 The purpose of Policy IF1 is to set out the retail hierarchy for the Borough, to define the Primary Shopping Areas of the main town centres, and to maintain and enhance the vitality and viability of town and local centres by retaining an appropriate percentage of retail uses there and by encouraging the retention and viability of other recognised town centre uses, such as commercial, leisure and cultural facilities. This policy will work in conjunction with national policy, which seeks to encourage town centre, as opposed to out-of-centre, development.

Policy IF1

Maintaining Vibrant Town and Local Centres

Retail and other appropriate town centre development will be encouraged within town and local centres, followed by edge of centre locations, in line with national policy. Retail and other main town centre uses will only be considered in out-of-centre locations if a specific local need is proven for the proposed development and there is no suitable site available within a town, village or local centre. When considering edge of centre and out of centre sites, a preference will be given to accessible sites that are well connected to the town centre.

When assessing proposals outside of town centres for comparison retail that involve an increase in floorspace of over 500m² gross, or for supermarkets / superstores that involve an increase in floorspace of over 1,000m² gross, an impact assessment will be required.

The hierarchy of town centres within West Lancashire is as follows:

Hierarchy	Centres
1: Town Centre	Skelmersdale, Ormskirk, Burscough
2: Large Village Centre	Tarleton, Hesketh Bank, Up Holland, Banks, Parbold
3: Small Village Centres and Local Centres	All other centres, as defined on the Policies Map

The Policies Map defines the extent of all town, village and local centres, and defines the primary shopping areas of town centres⁽¹⁴⁾.

Within the primary shopping areas of Ormskirk and Burscough town centres, within Skelmersdale town centre as a whole and within local centres proposals for the change of use from retail (i.e. Class A1 of the Use Classes Order) to other uses will be required to meet the following criteria:

- The proposal, when taken cumulatively with other existing or consented non-retail uses, does not have a detrimental effect upon the vitality and viability of the centre;
- The proposal retains a pedestrian-level shop front with windows and display;
- Any proposed non-A1 use should, wherever possible, have operational hours that include at least a part of traditional opening times (i.e. 9am – 5pm). Uses that involve operational hours in the evening or night should not create inappropriate disturbance to residents or other users of the town centre and surrounding areas;
- There is evidence that the unit has been marketed as a retail unit in accordance with Policy GN4.

At least 70% of pedestrian level units within the above areas should remain in Class A1 retail use. A unit within a primary shopping area (PSA) should only be released from a Class A1 retail use if at least 70% of the units within the immediate area⁽¹⁵⁾ and within the PSA as a whole are in Class A1 use. The Council will not necessarily take the approach of allowing all proposals for change of use away from A1 until the proportion of units in A1 use drops down to, or below, 70%.

When assessing the effect of the change of use of A1 floorspace upon the vitality and viability of a PSA, the following factors should be taken into account:

14 A Primary Shopping Area has not been defined within Skelmersdale Town Centre due to the ongoing regeneration of the town centre (cf. Policy SP2), which will redefine and extend the primary retail areas of the town centre.

15 'Immediate area' is defined as: the local centre as a whole, or, in the case of primary shopping areas, anywhere within a 50m radius of the main entrance of the unit in question, including other streets within the primary shopping area, but excluding land outside the primary shopping area. In the case of a multi-storey shopping centre, the 'immediate area' will comprise the storey on which the unit is located.

- The size (amount of floorspace) of the unit proposed for change from retail to other uses and whether this is significant in relation to the total retail floorspace of the PSA;
- The extent of alternative provision in the PSA and in the wider area, including the range of retail units remaining, and their size, type and quality;
- The level of demand for retail units in the PSA;
- The nature of the immediate area;
- Whether conversion of the unit in question would cause the proportion of A1 uses to drop to around, or less than, the target (70%) of pedestrian level units in the immediate area, or in the PSA;
- Any traffic / highways issues that may arise from certain A1 uses, especially in a pedestrianised area such as Ormskirk town centre;
- Whether the proposed use is a use that would typically be expected in a town centre, and the likely contribution it would make towards economic activity and the vitality and viability of the centre compared with the original retail unit; and
- In the case of proposals to bring a Class A1 retail unit that has been vacant for six months or more back into non-A1 use, whether the boost to economic activity resulting from bringing inactive floorspace back into use outweighs any negative impact associated with loss of the A1 floorspace.

Similar principles to the above will apply, where relevant, when assessing proposals for non-retail use of retail units in local centres and in Skelmersdale Town Centre. Development proposals within Skelmersdale Town Centre must be in accordance with Policy SP2, and must ensure that the vitality and viability of the Concourse is protected.

Other uses in Town Centres

Within town centres, a diversity of uses will be encouraged outside the Primary Shopping Area, and above ground floor level within the primary shopping area, in order to maximise centres' vitality and viability, to encourage an evening economy, and to improve safety and security by increasing natural surveillance of the centre. Such uses may include cultural facilities, restaurants and cafés, drinking establishments and nightclubs, financial and professional services, offices and residential uses, student accommodation, as well as uses relating to non-residential institutions, and leisure / recreation uses that are appropriate in a town centre.

Office development will be encouraged within or on the edge of the town centres of Skelmersdale, Ormskirk and Burscough, within the Ormskirk Business Area and White Moss Business Park, and on other sites allocated for Class B1 development. Small-scale (i.e. up to 1,000m²) office uses will be permitted elsewhere within settlements, provided that they comply with other Local Plan policies, they are of a suitable scale, and they do not have an unacceptable impact on their locality, for example in terms of traffic

generation. New office developments should be readily accessible by public transport. Any proposals for office developments within PSAs will still be subject to the policy above regarding the change of use from retail (Class A1) uses.

The loss of community, leisure and cultural facilities and services within town and local centres will be resisted unless it can be demonstrated that the facility is no longer needed, or it can be established that the services provided by the facility can be served in an alternative location or manner that is equally accessible by the community.

Justification

8.5 West Lancashire has always “leaked” trade to neighbouring local authority areas, especially in the case of comparison retail. This is due to a number of factors, including the lack of any bespoke retail parks in the Borough and the location of major retail facilities, both town centre and out-of-centre, within easy access of the Borough but outside its boundaries. It is accepted that, although an improvement to West Lancashire’s retail offer will help retain a greater proportion of trade and improve the vitality and economy of the Borough, significant leakage of expenditure to larger centres outside West Lancashire is expected to continue.

8.6 Therefore, Policy IF1 does not seek to address the issue of leakage of trade to other areas, but instead focuses on the protection and enhancement of the vitality and viability of the Borough’s town, village and local centres, because this is considered to be especially important in West Lancashire.

8.7 The previous Local Plan policy (Policy DE10 of the Replacement West Lancashire Local Plan 2006) (WLRLP) was criteria-based and sought to limit the change of use of units in the primary shopping area of Ormskirk Town Centre from retail (i.e. Class A1 of the Use Classes Order) to other uses. An informal target of having at least 60% of the units within the primary shopping area in retail use was included in an Appendix to the Local Plan. Over recent years, there have been a number of proposals to change the use of town centre retail units to non-A1 uses such as financial services, drinking establishments and hot food take-away premises. The Local Plan policy and target have in practice been less effective than intended in preventing changes of use from retail to other uses in Ormskirk Town Centre.

Assessing impact

8.8 The Council’s Retail and Leisure Study (December 2011) advises that an impact assessment should be required for planning applications (including extensions) for comparison retail of 500m² gross or more, or for supermarkets or superstores of 1,000m² gross or more. The reason for these thresholds being lower than the ‘default’ national figure of 2,500m² is the relatively small size of the Borough’s town centres, both in terms of their total retail floorspace and the average size of individual units. Therefore, proposals for increases in retail floorspace greater than the above thresholds are large relative to existing provision and could potentially result in significant adverse impacts on the Borough’s town centres. In the case of leisure and office development proposals, the national threshold of 2,500m² applies.

8.9 In terms of assessing planning applications for change of use away from A1 retail, the criteria listed in Policy IF1 have been drawn up in the light of experience since the adoption of the 2006 WLRLP. The main purpose of Policy IF1 is to maintain and enhance the vitality and viability of town, village and local centres.

8.10 The impact resulting from the loss of a retail unit will vary according to:

- The unit's size in relation to the centre (or primary shopping area) as a whole, and the extent of alternative provision in the centre. For example, the loss of the only large unit in a centre would have greater impact than the loss of a more prevalent average-sized unit.
- The level of demand for retail units in the centre. Where there is high demand for retail units, changes away from A1 use should be resisted. Where there is little or no demand for A1 uses, then other economic activity in the town centre could help maintain vitality.
- The nature of the immediate area. It could be the case that in large centres, the centre as a whole is vital and viable, but less vital / viable pockets exist in certain locations.
- Traffic / highways issues that may arise from certain A1 uses. For example, for a take-away type use, there may be issues created by delivery vehicles or customers' vehicles.
- The alternative use proposed. Different uses contribute towards vitality and viability to different extents.

8.11 Retention of a ground floor shop front helps minimise the impact of changes of use away from retail by maintaining a retail-like "look" in the street, and allowing for easy conversion back to retail in the future if necessary. Having the operating times of non-retail uses coinciding with, or overlapping, the retail uses' operating times will aid vitality and viability by maximising potential footfall during shop opening hours. Marketing should help identify or secure appropriate new occupiers for empty or "relocating" retail units, thereby continuing the retail use of such units.



Area of Assessment

8.12 In defining the ‘immediate area’, the most appropriate approach is considered to be “radius-based” (i.e. all units within X metres), the radius being taken from the main door of the unit in question. This would be simple to agree with developers, and would mean that the “alleyways” would not be missed in assessments. Where at least half of a unit lies within the given radius, this unit should be taken into consideration in any calculations.

8.13 50 metres is considered the most practical radius to use. Anything smaller (e.g. 30m) may not “capture” many units, whilst larger radii could lead towards the whole primary shopping area being considered, which could defeat the purpose of assessing the “immediate area”.

8.14 In the case of village and local centres, which tend to be small, the whole centre should be included in the assessment. In the case of any multi-storey shopping centres (e.g. the Concourse, Skelmersdale), the area to be assessed will comprise the whole of the storey on which the retail unit is located.

Percentage of units to be in Class A1 use

8.15 In terms of a ‘target percentage’ of units to be in Class A1 use, the previous target of 60% in Ormskirk is considered to be too low in that, although the proportion of units in the primary shopping area (PSA) of Ormskirk has been well above 60% in recent years (West Lancashire Annual Monitoring Report 2010, p53) and the centre is ‘holding its own’, there are localised parts of the PSA where there is a relatively high proportion of units in non-retail use (for example, the eastern end of Moor Street). Setting a target of 60% would in effect allow the conversion of several more retail units away from Class A1 use in Ormskirk, and a likely associated reduction in vitality and viability.

8.16 By increasing the target to 70%, this policy will still allow for some flexibility and appropriate changes of units in Ormskirk town centre from retail to other uses, but should prevent significant numbers of retail units being lost. A higher target (e.g. 75% or 80%) is considered over-stringent and may lead to more vacant units, rather than vital and viable retail centres.

8.17 This approach for Ormskirk is also considered appropriate for the rest of West Lancashire. As Skelmersdale is the highest-order settlement according to the hierarchy set out in Policy SP1, its town centre should have at least the same level of protection as Ormskirk’s. Burscough is dominated by a food superstore, and the vitality and viability of the small units in its primary shopping area need to be carefully supported. Given the lower number of units in local centres, the change of use of just one unit can have significant impact on the remainder of the centre, and thus the maintenance of a high proportion of units in retail use is important.

Use Classes Order

8.18 The target takes account of the current national definition of what constitutes a Class A1 use. If the Use Classes Order is subsequently revised, and the proportion of units in town and local centres defined as retail varies as a result, the target in this policy may be revised accordingly.

Vacant units

8.19 The vitality and viability of town centres in general has been affected by the recent difficult economic climate. If proposals involve bringing a vacant unit (formerly Class A1) back into use, the Council will consider whether the benefits of encouraging economic activity by bringing a vacant unit back into active use outweighs the loss of A1 floorspace. This would most likely be the case when the unit in question had been vacant for several months and efforts to market it for retail use had proved fruitless. Marketing of a vacant retail unit should be undertaken in accordance with the requirements of Policy GN4 (Demonstrating Viability).

First (and higher) floor properties within centres

8.20 Promoting the use of premises above ground floor level in town centres and larger local centres for a diverse range of appropriate uses can enhance the vitality and viability of the centres by maintaining activity there, even after the shops have closed in the evening. It is important to ensure that the operation of potential future retailers on the ground floor is not compromised (e.g. by removing storage space).

Office Uses

8.21 Office uses are defined in national policy as a main town centre use, and are considered appropriate in or on the edge of town and village centres, and can help contribute towards vitality and viability as workers access local shops and services during their time spent in the centre. Town centres tend to be easily accessible by sustainable forms of transport. Office uses of an appropriate scale will therefore be encouraged in town and village centres.

8.22 As office uses provide economic benefits, they will also be permitted elsewhere within settlement areas, provided other relevant policies are satisfied. By requiring that they be accessible by public transport, the impact on the area in terms of traffic congestion can be reduced. Limiting schemes to a scale in keeping with the locality should minimise the possibility of negative impacts on neighbouring uses. National policy exempts small-scale rural office development (defined in this Local Plan as being up to 1,000 m² floorspace) from the sequential approach, but applicants proposing larger developments should demonstrate that they have first considered sites within or on the edge of town centres, except where such uses are proposed on land allocated or designated in the Local Plan for B1 uses.

Operational hours

8.23 While it is important to keep a range of active uses in town centres at a range of times, it is important that the primary use of a town centre (i.e. shopping) is not undermined by a plethora of units that are closed during the day and only open in the evening, giving the impression during the day that the town centre is under-used. Hence, any proposed non-A1 use should have operational hours that include at least a part of traditional opening times (i.e. 9am – 5pm) wherever possible.

8.24 Uses that involve operational hours in the evening or night should not create inappropriate disturbance to residents or other users of the town centre and surrounding areas.

Cultural facilities

8.25 Cultural facilities add to the diversity of uses in town centres, and can make an important contribution to centres' 'vitality and viability'. The value of land in town centres means that community and cultural facilities may come under pressure from uses which attract higher land values and, without protection against this, it can be very difficult to find alternative sites. Demand for different types of community facilities will change over time, but it is important to retain such premises to meet the future needs of residents and visitors. The safeguarding of existing community and cultural facilities will help to realise the potential for community use of existing buildings and encourage re-use of buildings when they become available.

Other Local Planning Policy and supporting documents

- West Lancashire Retail Study Update 2011
- West Lancashire Annual Monitoring Reports

8.2 Policy IF2: Enhancing Sustainable Transport Choice

Context

8.26 West Lancashire is a two tier authority with Lancashire County Council being responsible for transport. The current Local Transport Plan 3 was adopted in May 2011 and runs from 2011-2021. Transport Policies contained within the Local Plan will aim to support and enhance this LTP.

8.27 Transport policies within the Local Plan will seek to support the strategic transport priorities for West Lancashire, as well as more minor local priorities and specific local issues. These include:

- Assisting in the ongoing regeneration of Skelmersdale through the delivery of a modern, fit for purpose, public transport system;
- Improving the accessibility of public transport in rural areas;
- Tackling congestion in the Key Service Centres of Ormskirk and Burscough;
- Improving the rail linkages across West Lancashire through the delivery of new rail infrastructure;
- West Lancashire Highways and Transport Masterplanning exercise
- Encouraging sustainable forms of transport; and
- Improving road safety for all road users, especially pedestrians and cyclists.

8.28 The National Planning Policy Framework encourages local authorities to set local parking standards for residential and non-residential development.

Policy IF2

Enhancing Sustainable Transport Choice

1) Transport Infrastructure

a) The Council will support the delivery of, and not allow development which could prejudice the delivery of, the following schemes:

- i. the proposed A570 Ormskirk bypass;
- ii. implementation of measures in Ormskirk to improve the highway network;
- iii. a new rail station serving Skelmersdale, including new track and electrification of existing track as appropriate;
- iv. an appropriate rail link made between the Ormskirk-Preston line and Southport-Wigan line;
- v. electrification of the railway line between Ormskirk and Burscough;
- vi. the remodelling of the bus station at Ormskirk, providing improved linkages with Ormskirk railway station;
- vii. a new bus station for Skelmersdale town centre;
- viii. improved car park management within Ormskirk;
- ix. the provision of 4 linear parks between Ormskirk and Skelmersdale, Ormskirk and Burscough, Tarleton and Hesketh Bank and along the former railway line at Banks;
- x. a comprehensive cycle network for commuter and leisure journeys providing links across the Borough and linking in with cross boundary cycle networks.
- xi. any potential park and ride schemes associated with public transport connections;
- xii. any potential green travel improvements associated with access to the Edge Hill University campus on St Helens Road, Ormskirk;
- xiii. Land at the railway pad, Appley Bridge will be safeguarded for a small-scale rail facility. Development which would prejudice such a use will not be permitted unless there has been a conclusive demonstration that such a use is unviable.
- xiv. the proposed Green Lane Link Road in Tarleton.

b) Major transport schemes listed above including new rail infrastructure and the proposed A570 Ormskirk bypass will have regard to biodiversity and must provide appropriate mitigation measures as recommended in Policy EN2.

c) Decisions relating to developments adjacent to, or affecting, rail lines (including resulting in a material increase or change of character of the traffic using a rail crossing) will have regard to the views of Network Rail.

2) Parking Standards

Proposals for residential development will be required to meet the following standards for car parking provision and communal cycling and disabled parking provision for visitors:

<i>Type of Development</i>	<i>Number of Parking Spaces (per dwelling)</i>	<i>Cycle Parking Provision*</i>	<i>Disabled Parking Provision*</i>
Dwellings with 1 bedroom	1	1 communal space per 5 dwellings	1 space per 10 dwellings
Dwellings with 2-3 bedrooms	2	1 communal space per 5 dwellings	1 space per 10 dwellings
Dwellings with 4+bedrooms	3	1 communal space per 5 dwellings	1 space per 10 dwellings

***in developments with communal parking only**

For apartment developments a minimum of 1 cycle parking space per 2 dwellings should be provided in a secure, covered location for use by residents.

Parking standards for non-residential developments are set out within Appendix F.

The Council will support development which seeks to encourage the use of public transport for both residential and non-residential development.

Proposals for provision above or below the recommended parking standards should be supported by evidence detailing the local circumstances that justify a deviation from the policy. These local circumstances will include:

- i. The location of the development – urban / rural, within walking or easy cycling distance of a range of services and facilities;
- ii. The proposed use;
- iii. Levels of local parking provision, and any local parking congestion issues;
- iv. The distance to public transport facilities, and the quality (frequency / reliability / connection to main routes or interchanges) of the public transport provision in question;
- v. The quality of provision for cyclists: cycle parking, dedicated cycling facilities, access points to site, quality of design and provision;

- vi. The quality of provision for pedestrians; and
- vii. Evidence of local parking congestion.

Consideration will be given to allowing proposed developments to share car parking spaces where these joint developments have communal car parks and where it can be demonstrated that the different uses have peaks of usage that do not coincide.

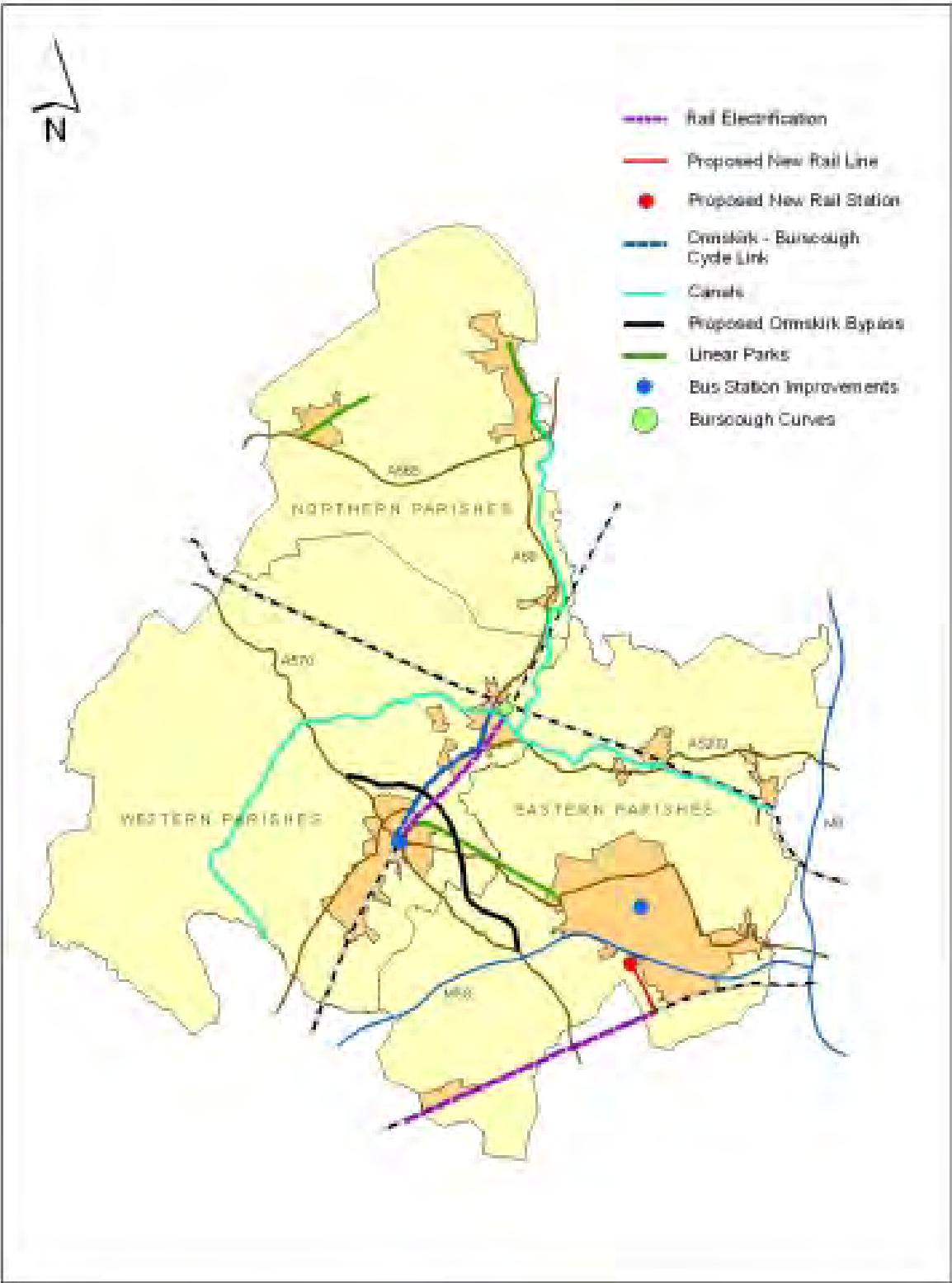
3) Electric Vehicle Recharging Points and Reducing Transport Emissions

In addition to the above, developments will also be required to provide Electric Vehicle Recharging (EVR) points and a Low Emissions Strategy statement.

Where a Transport Assessment, a Transport Statement or a Travel Plan is required (as advised in the National Planning Policy Framework), a Low Emission Strategy statement should be integrated within this work, explaining actions for carbon reductions and reductions in toxic air pollutant emissions. This requirement will mostly apply to larger developments.

EVRs will be required for all types of new developments that require parking provision. The minimum provision of parking bays and charging points for Electric Vehicles in new developments will be as follows:

All dwelling houses with at least one off-street parking space or garage space integral to the curtilage of the property:	One charging point per house.
All residential properties served by communal parking areas for the use of those properties only:	At least one or 10% (whichever is greater) of parking spaces must be marked out for use by electric vehicles only, together with an adequate charging infrastructure and cabling for each marked bay
All other development:	At least one or 10% (whichever is greater) of parking spaces must be marked out for use by electric vehicles only, together with an adequate charging infrastructure and cabling for each marked bay



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Figure 8.1 Enhancing sustainable transport choice

Justification

8.29 Policy IF2 has been set out to ensure that the future transport requirements of the Borough are met and that the correct parking standards are in place to allow sustainable development. This policy seeks to enhance and preserve the existing transport infrastructure whilst looking to improve where provision is lacking. The policy also seeks to improve sustainable forms of transport to reduce carbon emissions.

8.30 In order to secure the long-term future and viability of the Borough, and to allow for the increased movement of people and goods expected, the Council will work with neighbouring authorities and transport providers to improve accessibility across the Borough, improve safety and quality of life for residents and reduce the Borough's carbon footprint. Over the Local Plan period the Council will seek to:

- i. improve community health and well-being by providing alternative means of transport such as walking and cycling. This should be achieved through the provision of additional footpaths and cycleways (including towpaths) where appropriate;
- ii. reduce the environmental impact of transport through suitable mitigation and design;
- iii. reduce transport emissions such as carbon dioxide and other greenhouse gases by encouraging greater usage of public transport facilities;
- iv. reduce congestion in the Borough's key service centres to promote competitiveness, with particular reference to Burscough and Ormskirk;
- v. prepare and actively promote travel plans for all new developments, including both employment and residential, in accordance with DfT guidance on transport assessments; and
- vi. improve public transport to rural parts of the Borough and where appropriate support and implement innovative rural transport initiatives and support the shift towards new technologies and fuels by promoting low carbon travel choices and encouraging the development of ultra low carbon / electric vehicles and associated infrastructure.

Transport Infrastructure

8.31 The National Planning Policy Framework recognises that transport policies have an important role to play in facilitating sustainable development but also in contributing to wider sustainability and health objectives.

8.32 The road network in Ormskirk suffers from major problems of congestion caused by traffic running from the M58 along the A570 and through to Southport. The level of congestion reduces the level of safety for local residents and also makes air quality worse. The Council believe that the proposed A570 bypass is a priority scheme and is the Council's preferred option to take through-traffic out of Ormskirk, therefore reducing congestion in the town centre and speeding up journey times between the M58 and Southport. However, it is recognised this project may not be affordable during the plan period.

Chapter 8 Infrastructure and Services Provision

8.33 The Council has been working with Lancashire County Council to examine alternative improvements which may be deliverable which could reduce congestion within Ormskirk town centre and along the A570.

8.34 Skelmersdale is identified as a regeneration priority area and in order to support regeneration both socially and economically it is essential that the public transport system is improved. Although the town is well served by road links the current public transport links in the town are poor. Skelmersdale is the second largest town in the North West after Leigh to have no direct access to a railway station. The proposed rail station would provide direct access to Liverpool and Wigan, providing access to jobs, education and training as well as higher order retail and cultural facilities.

8.35 The Council is carrying out further study work with its partners Lancashire County Council and Merseytravel to understand the best route for any rail link to Skelmersdale off the Kirkby-Wigan line and where a new station could be most realistically achieved and delivered. At the present time it is thought most likely that any new station will be located in the area adjacent to the Pimbo Industrial Estate or White Moss Business Park, given the difficulties that may be associated with getting a new line under the M58 motorway and into the built up area of Skelmersdale, with strong linkages made between the station and the town centre. However, it is recognised that it would be desirable to locate any new station as close as possible to the town centre.

8.36 Although Burscough is currently served by two rail stations, one on each of the Southport to Wigan and Ormskirk to Preston lines, connectivity between these two routes is poor. The aspiration to reinstate the Burscough Curves and to electrify the line from Ormskirk would allow connectivity between lines and improve accessibility of Burscough to Liverpool and Ormskirk to Southport and Wigan. It is hoped that this would increase rail usage, therefore reducing dependency upon the car. Merseytravel are in the process of conducting work to assess the viability of reinstating these links. However, it is recognised that the reopening of the Burscough Curves in particular is, at this time, only an aspiration.



8.37 Ormskirk bus station is currently outdated and lacks modern facilities. In addition, the bus station suffers poor links with Ormskirk rail station due to overgrown embankments creating negative perceptions such as a fear of crime which prevents usage. The Council considers that improvement to these facilities would encourage greater usage, ultimately leading to reduced congestion.

8.38 The Council believe that improvements to the transport network are essential in helping to deliver local objectives as well as sub regionally important projects such as Skelmersdale Vision.

8.39 There are many opportunities within West Lancashire to improve the provision for cyclists and pedestrians, including Linear Parks along the disused railway line linking Ormskirk and Skelmersdale, along the banks of the River Douglas between Hesketh Bank and Tarleton and along the former railway line in Banks. The Council also wish to see a Linear Park between Ormskirk and Burscough delivered through proposed development within the Local Plan.

8.40 Along with Lancashire County Council, the Borough Council has been looking to deliver a comprehensive cycle network across West Lancashire linking in with cycle networks in neighbouring authorities. The Borough Council is currently looking to improve cycle links within West Lancashire through a number of funding sources including the successful joint Local Sustainable Transport Fund bid between West Lancashire and Sefton Borough Council as well as using developer contributions and other funding bids where appropriate.



8.41 Government policy requires transport assessments to be prepared in relation to proposals that could have a significant transport impact. For major developments the assessment must look at the accessibility of the site by all modes of transport and include the likely modal split of journeys. It should also give details of the proposed alternative means of transport, for example measures to improve accessibility by public transport, walking and cycling and to reduce the need for parking. For smaller schemes the plan should simply

outline the transport impacts of the development. This policy approach will make a contribution to meeting the priorities of the Sustainable Community Strategy with emphasis on safety, economic performance, environmental sustainability and health and well-being.

8.42 The Climate Change Act 2008 commits the UK to an 80% reduction in carbon emissions by 2050 with an immediate target of 34% reduction by 2020. In order to help meet this target West Lancashire Borough Council has an obligation to reduce carbon emissions caused by transport. Policy IF2 seeks to address the transport carbon footprint by encouraging public transport use, improved transport facilities, low carbon transport infrastructure and walking and cycling where possible.

Car Parking Standards

8.43 As government policy requires that local authorities set their own car parking standards, a comprehensive and locally-specific set of parking standards is required in the emerging Local Plan for West Lancashire, that will best deal with the Borough's specific parking-related issues. Given some of the specific parking problems experienced in parts of West Lancashire in recent years this approach is welcomed.

8.44 The Council believes that providing the right parking facilities in the right place can have major impacts upon an area. Some of the benefits include helping to promote the vitality and viability of town centres, attracting businesses to an area, and reducing congestion. On-street parking can add to congestion by hindering traffic movement, and can present a potential danger for pedestrians, cyclists and other road users; therefore the provision of off-street parking is usually desirable. The limiting of (free) parking spaces can be used as a means to encourage a shift towards more sustainable forms of transport, although such restrictions usually need to be applied at a regional level to work successfully. Thus a second issue is finding a balance between providing adequate levels of parking, and helping encourage a modal shift towards more sustainable forms of transport.

8.45 In March 2010 an Examination in Public (EiP) took place into the Partial Review of the RSS, which contained proposed changes to the car parking standards in RSS Policy TR2. The proposed changes were largely agreed across authorities (including those in Lancashire). The EiP Panel Report, published in response to a Freedom of Information request, recommended that local circumstances be taken into account when setting local parking standards.

8.46 This policy has been set to utilise the recommendations as set out in the draft RSS Partial Review. These standards were largely agreed across Lancashire and the Council only had a few minor modifications which were felt necessary to take account of local circumstances. These changes include setting the car parking standards for Higher and Further Education Establishments at 1 space per 15 students. In addition, parking standards were added for off-campus University halls of residence and purpose-built student accommodation. Given the presence of Edge Hill University, a specific criterion was felt necessary to cater for this need.

8.47 In some cases, car parking standards vary depending on the accessibility of the development location. This is based on accessibility standards. Levels of accessibility can vary significantly from the Borough's Key Service Centres to the Borough's rural villages and

other areas. As such, the proposed parking standards must acknowledge and reflect this difference. As West Lancashire is predominantly rural with three key service centres there is only a need for two accessibility categories (A and B):

- Accessibility Area A – Non-metropolitan Key Service Centres (Skelmersdale with Up Holland, Ormskirk with Aughton and Burscough)
- Accessibility Area B – All other areas, including key sustainable villages, rural sustainable villages and small rural villages.

8.48 The Council supports 'Access for All' and the NPPF places a requirement upon Local Authorities to seek to provide suitable parking provision for disabled people. As such this policy area will address provision of parking for disabled drivers, as well as cyclists.

Electric Vehicle Recharging Points and Reducing Transport Emissions

8.49 West Lancashire is committed to reducing carbon emissions and, in particular, to reducing emissions caused through transport. As well as seeking to encourage walking and cycling the Council is committed to introducing electric vehicle recharging points so that low carbon travel can become a reality.

8.50 The Council believes that a Low Emissions Strategy Statement can provide a package of measures to help mitigate the transport impacts of development by encouraging the accelerated uptake of cleaner fuels and technologies in and around a development. It is believed that they can complement other design and mitigation options, such as travel planning.

8.51 The introduction of Electric Vehicle Recharging points is seen as an important and deliverable way of reducing transport emissions. Road transport is the third biggest source of carbon emissions nationally. Although there are different types of low emissions vehicles on the road electric vehicles have several advantages, these include:

- As they run off batteries and electric motors they produce no vehicle exhaust or carbon emissions at the point of use.
- They use energy in a far more efficient way than standard engines
- Electric vehicles have the potential to be zero-emission vehicles if powered by renewable electricity, and create almost no noise.

8.52 Through the delivery of EVR points the Council is ensuring that West Lancashire will be in a position to take full advantage of this new technology by having a modern fit for purpose transport infrastructure. EVR points are being rolled out across the North West region and the Country as a whole and in most cases a domestic 13a socket fixed to an internal/external wall should cost less than £100 (based on 2011 prices).

8.53 In order to support the development of the LES statement, information on the types of mitigation measures and low emission technologies and a national toolkit will be available online to guide applicants in the future (<http://www.lowemissionsstrategies.org>). This will help assess the amount of transport emissions resulting from the proposed development. Developers will be able to assess the costs, effects and benefits from adopting low emission fuels, technologies and infrastructure.

8.54 This policy is in line with the NPPF which states that developments should be located and designed where practical to incorporate facilities for charging plug-in and other ultra-low emissions vehicles.

Other Local Planning Policy and supporting documents

- Joint Lancashire Local Transport Plan 3
- Joint Lancashire Structure Plan SPG 'access and parking' (March 2005)
- The Transport Act 2000
- The Climate Change Act 2008
- Merseyside Route Utilisation Strategy 2009
- Regional Spatial Strategy Partial Review Submitted Draft
- West Lancashire Local Plan 2012-2027 – Technical Paper 5: Transport (2012)

8.3 Policy IF3: Service Accessibility and Infrastructure for Growth

Context

8.55 A vital element of sustainable development is the provision and delivery of local services and infrastructure. Development should be directed toward those settlements that have a good range of existing services and infrastructure before considering settlement areas where there are deficits requiring investment and improvement.

8.56 In the Northern Parishes, there is significant use of water by the market garden industry. This places a strain on existing water supply infrastructure and contributes to low water pressure. A solution to this problem will need to be delivered by the statutory undertaker for water supply.

8.57 The Council has produced an Infrastructure Delivery Plan (IDP) to ensure that the existing infrastructure capacity in West Lancashire is fully understood, where the gaps currently exist and what will be required in order to support delivery of the Borough's development needs to 2027. Infrastructure has a broad definition and includes physical infrastructure, social/community infrastructure and environmental/green infrastructure.

8.58 West Lancashire has both assets and issues in relation to infrastructure capacity and these must be enhanced and resolved through development. One of the key issues in the Borough is drainage of waste water. Waste water treatment facilities serving Burscough, Rufford, Scarisbrick and much of Ormskirk are currently close to capacity in terms of environmental limits and, in some areas, physical capacity. This means that the treatment of additional waste water generated by new development will be difficult to manage at the existing treatment plant and will require a solution to be delivered by the utility provider who is the statutory undertaker. It also means that the existing waste water network in parts will require upgrading to handle existing and future waste water demand.

8.59 Whilst it is important for West Lancashire to make the most efficient use of infrastructure, it is essential that improvements, such as telecommunications and broadband to serve growing businesses, are identified and that the Local Plan assists in making these improvements happen.

Policy IF3

Service Accessibility and Infrastructure for Growth

1. Development will be required to provide essential site service and communications infrastructure and demonstrate that it will support infrastructure requirements as set out in the Infrastructure Delivery Plan
2. In order for West Lancashire to protect and create sustainable places for communities to enjoy, proposals for development should:
 - i. make the most of existing infrastructure by focusing on sustainable locations with the best infrastructure capacity;
 - ii. mitigate any negative impacts to the quality of the existing infrastructure as a result of new development;
 - iii. where appropriate, contribute towards improvements to existing infrastructure and provision of new infrastructure, as required to meet the needs of the development;
 - iv. where appropriate, demonstrate how access to services will be achieved by means other than the car; and
 - v. where appropriate, demonstrate how the range of local social and community services and facilities available will be suitable and accessible for the intended occupiers or users of the development.

Waste Water Treatment and Water Supply

New development proposed in the areas of Ormskirk, Burscough, Rufford and Scarisbrick that are affected by limitations on waste water treatment will need to be considered in liaison with the statutory undertaker for water and waste water and the Council to establish the impact on water and waste water infrastructure. The delivery of development must be phased to ensure that it coincides with an appropriate solution agreed with United Utilities and the Environment Agency.

New development proposed in the Northern Parishes will need to be considered in liaison with the statutory undertaker for water and waste water and the Council to establish the impact on water and waste water infrastructure. The delivery of development will need to be considered in conjunction with the timescales for delivery of a solution to low water pressure in this area.

Communications

The Council will support the delivery of broadband and communications technology to all parts of the Borough and will encourage and facilitate its use in line with national policy.

Community Facilities

Development proposals for new public facilities and services should be co-located where possible, creating “community hubs” and providing a range of services in one sustainable and accessible location. Where new facilities are required independent of new development, they should be located in the most accessible location available.

The loss of any community facilities such as (but not limited too) pubs, post offices, community centres and open space will be resisted unless it can be demonstrated that the facility is no longer needed, or can be relocated elsewhere that is equally accessible by the community.

Justification

8.60 One of the most effective ways of tackling climate change is by supporting and creating sustainable communities. Dispersing services and work places over large areas makes them difficult to serve with public transport or on foot or cycle. In addition, the rural nature of West Lancashire means that access to services can be limited in some locations and is a particular concern which requires consideration through the Local Plan

8.61 Planning for infrastructure provision in West Lancashire is an ongoing process through the development of the Infrastructure Delivery Plan (IDP) and partnership working with stakeholders. The IDP will form the basis for identifying infrastructure requirements needed to support development and will focus on, but is not limited to:

- Utilities and Waste – water supply, foul water sewerage, waste and recycling, energy generation, telecommunications and broadband;
- Transport – highway, rail, bus, canal and cycle network;
- Social and Community – hospital, GP, dentist, children’s centres, schools, further education, emergency services, libraries, youth centres, leisure centres, community halls, local convenience shop, theatres, public realm, public house; and
- Green Infrastructure – waterways, parks, natural and semi-natural spaces, outdoor sports facilities, allotments, play areas, corridors/footpaths.

8.62 In ensuring West Lancashire’s infrastructure capacity is maximised, development should, in the first instance, be located where there is existing infrastructure capacity. Where infrastructure deficiencies exist, the Council is committed to achieving a consistent and co-ordinated approach to providing new or improved infrastructure through partnership working. The work with partners will involve other delivery bodies, authorities, developers and other agencies and will be documented in the IDP.

8.63 West Lancashire Borough Council will use its role to support and facilitate infrastructure provision by taking actions such as pro-active involvement in the development management process and the establishment of an Infrastructure Delivery Group within the Local Strategic Partnership or subsequent group to oversee the delivery of infrastructure across the Borough.

The most significant infrastructure issues for the Borough are traffic and transport across the Borough and waste water treatment capacity which affects most of Ormskirk, Burscough, Rufford and parts of Scarisbrick.



8.64 Policy IF2 sets out how the Council will begin to tackle the issues relating to traffic and transport. However, the delivery of a solution to resolve the waste water treatment capacity issue is the responsibility of United Utilities. As the statutory undertaker, United Utilities will be required to resolve this issue and provide adequate sewerage to meet the needs of customers and support development growth. The Council has an established working relationship with United Utilities and will continue to work with them in order to support the delivery of a suitable resolution in an acceptable timescale.

Other Local Planning Policy and supporting documents

- West Lancashire Infrastructure Delivery Plan (January 2012 or subsequent versions)

8.4 Policy IF4: Developer Contributions

Context

8.65 Co-ordination and funding of the delivery of new infrastructure and infrastructure improvements is necessary to ensure that development does not place an unacceptable strain upon existing infrastructure and communities. This will be achieved through the development and regular monitoring of the Infrastructure Delivery Plan (IDP) which will sit

alongside and inform the Local Plan. The IDP identifies what infrastructure will be required and when it should be delivered. Where it is possible, costs and funding for delivery of the infrastructure is identified along with the lead and partner delivery authorities.

8.66 Whilst some of the cost of such infrastructure will be borne by the public and third sectors, equally some of it must be delivered by the developer. Furthermore, it is likely that not all infrastructure identified as necessary will have allocated funding and it will be necessary for development to contribute to the delivery of this infrastructure and assist in plugging the funding gap.

Policy IF4

Developer Contributions

New development will be expected to contribute to mitigating its impact on infrastructure, services and the environment and to contribute to the requirements of the community. Contributions may be secured through a planning obligation (subject to an obligation meeting the requirements of the relevant legislation and national policy) and through the Community Infrastructure Levy (CIL), at such a time when the Council has prepared a Charging Schedule.

The types of infrastructure that developments may be required to provide such contributions for include, but are not limited to:

- i. Utilities and Waste (where the provision does not fall within the utility providers legislative obligations);
- ii. Flood prevention and sustainable drainage measures;
- iii. Transport (highway, rail, bus and cycle / footpath network, canal and any associated facilities);
- iv. Community Infrastructure (such as health, education, libraries, public realm);
- v. Green Infrastructure (such as outdoor sports facilities, open space, parks, allotments, play areas, enhancing and conserving biodiversity and management of environmentally sensitive areas including Natura 2000 and Ramsar Sites);
- vi. Climate change and energy initiatives through allowable solutions;
- vii. Affordable housing; and
- viii. Skelmersdale Town Centre Regeneration.

Where appropriate, the Council will permit developers to provide the necessary infrastructure themselves as part of their development proposals, rather than making financial contributions.

Where a development is made unviable by the requirements of a planning obligation, the Council will have regard to appropriate evidence submitted by an applicant and consider whether any flexibility in the planning obligation is justified.

Justification

8.67 All development, regardless of size and scale, places additional demands on services and facilities, impacting on their ability to meet the needs of the community. The Community Infrastructure Levy (CIL) will create a system which would pass the cost of infrastructure improvements pro rata onto those developments above the 100sqm threshold which are considered and of a type that it has been found to be viable to charge CIL to. This would allow the Council greater autonomy over expenditure to ensure strategic infrastructure aims are met along with localised issues.

8.68 CIL was introduced in the Planning Act 2008 (Part 11) and, from 6th April 2010, regulations were passed that enable local planning authorities to apply CIL on new developments in their areas. The Localism Act 2011 has confirmed the role of CIL in securing developer contributions and has increased the flexibility of the CIL framework. The Council is investigating the preparation of a CIL Charging Schedule and will shortly be undertaking a viability assessment to inform this process.

8.69 The introduction of a CIL charging schedule will not always remove the requirement for Section 106 planning obligations. There may still be exceptional instances where a planning obligation is required to make a proposal acceptable, provided it meets the following statutory tests, set out within national policy:

- Necessary to make the development acceptable in planning terms;
- Directly related to the development; and
- Fairly and reasonably related in scale and kind to the development.

8.70 Planning obligations are a key delivery tool in providing the opportunity to secure financial contributions which will mitigate the localised impacts of development which would otherwise render the proposal unacceptable in planning terms. However, the Council recognise that there may be certain development proposals which would become unviable with the additional costs of a planning obligation and so the Council will weigh up the benefits of permitting the development with the impacts of allowing the development to proceed without requiring the full planning obligation and, where appropriate, may reduce the costs of the planning obligation required. In such a situation, the applicant will be required to provide a full financial appraisal and will be required to bear the cost of independent verification of this financial appraisal where necessary.

8.71 The Infrastructure Delivery Plan identifies particular issues in relation to infrastructure requirements within the Borough to support the Local Plan and ensure delivery of sustainable communities and economic growth. The CIL and Section 106 agreements will be vital in supporting the delivery of infrastructure along with other streams of funding. In particular,

transport improvements are key to securing sustainable growth in Skelmersdale and creating the means for people to live and work in Skelmersdale and to access the wider area and region.

8.72 Policy IF4 is the delivery mechanism required to deliver the necessary contributions to support Policies RS2: Affordable and Specialist Housing, IF2: Enabling Sustainable Transport Choice, IF3: Service Accessibility and Infrastructure for Growth, EN1: Low Carbon Development and Energy Infrastructure, EN2: Preserving and Enhancing West Lancashire's Natural Environment, EN3: Provision of Green Infrastructure and Open Recreation Space and EN4: Preserving and Enhancing West Lancashire's Built Environment.

Other Local Planning Policy and supporting documents

- The Planning Act 2008 (Part 11)
- The Community Infrastructure Levy Regulations 2010
- The Community Infrastructure Levy (Amendment) Regulations 2011
- The Localism Act (Chapter 2 Community Infrastructure Levy)
- ODPM Circular 05/2005: Planning Obligations
- Open Space and Recreation Provision in New Residential Developments SPD

Chapter 9 Sustaining the Borough's Environment and Addressing Climate Change

9.1 Policy EN1: Low Carbon Development and Energy Infrastructure

Context

9.1 The planning system has a key role to play in delivering targets for low and zero carbon development in the UK in order to work towards energy security and assist in mitigating the causes of climate change through reducing greenhouse gas emissions. New development in West Lancashire will have regard to the principles set out within Policy EN1 in order to assist in meeting the national targets to reduce carbon dioxide (CO₂) emissions by 34% on 1990 levels by 2020 and to achieve 15% of our energy consumption from renewable sources by 2020.

9.2 In order to mitigate the impacts of climate change, compliance with the energy hierarchy is essential and as such the climate change agenda cuts across several of the Local Plan Policies:

- **Be lean:** or reduce in terms of using less energy through good design incorporating solutions such as natural lighting and ventilation and passive heating and cooling;
- **Be clean:** or reuse in terms of supplying energy efficiently through improved insulation or by sourcing energy through a decentralised network such as a community energy network or a district heating network; and
- **Be green:** or recycle in order to reduce CO₂ emissions by using renewable energy techniques.

Policy EN1

Low Carbon Development and Energy Infrastructure

1. Low Carbon Design

The Council will mitigate and adapt to climate change by requiring all development to:

- achieve the Code for Sustainable Homes Level 3 as a minimum standard for new residential development and conversions, rising to Level 4 and Level 6 in line with the increases to Part L of the Building Regulations;
- achieve the BREEAM "very good" standard as a minimum for new commercial buildings of more than 1000m², rising to "excellent" and "zero carbon" in line with the increases to Part L of the Building Regulations;

- iii. consider the requirements of the Government's emerging 'Allowable Solutions' Framework; and
- iv. be resilient to climate change by incorporating shading and Sustainable Drainage Systems and locating development away from areas at risk of flooding in line with Policy GN3.

The above standards (i and ii) are in line with the implementation of the revisions to Part L of the contemporary Building Regulations and are a minimum only. Development will be expected to set out how improvements are achieved within an Energy Statement as part of any planning application. These standards will apply until any other national or locally-determined standard is required.

2. Low and Zero Carbon Energy Infrastructure

The Council will deliver climate change mitigation and energy security measures by:

- i. requiring all major developments ⁽¹⁶⁾ to explore the potential for a district heating or decentralised energy network, particularly on those sites of strategic importance;
- ii. requiring development located where a decentralised or district heat network is planned to be constructed and sited to allow future connectivity at a later date or phase;
- iii. using potential 'Allowable Solutions' funds to support carbon saving projects; and
- iv. supporting proposals for renewable, low carbon or decentralised energy schemes, including community-led energy schemes, provided they can demonstrate that they will not result in unacceptable harm to the local environment, having regard to Policies EN2 and EN4, which cannot be satisfactorily addressed and which is not outweighed by the benefits of such proposals. Very special circumstances will need to be demonstrated in order to justify renewable and low carbon energy proposals where they constitute inappropriate development in the Green Belt.

3. Wind Energy Development

Wind energy development proposals within West Lancashire will be given positive consideration provided that any adverse impacts can be satisfactorily addressed. To assist in decision-making, developers are required to provide evidence to support their proposals considering the following:

- i. singular or cumulative impacts on landscape character and value;
- ii. impact on local residents (including noise and shadow flicker);

16 Major Development is defined in the Town and County Planning (General Development Procedure) Order 1995 and includes, provision of 10 or more flats or houses and provision of over 1000 square metres of floorspace.

- iii. ecological impact including migration routes of protected bird species;
- iv. impacts on land resources including agricultural land and areas of deep peat;
- v. impacts on the historic environment and assets;
- vi. community benefits of the proposal; and
- vii. impacts on aviation navigation systems and communications.

The evidence will be required to demonstrate that any impacts can be satisfactorily addressed but need only be proportional to the scale and nature of development.

Justification

9.3 Policy EN1 aims to ensure that the Council's commitment to mitigate and adapt to climate change can be achieved. Through effective Development Management, Policy EN1 will influence the quality of development proposals and promote energy efficiency and sustainable sources of energy supply. The policy also sets out a supportive framework for delivering low and zero carbon energy infrastructure which will assist West Lancashire in reducing CO₂ emissions and in moving towards a low carbon economy.

9.4 Progress towards 'zero carbon' development will be made through progressive tightening of the Building Regulations. Over time these changes will replace the energy related elements of the Code for Sustainable Homes (CSH) standards and the Building Research Establishment Environmental Assessment Method (BREEAM) standards for non-domestic buildings. As the Building Regulations change, developers will be dependent on having access to decentralised energy networks to achieve low and zero carbon targets.



9.5 West Lancashire Borough Council participated in the Liverpool City Region Renewable Energy Capacity Study (October 2010) which examined the potential for renewable energy generation in the sub-region. The study was in two stages and considered the viability of different forms of energy generation, identified possible constraints and set out suitable areas of least constraint and the greatest resource. The study also identified possible renewable energy generation targets, derived from the Regional Spatial Strategy targets and disaggregated based upon the Borough's capacity to generate.

9.6 The results identified a significant capacity for wind energy generation within the Borough and the Stage 2 analysis applied constraints mapping in order to identify areas of least constraint and greatest potential. Two areas for commercial scale wind energy potential were identified in West Lancashire, with the caveat that there would need to be additional analysis as the study did not account for landscape impacts or localised feasibility.

9.7 The study also identified that Ormskirk Town Centre could be a potential energy priority zone for district heating. This is primarily due to the major energy users such as the swimming pool, hospital and other public buildings that would be required to ensure a network would be feasible. Retrofitting district heating and decentralised energy can be costly and is much more deliverable within new developments. Therefore, Policy EN1 requires all major development (developments of 10 or more dwellings or 1000sqm) to explore the potential of district heat and decentralised energy systems and particularly the strategic sites allocated within this plan.

9.8 A further study was produced in April 2011 for the Lancashire Authorities and is still being finalised in relation to targets for potential renewable energy generation capacity. The Lancashire Sustainable Energy Study analysed the outcome of the Northwest Renewable and Low Carbon Energy Capacity Study (2010) in order to produce data at a more local level for each Lancashire Local Authority. The initial findings of the study for West Lancashire also identified significant potential for wind energy generation within the Borough with a total capacity of 1630 MW for renewable energy, which accounts for about 16% of the overall renewable energy capacity in Lancashire.

9.9 The Lancashire Sustainable Energy Study sets out a target for the expected amount of renewable energy that may be deployable within the Borough. Policy EN1 aims to encourage low carbon development that sources its energy from renewable sources and also encourages planning for energy delivery on a broader scale than individual households. This will assist the Council in fulfilling any deployment capacity targets and mitigating climate change impacts.

9.10 The findings of the studies will be referenced within a future Supplementary Planning Document (SPD) which will also provide greater detail and guidance on how developments can adapt to and mitigate climate change. The SPD will be consistent with the Local Plan and / or National Policy and include further detail regarding 'Allowable Solutions' once the national framework on this is completed.

9.11 The Green Belt is in place to, amongst other things, safeguard the countryside from encroachment of development and to prevent urban sprawl. The National Planning Policy Framework (NPPF) recognises that many renewable energy projects will constitute inappropriate development in the Green Belt requiring the developer to demonstrate very special circumstances. However, the NPPF suggests such very special circumstances could

include the wider environmental benefits associated with the production of renewable energy. Therefore, the Green Belt designation is a consideration but does not entirely rule out renewable energy projects.

9.12 The Council acknowledges the limitations that the existing evidence base offers with reference to understanding the environmental and landscape capacity for renewable energy development within the Borough. Therefore, the Council relies upon the landscape character information set out within the Natural Areas and Areas of Landscape History Importance SPG in order to assess the possible landscape impacts of any proposals. This will need to be given due regard when submitting proposals that could have an impact on the landscape.

9.13 Furthermore, in order to optimise opportunities for joining up development proposals and to measure the relative success of energy policy and the commitment to preparing for a low carbon future, the Council will monitor all energy projects developed or consented and the carbon compliance of new developments, particularly major proposals (developments of 10 or more dwellings or 1000sqm).

Other Local Planning Policies and supporting documents

- West Lancashire District Council - Climate Change Strategy and Action Plan (2008)
- Liverpool City Region Renewable Energy Capacity Study (2010)
- SQW Lancashire Renewable Energy Capacity Study, Targets and Deployment (2012)
- National Policy Statements for Energy (EN-1 and EN-3, 2011)

9.2 Policy EN2: Preserving and Enhancing West Lancashire's Natural Environment

Context

9.14 West Lancashire is a predominantly rural authority with an array of natural assets including green spaces, landscapes, land resources and some of the most valuable habitats to a wide range of protected species, many of which are designated as important international and national habitats. There are also a number of important international sites, such as the Ribble and Alt Estuaries SPA / Ramsar and the Sefton Coast SAC which the Borough shares with neighbouring authorities, in which the Council will have to adopt a collaborative approach to management.

9.15 The Borough's land resources include some of the best agricultural land in the country, vast areas of deep peat and many opportunities for recreational access for residents. These natural assets, combined with the historic buildings and settings, mean that West Lancashire has some of the most important landscape character areas in the region. It will be important to ensure that any development respects and enhances the special historical and environmental significance of areas of landscape importance.

9.16 These spaces, assets and landscapes are multi-functional and contain a variety of roles, including helping to provide amenity space, improving the visual aspects of the Borough, preserving the countryside and providing a high quality, attractive landscape which helps make West Lancashire an attractive place to live, work and visit.

9.17 Policy EN2 provides an effective framework to balance the need for conservation and protection of the Borough's natural assets including biodiversity, land resources and landscape character against the need to meet development requirements. Striking a balance will ensure the Borough's natural assets are managed for West Lancashire's current and future needs.

Policy EN2

Preserving and Enhancing West Lancashire's Natural Environment

1. Nature Conservation Sites and Ecological Networks

a) The hierarchy of nature conservation sites

The Council is committed to ensuring the protection and enhancement of West Lancashire's biodiversity and geological assets and interests. In order to do this, the Council will have regard to the following hierarchy of nature conservation sites when making planning decisions, according to their designation:

i) International

- Ramsar Sites
- Special Areas of Conservation (SAC)
- Special Protection Areas (SPA)
- Candidate SACs or SPAs

The strongest possible protection will be given to sites of international importance.

The Council will also support the development of the Ribble Coast and Wetlands Regional Park, which encompasses part of the Ribble and Alt Estuaries SPA / Ramsar site.

ii) National

- National Nature Reserves (NNR)
- Sites of Special Scientific Interest (SSSI)

Developments that would directly or indirectly affect any site of national importance will only be permitted where there are exceptional circumstances and where the benefits of the development at that site clearly outweigh the impacts to the site and the wider ecological network. In the case of SSSI's, consideration will be given to the likely impact of the development on the features of the site that make it of special scientific interest.

iii) Local

- Regionally Important Geological Sites
- County Biological Heritage Sites
- Local Nature Conservation Sites
- Local Nature Reserves

Development that would directly or indirectly affect any sites of local importance will be permitted only where it is necessary to meet an overriding local public need or where it is in relation to the purposes of the nature conservation site.

b) Development within or affecting nature conservation sites and ecological networks

In addition to the provisions of National and European law, and in accordance with national planning policy, proposals for development within or affecting the above nature conservation sites must adhere to the following principles:

- i. proposals which seek to enhance or conserve biodiversity will be supported in principle, subject to the consideration of other Local Plan policies;
- ii. consideration should be given to the impact of development proposals on the Major Wildlife Corridors defined on the Policies Map and on any additional ecological networks identified by any Supplementary Planning Document in the future and, where possible, opportunities to support the network by incorporating biodiversity in and around the development should be encouraged;
- iii. where development is considered necessary, adequate mitigation measures and compensatory habitat creation will be required through planning conditions and / or obligations, with the aim of providing an overall improvement in the site's biodiversity value. Where compensatory habitat is provided it should be of at least equal area and diversity, if not larger and more diverse, than what is being replaced; and
- iv. the development of recreation will be targeted in areas which are not sensitive to visitor pressures - the protection of biodiversity will be given higher priority than the development of recreation in sensitive areas of internationally-important nature conservation sites (as identified in paragraph (1)(a)(i) above), and on all nature conservation sites and ecological networks in situations where there is conflict between the two objectives.

c) Damage to nature conservation sites and ecological networks

The following definition of what constitutes damage to nature conservation sites and other ecological assets will be used in assessing developments likely to impact upon them:

- i. loss of the undeveloped open character of a part, parts or the entire nature conservation site or ecological network;
- ii. reducing the width of part of an ecological network or causing direct or indirect severance of any part of the ecological network or of any part of a nature conservation site;
- iii. restricting the potential for lateral movement of wildlife within or through an ecological network or nature conservation site;

- iv. causing the degradation of the ecological functions of any part of the ecological network or nature conservation site;
- v. directly or indirectly damaging or severing links between nature conservation sites, green spaces, wildlife corridors and the open countryside; and
- vi. impeding links to the wider ecological network and nature conservation sites that are recognised by neighbouring planning authorities.

Part (1) of this policy applies to all presently designated nature conservation sites, as shown on the Policies Map and set out in Appendix I, and to any nature conservation sites or ecological networks that may be designated in the future by appropriate agencies.

2. Priority Species and Habitats

Where there is reason to suspect that there may be priority species, or their habitat, on or close to a proposed development site, planning applications should be accompanied by a survey assessing the presence of such species and, where appropriate, making provision for their needs.

In particular, the HRA of the Local Plan identifies a series of sites (in Appendix 8 of that document) where the potential of the site to support important habitat for birds associated with Martin Mere SPA cannot be ruled out at this stage. For those sites (and any others which may support suitable habitat) the applicant should submit an Ornithology Report containing sufficient information to demonstrate that consideration has been given to the potential for effects on SPA birds and, if necessary, that suitable mitigation measures will be implemented to address this to the satisfaction of the Council and ensure no adverse effect on site integrity.

The report could, depending on the site, be a confirmation that no suitable habitat is in fact present and therefore no loss of supporting habitat would result. This will allow the Council to screen the project against the Habitats Regulations (or equivalent legislation) and relevant national and local policy.

3. Trees and Landscaping

The Council will encourage the creation of new woodlands where appropriate.

Development involving the loss of, or damage to, woodlands or trees of significant amenity, screening, wildlife or historical value will only be permitted where the development is required to meet a need that could not be met elsewhere, and where the benefits of the development clearly outweigh the loss or damage.

In such cases the developer will be required to replace the trees lost on site with ones of at least equal value either on site or in that locality where it is unsuitable for the trees to be located on the particular site. Conditions will be imposed or legal agreements made to ensure such mitigation measures are carried out.

All development should:

- i. Include appropriate landscaping plans, which incorporate suitable tree planting that integrates well with all existing trees. This should be done in accordance with guidance contained in national guidance BS.5837:2012 and any subsequent document;
- ii. Both new and existing trees should be maintained by the owner of the site in accordance with guidance contained in BS.5837:2012 and any subsequent document;
- iii. Promote an increase in tree cover where it would not threaten other vulnerable habitats; and
- iv. Avoid encroachment into the canopy area or root spread of trees considered worthy of retention.

To assist the Council in decision-making, sufficient information should be submitted alongside proposals for development to enable the Council to assess the effects on trees. The level of detail should be in accordance with BS.5837:2012 - *Trees in relation to design, demolition and construction*, or any subsequent document.

4. Land Resources

Development will have regard to the conservation of the Borough's deep peat resources.

Development on the best and most versatile agricultural land (Grades 1, 2 and 3a) will not be permitted except where absolutely necessary to deliver development allocated within the local plan or strategic infrastructure, or development associated with the agricultural use of the land.

5. Coastal Zone

Development within the Borough's Coastal Zones, as defined on the Policies Map, will be limited to that which is essential in meeting the needs of coastal navigation, amenity and informal recreation, tourism and leisure, flood protection, fisheries, nature conservation and / or agriculture. Development will not be allowed which would allow the loss of secondary sea embankments.

Development in Marine Areas as defined by the Marine Management Organisation (MMO) must be in line with the Marine Policy Statement and, when produced, Marine Plans. In the absence of a Marine Plan, the Marine Policy Statement should be consulted.

6. Landscape Character

New development will be required to take advantage of its landscape setting and historic landscapes by having regard to the different landscape character types across the Borough. Development likely to affect landscapes or their key features will only be permitted where it makes a positive contribution to them. The level of protection afforded

will depend on the quality, importance and uniqueness of the landscape in question as defined in the Natural Areas and Areas of Landscape History Importance SPG and any subsequent documents.

The active use of the Borough's landscapes through leisure and tourism will be promoted where this is compatible with objectives relating to their protection. Proactive management of the Borough's landscape, for the benefit of carbon retention, biodiversity and flood prevention, will also be supported.

In addition, development will be permitted where it meets the following criteria:

- i. The development maintains or enhances the distinctive character and visual quality of the Landscape Character Area, as shown on the Policies Map, in which it is located;
- ii. It respects the historic character of the local landscape and townscape, as defined by the Areas of Landscape History Importance shown on the Policies Map; and
- iii. It complements or enhances any attractive attributes of its surroundings through sensitive design which includes appropriate siting, orientation, scale, materials, landscaping, boundary treatment, detailing and use of art features where appropriate.

Justification

9.18 This policy seeks to protect the biodiversity of the Borough, through preventing the loss of important natural habitat and wildlife corridors whilst also protecting and providing important recreational facilities for local residents. West Lancashire provides important habitats for a number of protected species including many varieties of birds, water voles and red squirrels whose habitat has to be protected and managed sensitively.

9.19 The Council plays an important strategic role in supporting biodiversity in West Lancashire and will:

1. protect and safeguard all sites of international, national and local level importance;
2. support the development of the Ribble Coast and Wetlands Regional Park with the vision that by 2020 the Ribble Coast and Wetlands Regional Park will become an internationally recognised area;
3. support a network of strategic green links between the rural areas, river corridors and green spaces to provide an ecological network that will provide habitats to support biodiversity and prevent fragmentation of the natural environment; and
4. support the development of recreation in areas which are not sensitive to visitor pressures.

9.20 The County Council is currently engaged in work to identify a functional ecological network for Lancashire (including Blackpool and Blackburn with Darwen). It is envisaged that the results of this work will be available in 2013. The network will be based on the tiers of designated wildlife sites and the habitats that lie within and around them. It will seek to

identify how these are utilised by species on a functional basis. It will take account of land types and allocations which may have an implication for strengthening or improving the network. It will also provide a foundation for how Lancashire fits into other networks regionally, nationally and internationally and set the context for other local networks which may be identified. It is intended that the work will provide the necessary information and outputs to enable the Council to meet the requirements of the NPPF in this respect. If appropriate, the findings of this work will be incorporated into a future Supplementary Planning Document to help inform planning decisions.



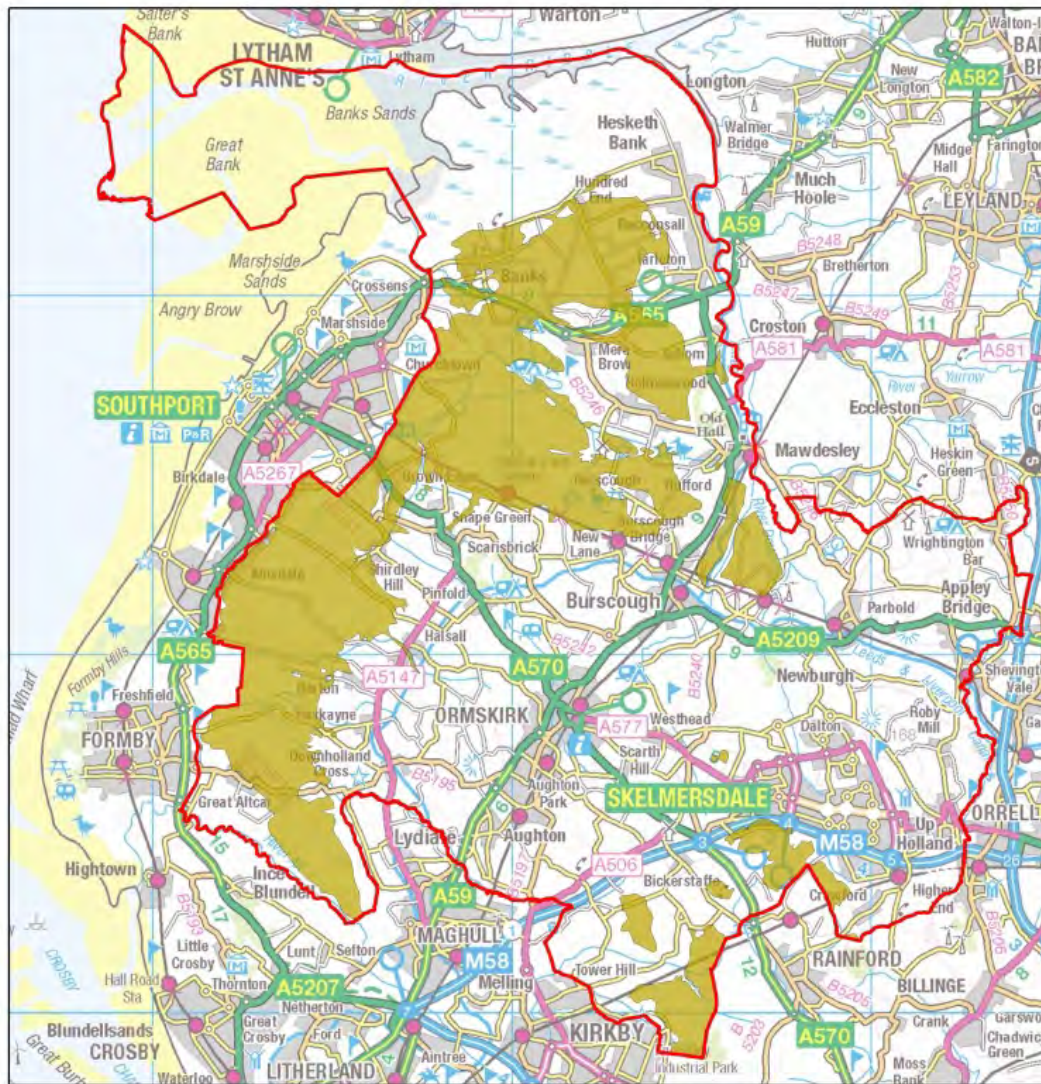
9.21 Trees and hedgerows are protected through separate government legislation as set out in the Town and Country Planning Act 1990, the Tree Regulations 1999 and Hedgerow Regulations 1997. The Council understands that the contribution that trees, either as woodland or individual specimens, and hedgerows make to the landscape is significant. In particular the range of benefits for wildlife and people they provide as well as helping to mitigate the effects of climate change. The Council acknowledges the high biodiversity value of ancient woodland and the fact that it is an irreplaceable habitat. Although West Lancashire is a rural authority, the Borough has relatively low woodland cover. This is due to the agricultural nature of the Borough. Although the Borough has some wooded areas and hedgerows, these have declined over recent years, particularly due to modern farming practice. Policy EN2 seeks to protect existing tree cover and provide additional woodland where appropriate.

9.22 British Standard 5837:2012 *Trees in relation to design, demolition and construction* recognises that trees need to be properly protected during construction periods. This document provides guidance on planting and protecting trees during construction and the level of information required for full surveys.

9.23 West Lancashire's land resources include deep peat deposits and some of the country's best and most versatile agricultural land. Policy EN2 seeks to avoid the extraction or degradation of peat, recognising the role it plays as a unique habitat and also as an important

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carbon store. Figure 9.1 provides a map of the deep peat deposits in the Borough. In addition, the Policy seeks to protect the best and most versatile agricultural land which is of national significance.



Derived from BGS Mineral Resource data, British Geological Survey © NERC. All rights reserved CP13/025

Figure 9.1 Map of deep peat deposits in West Lancashire

9.24 Much of the Ribble Estuary provides habitats for nationally and internationally important wildlife and consequently benefits from protection such as being located within Special Protection Areas or in an area designated as being a site of Special Scientific Interest. However, the area which has been identified on the Policies Map as being a Coastal Zone does not benefit from this protection. Due to the flat open nature of this land, developments can be particularly visually intrusive as well as being harmful to the environmental sensitivity of the locality. As such, this policy seeks to restrict development other than that meeting the specific criteria stated in the policy.

9.25 West Lancashire has many historic and important landscapes which are recognised for their special cultural, horticultural, historic and landscape qualities. Scarisbrick Hall Park is a site included on the national register of gardens and parks of special historic interest and adds to the character of the Borough. With an increased pressure from developers it is important to protect these areas to ensure that their character is not inherently affected.

9.26 The European Landscape Convention (ELC) promotes landscape protection, management and planning, and European co-operation on landscape issues. Signed by the UK Government in February 2006, the ELC became binding from March 2007. It applies to all landscapes, towns, villages and open countryside; the coast and inland areas; and ordinary or even degraded landscapes, as well as those that are afforded protection. Although at present, no widely accepted classification of European landscapes exists, work at a national, sub-regional and local scale level contributes to delivering the commitment to the binding ELC.

9.27 Proposals should have regard to the Council's Landscape Character Assessment set out in the Natural Areas and Areas of Landscape History Importance SPG (1996, updated 2007). Although this SPG was originally produced in 1996, then updated in 2007, the content of the document is still relevant today and is likely to be relevant for some time. This is evidenced by the consistency that the document has with emerging regional work produced by Natural England and the existing Lancashire County Council Landscape and Heritage SPG.

Other Local Planning Policy and supporting documents

- Marine & Coastal Access Act & Marine Licensing System (2011)
- Lancashire Landscape & Heritage Supplementary Planning Guidance (July 2006)
- Natural Areas and Areas of Landscape History Importance Supplementary Planning Guidance (1996, updated 2007)
- Lancashire Biodiversity Action Plans (April, 2011)
- West Lancashire Open Space, Sports and Recreational Study (October 2009)
- West Lancashire Playing Pitch Strategy (October 2009)
- Tarleton-Hesketh Bank Linear Park Study (July 2010)
- Skelmersdale-Ormskirk Linear Park Study (May 2006)

9.3 Policy EN3: Provision of Green Infrastructure and Open Recreation Space

Context

9.28 Green Infrastructure is a term used to summarise the variety of functions of open spaces around us including parks, sports facilities, play areas, natural and semi natural open spaces, footpaths or green corridors, allotments and the inland waterways and canal network. Good quality Green Infrastructure can help improve where people live and work, mitigate and adapt to climate change, provide alternative modes of transport and assist in regeneration as well as helping to attract visitors and improve the visitor economy. Therefore, Green

Infrastructure has a key role to play in delivering healthy sustainable communities and is as important as other more traditional forms of infrastructure, such as roads or the provision of sanitation.

9.29 Whilst the Borough does appear to have an abundance of open green space as a result of its rural setting, one of the main issues relates to deficiencies in certain types of open space and sports facilities, and poor access to these spaces for local communities. In addition, problems relating to an oversupply of poor quality green spaces in areas such as Skelmersdale have led to poor maintenance and under-utilisation.

9.30 The Council is committed to improving Green Infrastructure within the Borough and aims to provide high quality facilities which will fulfil a number of roles, such as providing recreational space and wildlife habitat as well as forming important transport corridors. This policy should help in delivering an integrated network of multi-functional green infrastructure, with specific sites identified for conservation, enhancement or inclusion in the network.

Policy EN3

Provision of Green Infrastructure and Open Recreation Space

1. Green Infrastructure

The Council will provide a green infrastructure strategy which supports the provision of a network of multi-functional green space including open space, sports facilities, recreational and play opportunities, allotments, flood storage, habitat creation, footpaths, bridleways and cycleways, food growing and climate change mitigation. The network will facilitate active lifestyles by providing leisure spaces within walking distance of people's homes, schools and work.

In order to support this green infrastructure strategy, all development, where appropriate, should:

- i. Contribute to the green infrastructure strategy by enhancing and safeguarding the existing network of green links, open spaces and sports facilities, and securing additional areas where deficiencies are identified - this will be achieved through contributions to open space as outlined within Policy IF4;
- ii. Provide open space and sports facilities in line with an appraisal of local context and community need, with particular regard to the impact of site development on biodiversity;
- iii. Seek to deliver new recreational opportunities, including the proposed linear parks between Ormskirk and Skelmersdale, between Ormskirk and Burscough, along the River Douglas at Tarleton and Hesketh Bank and along the former railway line in Banks;

- iv. Support the development of new allotments and protect existing allotments from development; and
- v. Support the Ribble Coast and Wetlands Regional Park and associated infrastructure.

2. Open Space and Recreation Facilities

a) Development that results in the loss of existing open space or sports and recreation facilities (including school playing fields) will only be permitted if one of the following conditions are met:

- i. The open space has been agreed by the Council as being unsuitable for retention because it is under-used, poor quality or poorly located;
- ii. The proposed development would be ancillary to the use of the site as open space and the benefits to recreation would outweigh any loss of the open area; or
- iii. Successful mitigation takes place and alternative, improved provision is provided in the same locality.

b) Development on open space and sports and recreation facilities will not be permitted where:

- i. Development would affect the open character of the area
- ii. Development would restrict access to publicly accessible Green Space
- iii. Development would adversely affect biodiversity in the locality
- iv. Development would result in the loss of Green Spaces, Green Corridors and the Countryside
- v. The open space contributes to the distinctive form, character and setting of a settlement
- vi. The open space is a focal point within the built up area
- vii. The open space provides a setting for important buildings (being listed or of local historic importance) or scheduled ancient monuments

c) Development for outdoor sports and recreational facilities will be permitted within settlement boundaries providing it does not conflict with other policies contained within the Local Plan. Appropriate development for outdoor sports and recreation facilities may be permitted in the Green Belt in accordance with national policy.

d) Where deficiencies in existing open recreation space provision exist, as demonstrated in the Council's Open Space, Sports and Recreation Study and any subsequent equivalent document, new residential development will either be expected to provide public open

space on-site (where appropriate) or a financial contribution towards the provision of off-site public open space to meet the demand created by the new development or enhancement of existing areas of public open space which could be upgraded to meet the demand created by the new development.

e) Development which would prejudice the delivery of the informal countryside recreational activities proposed at the following sites will not be permitted:

- i. Hunters Hill, Wrightington
- ii. Parbold Hill, Parbold
- iii. Platts Lane and Mill Dam Lane, Burscough

f) Development which would prejudice the protection and improvement of facilities at the following existing countryside recreation sites will not be permitted:

- i. Beacon Country Park, Skelmersdale
- ii. Tawd Valley Park, Skelmersdale
- iii. Fairy Glen, Appley Bridge
- iv. Dean Wood, Up Holland
- v. Abbey Lakes, Up Holland
- vi. Ruff Wood, Ormskirk
- vii. Platts Lane Lake, Burscough
- viii. Chequer Lane, Up Holland

Justification

9.31 This Policy seeks to effectively protect all parks, natural assets, sports facilities and open space and to manage the existing provision in the most effective way. It looks to provide improved facilities and assess where they are most needed. The proposed approach also seeks to protect and enhance the Borough's biodiversity in line with the NPPF. This policy also considers whether areas of open space which no longer provide any value and are under-used may be appropriate for other uses.

9.32 It is essential that the Local Plan contains a policy placing a requirement upon development to provide appropriate levels of green infrastructure and open space, and that any new development does not harm the Borough's most valued existing provision. The West Lancashire Open Space, Sports and Recreation Study (Oct 2009) makes a number of

recommendations and identifies where there is an undersupply / oversupply of different types of typologies (open space) within different parts of the Borough. Using the results of this Study, the Council will produce a Green Infrastructure and Open Space Strategy which will help direct improvements to the correct place in order to strengthen the existing network where appropriate.

9.33 The Council recognise the importance of school playing fields and other formal recreational sites, as well as allotments, and will resist any development proposals involving such sites that do not bring a very significant gain in terms of open space and recreation facilities as well as other community benefits. However, any open space sites identified by the Council as being surplus to requirements may be considered for partial development if the quality of remaining open space or other open space in the locality is improved as part of the development proposals.

9.34 It is vital that the right infrastructure is in place to support future growth in the Borough, and this includes green infrastructure. There is a growing and compelling body of evidence substantiating the potential for green infrastructure and open space to contribute to the economic, social and environmental well-being of individuals and society. It can help facilitate high quality accessible landscapes, and bring the natural world into every neighbourhood, providing benefits for individuals and community health and well-being. As such, the policy will focus on the protection of, and improvement of access to, existing open space and recreational facilities along with the provision of new facilities in areas of identified deficit.



9.35 It is also widely acknowledged that green infrastructure and open space have a major role to play in mitigating against and adapting to climate change, for example, reducing CO₂ emissions, encouraging sustainable travel choices and flood alleviation. Through the provision of green corridors the policy can help to overcome habitat fragmentation and increase the ability of the natural environment to adapt to climate change by increasing ecological connectivity. In mitigating the impacts in coastal areas, such as the Northern Parishes of the Borough, a network of green spaces could reduce the risk of flooding by allowing water to permeate through the ground, acting as flood storage areas. In addition, trees and shrubbery can contribute to urban cooling.

Linear Parks

9.36 The Council wants to carry forward three Linear Parks from the previous Local Plan linking Hesketh Bank to Tarleton, Skelmersdale to Ormskirk and the former railway line in Banks. The proposed Linear Parks are intended to provide a variety of uses from forming important wildlife corridors and providing opportunities for informal recreation facilities to providing off-road transport corridors. These three routes are all based on traditional transport corridors and their development has been supported in the Lancashire LTP3. The Council also proposes a fourth Linear Park between Ormskirk and Burscough which the Council believe can be delivered through proposed development contained within the Local Plan.

9.37 The River Douglas and Leeds-Liverpool canal are important waterways within West Lancashire and these two corridors meet within the proposed Hesketh Bank to Tarleton Linear Park. The development of this Linear Park is also within the concept of the Ribble Coast and Wetlands Regional Park.

9.38 Following consultation there has been support within the local area for the Linear Park. Working with Lancashire County Council, local Parish Councils and the local community the Borough Council has been working to complete initial feasibility work to bring this concept forward. Much of the site is within individual landownership and work is currently being undertaken to identify the individual landowners. The proposed Linear Park will also provide an off-road route to the main secondary school in Tarleton. The Council has aspirations of extending the proposed Hesketh Bank to Tarleton Linear Park to Rufford in the future.

9.39 The proposed Ormskirk to Skelmersdale Linear Park follows the former railway line linking the towns which closed in the 1960's. Although the Council and Lancashire County Council own part of this line, much of the route is within private ownership and some of the route has been built upon. This route will provide many of the same benefits as the Tarleton to Hesketh Bank Linear Park but will also provide an important, largely off-road, transport corridor between the towns. This route provides opportunities to build upon the environmental importance of the route for the flora and fauna which already exist. Additional feasibility work is required to bring this scheme forward and there will need to be a resolution to the land ownership issues.

9.40 The creation of the Banks Linear Park would see the creation of a link between Banks and the wider countryside in the Northern Parishes. This route may also have potential to provide a wider link between Southport and Hesketh Bank as well as fitting within the concept of the Ribble Coast and Wetlands Regional Park. Further feasibility work is required to bring this proposal forward.

9.41 The Council believe that through proposed development contained within the Local Plan the possibility exists to deliver an off-road cycle/pedestrian route between Ormskirk and Burscough, which has been a long-standing aspiration of the Council. The Council believe that this route is deliverable and would provide a much needed off-road link. The route would primarily use land adjacent to the railway line and run through sites allocated for residential development in this Local Plan.

9.42 All four Linear Parks may be delivered in a number of phases, with different sections of each Linear Park becoming deliverable at different times as funding and opportunity allow. Where possible, delivery of a section of Linear Park will be associated and phased with new development in the vicinity.

Open Space and Recreational Facilities

9.43 It is important that open space and recreational facilities are provided and improved to meet the needs of new developments and also to meet the needs of existing communities where deficiencies have been identified. Where new development is planned that generates an increased demand for open space and recreational facilities, the Council will expect contributions towards meeting that need, either in the form of new open space provided on-site, financial contributions towards the provision of new open space off-site in the locality of the site or financial contributions towards the improvement of existing open space in the locality of the site. Which form of contribution is most appropriate will vary on a case-by-case basis depending on the size of development, the context of the development site and the nature of the need for open space in the area of the Borough in which the site is located. A new Provision of Open Space and Recreational Facilities SPD will be prepared to guide this aspect of development proposals.

9.44 The sites allocated within the policy for new or improved recreation facilities will fulfil a variety of functions including providing attractive landscapes, environmental habitat and recreational space and it is felt that their development will help to relieve the recreational pressure on surrounding countryside. However, this list of sites is not exhaustive and it is expected that further new open space and recreation facilities may be required as part of, or alongside, new development in the Borough.

Other Local Planning Policy and supporting documents

- Green Spaces Strategies: a good practice guide, CABI Space (2005)
- How to create quality parks and open space, ODPM (2005)
- UK Biodiversity Action Plan (1992 - 2012)
- Lancashire Biodiversity Action Plan (April 2011)
- West Lancashire Open Space, Sports and Recreation Study (October 2009)
- West Lancashire Playing Pitch Strategy (October 2009)
- West Lancashire Natural Environment Action Plan (2011/2012)
- Tarleton-Hesketh Bank Linear Park Study (July 2010)
- Lancashire Local Transport Plan (2011-2021)
- Lancashire Landscape & Heritage Supplementary Planning Guidance (July 2006)
- Natural Areas and Areas of Landscape History Importance Supplementary Planning Guidance (1996, updated 2007)
- West Lancashire Strategic Flood Risk Assessment Level 1 & 2 (2010 / 2011)

9.4 Policy EN4: Preserving and Enhancing West Lancashire's Cultural and Heritage Assets

Context

9.45 West Lancashire has a wealth of historic buildings and places, which contribute greatly to the distinctive character and appearance of the local environment. Our built heritage provides a huge resource that can play an important role in the future of West Lancashire. By sustaining and enhancing our heritage it can benefit the regeneration of our communities, particularly through leisure, tourism and economic development and, importantly, by preserving it we are contributing to a more sustainable future.

Policy EN4

Preserving and Enhancing West Lancashire's Cultural and Heritage Assets

The historic environment has an aesthetic value and promotes local distinctiveness and helps define our sense of place. In order to protect and enhance historic assets, including their settings, whilst facilitating economic development through regeneration, leisure and tourism, the following principles will be applied:

a) There will be a presumption in favour of the conservation of designated heritage assets. Regard should be had for the following criteria:

- i. development will not be permitted that will adversely affect a listed building, a scheduled monument, a conservation area, historic park or garden, or important archaeological remains;
- ii. development affecting the historic environment should seek to preserve or enhance the heritage asset and any features of specific historic, archaeological, architectural or artistic interest;
- iii. in all cases there will be an expectation that any new development will enhance the historic environment in the first instance, unless there are no identifiable opportunities available; and
- iv. in instances where existing features have a negative impact on the historic environment, as identified through character appraisals, the Local Planning Authority will request the removal of the features that undermine the historic environment as part of any proposed development.

b) Substantial harm to, or loss of, a listed building, park or garden will only be permitted in exceptional circumstances where it can be demonstrated that:

- i. the substantial harm to, or loss of significance of, the heritage asset is necessary in order to deliver substantial public benefits that outweigh that harm or loss, or the nature of the heritage asset prevents all reasonable uses of the site;
 - ii. no viable use of the heritage asset itself can be found in the medium term that will enable its conservation (evidence of appropriate marketing and reasonable endeavours should be provided in line with Policy GN4);
 - iii. conservation through grant-funding or some form of charitable or public ownership is not possible; and
 - iv. the harm to, or loss of, the heritage asset is outweighed by the benefits of bringing the site back into use.
- c) There will be a presumption in favour of the protection and enhancement of existing non-designated heritage assets which have a particular local importance or character which it is desirable to keep. Such historic buildings, groups of buildings, spaces or other historic resources will be identified through a Local List which will be adopted by the Council.
- d) Heritage Statements and / or Archaeological Evaluations will be required for proposals related to, or impacting on, the setting of heritage assets and / or known or possible archaeological sites, in order that sufficient information is provided to assess the impacts of development on historic environment assets, together with any proposed mitigation measures.
- e) Where possible, opportunities to mitigate and adapt to the effects of climate change will be encouraged. Re-use of heritage assets and, where suitable, modification so as to reduce carbon emissions and secure sustainable development will be permitted where appropriate. The public benefit of mitigating the effects of climate change should be weighed against any harm to the significance of the heritage asset.

Justification

9.46 Policy EN4 establishes the fundamental need for high quality design that respects the historic environment. Development should reflect and draw on local character and distinctiveness whilst being able to adapt to the changing climate and social and economic conditions.

9.47 Development proposals should be accompanied by Design and Access statements and proposals relating to a heritage asset should also be supported by a Heritage Statement. The level of detail provided should be proportionate to the asset's importance, in accordance with national planning policy. Statements should have regard to guidance prepared by organisations such as English Heritage, the Commission for Architecture and the Built Environment (CABE), Homes and Community Agency (HCA) and the 'Building for Life' standard.

Chapter 9 Sustaining the Borough's Environment and Addressing Climate Change

9.48 Proposals should also have regard to the Council's Design Guide SPD (January 2008) along with other locally derived documents, including the West Lancashire Heritage Strategy 2009. The Heritage Strategy aims to provide an overview of how the Council will preserve the historic environment of the Borough and promote awareness of the value of our shared heritage. The Council also maintains an "At Risk Register" which it will continue to monitor and keep up to date.



9.49 West Lancashire has numerous and extensive historic assets, including 28 Conservation Areas and 12 scheduled ancient monuments which are all identified on the Local Plan Policies Map. In terms of buildings, West Lancashire is home to around 600 buildings on the statutory list of buildings of architectural or historic interest. The Council also maintains its own list of buildings of local importance which is updated periodically and available on the website. The range of assets includes both statutory designations and sites and those of regional and local importance.

Other Local Planning Policy and supporting documents

- Supplementary Planning Document: Design Guide (January 2008)
- Natural Areas and Areas of Landscape History Importance Supplementary Planning Guidance(1996, updated 2007)
- Landscape and Heritage Supplementary Planning Guidance (July 2006)
- English Heritage Guide - Enabling Development

Glossary

4NW: A partnership working to promote the economic, environmental and social well-being of the North West of England. It is an inclusive organisation, with representation from Local Government, business organisations, public sector agencies, education and training bodies, trade unions and co-operatives together with the voluntary and community sector.

Affordable Housing: Low-cost and subsidised housing, irrespective of tenure, ownership or financial arrangements, available to people who cannot afford to occupy houses generally available on the open market.

Allowable Solutions: Used in the Definition of Zero Carbon Homes and Non-Domestic Buildings consultation (CLG, 2008) to describe a range of solutions that could account for the carbon emissions that are not expected to be achieved on site through carbon compliance measures. Developers will make a payment to an Allowable Solutions provider (Local Authority or third party), who will take the responsibility and liability for ensuring that Allowable Solutions, which may be small, medium or large scale carbon-saving projects, deliver the required emissions reductions to offset the residual carbon impact of development.

Anaerobic Digestion: A biological process that produces a gas principally composed of methane and carbon dioxide otherwise known as biogas. These gases are produced from organic wastes such as livestock manure, food processing waste, etc.

Annual Monitoring Report (AMR): An annual publication that assesses the Council's progress in preparing LDF documents and the success of its planning policies in achieving their aims.

Biodiversity: The whole variety of life, including genetic, species and ecosystem variations.

Biomass: Also known as biofuels or bioenergy, is obtained from organic matter either directly from plants or indirectly from industrial, commercial, domestic or agricultural products. The use of biomass is classed as a 'carbon neutral' process because the carbon dioxide released during the generation of energy from biomass is balanced by that absorbed by plants during their growth.

Building Research Establishment Environmental Assessment Method (BREEAM): BREEAM is a nationally and internationally recognised environmental assessment method and rating system for non-domestic buildings. It was first launched in 1990 and sets the standard for best practise in sustainable building design, construction and operation and is a recognised measure of a building's environmental performance.

Brownfield Land: See 'Previously Developed land'.

Carbon footprint: The is a measure of the impact our individual activities have on the environment, and in particular climate change. It relates to the amount of green house gasses produced in our day-to-day lives through burning fossil fuels for electricity, heating and transportation etc.

Climate Change: This is a change in the average weather experienced over a long period, including temperature, wind and rainfall patterns. There is strong scientific consensus that human activity is changing the world's climate and that man-made emissions are its main cause. In the UK, we are likely to see more extreme weather events, including hotter and drier summers, flooding and rising sea-levels increasing the risk of coastal erosion.

The Climate Change Act 2008: This Bill became law in 2008 and aims to create a new approach to manage and respond to climate change.

Code for Sustainable Homes: The Code is the national standard for the sustainable design and construction of new homes. The Code aims to reduce our carbon emissions and create homes that are more sustainable.

Community Hub: A Community Hub can mean something different depending on the community. In West Lancashire, the broad definition is a multi-use building which may be community-run and is proactive in enabling a range of services to improve the quality of life for the whole community.

Community Infrastructure Levy (CIL): CIL was introduced by the Planning Act 2008 and came into force on 6 April 2010 through the CIL Regulations 2010. It is a new planning charge that local authorities in England and Wales can choose to charge on new developments in their area. The money can be used to support development by funding infrastructure that the council, local community and neighbourhoods need/want - for example new or safer road schemes, park improvements or a new health centre. The system is very simple. It applies to most new buildings and charges are based on the size and type of the new development.

Community Involvement: When preparing the LDF, the local authority needs to involve the local community, businesses, landowners, and anyone else with an interest in the area. Ideally these "key stakeholders" should be involved from the start, and right through the LDF preparation process.

Core Strategy: The main Development Plan Document that sets out the long-term spatial vision for the Borough, the spatial objectives and strategic policies to deliver that vision, having regard to the Sustainable Community Strategy.

CLG (formerly DCLG): The Department of Communities and Local Government sets national policy for planning, as well as local government, housing, urban regeneration and fire and rescue. They have responsibility for all race and equality and community cohesion related issues in England and for building regulations, fire safety and some housing issues in England and Wales.

Decentralised Energy Network / District Heat Network: Primarily the generation of energy close to the user and where appropriate, the recovery of the surplus heat (combined heat and power - CHP) for purposes such as building space heating and domestic hot water production. CHP is often used in District Heating Networks, with the heat generated as a by-product of electricity generation being pumped into homes, either as hot water or as steam, through networks of reinforced pipes.

Department for Transport: The Department for Transport are the government department responsible for transport across the United Kingdom.

Derelict Land and Buildings: Land so damaged by previous industrial or other development that it is incapable of beneficial use without treatment. This includes abandoned and unoccupied buildings (including former single residential dwellings) in an advanced state of disrepair, and land damaged by development, but which has been, or is being, restored.

Development Plan Document (DPD): This is a local planning policy document that is given statutory weight by the Local Planning Regulations. All DPDs must be subject to rigorous procedures of community involvement and independent examination by the Secretary of State. Once adopted, development management decisions must be made in accordance with them unless material considerations indicate otherwise.

Electric Vehicle Recharging Points EVRs: Electric Vehicle Recharging Points are a network of charging points that provide power for electric vehicles.

ELPS: Employment Land and Premises Study (2009). This examines the availability of land in the Borough for employment use and forms part of the LDF Evidence Base. It will be used to inform the Core Strategy and Site Allocation documents.

Environment Agency (EA): Government agency set up with the aim of protecting or enhancing the environment, in order to play its part in achieving the objective of sustainable development.

Evidence Base: Qualitative and quantitative information gathered by the planning authority, or other organisations, to support preparation of LDF documents.

Government Office North West (GONW): Regional government office responsible for implementing national policy in the region and ensuring consistency of LPA policies and plans with national policies.

Green Belt: Areas of land where development is tightly controlled for the purposes of: restricting sprawl of large built-up areas; preventing neighbouring towns from merging; safeguarding the countryside from encroachment; and preserving character and aiding urban regeneration by encouraging recycling of derelict and other urban land.

Greenfield Land: Land which has not been previously developed, or which has now returned to its natural state.

Green Infrastructure: Network of natural environmental components and green and blue spaces, including (but not limited to): hedges, outdoor sports facilities, coastal habitat, grassland and heathland, cemeteries, churchyards and burial grounds, agricultural land, allotments, community gardens and urban farms, moorland, village greens, open spaces, degraded land, private gardens, wildlife habitats, parks, fields, open countryside, woodlands, street trees, ponds, lakes, waterways.

Gypsy: Members of one of the main groups of Gypsies and Travellers in Britain. In this document it is used to describe English (Romany) Gypsies, Scottish Travellers, Welsh Travellers and Eastern European Roma. English Gypsies were recognised as an ethnic group in 1988.

Gypsy and Traveller Accommodation Assessment (GTAA): Assessments carried out to quantify the accommodation and housing related support needs of Gypsies and travellers (including Travelling Showpeople) in terms of residential and transit sites, and bricks and mortar accommodation.

Gypsies and Travellers: As defined for the purposes of the Housing Act 2004, in this document it includes all Gypsies, Irish Travellers, New Travellers, Travelling Showpeople, Eastern European Roma and other Travellers who adopt a nomadic or semi-nomadic life.

Habitats: Are ecological or environmental areas that are inhabited by a particular species of animal, plant or other type of organism. It is the natural environment in which an organism lives, or the physical environment that surrounds a species population.

Health and Wellbeing: A definition of the general condition of a person in terms of mind, body and spirit

Housing Needs Assessment: A survey that estimates the number of households within an area that are in need of affordable housing and/or housing that meets their specific requirements.

Infrastructure: Roads, water supply, sewage disposal, schools and other community facilities needed to support housing, industrial and commercial uses.

Infrastructure Delivery Plan (IDP): The IDP is a supporting document to the Local Plan. Its purpose is to provide background evidence regarding the physical and social infrastructure likely to be needed to support identified development in the Borough over the plan period. It sets out a baseline assessment of existing infrastructure provision and provides an indication of the existing capacity and shortfalls of all types of infrastructure. The document will be updated and monitored regularly and will assist in future delivery of infrastructure requirements. The IDP relies on the input of infrastructure partners and stakeholders and is therefore only as accurate as the plans of our partners.

Key Service Centre: Towns or villages which act as service centres for surrounding areas, providing a range of services including: retail, leisure, community, civic, health and education facilities and financial and professional services. They should have good public transport links to surrounding areas, or the potential for their development and enhancement. RSS Policy RDF2 requires LDFs to identify Key Service Centres in their area.

Linear Parks: Are linear parcels of land used as public parks providing recreational uses including walking and cycling

Local Area Agreement (LAA): A three-year agreement that sets the priorities for a local area, agreed between local and central government. The agreement sets challenging targets for the local areas and how these will be delivered in partnership. The aim is to improve the quality of life for local people.

Local Development Framework (LDF): A term used to describe a folder of planning documents prepared by a Local Planning Authority, including Development Plan Documents (DPDs), such as the Core Strategy, and Supplementary Plan Documents (SPDs). The LDF has since been replaced by a single Local Plan DPD.

Local Development Scheme (LDS): A project plan detailing the timetable for the production of DPDs and SPDs.

Local Enterprise Partnership (LEP): a partnership between local authorities and businesses formed in 2011 to help determine local economic priorities and lead economic growth and job creation within its local area. They carry out some of the functions previously carried out by the regional development agencies which were abolished in March 2012.

Local Planning Authority (LPA): Normally the Borough, District or Unitary Authority, but occasionally the County Council with the responsibility of planning for that area.

Local Service Centre: Towns or villages which provide a more limited range of services to the local community.

Local Strategic Partnership (LSP): A group of public, private, voluntary and community organisations and individuals that are responsible for preparing the Sustainable Community Strategy. Such partners include: the Borough Council, the County Council, the Police, the Fire Service and the NHS.

Local Transport Plan (LTP) : Local Transport Plans are strategic documents which set out the local transport priorities in the long term. The current Local Transport Plan for Lancashire, Local Transport Plan 3 (LTP3) runs from 2011 to 2021. This LTP consists of a 10 year overarching strategy, supported by 3 year rolling implementation plans. Lancashire County Council is the transport authority representing West Lancashire and has prepared a joint document with Blackpool Council and Blackburn-with-Darwen Borough Council.

Low Carbon Development: Low-carbon developments consist of buildings which are specifically engineered with the reduction of carbon dioxide emissions in mind. So by definition, a low carbon building is a building which emits significantly less carbon dioxide than regular buildings.

Main Town Centre Uses: Retail development (including warehouse clubs and factory outlet centres); leisure, entertainment facilities, the more intensive sport and recreation uses (including cinemas, restaurants, bars and pubs, night-clubs, casinos, health and fitness centres, indoor bowling centres and bingo halls); offices; and arts, culture and tourism development (including theatres, museums, galleries and concert halls, hotels and conference facilities).

Multiple Deprivation: The Government collects information to pinpoint pockets of deprivation, or to highlight variations within a wider geographical area. Information is collected on a range of topics to illustrate how deprived an area is, including: income; employment; health and disability; education, skills and training; barriers to housing and services; crime; and living environment.

National Nature Reserve: These are areas that are protected for their importance for their importance to wildlife and natural features. These sites are managed by Natural England. These sites often contain rare species or nationally important species of plant, insects, butterflies, birds, mammals etc.

Photovoltaics (PV): The direct conversion of solar radiation into electricity by the interaction of light with the electrons in a semiconductor device or cell.

Pitches: An area on a Travellers' site developed for a family unit to live. On socially rented sites, the area let to a licensee or a tenant for stationing caravans and other vehicles.

Planning and Compulsory Purchase Act (PCPA) 2004: Introduced the concept of Local Development Frameworks, built upon the principles of: sustainable development, addressing climate change, spatial planning, high quality design, good accessibility and community involvement.

Planning Policy Statements/Guidance (PPS/PPG): Documents produced by CLG that set out national policies relating to different areas of planning.

Plots: Areas on yard for Travelling Showpeople to live. As well as dwelling units, Travelling Showpeople often keep their commercial equipment on a plot.

Previously Developed Land (PDL): Land which is or was occupied by a permanent structure, including the curtilage of the developed land (although it should not be assumed that the whole of the curtilage should be developed) and any associated fixed surface infrastructure. This excludes: land that is or has been occupied by agricultural or forestry buildings; land that has been developed for minerals extraction or waste disposal by landfill purposes where provision for restoration has been made through development control procedures; land in built-up areas such as private residential gardens, parks, recreation grounds and allotments; and land that was previously-developed but where the remains of the permanent structure or fixed surface structure have blended into the landscape in the process of time.

Priority Habitats and Species: Species and Habitats of Principle Importance included in the England Biodiversity List published by the Secretary of State under Section 41 of the Natural Environment and Rural Communities Act 2006.

Ramsar sites: These are wetlands of international importance, designated under the Ramsar Convention.

Regional Spatial Strategy (RSS): A plan for a region of England, forming part of the development plan for West Lancashire. The North West RSS was adopted in September 2008. Central Government intend to abolish the regional tier of planning, subject to a Sustainability Appraisal of the implications of removing the RSS policies. Until that time, the RSS remains part of the development plan, and this Local Plan requires to have regard to its policies, in particular its housing requirements.

Registered Provider A provider of social housing, registered with Tenant Services Authority under powers in the 2008 Housing and Regeneration Act. This term replaced 'Registered Social Landlord' (RSL) and encompasses housing associations, trusts, cooperatives and companies.

Renewable Energy: Energy which comes from natural resources such as sunlight, wind, rain, tides, and geothermal heat, which are renewable (naturally replenished).

Safeguarded Land: Land on the edge of certain settlements in West Lancashire formerly allocated under Policy DS3 of the West Lancashire Replacement Local Plan to meet longer-term development needs if necessary. A similar safeguarding policy will apply in this new Local Plan, with land either being safeguarded for "Plan B" sites, or for beyond the end of the new Plan period (2027).

Section 106 Agreement: Section 106 (S106) of the Town and Country Planning Act 1990 allows a local planning authority to enter into a legally-binding agreement or planning obligation with a landowner in association with the granting of planning permission. The obligation is termed a Section 106 Agreement and is a way of delivering or addressing matters that are necessary to make a development acceptable in planning terms. They are increasingly used to support the provision of services and infrastructure, such as highways, recreational facilities, education, health and affordable housing.

Settled Community: Term used to describe non-Gypsies and Travellers who live in traditional housing

Shadow flicker: This occurs when the sun passes behind the hub of a wind turbine and casts a shadow over neighbouring properties. When the blades rotate, shadows pass over the same point causing an effect called 'shadow flicker'.

Site Allocations DPD: The designation of land for a particular use within the development plan.

Sites of Special Scientific Interest (SSSI): Sites with statutory protection of national and international importance.

SMART Objectives: The Government requires that objectives must be SMART (Specific, Measurable, Achievable, Realistic and Time-bound).

Spatial Planning: Under the former planning system, we were almost exclusively concerned with land use. Spatial planning is a wider concept that does not just take into account land use, but also considers other matters that could indirectly affect land use, or be affected by it, e.g. health and education, deprivation, crime and social inequality, climate change, flooding and the natural environment, transport and infrastructure, the rural economy and agriculture, cultural heritage and urban design. Put another way, spatial planning looks at places and how they function. The LDF system represents a new way of planning, or "place-shaping".

Special Areas of Conservation: Areas given special protection under the European Union's Habitats Directive, which is transposed into UK law by the Habitats and Conservation of Species Regulations 2010.

Specialist Needs Housing: Providing suitable accommodation for specific sections of the community, including: seasonal agricultural workers; the elderly or retired; and students.

Special Protection Areas (SPA): Areas which have been identified as being of international importance for the breeding, feeding, wintering or the migration of rare and vulnerable species of birds found within European Union countries. They are European designated sites, classified under the Birds Directive.

Statement of Community Involvement (SCI): A document that sets out how the Council will involve the community and other stakeholders in the preparation, alteration and review of planning policy documents and on planning applications.

Strategic Environmental Assessment (SEA): An assessment required by EU legislation that is incorporated into the Sustainability Appraisal (SA).

Strategic Flood Risk Assessment (SFRA): carried out in consultation with the Environment Agency (EA) to examine the risk of flooding in the Borough from sea and rivers. It includes information on flood risk areas, flood infrastructure, history of flooding in the Borough and expected future development pressures and their potential impact.

Strategic Housing Land Availability Assessment (SHLAA): This examines the availability of land in the Borough for residential use and forms part of the Local Plan Evidence Base.

Supplementary Planning Document (SPD): These cover a range of issues, both topic and site specific, and provide further detail on policies in the Local Plan or other Development Plan Documents.

Sustainability Appraisal (SA): Development Plan Documents are subject to a "Sustainability Appraisal", examining how the policies and proposals in the DPD would be likely to impact upon the economy, the environment, transport, and the community. This will ensure that decisions are made that accord with sustainable development.

Sustainable Community Strategy (SCS): Document prepared by the West Lancashire Local Strategic Partnership, the principles of which outline the needs and priorities of the community, and which also shapes the activities of the organisations within the partnership to fulfil those needs and priorities. The Local Plan must accord with the SCS.

Sustainable Development: Development that meets the needs of the present generation without compromising the ability of future generations to meet their own needs.

Transit site / pitch: A Traveller site / pitch intended for short term use, with a maximum period of stay.

Transport Assessments: A Transport Assessment is a comprehensive and systematic process which sets out transport issues relating to a proposed development. They identify what measures will be taken to deal with the anticipated transport impacts of the scheme and to improve accessibility and safety for all modes of travel, particularly for alternatives to the car such as walking, cycling and public transport.

Travel Plan : These are a package of measures produced by employers to encourage staff to use alternative means of transport than single occupancy car-use. Such plans include, for example, car sharing schemes, improving cycling facilities, dedicated bus services or restricting car parking allocations.

Travelling Showpeople: People who organise circuses and fairgrounds and who live on yards when not travelling between locations. Most travelling showpeople are members of the Showmen's Guild of Great Britain.

Unauthorised site: Land occupied by Gypsies and Travellers without the appropriate planning or other permissions. The term includes both unauthorised development and encampment

West Lancashire Replacement Local Plan (WLRLP): The most recent adopted development plan for West Lancashire, adopted in July 2006. This will be replaced by the new Local Plan DPD, once it is adopted.

Appendix A Local Plan Preparation

The Local Plan

As explained in the Introduction to this document, the West Lancashire Local Plan 2012-2027 DPD will replace the existing West Lancashire Replacement Local Plan (2006) as the Development Plan Document for West Lancashire. Up until Autumn 2011, the Council were preparing a Local Development Framework (LDF) to replace the existing Local Plan, but given the change in emphasis in the National Planning Policy Framework (NPPF), the Council have now prepared a new style, single Local Plan DPD.

The new Local Plan is different from the existing Local Plan in that it draws from the LDF approach in the way policy is constructed and worded but, unlike the LDF system, it is a single document. All the work carried out on the LDF (the Core Strategy, Development Management Policies DPD and Site Allocations DPD), including public consultation, is still relevant to the preparation of a single Local Plan, and has directly informed this document.

The Local Plan may be supplemented by Supplementary Planning Documents (SPDs) in due course, but these will cover very specific areas of policy in detail that the Local Plan cannot, and will not carry the same weight as the Local Plan itself in making planning decisions. Currently, the Council have adopted three SPDs: the Skelmersdale Town Centre SPD, the Design Guide SPD and the Open Space and Recreation Provision in New Residential Developments SPD. Other SPDs may be prepared at a later date in accordance with suggestions in the policies of this Local Plan.

A Sustainability Appraisal (SA) and Habitats Regulation Assessment (HRA) were conducted at the key stages of the Local Plan's preparation in accordance with European and UK Regulations. The results of each SA and HRA were considered in the development of the Local Plan.

Annual Monitoring of the Local Plan and SPDs will continue in a similar format to the Annual Monitoring Reports prepared over recent years as part of the LDF approach, measuring the Local Plan's success in delivering the spatial and strategic objectives set in Chapter 3 of this document.

Results of Public and Community Consultation for the Core Strategy and the Local Plan

The Council has sought to involve the local community from the earliest stage of LDF / Local Plan preparation, including key stakeholders, groups and individuals, in order to assist in defining the key issues facing West Lancashire and to consider how they can be addressed through the Core Strategy. The Council initially involved the community directly in the preparation of the Core Strategy through the Local Strategic Partnership Annual Conference, the Spatial Forums and the Issues Questionnaire. Full results from these three exercises can be viewed in Feedback Reports on the Council's [website](#), whilst a summary of the key issues is outlined in the Summary of Key Issues Identified through Consultation below.

Local Strategic Partnership Annual Conference (June 2008)

In June 2008, the Council held workshops for members of the Local Strategic Partnership (LSP) at their Annual Conference at the West Lancashire Investment Centre, Skelmersdale, which was themed around the topic of "Regenerating the Community through Partnership Working". The LSP is a voluntary partnership and is represented by over 80 members in public, private and voluntary organisations. The aim of the event was to ensure that the LDF takes careful consideration of the themes, objectives, priorities and projects within the LSP's Sustainable Community Strategy 2007-17 and also to ensure that the LDF can be delivered by key partners.

At the conference, a short presentation was given to explain the LDF and its importance to the LSP and the local community. LSP members were then allocated to one of six workshop groups to discuss issues specifically relating to that area, including three Borough-wide groups and individual groups for Skelmersdale, the Market Towns (Ormskirk and Burscough) and the remaining rural area of West Lancashire. During the workshops, the following four activities were conducted:

- SWOT analysis: to establish the Strengths, Weaknesses, Opportunities and Threats of the area;
- Identification of key issues: to identify the most important issues of the area;
- Vision of the area in 15-20 years: to predict how the area might be in the future, by building upon the identified strengths and to tackle recognised issues;
- Settlement Hierarchy: to determine how much development settlements within the Borough should potentially receive, based upon the outcomes of earlier activities.

Spatial Forums (July 2008)

In July 2008, the Council held three "Spatial Forum" events held at key locations across the Borough in Tarleton (Northern Parishes), Skelmersdale (Skelmersdale and Eastern Parishes) and Ormskirk (Market Towns and Western Parishes). The events were well attended by around 250 people who represented a diverse mix of local residents, landowners, businesses, voluntary organisations, community action groups, developers and Councillors. The Spatial Forums were set up as an informal consultation exercise to test whether the issues raised at the LSP Annual Conference were broadly correct, and also to look at specific areas of the Borough in more detail. Similar to the LSP Annual Conference, a short presentation explaining the importance of the LDF was given, followed by a second presentation into a SWOT analysis of the area, aided by relevant maps and statistics in order to stimulate discussion. The workshops which followed were designed to gather people's views on:

- What are the most important issues for each area of the Borough;
- A 'Vision' - how we would like the Borough to be in the future; and
- How we might work towards achieving this Vision.

Issues Questionnaire (January-February 2009)

In January-February 2009, the Council conducted an "Issues Questionnaire" forming the first stage of written consultation for the LDF. Although the responses received at the LSP Annual Conference and Spatial Forums were valuable, it was recognised that those who put their views forward merely represented a small number of people with an interest in the future

development of West Lancashire. Therefore the Issues Questionnaire was made available to open up consultation and provide a further opportunity for key stakeholders and the wider community to put forward their views. The main method of making comments was through the Council's online consultation portal, although paper copies were made available at deposit points across the Borough and distributed to those who required them.

Around 100 people responded to the questionnaire who were able to comment on the whole Borough or on a specific area of interest to them. The Issues Questionnaire presented similar questions asked at the Spatial Forums, and took them a step further by putting forward early options on spatial topics such as:

- Draft SWOT analyses and Vision statements;
- Future development needs and settlement expansion;
- Providing more land for housing, specialist accommodation and employment;
- Transport and accessibility;
- The environment, climate change, flood risk and recreation and tourism; and
- Rural issues.

Options Paper (September-November 2009)

In September-November 2009, the Council conducted a series of consultation exercises on the Options Paper. There were six 'Spatial Forum' events held at key locations across the Borough (Skelmersdale, Ormskirk, Burscough, Banks, Scarisbrick and Parbold) which were well attended by residents, businesses, community groups, developers and Councillors. In addition, the Council also undertook written consultation for the LDF where people could submit comments by web portal, email or post.

Over 800 written representations were received from 188 respondents and over 250 people attended the Spatial Forums. Analysis of the comments made it clear the majority of people opposed Options 1 and 5 being taken forward as the Preferred Option. Option 1 would focus too much development in Skelmersdale to the detriment of all other areas of the Borough whilst Option 5 would focus too much development outside of the Borough and neglect the interest of West Lancashire.

The general consensus favoured a hybrid of Options 2, 3 and 4 focusing the majority of development in Skelmersdale, enabling regeneration, development in Ormskirk and Burscough to support the service functions of the settlements, enabling improvement to infrastructure and responding to the demand for housing and employment. Some development would also be allowed in rural areas.

Other representations highlighted the importance of improving infrastructure, providing affordable housing and specialised accommodation and developing renewable energy schemes. There was support received for the regeneration of Skelmersdale town centre and the expansion of Edge Hill University.

Core Strategy Preferred Options Paper (May-June 2011)

In May-June 2011, the Council again conducted a series of consultation exercises on the Preferred Options paper. The Council consulted through four forums and four exhibitions across the Borough, written representations and surveys (paper and online). In addition,

Appendix A Local Plan Preparation

local schools in Ormskirk and Skelmersdale were also involved in the consultation process. To discuss specific issues in more detail, LDF officers also met separately with housing developers, local businesses and some selected groups representing those who could be affected by Edge Hill.

741 written representations were received online, via email or by post. 224 surveys were completed and submitted. Over 300 people attended the forums and exhibitions. From the views gathered, it was clear that there is support for the majority of policies within the document, although some review and adjustments were recommended.

Wide opposition was received in relation to the release of Green Belt land for development purposes. It was felt that levels of residential development in Skelmersdale are too high and undeliverable and subsequently need to be re-examined. From those development options presented, Burscough (Option 1) received the most support. High levels of support were also received for the regeneration of Skelmersdale town centre.

There was support for the expansion of Edge Hill University although there were objections to the use of Green Belt land for future development. It was recommended that the policies should be more flexible to cope with all the varying factors that can influence development and that housing figures should be reviewed. It was felt that a review of how the Local Plan could be delivered, including its timescales for the release of land and phasing of development, was required, along with putting a flexible and robust Plan B in place.

Local Plan Initial Regulation 25 Scoping Consultation (November-December 2011)

In November and December 2011 the Council invited comments from key stakeholders identified in the Council's Statement of Community Involvement on the scope of a Local Plan DPD. This was done to fulfil Regulation 25, part (1) of the Town and Country Planning (Local Development) (England) (Amendment) Regulations 2008 which were still in force at the time.

The Council received a number of comments from a variety of organisations who made a range of suggestions as to what subject matter the Local Plan should address, all of which were incorporated into the Local Plan Preferred Options document.

Local Plan Preferred Options document (January-February 2012)

Consultation on the Local Plan Preferred Options was undertaken January-February 2012 through five forums and four exhibitions held across the Borough, written representations and surveys (both paper and online). To discuss specific issues in more detail, Local Plan officers once again also met separately with housing developers and local businesses.

1,343 written representations were received online, via email or by post as well as 2 petitions. A further 95 surveys were completed and many more people attended the forums and exhibitions.

Analysis of the comments received makes it clear that there is support for the majority of policies within the document, although some review and adjustments were requested.

However, significant numbers of objections were received in relation to some of the proposed residential development sites, particularly the land allocated at:

- Chequer Lane, Up Holland;
- Firwood Road, Lathom;
- Yew Tree Farm, Burscough; and
- Mill Lane, Up Holland.

A significant amount of objections to these sites voiced concern in relation to traffic and utility infrastructure (including drainage) and the abilities of the Local Plan to deliver the improvements it promises.

Support was received for the flexibility of the Local Plan although concerns were raised in relation to the security of the Plan B sites (i.e. whether developers will just refrain from delivering sites allocated in the main strategy so Plan B sites will be released).

Local Plan Publication document (August - October 2012)

Between August and October 2012, the Council invited representations on the Publication document. A total of 642 representations were received from 161 consultees. 7% of representations were made in relation to legal compliance and 93% were in relation to soundness.

Generally, the representations on unsoundness came from two opposite viewpoints. Firstly, those exemplified by the house-building industry and landowners who considered the overall housing target to be too low and the phasing of the target to be unsound. As a result, they sought the inclusion of additional sites, with the majority suggesting additional sites that would involve further release of Green Belt land or the release of 'Protected Land' in the Northern Parishes. The second viewpoint was that typically put forward by residents, or local resident action groups, that considered the overall housing target too high and/or disaggregated the spatial areas incorrectly. The majority of these representations went on to seek to the removal of a specific allocation, a reduction in the housing target in a specific location and/or sought the retention of the existing Green Belt boundary without amendment.

Representations also included concerns in relation to waste water treatment constraints in Ormskirk, Burscough, Rufford and Scarisbrick and concerns that housing numbers in Skelmersdale were too high to be deliverable.

Local Plan Submission (October 2012)

In accordance with Regulations, the Council submitted the West Lancashire Local Plan 2012-2027 DPD to the Secretary of State on 31 October 2012 for independent examination.

All representations received at the Publication stage were submitted alongside the Local Plan Publication document and associated Submission documents.

Local Plan Examination (October 2012 - September 2013)

Examination Hearings

Following submission, a Pre-Hearing meeting took place on Wednesday 19 December 2012 to set out the procedural and administrative matters relating to the Examination Hearings.

Examination Hearings were held between Tuesday 19 February and Thursday 7 March 2013, whereby the Inspector invited discussions with representors on a series of topics identified from the Publication representations.

Main Modifications (June - August 2013)

The Inspector set out his interim views on the modifications required to the policies covering strategic and land allocation aspects of the Local Plan in order to make the Plan sound. In response to the Inspector's interim views, the Council prepared a series of Main Modifications to the Local Plan which were then publicly consulted on for 6 weeks in June to August 2013. A total of 506 representations were received from 193 consultees, with all comments passed to the Inspector for his consideration.

The majority of representations related to the opposition of local residents to Green Belt release, primarily at Parrs Lane, Aughton and New Cut Lane, Halsall.

Inspector's Report (September 2013)

The Inspector's Report concluded that the Local Plan was sound and legally compliant, subject to his recommended main modifications.

Council Adoption (October 2013)

As a result of the Inspector's approval, the modified Local Plan was formally adopted by the Council on the 16 October 2013.

Summary of Key Issues Identified through Consultation

Area	Issues identified through the LDF consultation exercises
West Lancashire Borough	• Links with neighbouring authorities and cross boundary partnership working • Regeneration of Skelmersdale • Transport links within the Borough; • Need to find the Borough's "Unique Selling Point"; • Quality of life; • Reduction in funding; • Enhancing the community; • Impact of the wider economic climate. • Lack of suitable housing for the ageing population; • Affordable housing required throughout the Borough, not just in areas of deprivation. • Importance of Green Infrastructure • Importance of tackling climate change • Need for Sustainable development • Green Belt boundaries constraining development and should be reviewed • Improving public transport • Protection of heritage assets • Reducing deprivation • Improving health and narrowing inequalities • Providing gypsy and traveller sites in the right locations
Skelmersdale with Up Holland	• Public transport; • Image of the town; • Lack of town centre facilities. • Sufficient land available in the settlement areas to provide more homes; • Original New Town plan should be "finished off" by developing the land at Whalleys and in the town centre; • Support for the town centre Masterplan; • Town centre proposals would bring in more investment and have the potential to turn around the negative perceptions of the town. • Failure in the past to deliver schemes to improve the town; • Lack of a railway station; • Footpaths are difficult to follow, forcing people to walk along roadways; • Poor maintenance, landscaping and layout of open green spaces. • Attracting employment and provision of training

Area	Issues identified through the LDF consultation exercises
Ormskirk with Aughton	• Transport links and congestion; • Affordable Housing; • EdgeHillUniversity; • Protection of agricultural land; • Sewerage and surface water issues. • Mixed feeling over the expansion of the settlement area; • Limited land exists within the settlement to meet any significant demands for housing and employment; • Mix of views expressed over the future development and expansion of EdgeHillUniversity. • Little interaction between EdgeHillUniversity and the town, and other 'student issues'; • Shortage of adequate sites in town centre to attract further retail or other services; • Nearest adult accident and emergency Hospital is at Southport; • Town cramming and over development of the urban settlement; • Threat of Ormskirk Bypass not being built and increasing congestion.
Burscough	• Transport links and congestion; • Affordable Housing; • EdgeHillUniversity; • Protection of agricultural land; • Sewerage and surface water issues. • Brownfield sites cannot accommodate much development and consequently there should be possible consideration of developing edge-of-settlement Green Belt sites; • Network Rail's proposed improvements to the local railway should be supported, particularly increased services and the reinstatement of the Burscough Curves; • Leeds-LiverpoolCanal and Martin Mere are valuable environmental and recreational assets which should be protected and improved. • Burscough has witnessed quite a lot of recent development; • Reinstate Burscough Curves, to provide a connection between the Ormskirk-Preston and Southport-Manchester lines; • Maximise the potential of the Leeds-LiverpoolCanal heritage.
Northern Parishes	• Affordable rural housing; • Lack of investment in services and infrastructure; • Consultation at grass roots level. • Limitations of existing infrastructure; • Small-scale development for employment and affordable/ local housing could be allowed; • Stimulation of new employment opportunities would reduce reliance upon the agricultural and horticultural industries; • "OpenLand on the Urban Fringe" could be considered for development, if it could bring significant regeneration benefits and would remove a state of dereliction;

Area	Issues identified through the LDF consultation exercises
	- Expansion into the Green Belt is not appropriate, given the high potential for flood risk in this area; - Support for a Ribblesdale Regional Park and a Tarleton to Hesketh Bank Linear Park. - Dereliction around settlements from the decline in horticultural industries; - Flood risk issues are an important consideration in the location of new development; - Traffic congestion in Tarleton and Hesketh Bank at peak times.
Eastern Parishes	- Affordable rural housing; - Lack of investment in services and infrastructure; - Consultation at grass roots level. - Mix of views over potential expansion into the Green Belt. - Villages are surrounded by Green Belt which offers little scope to expand in order to accommodate its local population and businesses.
Western Parishes	- Affordable rural housing; - Lack of investment in services and infrastructure; - Consultation at grass roots level. - Further development should be concentrated on infill sites, rather than the expansion into the Green Belt. - Erosion of village life through closure of services; - Restrictive settlement boundaries constrain development.

Appendix B The Spatial & Strategic Objectives

Spatial and Strategic Objectives

The suggested spatial and strategic objectives for West Lancashire's Local Plan explain how the Vision can be achieved. These objectives also embrace the objectives set out within the Sustainable Community Strategy. The Government requires that key objectives should be SMART (specific, measurable, achievable, relevant and time-bound), and all the key objectives set out below have been developed to meet these measures.

Each of the spatial and strategic objectives presented in this report has a clear set of indicators assigned to it. Due to the close relationships between the objectives of the Local Plan and those of the SCS and other more widely-collected Council indicators, a number of the indicators are shared which has the advantage of removing the need to collect additional data and providing a consistent data source. The indicators will be used to monitor and manage the success of the Local Plan in delivering its aims. Policies that are not performing as intended can be flagged up and remedial action taken.

It should be noted that the indicators set out in this Appendix are provisional and targets are liable to change as a result of changing data and revisions to other documents and policies.

How will we monitor these objectives?

Under the current planning system, local planning authorities must produce and publish an Annual Monitoring Report (AMR) each year. The AMR is a key component of the Local Plan and measures the success of policies against a series of national and local indicators. It aims to show whether policies are achieving their objectives and whether sustainable development is being delivered, whether policies have had their intended consequences, whether the assumptions and objectives behind policies are still relevant, and whether the targets in the Local Plan are being achieved.

To achieve this, the Annual Monitoring Report looks at a range of national and local indicators.

It is proposed that the objectives of the Local Plan will be monitored and reported through the AMR using the indicators presented in this report, following adoption of the final strategy. It should be noted that targets to the end of the Plan period can be difficult to determine and so, subsequently, targets may need to be raised as the plan period progresses.

Monitoring guidance recognises the need to update national and local indicators where necessary to reflect changes in policy and monitoring requirements. National and local targets may also be reviewed. Subsequently, indicators presented here are liable to amendment in the future.

Objective 1 - Stronger and Safer Communities

To have strong and vibrant communities, in which both young and old people are actively engaged and where people feel safe and secure.

More active voluntary and community sectors will lead to the development of a high degree of community participation and increased pride in neighbourhoods. Crime levels will reduce further, with an active Community Safety Partnership giving residents a greater sense of security.

Targets

Target description	Data source	Existing indicator	WLCB target by 2027
Serious Acquisitive Crime rate to reduce	WLCB	NI16	Annual rate to reduce

Objective 2 - Education, training and the economy

To create more, and better quality, training and job opportunities to get more people into work

A new West Lancashire College and improved facilities at Edge Hill University will help provide a highly trained workforce; combined with improved results at secondary school level, particularly in Skelmersdale. Improved and new employment land will be found in the main urban areas, with small scale rural employment opportunities also encouraged through a diversified rural economy.

Targets

Target description	Data source	Existing indicator	WLBC target by 2027
Percentage of pupils gaining 5+ GCSEs at grades A*-C to increase	DCSF	-	75%
Proportion of working age population in employment/ unemployed	NOMIS / WLBC	CX07	80%
• Economically active			75%
• Employed			Less than 7%
• Unemployed			
Worklessness	NOMIS	-	Less than 2.5%
• Proportion of JSA claimants			
VAT Registrations as % of total business stock	NOMIS	-	9%
Amount of employment land and floorspace developed annually	WLBC	EC1-4	To meet requirements. Rolling average.
Proportion of employment floorspace developed on brownfield land	WLBC	-	40%
Loss of employment land in employment / regeneration areas and local authority area	WLBC	-	None

Objective 3 - Health

To improve the general health of residents and promote social wellbeing through high quality green infrastructure and cultural activities

Residents will be encouraged to live a healthier lifestyle through increased leisure and sports opportunities. Green infrastructure and open spaces will be readily accessible and improved. There will be improved access to health facilities. Social and cultural facilities will be provided to a high standard and be accessible to all communities.

Targets

Target description	Data source	Existing indicator	WLBC target by 2027
Amount of available greenspace lost to development	WLBC	ENV01	0ha
Number of customers taking part in health improvement facilities	WLBC	WL 12a	To increase

Objective 4 - Natural Environment

To protect and improve the natural environment, including biodiversity and green infrastructure, in West Lancashire

A range of sites will continue to be protected and enhanced for their biodiversity and geodiversity interest. The number of important sites will be increased where possible and new developments will contribute to increasing biodiversity. The Ribble Estuary will continue to be developed as a site of national and international importance, as will the facilities at Martin Mere. The landscape and biodiversity will be protected and enhanced through management of important features and through appropriate and well designed new developments.

Targets

Target description	Data source	Existing indicator	WLBC target by 2027
Improved local biodiversity - active management of local sites	WLBC	NI197	50%
Changes in areas and populations of biodiversity including i) priority habitats and species (by type) and ii) areas designated for their intrinsic environmental value	WLBC	ENV08	99.5%

Objective 5 - Housing

To provide a range of new housing types in appropriate locations to meet the needs to West Lancashire's population, including affordable housing and specialist accommodation.

An average of at least 302 new homes (2012-2017) and 335 new homes (2017-2027) a year should be provided to meet the current requirements of strategic planning policy. They will be concentrated, where available, in the major urban areas where services and transport facilities are greatest and development will be encouraged on brownfield sites. The needs of all sectors of the community will be catered for through the provision of lifetime homes. New extra care facilities will be developed for the elderly. Suitable student accommodation will also be provided in appropriate areas within Ormskirk to address the needs generated by Edge Hill University. As the policy for Travellers' sites will now be subject to a separate DPD, the objectives in relation to provision of such sites will be set within that DPD.

Targets

Target description	Data source	Existing indicator	WLCB target by 2027
Annual, average target for new homes to be met (Net)	WLCB	NI154	302 per annum 2012-2017 335 per annum 2017-2027
5 year supply of deliverable housing	WLCB	NI159	100%
Proportion of affordable dwellings completed annually	WLCB	NI155	20% of all completions
Proportion of affordable dwellings granted consent through market housing developments	WLCB	-	25% on all schemes with a site capacity greater than 8 dwellings
Proportion of new homes completed on brownfield land	WLCB	HG09	30%
Proportion of new homes complying with Lifetime Homes	WLCB	-	All homes on sites with a capacity greater than 10 dwellings by 2027
Proportion of elderly housing units granted permission	WLCB	-	20% on schemes of 15 or more dwellings

Objective 6 - Services and Accessibility

To provide good quality services that are accessible to all, and to promote the vitality and viability of town and local centres which are well linked to their rural hinterlands and neighbouring City Regions. All new development should be located in areas that are accessible and which have a range of services.

The Borough's town and village centres should continue to be attractive centres that provide a range of services for local residents. The important function of the market towns of Ormskirk and Burscough as Key Service Centres will be protected and enhanced. Public transport links through both rail and bus should be enhanced to improve the accessibility of key centres and their links to the centres of City Regions - Liverpool, Manchester and Preston. The regeneration of Skelmersdale Town Centre through the provision of new retail, leisure, housing, community and educational facilities will be vital to the development of the town as a whole. Development will be located mainly in the town centres which have the greatest numbers of jobs and services available and which are accessible by public transport.

Targets

Target description	Data source	Existing indicator	WLCB target by 2027
Vacancy levels in Ormskirk, Burscough and Skelmersdale	WLCB	EC8	Reduction in percentage figure by 2027
• Vacant floorspace in Burscough			
• Vacant floorspace in Ormskirk			
• Vacant floorspace in Skelmersdale			
Proportion of new developments completed within 1km of 5 key services (GP, post office, primary school, food shop, bus stop)	WLCB	SD1	75% completions or permissions
Proportion of new developments completed within 400m of a bus stop / 800m of a rail station	WLCB	SD2	90% of new development
Proportion of new developments granted and completed in the principal urban areas and main towns	WLCB	SD3	75% completions or permissions
Net floorspace developed for Town Centre uses in town centre and out of centre locations within principal urban areas	WLCB	-	-

Objective 7 - Location of Development and Built Environment

To ensure that development is designed to a high quality and is appropriate for its locality, maximising efficiency in the use of land and resources, avoiding areas of significant constraint and minimising pollution. Heritage assets, and where appropriate their settings, will be conserved and enhanced. The unique character and features of local areas will be protected and reinforced through new development and other initiatives.

Design quality will be greatly enhanced, with all development respecting the local area. The unique heritage of West Lancashire will be protected and enhanced wherever possible. New development will be distributed to appropriate locations across the Borough.

Targets

Target description	Data source	Existing indicator	WLBC target by 2027
Number of listed buildings demolished, heritage assets, networks or settings lost	WLBC	ENV2 & 3	To be zero
Density of new residential development	WLBC	-	Average density to be above 40dw/ha

Objective 8 - Climate Change

To mitigate and adapt to climate change through a variety of measures including correctly locating and designing new development, reducing energy consumption, having sustainable energy sources, and minimising waste and increasing recycling.

New development will be steered to areas which are not at risk of flooding, in sustainable locations, will use carbon neutral technology and will make the best use of on-site renewable energy sources.

Targets

Target description	Data source	Existing indicator	WLCB target by 2027
Number of permissions granted contrary to Environment Agency and/or Local Lead Flood Authority advice on flooding and water quality	WLCB	ENV07	Zero (all problems should be resolved / mitigated)
Renewable energy capacity installed by type (in MW)	WLCB	ENV09	To increase
Per capita reduction in CO2 emissions in the LA area	WLCB	NI186	To reduce from 2005 baseline level
Energy efficiency - the average SAP rating of local authority owned dwellings	WLCB	-	To improve

Objective 9 - Skelmersdale

To make Skelmersdale an attractive and vibrant place to live and reduce the social inequalities between the town and the rest of the Borough.

A new regenerated Skelmersdale Town Centre will better serve the needs of its residents and the wider Borough. New housing and improvements to the existing older new town estates and the existing green infrastructure will also take place. Transport links will be improved with more extensive and frequent services and the aim of providing a rail station for Skelmersdale. Health and educational inequalities with the rest of the Borough will also narrow. All these factors will make Skelmersdale a more attractive place to live and will bring in new people to live in the town.

Targets

Target description	Data source	Existing indicator	WLCB target by 2027
All age all cause mortality rate (deaths per 100,000 population per year)	ONS via WLCB	NI120	Gap to narrow between Borough ward areas. Currently Gap of 10 years between most and least deprived
New retail floorspace in Skelmersdale	WLCB	-	To be at least 20,000 sqm developed since 2009
Number of new homes delivered in Skelmersdale (including mix)	WLCB	-	To meet requirement of Regeneration project
Proportion of population with:	NOMIS	-	Gap to narrow between Borough ward areas.
- No qualifications - NVQ level 1 - NVQ level 2 - NVQ level 3 - NVQ level 4			Overall proportion with no qualifications to decrease, all others to increase.

Appendix C Planning Policy Background

National Planning Policy Framework

The National Planning Policy Framework (NPPF) was published in March 2012 and replaces the original Planning Policy Guidance (PPG) notes and the subsequent Planning Policy Statements (PPS) in the form of one concise document. The main aims of the NPPF are to remove obstacles to growth and to take a proactive approach towards sustainable development during a post-recession era.

The NPPF includes policy on a range of topics and types of development, as well as the preparation of local planning policies. This Local Plan has been prepared taking account of the aims and policies of the NPPF. The approach to plan-making that the Council has taken, i.e. the preparation of a single 'composite' Local Plan document to address local planning policy, is supported by the NPPF.

Regional Plans

The Regional Spatial Strategy for the North West ("the RSS") was adopted in September 2008. It set the housing requirement for each local authority area in the North West, set employment land requirements (albeit at sub-regional rather than district level), and defined the settlement hierarchy for the Region. It contained a wide range of policies, including a specific policy framework for the Liverpool City Region, within which West Lancashire is situated.

On 6 July 2010 the Secretary of State for Communities and Local Government announced his intention to revoke the regional tier of planning. This decision was challenged in the courts, and consequently, the North West RSS was not formally revoked until April 2013. The policies of the RSS were taken into account during the preparation of the Local Plan, and the Local Plan's conformity with the RSS was one of the matters considered during Local Plan examination.

Sub-Regional Plans and Strategies

Ambition Lancashire Sustainable Community Strategy (2005-2025)

Prepared by the Lancashire Partnership, Ambition Lancashire influences spending decisions and service planning, encourages partners to work together to meet identified needs and add value to each other's actions, enables partners to lobby and influence together on behalf of Lancashire, and helps shape the Local Area Agreement in Lancashire. Its vision is as follows:

Ambition Lancashire

To position Lancashire by 2025 as an area of outstanding opportunity, combining a world-class economy with a breathtaking environment and exceptional communities.

Appendix C Planning Policy Background

Lancashire's towns, cities and rural areas maintain their separate identities, but interdependence is strengthened through strong economic, social and environmental connections.

Ambition Lancashire is built upon the two principles of:

- Narrowing the gap: between areas and within communities, in terms of wealth and poverty, educational achievement and underachievement, and high and low ambition; and
- Active and involved citizens and communities, making it easier for people to achieve their ambitions, enrich their lives and meet their needs more closely.

There are a number of key priorities within Ambition Lancashire to achieve its vision and principles, including:

- Economy;
- Health and wellbeing;
- Education, training and skills;
- Environment; and
- Community safety.

More information on the Ambition Lancashire Sustainable Community Strategy can be found on The Lancashire Partnership's [website](#).

Lancashire Local Area Agreement (LAA) (2008-2011)

All local authorities and Local Strategic Partnerships in Lancashire (excluding the Unitary Authorities) have signed up to the Lancashire LAA, which was developed by the Lancashire Partnership, and formally signed by the Government in March 2006. The LAA addresses local priorities with a view to improving services and quality of life for all. The priorities relate to the economy, environment, education training and skills, health and wellbeing, and community safety.

It is important that the West Lancashire Local Plan, along with the West Lancashire Sustainable Community Strategy, assist in the delivery of the Lancashire LAA. This will result in the improved wellbeing and increased Government investment in West Lancashire and in the County as a whole. More details on the LAA can be found on The Lancashire Partnership's [website](#).

Lancashire Minerals and Waste Local Plan

This Lancashire Minerals and Waste (LMW) Local Plan comprises several documents. The central document is the LMW Core Strategy (2009), which sets the broad direction for minerals and waste planning in Lancashire by identifying the amount of new minerals extraction and waste management capacity that will be needed over the plan period, and by indicating broad locations for such uses.

The LMW Site Allocations Development Plan Document sets out the specific locations for minerals and waste sites. This document was adopted in September 2013. It is likely that this will lead to the allocation or safeguarding of specific sites within West Lancashire. Further details may be found on the Lancashire Minerals and Waste [website](#).

Lancashire Local Transport Plan 3 (2011-2021)

The Lancashire Local Transport Plan 3 (LTP3) was adopted in 2011, setting out plans for transport for the years 2011 to 2021. LTP3 aims to address the transport challenges faced in Lancashire, as well as the wider sustainability priorities set out in Ambition Lancashire, framed by the Government's national transport goals. There are seven goals to helping to achieve this objective:

- To help secure a strong economic future by making transport and travel into and between our major economic centres more effective and efficient, and by improving links to neighbouring major economic areas and beyond;
- To provide the public with safe and convenient access to the services, jobs, health, leisure and education opportunities that they need;
- To improve the accessibility, availability and affordability of transport as a contribution to the development of strong and cohesive communities;
- To create more attractive neighbourhoods by reducing the impacts of transport on quality of life and by improving the public realm;
- To reduce the carbon impact of Lancashire's transport requirements, whilst delivering sustainable value for money transport options to those who need them;
- To make walking and cycling more safe, convenient and attractive, particularly in the more disadvantaged areas of Lancashire, bringing improvements in the health of Lancashire's residents; and
- To provide value for money by prioritising the maintenance and improvement of Lancashire's existing transport infrastructure where it can help deliver our transport goals.

The LTP proposes a number of priorities for West Lancashire which will assist in meeting the objectives outlined above. Such priorities include:

- Improving access to and from Skelmersdale as a focus for regeneration and economic growth;
- Improving cycle and pedestrian routes in Skelmersdale;
- Improving links to Ormskirk as a market town where key services and employment opportunities may be lacking.

Further details on the LTP can be found at the [Lancashire Local Transport Plan](#)

Implementation plans which will seek to deliver the above priorities are now being produced.

Lancashire Climate Change Strategy (2009-2020)

Prepared by the Lancashire Climate Change Partnership, this strategy sets out a carbon dioxide reduction target of 30% by 2020, from a 1990 baseline. The strategy shows in detail where these savings are predicted to come from and how they can be achieved. Further details can be found on the Lancashire Climate Change Partnership's [website](#).

Local Plans and Strategies

West Lancashire Sustainable Community Strategy

The West Lancashire Sustainable Community Strategy 2007-2017 was prepared by the West Lancashire Local Strategic Partnership following a review of the 2003 Community Strategy. For full details and to view the Sustainable Community Strategy, please visit the Council's [website](#). The vision is as follows:

West Lancashire Local Strategic Partnership - Improving Quality of Life for All

We will do this by working together to be:

- The cleanest, safest, healthiest and greenest place in the country to live, work and enjoy;
- A place where everyone is valued and has the opportunity to contribute; and
- A place with excellent, easily accessible and sustainable jobs and services.

A number of objectives have been developed which include:

- To improve safety and ensure people feel safe;
- To build on the solid foundations of a strong voluntary and community sector and to develop community participation and pride in our neighbourhoods;
- To improve health outcomes, promote social wellbeing for communities and reduce health inequalities for everyone;
- To provide more appropriate and affordable housing to meet the needs of local people;
- To provide good quality services that are easily accessible to all;
- To contribute to sustainable development through the wise use of natural resources;
- To provide opportunities for young and older people to thrive;
- To create more and better quality training and job opportunities to get more people into work; and
- To protect and improve West Lancashire's environment including safeguarding our biodiversity.

Through the Sustainable Community Strategy, the Local Strategic Partnership will concentrate a small number of priority projects that will require partnership working. These include:

- Skelmersdale Vision;
- Market Towns Project;
- Safer Stronger Communities;
- Rural Economy Study;
- Vital Villages / Parish Plans;
- Inspire Project;
- Affordable Housing Strategy;
- Integrated Transport; and
- Energy Management.

Appendix D Setting Locally-determined Targets

In line with the Government's 'Localism' agenda, and in the light of the revocation of the regional and sub-regional tiers of planning (which formerly set housing and employment land targets), West Lancashire Borough Council has identified its own targets for the development of housing and employment land in the Local Plan. To be considered sound, locally-derived targets must be based on evidence of need and deliverability, and must be sufficiently robust to withstand scrutiny at public examination. This Appendix summarises how the Local Plan housing and employment land targets have been calculated, and on what evidential basis. (It should be noted that the housing target explained below is that recommended by the Local Plan Inspector in his recommended modifications to the Local Plan and that has been incorporated into Policy SP1 in the Adopted Local Plan.)

Housing Targets

From 2003 (the base date of the RSS) until 2012 (the base date of the West Lancashire Local Plan), the housing target for West Lancashire set by the North West Regional Spatial Strategy (RSS) was 300 net new dwellings per annum. This target was agreed between WLBC and the North West Regional Assembly in 2005/06, and was derived using 2003-based national population statistics and other evidence available at the time of the preparation of the RSS.

The locally-determined West Lancashire Local Plan housing requirement for 2012-2027 is made up of two components. The first component reflects housing need arising from the formation of new households; the second component seeks to make any historic shortfall in housing provision in West Lancashire.

(a) Formation of new households

The formation of new households and the translation of this demographic process into a housing requirement are discussed in detail in the Council's Housing Technical Paper (HTP, August 2012), available on the Council's [website](#).

Since the announcement in July 2010 of the government's intention to abolish RSS, including its housing targets, four national sets of demographic data have been published that supersede the demographic data underpinning the RSS housing requirement. These comprise:

- The 2008-based household projections, published in November 2010 by the Department for Communities and Local Government (DCLG). The 2008-based household projections indicated an increase of 6,000 households in West Lancashire between 2008 and 2033, an average of 240 extra households per annum. Unrounded 2008-based household projection figures⁽¹⁷⁾ indicated an average increase over the Local Plan period of 267

17 It is important to state that projections are not forecasts, but instead indicate the likely patterns of demographic change, were previous trends to continue in the future. DCLG household projections are rounded to the nearest 1,000 households, and there is thus significant scope for leeway when using these figures. Unrounded figures (i.e. correct to the nearest household) are also available, but they come with a disclaimer that their accuracy cannot be guaranteed, and that they do not meet the criteria to qualify as "National Statistics". Therefore, the unrounded figures must be used with caution.

Appendix D Setting Locally-determined Targets

households per annum. In setting the West Lancashire housing target in the Submission Local Plan, a figure of 260 net new households per annum was used as Component (a) of the housing requirement.

- Interim 2010-based population projections, published March 2012, and interim 2011-based population projections, published September 2012. These population projections were influenced by revised mid-year estimates of population from 2001-2010 (revised as a result of a new methodology used to estimate migration). They covered the period 2010-2021, and were significantly higher than the 2008-based population projection figures.
- Initial results of the 2011 Census, first published in July 2012. For West Lancashire, the Census results showed a lower-than anticipated population increase from 2001-2011.
- Interim 2011-based household projections, published April 2013 by DCLG, covering the period 2011-2021. These were lower than the 2008-based household projections, the unrounded figures indicating an average projected increase of 247 households per year in West Lancashire over 2010-2021.

(b) Shortfall in housing provision 2003-2012

The historic shortfall in housing provision in West Lancashire has been approximated by comparing housing delivery in the Borough from 2003-2012 with the RSS target for the same period. At the time of preparing the Preferred Options Local Plan, it was estimated that, by 1st April 2012, the deficit in housing provision in West Lancashire against RSS targets for 2003-2013 would be approximately 750 dwellings⁽¹⁸⁾. The actual figures for completions between 2003 and 2012 showed a deficit of 679 dwellings (2,021 completions over the period, compared with an RSS requirement of 2,700 completions).

Housing Target 2012-2027

The West Lancashire housing requirement for 2012-2027 was debated in some detail at the Local Plan examination hearings. One participant (Nathaniel Lichfield and Partners, on behalf of Taylor Wimpey) submitted their own demographic model, showing various scenarios for household growth in West Lancashire over the Local Plan period.

Following consideration of the evidence presented at the Examination, along with the interim 2012-based household projections released subsequent to the Hearings, the Local Plan Inspector recommended a **residential target for West Lancashire of 4,860 dwellings over the period 2012-2027**.

This target is made up as follows:

(a) Formation of new households

18 This assumption was used in the Preferred Options and Publication / Submission Local Plans, prepared before the 2011/12 housing completion figures were available.

(i) For 2012-2021, the target is based upon the DCLG interim 2011-based household projections for West Lancashire (247 new households a year, which, with the addition of a 4% buffer to allow for vacant and second homes, translates to a requirement of 257 dwellings a year). Over the period 2012-2021, this equates to 2,313 dwellings;

(ii) For 2021-2027, the target is based upon the NLP household growth modelling figures, as submitted to the Local Plan examination (299 dwellings per annum average, plus a 4% buffer giving 311 dwellings a year). Over the period 2021-2027, this equates to 1,866 dwellings.

(b) Shortfall in housing provision 2003-2012

The shortfall in housing provision 2003-2012 is 679 units, as highlighted above.

The above three elements sum to 4,858 dwellings. In order to allow a target of a whole number of dwellings each year of the Local Plan period, the total was rounded up to 4,860 dwellings.

Phasing of the housing target

This Local Plan housing target equates to an average annual target of 324 dwellings a year. However, in recognition of the difficulty in meeting an annual target of 324 dwellings a year during the initial years of the Local Plan period (given the reliance on sites being released from the Green Belt or other policy designations for housing land supply in the Local Plan), the Inspector proposed staggered annual targets for residential development during the Local Plan period. For 2012-2017, the housing target is 302 dwellings a year. For 2017-2027, the housing target is 335 dwellings a year.

Employment Land Target

Employment Land targets for West Lancashire have been derived from the Joint Employment Land and Premises Study (JELPS), which was completed in January 2010 but began in May 2008, with the bulk of the collation of information taking place in 2008. The JELPS recommended an overall target for employment land development from 2010 to 2026 of approximately 150ha, of which 60ha could be provided by existing employment land allocations that have yet to be developed. This target was calculated based on historic take-up rates of employment land development.

Since the information used in the JELPS was collated, three further years of employment land development have taken place, thus allowing an update of take-up figures to better reflect the economic recession. In addition, the situation surrounding some of the undeveloped sites allocated in the Replacement Local Plan (2006) has also changed. The Local Plan target does not take into account two anomalous years of very high employment land development, one of which involved extremely large schemes (i.e. the distribution warehouses on XL Business Park in 2003/04) of a sort that are not being promoted in the Borough over the Local Plan period; the other year involved very high levels of employment development (at the Pimbo employment area in 1997/98) that it would be unrealistic to expect in the foreseeable future.

Appendix D Setting Locally-determined Targets

The Local Plan employment land target has been calculated utilising the a similar methodology to the JELPS, but with amendments reflecting the factors referred to above.

Calculation of employment land target

Average take-up rate of employment land 1992-2011 = 4.15 ha per annum (see Table overleaf)

Basic Employment Land Target for 2012–2027 = 4.15 ha / year x 15 years = 62.27 ha

Employment Land Review Guidance recommend the addition of a 20% contingency buffer onto this basic target to allow for uncertainties in predicting how the economy will grow in future years. Adding 20% on to the Basic Target therefore provides a figure of 74.72 ha.

Therefore, the locally-determined target for employment land development in West Lancashire from 2012 to 2027 is set at **75 ha**.

More detail on the calculation of locally-determined employment land targets is provided in the Economy and Employment Land Technical Paper available on the Council's [website](#).

The employment land target was discussed at the examination hearings. It was claimed by some participants that years with anomalously low employment land take-up should also be excluded from the calculations of targets. The Inspector concluded that, even if such years were excluded from the calculations, the 15 year requirement would still lie comfortably within the overall 75ha allocation (albeit with a slightly reduced contingency buffer), and that the 75ha employment land target is justified. The Inspector also recommended that no phasing be applied to the target.

Appendix D Setting Locally-determined Targets

Year	Take-up (/ha)
1992/93	1.6
1993/94	1.6
1994/95	2.5
1995/96	7
1996/97	10.2
1997/98	17.3
1998/99	4.8
1999/2000	2
2000/01	4.5
2001/02	5.8
2002/03	12.62
2003/04	28.32
2004/05	4.69
2005/06	3.11
2006/07	5.44
2007/08	1.44
2008/09	2.4
2009/10	0.5
2010/11	0.37
Total	116.19
Average take up rate 1992-2011	6.12
Average take up rate 1992-2011 (minus anomalous years)	4.15
Employment land target for 2012-2027	62.27
Target with 20% buffer	74.72

Table D.1 Take-up of employment land in West Lancashire 1992-2012

Appendix E Delivery & Risk

A Development Plan Document must be deliverable and must take account of the risks to delivery that it may face over the lifetime of the document. This appendix sets out, policy by policy, how the Local Plan document will be delivered over the Local Plan period (2012-2027), what the key risks to that delivery may be, the implications of these risks and how the Local Plan will be flexible enough to respond to these risks.

Policy SP1: A Sustainable Development Framework for West Lancashire
Who will Deliver the Policy Policy SP1 provides the over-arching spatial framework for sustainable development in the Borough, and so delivery of the policy will involve a variety of partners, most notably the Private Sector / Developers (as the vast majority of development will be private sector led), Infrastructure Providers (where new infrastructure is required) and the Council and other Public Sector agencies (who will often have a key role in facilitating development).
Phasing for Delivery The overall timescale for the delivery of development in the Borough is predominantly influenced by the fact that the Local Plan period will begin as the global, national and regional economy is still struggling to recover from what is now a double-dip recession. As such, delivery of development, especially residential development, will be slower in the first half of the Local Plan period (hence the reduced residential targets to 2017 discussed in the justification for Policy SP1) but should increase in the latter part of the Local Plan period (hence the higher residential targets after 2017). The phasing of delivery in the plan is also reflective of the fact that Green Belt release is taking place and therefore development on greenfield sites will take slightly longer to begin to deliver due to the more extensive infrastructure requirements to open up greenfield sites.
Risks The deliverability of a sustainable development framework for West Lancashire is reliant on a range of factors, some of which are more certain than others. Where possible, these factors have been worked around in preparing the Local Plan but, given a degree of uncertainty in relation to some factors, there is an inevitable degree of risk in the strategy. This risk focuses around three key areas: • The delivery of the regeneration of Skelmersdale Town Centre - that it is wholly or partially not delivered

- The delivery of key infrastructure improvements - that they are not delivered, particularly Waste Water Treatment infrastructure improvements affecting Ormskirk, Burscough, Scarisbrick and Rufford, which are manageable in the short term by the utility provider but will require significant investment and improvement during United Utilities' forthcoming spending period (2015-2020)
- The rate of development delivery continues to be lower than targeted due to a slow recovery from recession

Implications of the Risks

Skelmersdale Town Centre

Any development, especially residential development, that is delivered in Skelmersdale places an increased burden on an already poor quality town centre and the sustainability of Skelmersdale as a regional town is significantly reduced. The basis on which Skelmersdale is allocated the lion's share of development in the Local Plan is that it will benefit from a regenerated town centre to serve such a large amount of new development (as well as existing development). Should the town centre not be regenerated, the justification for locating so much development in Skelmersdale may be weakened.

In addition, the attraction of developing in Skelmersdale could be reduced without the town centre regeneration, potentially leading to new residents travelling out of the Borough for services (e.g. to Wigan) or potentially leading to low demand for new development in Skelmersdale, and therefore the need to allow development elsewhere in the Borough instead in order to achieve development targets. Social inequalities between Skelmersdale and the rest of the Borough will be made far worse in this situation.

Key Infrastructure Improvements

Should United Utilities not be able to improve the infrastructure constraints faced at New Lane Waste Water Treatment Works in the long term, any new development on greenfield sites in Ormskirk, Burscough, Rufford and Scarisbrick, beyond the year 2020, would result in excess discharge from New Lane into Martin Mere.

Ongoing low levels of development

Should the market not deliver development at the rate targeted in the Local Plan, the Council will fail to meet its targets, most notably the 5-year Housing Land Supply. This may result in less appropriate applications for housing development gaining planning permission as the Government seeks to stimulate house-building.

Contingencies for the Risks

Skelmersdale Town Centre

In terms of retail and local service provision, there is no alternative for Skelmersdale, nor could such town centre development be located elsewhere in the Borough. With regard to all other development, residential development may need to be located elsewhere in

the Borough, ultimately resulting in further loss of Safeguarded Land to development via the “Plan B”, despite potential infrastructure constraints. The “Plan B”, set out in Policy RS6 of the Local Plan, explores the most appropriate alternative in such circumstances.

Key Infrastructure Improvements

All development within West Lancashire would need to be focused in Skelmersdale, Aughton and some within the Northern Parishes, although this would need to be limited due to known existing water supply and waste water pressure issues also in this area. In addition, a small amount of development is allocated to other rural areas where infrastructure constraints are not so acute. Therefore, Skelmersdale would be the only town in the Borough to benefit significantly from new development. However, in reality, this alternative is not sustainable due to the fact that it would not meet housing and employment needs across the Borough and is not deliverable as it is highly unlikely that the housing market in Skelmersdale could deliver so many houses year-on-year. As such, the only realistic contingency if waste water treatment infrastructure improvements could not be delivered would be a reduction in the Borough's development targets.

Ongoing low levels of development

West Lancashire would either need to accept that it cannot deliver its locally-determined targets and reduce the targets accordingly (thereby losing out on significant economic, social and environmental advances and benefits that would have been created by the additional development) or release land from the “Plan B” (Policy RS6) to attempt to stimulate the development required.

Policy Area SP2: Skelmersdale Town Centre

Who will Deliver the Policy

Delivery of Policy SP2 will be reliant upon a number of bodies including the Council (officers and elected Members), the Homes and Communities Agency, other public agencies and private sector developers. St Modwen have been selected as the preferred development partner.

Phasing for Delivery

A full financial appraisal of the scheme has been undertaken, and this has provided evidence regarding the deliverability and timescale of the Skelmersdale Town Centre development and outline planning permission was granted in May 2013. The scheme will rely on a return of the private sector housing market in Skelmersdale.

Risks

Although planning permission is granted, there is a risk that the funding to kick-start the delivery of the scheme may not come forward even if the economy recovers, due to the changing nature of the retail market and opportunities being taken elsewhere. Even if the scheme could ultimately be achieved, this would take many years and would leave a significant amount of semi-derelict land at the heart of the town centre severing the links between the College, Asda and the Concourse over this period.

There is also a risk that if Skelmersdale does not grow it will be unable to compete with neighbouring centres (e.g. Wigan and St Helens) that have seen, and will continue to see, retail growth.

Implications of the Risks

Any development, especially residential development, that is delivered in Skelmersdale places an increased burden on an already poor quality town centre and the sustainability of Skelmersdale as a regional town is significantly reduced. The basis on which Skelmersdale is allocated the lion's share of development in the Local Plan is that it will benefit from a regenerated town centre to serve such a large amount of new development (as well as existing development). Should the town centre not be regenerated, the justification for locating so much development in Skelmersdale is weakened.

In addition, the attraction of developing in Skelmersdale could be reduced without the town centre regeneration, potentially leading to new residents travelling out of the Borough for services (e.g. to Wigan) or potentially leading to low demand for new development in Skelmersdale, and therefore the need to allow development elsewhere in the Borough instead in order to achieve development targets. Social inequalities between Skelmersdale and the rest of the Borough will be made far worse in this situation.

Contingencies for the Risks

In terms of retail and local service provision, there is no alternative for Skelmersdale, nor could such town centre development be located elsewhere in the Borough. With regard to all other development, residential development (and possibly employment development) may need to be located elsewhere in the Borough, ultimately resulting in further loss of Green Belt to development via the "Plan B", and / or the expansion of one or more of the Key Sustainable Villages, despite potential infrastructure constraints. The "Plan B", set out in Policy RS6 of the Local Plan, explores the most appropriate alternative in such circumstances.

Policy SP3: Yew Tree Farm, Burscough
Who will Deliver the Policy Delivery of the Burscough Strategic Development Site is reliant on the Private Sector / Developers bringing forward residential and employment development proposals in line with Policy SP3, including delivering, or making contributions towards, infrastructure improvements. Infrastructure providers will also play a key role in delivery, especially United Utilities for the waste water treatment infrastructure and Lancashire County Council in relation to highways improvements.
Phasing for Delivery As the site is a greenfield site, delivery in the first few years of the Plan (2012-2015) will be slower than existing sites in settlements due to the need for significant infrastructure improvements.
Risks The Strategic Development Site becomes undeliverable due to a hitherto unidentified constraint or because the waste water treatment issues cannot be resolved within United Utilities' next spending period (2015-2020) within the Local Plan period.
Implications of the Risks The Strategic Development Site cannot be delivered, leaving a shortfall in housing and employment development in the Borough over the Local Plan period.
Contingencies for the Risks West Lancashire would either need to accept that it cannot deliver its locally-determined targets and reduce the targets accordingly (thereby losing out on significant economic, social and environmental advances and benefits that would have been created by the additional development) or redistribute the residential and employment development to other parts of the Borough. The "Plan B" set out in Policy RS6 of Local Plan explores the most appropriate alternative for residential development in such circumstances.

Policy Area GN1: Settlement Boundaries
Who will Deliver the Policy The Local Plan establishes the settlement boundaries and so does not involve "delivery" as such. The remainder of the policy guides development within and outside settlements, and will be delivered through the Development Management process.

Phasing for Delivery The policy will run throughout the Local Plan period.
Risks There is a risk of challenge to the policy, and the policy being undermined, for example through an appeal decision, especially if there is a shortfall in housing delivery.
Implications of the Risks Undermining of this policy could result in inappropriate, and less sustainable, development outside settlement boundaries.
Contingencies for the Risks A positive attitude towards appropriate development across the Borough should help ensure a sufficient supply of land, e.g. for housing and employment. This should help minimise the pressure to develop similar uses on less appropriate land, and should reduce the risk of Policy GN1 being challenged or undermined.

Policy Area GN2: Safeguarded Land
Who will Deliver the Policy The Local Authority
Phasing for Delivery The policy will run throughout the Local Plan period, with potential for "Plan B" land to be released at certain points in the plan period if housing delivery fails to materialise at the levels anticipated. (See Policy Area RS6 for "Plan B".)
Risks That the policy is undermined by a shortfall in housing delivery and fails to safeguard the allocated land from development.
Implications of the Risks

It would become difficult to reserve the “Plan B” sites for the eventuality that the “Plan B” is triggered, thereby limiting the flexibility of the Local Plan. The safeguarded land, being greenfield in nature, would then become more attractive to developers and most likely be developed before less attractive brownfield land, possibly preventing the regeneration and redevelopment of such sites.

Contingencies for the Risks

Should Policy GN2 be undermined in some way, there is very little that can be done to continue to protect this land other than a full Local Plan review which provides an even more robust safeguarded land policy.

Policy Area GN3: Design of Development

Who will Deliver the Policy

The Local Authority and developers, through the Development Management process. Also the Lead Local Flood Authority (LLFA) will assist in relation to delivering and approving sustainable drainage systems (SuDS).

Phasing for Delivery

This policy will run throughout the Local Plan period.

Risks

The risk associated with this policy is the failure to deliver high quality, appropriately designed schemes across the Borough should this policy not be applied consistently.

In addition there is a risk that developments may not deliver SuDS due to the current period of legislative and organisational changes and the lack of understanding about SuDS and SuDS Approval Bodies.

Implications of the Risks

Buildings or schemes which are substandard in terms of design quality could lead to unsustainable development with a significantly shorter lifespan than if they are designed with due regard to the requirements set out in Policy GN3. This could be a particular issue in areas in need of regeneration.

Developments not incorporating SuDS run the risk of exacerbating surface water flooding issues within the Borough.

Contingencies for the Risks

Detailed dialogue between officers and developers / landowners during the planning application process will help ensure that the policy is fully adhered to and only high quality schemes are delivered. Further discussions with the LLFA, Internal Drainage Boards and partners at the Environment Agency and United Utilities should assist in ensuring a smooth transition to the new SuDS approval regime.

Policy Area GN4: Demonstrating Viability
Who will Deliver the Policy The Local Authority
Phasing for Delivery This policy will run throughout the Local Plan period.
Risks The risks associated with this policy are the failure to consider viability fully when determining planning applications and that sites are prevented from being redeveloped because of a perception that they are viable.
Implications of the Risks Failure to fully apply this policy could result in some economically viable sites for a particular use being lost to another more profitable use at the demand of the landowner or applicant. This would result in development taking place in the interests of profit and not in the best interests of the population of the Borough. Contrastingly, if the policy is applied too strictly, it may prevent the redevelopment of a site that is otherwise unviable for its existing use.
Contingencies for the Risks There is a need for early dialogue between officers and applicants, and use of the Council's database of sites currently being marketed via the Regeneration and Estates team. Monitoring of the effect of this policy will also be important.

Policy Area GN5: Sequential Tests
Who will Deliver the Policy This policy will be delivered through the Development Management process.

Phasing for Delivery The policy will run throughout the Local Plan period.
Risks The risk associated with this policy is that inadequate sequential searches for sites are carried out, and the results of substandard searches influence planning decisions.
Implications of the Risks Substandard sequential site searches could lead to development being permitted in less than optimal locations, and, consequently, to preferable sites (in planning terms) remaining undeveloped. This could lead to unsustainable patterns of development, and in certain cases could delay or undermine regeneration.
Contingencies for the Risks Communication with applicants and developers throughout the planning application process, including dialogue before, during, and after the undertaking of sequential site searches should help ensure that the searches are carried out robustly to the satisfaction of the Council, and that only the best available sites are developed.

Policy Area EC1: The Economy and Employment Land
Who will Deliver the Policy The policy will need to be delivered by private sector businesses / developers working alongside the Council who will ensure its successful implementation.
Phasing for Delivery Delivery of Policy EC1 will run throughout the Local Plan period.
Risks Policy EC1 seeks to protect strategic and other significant employment areas for employment uses (Use Class B) and see new employment development located within, or adjacent to, them. Therefore, paragraphs 22 and 51 of the National Planning Policy Framework (NPPF) pose a risk to this policy if such allocations do not come forward in the short / medium term or if an over-riding local need for housing arises.
Implications of the Risks

This could have a significant effect on the Borough's ability to meet its locally-determined employment land target because that land set aside for employment development could be lost to other uses. In this situation, the Borough would not be able to deliver all the new employment development that is needed over the Local Plan period, and would therefore not grow economically as well as anticipated.

Contingencies for the Risks

Policy EC1 is worded as strongly as possible to protect the strategic and other significant employment areas for Class B land uses. However, if this policy is undermined, further land would need to be identified for employment uses or there would need to be an acceptance that West Lancashire becomes more reliant on neighbouring authorities for employment opportunities.

Policy Area EC2: The Rural Economy

Who will Deliver the Policy

The policy will need to be delivered by private sector businesses / developers working alongside the Council who will ensure its successful implementation.

Phasing for Delivery

Delivery of this policy will run throughout the Local Plan period.

Risks

Risks associated with the rural economy relate to loss of land for other uses and the limiting nature of the rural environment. More existing rural employment sites could be lost to residential uses on the grounds of viability. In addition, the wide range of environmental assets that are located in the Borough could pose a risk to development in rural areas by limiting opportunities for new development.

Implications of the Risks

The amount of land given over to rural employment uses gradually dwindles and rural areas become even less sustainable. Insufficient land is developed for rural employment uses.

Contingencies for the Risk

Identify specific rural areas or sites where it is considered there are the least environmental constraints and promote rural employment in those areas / sites through proactive implementation of Local Plan Policy.

Policy Area EC3: Rural Development Opportunities
Who will Deliver the Policy This policy will be delivered by landowners and developers, working closely with the Local Authority.
Phasing for Delivery This policy will be delivered throughout the Local Plan period.
Risks Economic viability issues may mean that the sites identified are not considered suitable for employment uses and landowners may seek to pursue more profitable uses at the expense of rural employment opportunities.
Implications of the Risks Limited new rural employment opportunities would be created.
Contingencies for the Risks Ensuring that the policy is applied properly throughout the Local Plan period resulting in some employment uses being developed on each site.

Policy Area EC4: Edge Hill University
Who will Deliver the Policy The University is responsible for delivering any planned growth. Working alongside Council officers, the University will also be responsible for managing the impact of the high number of students accessing the campus and using the town of Ormskirk.
Phasing for Delivery This policy will be implemented throughout the Local Plan period.
Risks

Risks associated with Edge Hill University relate to adverse impacts of any planned growth. It is widely recognised that the University is an important asset of the Borough and that expansion of the University would benefit the local economy, as well as public services and facilities. However, expansion should be balanced by resolving existing (and potential future) issues and problems. Parking, traffic congestion and noise pollution have been identified as key risks. In addition many people have raised concern regarding the number of homes in Ormskirk which are let to students. The use of the Green Belt to accommodate expansion plans is a further risk.

Implications of the Risks

The risks identified could lead to more congestion in and around Ormskirk, a lack of choice in terms of housing for local people and potentially unnecessary development within the Green Belt if a carefully planned approach to expansion is not adopted.

Contingencies for the Risks

A carefully planned expansion strategy should be developed through a masterplanned approach between the University and the Council and should be subsequently adopted. Working with the University and other interested parties throughout the Local Plan period will be crucial.

The alternative in relation to Edge Hill University is to resist any further expansion plans. This alternative would mean that the university may not be able to deliver high quality facilities and therefore could be less attractive to students. Opportunities to remedy some of the existing issues would also be lost.

Policy Area RS1: Residential Development

Who will Deliver the Policy

Delivery of Policy RS1 is largely reliant on the Private Sector with developers and / or landowners bringing forward residential development proposals in line with the policy, including delivering, or making contributions towards, infrastructure improvements, especially on larger sites.

Phasing for Delivery

Delivery of this policy will run throughout the Local Plan period.

Risks

There are two main risks to the success of this policy: firstly, the phasing of development does not turn out as anticipated or desired by this policy; and secondly, geographical patterns of development are not as anticipated or desired.

Implications of the Risks

Firstly, in terms of phasing of development, there are two possibilities. More housing than anticipated is built on attractive sites early in the plan period, which are developed in advance of key infrastructure. Unsustainable patterns of development result, and pressure on roads and other infrastructure is intensified. Alternatively, house completion rates never meet required levels, resulting in an overall housing shortfall, and housing need (in particular, affordable housing need) increasing to unattainable levels.

Secondly, in terms of the geographical patterns of development, market forces or Central Government decisions (e.g. appeal decisions) mean that development takes place in a different, less sustainable, pattern from that set out in Policy SP1.

Contingencies for the Risks

If insufficient housing is delivered in Skelmersdale, meet the Borough's housing targets in more desirable market areas. This could ultimately result in loss of safeguarded or even Green Belt land around Ormskirk or Burscough and / or the expansion of one or more of the Key Sustainable Villages, regardless of infrastructure constraints. The "Plan B" sets out a way of managing the release of land in as sustainable a manner as possible, if development targets are not met elsewhere during the first five and ten years of the Plan period.

If completion levels are too low in general, work collaboratively with developers to deliver sufficient levels of housing in the right places – maybe taking a more flexible approach to planning policy requirements that impact upon viability (for example, housing designed for the elderly), in order to increase the viability and the attraction of developing certain sites, and in order to deliver sufficient levels of housing in the most sustainable and beneficial places.

Policy Area RS2: Affordable & Specialist Housing

Who will Deliver the Policy

Affordable and specialist housing will largely be delivered through Registered Providers and other providers of affordable and specialist housing, the Council, and private developers in conjunction with market housing schemes.

Phasing for Delivery

Delivery of this policy will run throughout the Local Plan period.

Risks Insufficient affordable housing is delivered due to problems with identifying sites and / or securing planning permission for market housing, funding difficulties for affordable housing providers, or demonstration that provision of reasonable numbers of affordable dwellings (in conjunction with other policy requirements) is unviable.
Implications of the Risks Affordable housing needs in the Borough become even more pressing due to the increasing and unmet demand, resulting in overcrowded households (“hidden homeless”), people moving out of the Borough to access affordable housing elsewhere, with knock-on effects such as longer commuting patterns and more traffic, decline in the local economy, and, in extreme cases, homelessness.
Contingencies for the Risks Where schemes are failing to be delivered, consider the relaxation of affordable housing and / or other policy requirements so that more schemes become viable. Where viability figures show that deliverable levels of affordable housing are lower than desired percentages, or where Registered Providers are experiencing financial difficulty, take a proactive approach towards development (e.g. by relaxing other demands) to secure more affordable housing units. The possibility of the Council directly delivering affordable housing could also be explored.

Policy Area RS3: Provision of Student Accommodation
Who will Deliver the Policy The policy’s emphasis is on restraint, rather than delivery. It will be implemented through Development Management decisions.
Phasing for Delivery The policy will run throughout the Local Plan period.
Risks One risk associated with this policy is a lessening of the ability of the Development Management process to control the proliferation of HMOs through grants of permission on appeal. There is also a risk of there being insufficient land for purpose-built student accommodation.
Implications of the Risks

An increase in the number and proportion of HMOs could in certain cases lead to further problems associated with some student areas, for example noise, litter and parking issues, and to a reduced quality of life for nearby residents. In addition, the number of lower priced properties in the area could decrease as these are converted to HMOs.

In the case of there being insufficient land for student accommodation, more students are forced to find alternative accommodation, either in HMOs within Ormskirk or in accommodation further afield. This could lead to problems recently experienced in parts of Ormskirk being experienced in other settlements, including a decline in lower-priced properties available, as well as unsustainable travel patterns and increased traffic congestion in Ormskirk.

Contingencies for the Risks

Work with Edge Hill University and Community and Residents Groups to seek to address and alleviate any problems that might arise as a result of the concentrations of student HMOs in specific areas, and to identify suitable land for purpose-built accommodation, possibly with the Council considering a more flexible approach to the siting of such accommodation. Encourage the University to consider the possibility of "decentralisation" of some of its education functions, with certain functions or departments of the University being located in other settlements.

(Policy RS4: Provision for Gypsies and Travellers and Travelling Showpeople has been removed from the Local Plan.)

Policy Area RS5: Accommodation for Temporary Agricultural / Horticultural Workers

Who will Deliver the Policy

Sites will be delivered by landowners and farmers.

Phasing for Delivery

The policy will run throughout the Local Plan period.

Risks

As West Lancashire is predominantly a rural authority, agriculture and horticulture play an important role in the local economy and a significant growth in this sector can lead to an influx of workers who require accommodation. Therefore, it is important that the Local Plan has the ability to manage developments to meet that need and manage the impact on the rural environment. However, the main risk is that the policy could restrict the ability for landowners and farmers to create accommodation for their workers when necessary.

Implications of the Risks If accommodation cannot be found for agricultural / horticultural workers it will inevitably create pressure on the existing accommodation and perhaps other residential accommodation in nearby villages or lead to the illegal creation of such accommodation, requiring enforcement action.
Contingencies for the Risks Close monitoring of this policy will be required to ensure it is not restricting the creation of new accommodation, where justified by need, too much.

Policy Area RS6: A "Plan B" for Housing Delivery in the Local Plan
Who will Deliver the Policy Delivery of Policy RS1 will be reliant on the Private Sector.
Phasing for Delivery The policy, if required, will be implemented in 2017 and / or in 2022, or if new demographic figures show a need to boost housing delivery.
Risks There is a risk that the presence of the "Plan B" safeguarded land could encourage under-delivery in other areas such as Skelmersdale.
Implications of the Risks More greenfield sites safeguarded as "Plan B" land would be released for delivery of development instead of land in more sustainable locations such as Skelmersdale.
Contingencies for the Risks The Council will work rigorously with the Homes and Communities Agency to promote land within Skelmersdale in order to avoid the unnecessary release of "Plan B" land ahead of delivery of existing allocations. However, if this does occur, the suite of policies within the Local Plan should ensure that a comprehensive development comes forward on such sites and issues relating to environmental sensitivity and infrastructure provision may be addressed through good design.

Policy Area IF1: Maintaining Vibrant Town and Local Centres	
Who will Deliver the Policy	This policy will be implemented through the Development Management process.
Phasing for Delivery	The policy will run throughout the Local Plan period.
Risks	As a result of continuing economic difficulties, leakage of expenditure to neighbouring areas or to other forms of trading (e.g. online), changes to national policy, and the failure of this policy to work as intended, town and local centre vitality and viability suffer.
Implications of the Risks	Many town and local centre units change, either to “lower grade” functions, such as charity shops, or away from A1 type uses. The number of units open for business in the daytime decreases with an increase in take-aways and wine bars, etc. There are more “dead frontages” in town centre streets. All of this has an impact on vitality, with fewer people visiting the centres, lower footfall, etc, which impacts on viability as trade decreases. The remaining traditional retail uses suffer, and some are forced to close, resulting in unsightly empty units, which exacerbates the situation. Those who are able will choose to travel elsewhere to shop, which eventually leads to town centres failing.
Contingencies for the Risks	Take a more relaxed approach in implementing this policy, allowing change from A1 uses where the alternative is vacant units. Work proactively to improve the offer of town centres, with an improved local environment, easier access by all means of transport, and special features or events to make the centre distinctive. Support and capitalise on features such as markets.

Policy Area IF2: Enabling Sustainable Transport Choice	
Who will Deliver the Policy	Policy IF2 will be delivered by the Borough Council and County Council who are the transport authorities.
Phasing for Delivery	

The policy will run throughout the Local Plan period.

Risks

It is inevitable that delivery of an improved, modern, fit for purpose transport strategy to meet the needs of West Lancashire will be dependent upon a number of factors which could jeopardise the strategy. There is a risk that there will be a lack of capital funding to deliver larger projects, which is particularly important given the state of the economy. Also with government cuts there is a risk that there will be a withdrawal of services jeopardising the existing transport infrastructure in vulnerable locations such as rural areas.

Implications of the Risks

If the major schemes identified do not receive funding there is a risk that the schemes will not be delivered within the Local Plan period. The results of this would mean that there would be greater reliance upon the car resulting in increased congestion. There would also be a risk that levels of deprivation would increase, in particular in areas such as Skelmersdale where access via public transport to jobs, as well as education and cultural facilities, is crucial.

Many rural bus services are unprofitable to run and only survive due to subsidies provided by the County Council. If Council budgets are reduced there is a possibility that there will be a reduction in the subsidies available to operate effective rural bus services. If these subsidies are removed and the bus routes are no longer able to operate there will be an increase in social and economic exclusion as access to services and jobs is reduced.

Currently, congestion in parts of Ormskirk and Burscough and some parts of the rural areas has the potential to threaten any growth proposals by creating capacity issues.

Development in Ormskirk and Burscough along with some of the smaller rural settlements could be restricted, further exacerbating shortages of housing and employment land opportunities.

Contingencies for the Risks

If major infrastructure schemes cannot be delivered to improve transport, alternative schemes such as improving bus services and transport networks will need to be explored. It is acknowledged that alternative schemes can only deliver limited benefits.

If rural bus services are reduced as County Council subsidies diminish, innovative solutions involving private sector investment will need to be explored. This may include expanding schemes such as 'West Lancashire Dial-a-Ride'.

If Borough-wide transport improvement cannot be delivered, development within West Lancashire would need to be focused in Skelmersdale as this is considered to have a robust road network with good strategic links to the motorway corridors.

Policy Area IF3: Service Accessibility and Infrastructure for Growth
Who will Deliver the Policy Delivery of this policy is reliant upon infrastructure partners, Lancashire County Council and in particular United Utilities. The Council will work to ensure that a good relationship is maintained with all providers and that communication is frequent and open.
Phasing for Delivery This policy will run throughout the plan period although the waste water infrastructure works will not happen until beyond 2015 due to United Utilities' spending periods.
Risks The main risk to West Lancashire with regard to infrastructure is the provision of adequate water treatment facilities by the utility provider. The Council is aware of the existing stress placed upon the treatment works at New Lane which effectively inhibits growth of Burscough the northern parts of Ormskirk and the rural areas of Scarisbrick and Rufford. Improvements to this network are not yet identified in United Utilities' spending plans and as such the Council has engaged with United Utilities to ensure the profile of this issue is raised and a strategic resolution is derived.
Implications of the Risks Development within Burscough and the main settlement area of Ormskirk may be restricted beyond the year 2020 in the event United Utilities is not able to provide an appropriate solution to the waste water capacity constraint at the New Lane treatment works.
Contingencies for the Risks The constraint issue with waste water is already severe. As existing planning permissions are implemented in the period from now until the adoption of the New Local Plan, the constraint issue will be exacerbated. United Utilities are regulated by the Environment Agency and must therefore work fast to resolve this issue. However, United Utilities have confirmed that are able to manage the issue and accommodate the level of development allocated within the Local Plan until the year 2020 when a solution must be found within the next spending period (2015 - 2020). This pressing need for resolution is considered to elevate the importance of the issue and potentially give some credence to any future bids to fund improvements to OfWat by United Utilities. Therefore, the perceived risk of none delivery is likely to be lower than initially expected. However, in the event the improvements do not happen, a possible contingency may be that the level of development proposed for the area affected by waste water constraints could be significantly reduced and re-distributed to other parts of the Borough not currently constrained by utility provision, e.g. through the "Plan B".

Policy Area IF4: Developer Contributions
Who will Deliver the Policy Policy IF4 will be driven by the Council through Development Management and negotiation but is dependent upon several factors, the most significant being economic viability, which is subject to wider market conditions beyond the control of planning.
Phasing for Delivery The policy will run throughout the Local Plan period.
Risks If economic conditions fail to improve and allow the economic viability case to be made for specific developments, this could lead to reduced or no financial contributions towards on-site infrastructure improvements.
Implications of the Risks Existing pressures upon localised infrastructure would be exacerbated and new pressures and demands would be created as a result of new development.
Contingencies for the Risks The introduction of a Community Infrastructure Levy (CIL) charging schedule will allow the upfront costs of strategic infrastructure to be factored into development costs early on in the development process so that it may be accommodated within the land values. The delivery of CIL is non-negotiable once it has been adopted and will ensure some financial contributions are secured in order to support infrastructure.

Policy Area EN1: Low Carbon Development and Energy Infrastructure
Who will Deliver the Policy Delivery of Policy EN1 will be largely dependent upon partnership working. This is due to the complex nature of low carbon energy infrastructure and the need for engagement between the Council, developers and energy providers. The policy will also be dependent upon co-ordination between Development Management and Building Control officers to ensure developers are challenged in order to deliver carbon saving in line with regulations beyond the planning remit.

Phasing for Delivery This policy will run throughout the Local Plan period.
Risks Decentralised heat and energy schemes are dependent upon upfront funding and delivery from a lead organisation (usually an energy supplier) who may be unwilling to engage, depending upon the certainty of development viability in a particular area.
Implications of the Risks Large scale development within the Borough will continue to rely upon centralised energy generation.
Contingencies for the Risks The Council will be required to ensure other methods of decentralised energy are pursued, such as community wind schemes, biomass boilers and solar PV. Education of developers and the community will be pivotal to this action, in order for the Council to raise awareness of financial incentives such as Feed in Tariffs (FITS).

Policy Area EN2: Preserving and Enhancing West Lancashire's Natural Environment
Who will Deliver the Policy This Policy will be delivered through a combination of bodies including the Borough and County Councils, along with a number of agencies including the Environment Agency, Natural England, the Lancashire Wildlife Trust and private developers.
Phasing for Delivery This Policy will run throughout the Local Plan period
Risks This Policy is dependent upon a number of stakeholders including individual landowners, private organisations and businesses. There is a risk that, given the economic conditions, there will be reduced resources to deliver elements within the strategy. Also over the Plan period there may be development pressure upon environmental and ecologically sensitive sites.

Implications of the Risks

In the current economic climate, funding is becoming scarce, which may place additional pressure on organisations which manage environmentally sensitive sites, thus reducing their ability to manage the sites to previous standards. Consequently the sites may suffer degradation to the detriment of the sensitive species they currently accommodate.

Future aspirational schemes such as the Ribble Coast and Wetlands Regional Park may also not be fully realised.

With development pressure likely to increase there may be direct impacts upon environmental and ecological sites, causing a reduction in habitats for environmentally sensitive species.

Contingencies for the Risks

In these difficult economic times there is little that can be done to influence the funding and management of privately owned sites. The Council can, however, continue to liaise with landowners encouraging greater management. Through this policy, clear direction on protection of sites is provided to ensure a no net loss approach is at least maintained.

Policy Area EN3: Preserving and Enhancing Green Infrastructure and Open and Recreational Space

Who will Deliver the Policy

This Policy will be delivered through a combination of the Borough Council and County Council, along with environmental agencies and private developers.

Phasing for Delivery

The policy will run throughout the Local Plan period.

Risks

The deliverability of the Policy will be reliant upon a range of factors which will inevitably have an associated risk. These factors can be summarised as:

- The delivery of key development schemes that can contribute to open space and green infrastructure improvements;
- The loss of existing green spaces for development could compromise the strategy; and
- Private landowners may not deliver / allow delivery to take place on their land.

Implications of the Risks In the current economic climate, it is unlikely the delivery of green infrastructure schemes will be funded through public finances. As such, the provision of linear parks, new sporting facilities and other improvements will be reliant upon contributions from developers delivering large schemes. If these schemes fail to come forward then the associated benefits such as open space improvements or community infrastructure, will also not come forward. In the event that green spaces become vulnerable to development as a result of the need to ensure a supply of land for housing, both existing and future communities would be disadvantaged in respect of amenity facilities provision.
Contingencies for the Risks The Council will apply the environmental protection policies consistently to avoid undermining their purpose and resultant loss of important open space to development. A positive development management attitude to proposals will ensure housing delivery in the most appropriate places takes place in a timely manner and avoids the need to consider less appropriate sites. Supporting proposals through the planning regime will also assist in securing development funds to be used for valuable green infrastructure provision.

Policy EN4: Preserving and Enhancing West Lancashire's Cultural and Heritage Assets
Who will Deliver the Policy Development Management will be required to encourage developers to produce well designed schemes in order to deliver this policy.
Phasing for Delivery This policy will run throughout the plan period.
Risks During periods of economic decline, high quality and low carbon design and character enhancement are often viewed as an optional extra which may be overlooked.
Implications of the Risks Poor quality design and architecture will be produced which will inevitably dilute the quality of character within the Borough. Low carbon development will not be delivered.
Contingencies for the Risks

Adoption of the Code for Sustainable Homes will allow a clear and measurable system within the planning framework to enable the Council to require specific interventions and building design standards in order to address climate change.

Appendix F Parking Standards

Car Parking Standards

Class	Broad land use	Specific land use	Spaces per gross floors area (unless indicated)		Disabled parking		Bicycles	Motorcycles	Coaches		Comments
			A	B	<200 bays	>200 bays			Parking minimum	Drop off minimum	
A1	Shops	Food retail	1 per 15 sqm	1 per 14 sqm	3 bays or 6% of total	4 bays + 4% of total	1 per 140 sqm (min 2 spaces)	1 per 350 sqm (min 2 spaces)	-	-	-
		Non-food retail	1 per 21 sqm	1 per 20 sqm			1 per 200 sqm (min 2)	1 per 500 sqm (min 2)	-	-	-
		Retail warehouse	1 per 45 sqm	1 per 40 sqm			1 per 200 sqm (min 2)	1 per 500 sqm (min 2)	-	-	-
A2	Financial and professional services	Banks, building societies, betting offices, estate and employment agencies, professional and financial services	1 per 32 sqm	1 per 30 sqm	3 bays or 6% of total	4 bays + 4% of total	1 per 200 sqm (min 2)	1 per 500 sqm (min 2)	-	-	
A3	Restaurants and cafés	Restaurants, cafés, snack bars, fast food and drive through	1 per 6 sqm of public floorspace	1 per 5 sqm of public floorspace	3 bays or 6% of total	4 bays + 4% of total	1 per 50 sqm (min 2)	1 space per 125 sqm	Negotiated on a case by case basis	Negotiated on a case by case basis	-
A4 A5	Drinking establishments Hot food takeaways	Public houses / wine bars other drinking establishments									

Appendix F Parking Standards

Class	Broad Land use	Specific Land Use	Spaces per gross floor area (unless indicated)		Disable parking		Bicycles	Motorcycles	Coaches		Comments
			A	B	<200 bays	>200 bays			Parking minimum	Drop off minimum	
B1	Business	Office, business parks, research and development	1 per 32 sqm	1 per 30 sqm	1 per disabled employee + 2 or 5% of total	6 + 2% of total capacity	1 per 300 sqm (min 2)	1 per 750 sqm (min 2)	-	-	
		Call centres	1 per 32sqm (starting point for all discussions)	1 per 30sqm (starting point for all discussions)	1 per disabled employee + 2 or 5% of total	6 + 2% of total capacity	1 per 300 sqm (min 2)	1 per 750 sqm (min 2)	-	-	-
B2	General Industry	General Industry	1 per 48 sqm	1 per 45 sqm	1 per disabled employee + 2 or 5% of total	6 + 2% of total capacity	1 per 450 sqm (min 2)	1 per 100 sqm (min 2)	-	-	
B8	Storage and distribution	Storage and distribution	1 per 100 sqm	1 per 100 sqm	1 per disabled employee + 2 or 5% of total	6 + 2% of total capacity	1 per 850 sqm (min 2)	1 per 2000 sqm (min 2)	-	-	

Class	Broad land use	Specific land use	Spaces per gross floor area (unless indicated)		Disabled parking		Bicycles	Motorcycles	Coaches		Comments
			A	B	>200 bays	<200 bays			Parking minimum	Drop off minimum	
C1	Hotels	Hotels, boarding and guest houses	1 per bedroom including staff parking provision	1 per bedroom including staff parking provision	3 bays or 6% of total	4 bays +4% of total	1 per 10 guest rooms (min 2)	1 per 25 guest rooms (min 2)	Negotiated on a case by case basis	1 (Hotels only)	
C2	Residential Institutions	Residential care homes / nursing homes	1 per 5 beds	1 per 5 beds	3 bays or 6% of total	4 bays +4% of total	1 per 40 beds (min 2)	1 per 100 beds (min 2)	-	-	
		University halls of residence and purpose built student accommodation (off-campus)	1 per 2 beds	1 per 2 beds	3 bays or 6% of total	4 bays +4% of total	1 per 10 beds (min 4)	1 per 50 beds (min 2)	-	-	
		Sheltered accommodation	1 per 3 beds	1 per 3 beds	3 bays or 6% of total	4 bays +4% of total	1 per 20 beds (min 2)	1 per 50 beds (min 2)	-	-	

Appendix F Parking Standards

Class	Broad land use	Specific land use	Spaces per gross floor area (unless indicated)		Disabled parking		Bicycles	Motorcycles	Coaches		Comments
			A	B	<200 bays	>200 bays			Parking minimum	Drop off minimum	
D1	Non residential institutions	Clinic and health centres (excluding hospitals)	1 per 2 staff + 4 per consulting room	1 per 2 staff + 4 per consulting room	3 bays or 6% of total	4 bays +4% of total	2 per consulting room (min)	1 per 2 consulting rooms (min)	-	-	
		Creches, day nurseries and day centres	1 per member of staff	1 per member of staff	3 bays or 6% of total	4 bays +4% of total	1 per 4 staff = 1 per 200sqm (min)	1 per 10 staff	Negotiated on a case by case basis	Negotiated on a case by case basis	
		Schools (primary and secondary)	2 per classroom	2 per classroom	Case by case	Case by case	1 per 5 staff + 1 per 3 students	1 per 10 staff	Case by case based on demand for school buses	1	
		Art galleries, museums, libraries	1 per 25 sqm	1 per 20 sqm	3 bays or 6% of total	4 bays +4% of total	1 per 200 sqm (min 2)	1 per 500 sqm (min 2)	Case by case	1	
		Halls and places of worship	1 per 6 sqm	1 per 5 sqm	3 bays or 6% of total	4 bays +4% of total	1 per 50 sqm (min 2)	1 per 125 sqm (min 2)			
		Higher and further education	1 per 2 staff + 1 per 15 students	1 per 2 staff + 1 per 15 students	Case by case	Case by case	1 per 5 staff + 1 per 3 students	1 per 10 staff + 1 per 10 students	Case by case	1	
D2	Assembly and leisure	Cinemas, bingo and casinos, conference centres, music and concert halls	1 per 6 seats	1 per 5 seats	3 bays or 6% of total	4 bays +4% of total	1 per 20 seats (min 2)	1 per 50 seats (min 2)	Case by case	1	

Class	Broad land use	Specific land use	Spaces per gross floor area (unless indicated)		Disabled parking		Bicycles	Motorcycles	Coaches		Comments
			A	B	<200 bays	>200 bays			Parking minimum	Drop off minimum	
		General leisure, dance halls (not night clubs), swimming baths, skating rinks, gymnasiums	1 per 23 sqm	1 per 22 sqm	3 bays or 6% of total	4 bays +4% of total	1 per 20 seats (min 2 seats)	1 per 50 seats (min 2)	Case by case	1	

Appendix F Parking Standards

Class	Broad land use	Specific land use	Spaces per gross floor area (unless indicated)		Disabled parking		Bicycles	Motorcycles	Coaches		Comments
			A	B	>200 bays	<200 bays			Parking minimum	Drop off minimum	
	Miscellaneous Sui Generis	Theatres	1 per 6 seats	1 per 5 seats	3 bays or 6% of total	4 bays +4% of total	1 per 20 seats (min 2)	1 per 50 seats (min 2)	Case by case	1	
		Motor car showrooms	1 per 52sqm internal showroom	1 per 50sqm internal showroom	3 bays or 6% of total	4 bays + 4% of total	1 per 5 staff	Minimum of 2 spaces	-	-	
		Petrol filling stations	1 space per pump	1 space per pump	1 space minimum	-	1 per 5 staff	Minimum of 2 spaces	-	-	

Accessibility Area Categories (to be used in conjunction with table F1-F4)	
Accessibility Area	Location
A	Non-metropolitan key service centres (Skelmersdale and Up Holland, Ormskirk with Aughton and Burscough)
B	All other areas, including key sustainable villages, rural sustainable villages and small rural villages as defined in SP1

Table F.1

Appendix G Minor Amendments to the Green Belt Boundary

Site	Nature	Reason
Burscough		
Burscough Sports Centre	Green Belt boundary and Green Space amended at north-east corner of Burscough Sports Centre	To match OS base map
4 Back Lane	Green Belt boundary amended	To match OS base map
Rear of 53 Moss Nook	Green Belt boundary amended	To match OS base map
Gemini and 98 Moss Nook	Green Belt boundary amended	To match OS base map
3 Back Moss Lane	Green Belt boundary amended	To match OS base map
Warpers Moss Lane	Green Belt boundary amended	To match OS base map
South curve	Green Belt boundary amended	To match OS base map
Heathfields estate	Green Belt boundary amended	To match OS base map
Pippin Street roundabout	Green Belt boundary amended	To match OS base map
Adj. 80 Orrell Lane	Green Belt boundary amended	To match OS base map
Aughton		
Rear of 34 Smithy Lane	Green Belt boundary amended	To match OS base map
Halsall		
Halsall St. Cuthbert's School	Green Belt boundary and Green Space amended at south-east corner of Halsall St Cuthbert's School	To match OS base map

Appendix G Minor Amendments to the Green Belt Boundary

Site	Nature	Reason
Halsall Manor Court	Green Belt boundary amended	The Green belt covered part of Halsall Manor Court
Poppy Close and Daisy Way	Green Belt boundary amended	To match OS base map
Haskayne		
Jackson Close	Green Belt boundary amended on western side of Jackson Close	To replace a strip of land that had no allocation
Scarisbrick		
Eastern side of Otterstye View and rear of adjoining properties on Southport Road	Green Belt boundary amended	To match OS base map
Adjacent to 186 Southport Road, Turning Lane and Kew House Drive	Green Belt boundary amended	To match OS base map
Adjacent to 19 Drummersdale Lane, Bescar	Green Belt boundary amended	To match OS base map and road
Westhead		
Front of 137 Crosshall Brow	Green Belt boundary amended	To match residential curtilage
Rear of 2A Wigan Road	Green Belt boundary amended	To match OS base map
The Hollies and Holly Barn, School Lane	Green Belt boundary amended	To make a more logical boundary
Stanley Gate		
143A Liverpool Road and adj. Holly Cottage, Lathom Road	Green Belt boundary amended	To match OS base map
Rear gardens of properties on Lathom Road	Green Belt boundary amended	The online version did not match the printed maps. Boundary amended to reflect the printed maps

Appendix G Minor Amendments to the Green Belt Boundary

Site	Nature	Reason
Parbold		
Greenfield Avenue	Green Belt boundary amended at rear of properties on Greenfield Avenue	To match OS base map
Lathom Avenue	Green Belt boundary amended by properties at northern end of Lathom Avenue	To match OS base map
Wrightington		
Adj. 161 and 194 Mossy Lea Road	Green Belt boundary amended	To match OS base map
Crawford		
Lindsay Cottage	Green Belt boundary amended	The Green Belt ran through the middle of the property
Tontine		
County High School	Green Belt boundary amended	To match OS base map
Mere Brow		
East of 9 Mere Brow Lane	Green Belt boundary amended to follow southern bank of Tarleton Runner east of 9 Mere Brow Lane	To match OS base map
Tarleton		
Junction of Coe Lane and Windgate	Green Belt boundary and open space amended	To match the road junction
Hesketh Bank		
199 – 203 Chapel Road	Green Belt boundary amended	To account for new housing developed straddling the previous Green Belt boundary

Appendix H Schedule of Saved Policies to be Replaced by this Local Plan

The following Policies from the West Lancashire Replacement Local Plan 2001-2016 (adopted July 2006) were saved via a Direction under Paragraph 1(3) of Schedule 8 to the Planning and Compulsory Purchase Act 2004 from the Secretary of State for Communities and Local Government on 13 May 2009. The West Lancashire Local Plan 2012-2027 Development Plan Document will replace these Policies in their entirety.

Policy DS 1 - Location of Development

Policy DS 2 - Protecting the Green Belt

Policy DS 3 - Safeguarded Land

Policy DS 4 - Open Land on the Urban Fringe

Policy GD 1 - Design of Development

Policy GD 2 - Developer Contributions to Infrastructure

Policy GD 3 - Development of Contaminated Land

Policy EN 1 - Biodiversity

Policy EN 2 - Protection of Agricultural Land

Policy EN 3 - Coastal Zone

Policy EN 4 - Conservation Areas

Policy EN 5 - Buildings of Historic Importance

Policy EN 6 - Archaeological Heritage

Policy EN 7 - Protection of Historic Parks and Gardens

Policy EN 8 - Green Spaces

Policy EN 9 - Protection of Trees and Woodlands

Policy EN 10 - Flood Risk

Policy EN 11 - Protection of Water Resources

Appendix H Schedule of Saved Policies to be Replaced by this Local Plan

Policy DE 1 - Residential Development

Policy DE 2 - Whalleys, Skelmersdale

Policy DE 3 - Affordable Housing Development

Policy DE 5 - Employment Development

Policy DE 6 - The Rural Economy

Policy DE 7 - Agricultural Produce Packing Facilities

Policy DE 8 - Accommodation for Temporary Agricultural/ Horticultural Workers

Policy DE 9 - Removal of Agricultural Workers Dwelling Conditions

Policy DE 10 - Retail and Other Town Centre Development

Policy DE 11 - Skelmersdale Town Centre

Policy DE 12 - Ormskirk Town Centre

Policy DE 13 - Business and Office Development

Policy DE 14 - Development Opportunity Sites

Policy DE 15 - Tollgate Road / Pippin Street, Burscough

Policy DE 16 - Former Hattersley Works, Burscough Road, Ormskirk

Policy SC 1 - Sports, Recreational, Leisure and Cultural Facilities

Policy SC 2 - Recreation Facilities

Policy SC 3 - Linear Parks

Policy SC 4 - Educational Facilities

Policy SC 5 - Health Facilities

Policy SC 6 - Roads

Policy SC 7 - Public Transport

Policy SC 8 - Land at the Railway Pad, Appley Bridge

Policy SC 9 - Cycling and Walking Facilities

Policy SC 10 - Infrastructure, Services and Utilities

Policy SC 11 - Telecommunications

Policy SC 12 - Renewable Energy

Policy SC 13 - Cemeteries and Crematoria

One policy from the West Lancashire Replacement Local Plan 2001-2016 (adopted July 2006) will continue to be saved as part of the Development Plan until the new Provision for Travellers' Site DPD is adopted:

Policy DE 4 - Caravan Sites for Gypsies and Travelling Show People

Appendix I Schedule of Nature Conservation Sites

Schedule of Nature Conservation Sites in West Lancashire

These sites are identified within the attached Policies Maps as Policy EN2 (1.a) as Nature Conservation Sites.

Ramsar sites

Ribble Estuary	Hesketh-with-Becconsall/North Meols	SD 400 250
Martin Mere	Burscough	SD 425 143

Special Protection Areas

Ribble Estuary	Hesketh-with-Becconsall/North Meols	SD 400 250
Martin Mere	Burscough	SD 425143

National Nature Reserves

Ribble Estuary	Hesketh-with-Becconsall/North Meols	SD 400 250
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Sites of Special Scientific Interest

Ribble Marshes	Hesketh-with-Becconsall/North Meols	SD 400 250
Martin Mere	Burscough	SD 425 143
Mere Sands Wood	Rufford	SD 447 157
Wrightington Bar Pasture	Wrightington	SD 544 150
Downholland Moss	Downholland	SD 320 080
Ravenhead Brickworks	Up Holland	SD 512 048

Regionally Important Geological Sites

Skellow Clough	Bispham	SD 488 128
Aughton Park Station	Aughton	SD 408 068
Pimbo Bush Quarry	Skelmersdale	SD 516 032
The Ruff	Ormskirk	SD 427 075
Crossens Pumping Station	North Meols	SD 382 205

Appendix I Schedule of Nature Conservation Sites

Lancashire County Heritage Sites: Biological Heritage Sites

Haskayne Cutting	Downholland/Halsall	SD 357 089
Downholland and Associated Brooks	Downholland/Great Altcar	SD 326 086
Formby Moss	Downholland	SD326 095
Moss Heath and Wood	Great Altcar	SD 366 072
Cheshire Lines & Moss Lane Ditches	Downholland	SD 331 082
White Grass and Barton Gorse	Downholland	SD 331 096
Orritt's Wood	Downholland	SD 343 078
Little Wood	Downholland	SD 341 091
Downholland Moss	Downholland	SD 320 080
Altcar Withins	Great Altcar	SD 340 050
Carr Wood and Carr Wood Rushes	Great Altcar	SD 345 047
Brook Farm Bridge Drains	North Meols	SD 371 168
The Sluice	North Meols	SD 386 196
Halsall Marsh	Halsall	SD 366 107
Scarisbrick Hall Woods & Dam Wood	Scarisbrick	SD 395 120
High Brows Covert	Scarisbrick	SD 367 149
Plex Moss Covert	Halsall	SD 336 104
King's Covert	Halsall	SD 337 129
Twig Beds, Halsall Moss	Halsall	SD 347 119
Halsall and Plex Mosses	Halsall	SD340 110
Banks Marsh Embankments	North Meols	SD 376 217
Dicket's Brook Wood	Skelmersdale	SD 450 073
Stanley's Firs	Skelmersdale	SD 459 073
Tawd Valley Woods	Lathom/Newburgh	SD 470 090
Tawd Valley Park	Skelmersdale	SD 481 069
Westheads Clough	Skelmersdale	SD 488 067
Delph Clough	Skelmersdale	SD 493 062

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Elmer's Green Common and Clough	Skelmersdale	SD 497 065
Ram's Close Wood	Dalton	SD 499 088
Ruff Wood	Ormskirk	SD 427 075
New Park Wood	Lathom	SD 440 086
Copy Wood	Lathom	SD 446 087
Ferny Knoll Bog	Bickerstaffe	SD 476 042
Nipe Lane	Skelmersdale	SD 479 044
Holland Moss	Up Holland	SD 487 037
Cunsough Brook Grassland	Aughton	SD 407 032
Bickerstaffe Moss	Bickerstaffe	SD 437 020
Rufford Park	Rufford	SD 456 162
Rufford Railway Hollows	Rufford	SD 464 150
Mere Brow (Leisure Lakes)	Tarleton	SD 408 178
Nuck's Wood	Tarleton	SD 416 166
Holmeswood Woodlands	Rufford/Tarleton	SD 420 178
Mere Sands Wood	Rufford	SD 447 157
Windmill Farm Drain	Burscough	SD 429 156
Martin Mere Mosslands	Burscough/North Meols/Scarisbrick	SD 400 160
Windmill Fields	Burscough	SD 425 154
Leeds-Liverpool Canal, Rufford Branch	Burscough/Rufford/Tarleton	SD 456 130
Rufford Boundary Sluice	Rufford	SD 464 148
Low Meadows, North and Wham Ditch	Lathom	SD 468 146
Wood Lane Pasture	Parbold	SD 498 105
Eller Brook and Hoscar Moss Fields	Burscough/Lathom	SD 459 131
Abbey Lane Brick Pits	Burscough	SD 433 104
Burscough North West Curve	Burscough	SD 448 124
Platts Lane Pits	Burscough	SD 441 107
River Douglas Estuary	Hesketh-with-Becconsall/Tarleton	SD 456 245

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River Douglas Embankment	Hesketh-with-Becconsall	SD 452 249
Hesketh Old Marsh Embankment	Hesketh-with-Becconsall	SD 422 236
Camp Fields	Hesketh-with-Becconsall	SD 441 230
Hesketh Bank Brickworks South	Hesketh-with-Becconsall/Tarleton	SD 449 227
Hesketh Bank Brickworks North (Alty's)	Hesketh-with-Becconsall	SD 448 230
Marsh Farm Fields	North Meols	SD 408 232
Hesketh Old and New Marsh Fields	Hesketh-with-Becconsall	SD 415 248
Rough Park and College Woods	Up Holland	SD 513 065
Lees Wood	Up Holland	SD 517 077
Lees Brook Pasture	Up Holland	SD 518 077
Dingle Quarry and Dalton Quarry	Dalton	SD 516 085
Holland Lees Wood	Dalton/Up Holland	SD 517 084
Green Alley Wood	Up Holland	SD 529 079
Haldren Wood	Up Holland	SD 523 081
Coppice Bank Wood	Up Holland	SD 526 082
Dean Wood	Up Holland	SD 534 073
Black Brook Woodland	Up Holland	SD 502 024
Pimbo Lane Pit	Up Holland	SD 515 046
Alder Lane Brook	Parbold	SD 502 108
Bramble Way	Parbold	SD 497 103
Hunter's Hill Delf and Hawett Hill Delf	Wrightington	SD 503 122
Fairy Glen and Delf House Wood	Parbold/Wrightington	SD 517 106
Harrock Hill	Wrightington	SD 513 133
Big Wood and Wrightington Ponds	Wrightington	SD 534 106
Syd Brook Valley	Wrightington	SD 544 140
Counce's Road Ditch	Scarisbrick	SD 401 160

Appendix I Schedule of Nature Conservation Sites

Local Nature Conservation Sites

Rabbit Hill	Great Altcar	SD 351 063
Acre Lane Fields Ponds	Great Altcar	SD 355 052
Scarisbrick Park	Scarisbrick	SD 387 130
Goose Dub Covert, Banks	North Meols	SD 383 212
Banks Sewage Works	North Meols	SD 381 205
Woodland in Simonswood	Bickerstaffe	SD 412 015
Ox Hey Plantation	Bickerstaffe	SD 437 044
Bickerstaffe Wood	Bickerstaffe	SD 447 037
Woodlands Plantation, Simonswood	Bickerstaffe	SD 435 003
Prescot Road Quarry	Aughton	SD 407 066
Greetby Hill Railway Cuttings	Ormskirk	SD 427 086
Ormskirk Sidings	Ormskirk	SD 420 087
Manor Farm, Hesketh Bank	Hesketh-with-Beaconsall	SD 430 231
Carry Heys Plantation, Hesketh Bank	Hesketh-with-Beaconsall	SD 445 212
Skellow Clough	Bispham	SD 488 128
Dock Brook	Parbold	SD 492 106
Tontine Road Pit	Up Holland	SD 521 045
Abbey Lakes	Up Holland	SD 527 048
Dennet's House, Lower Pimbo	Skelmersdale	SD 512 036
Appley Lock Pasture	Parbold	SD 517 096
Old Varnish Works, Appley Bridge	Parbold	SD 519 094
North Hawsclough Quarry	Dalton	SD 500 090
Beacon Park	Up Holland	SD 500 100
Smith Croft Delph	Parbold	SD 504 124
Wrightington Hall and Park	Wrightington	SD 528 112
Abbey Lane Brick Pits	Burscough	SD 433 104
Platts Lane Pits	Burscough	SD 442 108
Pimbo Bushes, Pimbo	Skelmersdale	SD 516 032

Appendix I Schedule of Nature Conservation Sites

Graw Hill/Gorse Hill	Aughton	SD396 079
Eller Brook/Sutches Woods	Lathom	SD 452 106
Moss Delf	Aughton	SD 401 061
Pinfold Quarry	Scarisbrick	SD 390 114

Appendix J Allocations identified by the Habitats Regulations Assessment

Site allocations identified by the Habitats Regulations Assessment of the Local Plan

Those sites where there is potential for the site to affect supporting habitat for Martin Mere SPA / Ramsar site or Ribble & Alt Estuaries SPA / Ramsar site.

In order to ensure compliance with legislation, national policy and policy EN2 of the Local Plan when determining planning applications for these sites, the applicant should submit an Ornithology report containing sufficient information to demonstrate that consideration has been given to the potential for the disturbance of birds and, if necessary, that suitable mitigation measures will be implemented to the satisfaction of the Council. This will allow the Council to screen the project against the HRA (or current equivalent legislation) and relevant national and local policy.

- Yew Tree Farm, Burscough
- Land at Red Cat Lane, Burscough
- Land at Moss Road, Halsall
- Land at Fine Jane's Farm, Halsall
- Land at New Cut Lane, Hasall
- Land at Guinea Hall Lane / Greaves Hall Avenue, Banks
- Land between Greaves Hall Avenue and Southport New Road, Banks
- Orrell Lane, Burscough
- Simonswood Industrial Estate
- Greaves Hall Hospital, Banks
- Grove Farm, Ormskirk
- Proposed A570 Ormskirk bypass
- A new rail station in Skelmersdale including new track (location not specified)
- An appropriate rail link made between the Ormskirk-Preston line and Southport-Wigan line

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